COMPLETE REVISION EDITION

Polity

Consolidated Must-Score Facts and High-Yield Comparison Tables together for every chapter.

UPPCS + UKPCS Study Library · chapter order follows Subject Notes.

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Daily Read — High-Yield Revision Facts

Consolidated — 45 Must-Score Facts

1. The **Constitution of India** is the lengthiest written constitution in the world; originally adopted on **26 November 1949** with **395 Articles, 22 Parts, and 8 Schedules**, it currently comprises **25 Parts and 12 Schedules** (with about 470 Articles in numerical continuity).
2. Under **Article 1**, India is described as a **'Union of States'** rather than a federation, signifying that the Indian federation is not the result of an agreement among States and that no State has the right to secede from the Union.
3. The **Preamble** declares India to be a **'Sovereign Socialist Secular Democratic Republic'**; the terms **'Socialist'**, **'Secular'**, and **'Integrity'** were added by the **42nd Constitutional Amendment Act, 1976** on the recommendation of the Swaran Singh Committee.
4. The Preamble secures to all citizens: **Justice** (Social, Economic, and Political — 3 types); **Liberty** (Thought, Expression, Belief, Faith, and Worship — 5 types); **Equality** (Status and Opportunity — 2 types); and promotes **Fraternity** assuring individual dignity and national unity/integrity.
5. In ***Kesavananda Bharati v. State of Kerala (1973)***, a 13-judge bench ruled (7:6) that the Preamble is an integral **part of the Constitution** (overruling the 1960 *Berubari Union* opinion) and formulated the **Basic Structure Doctrine**.
6. Major Constitutional Borrowings: **UK** provided Parliamentary Government, Rule of Law (Art. 14), Single Citizenship, Cabinet system, Prerogative Writs, Bicameralism, and the office of the Speaker.
7. **USA** provided **Fundamental Rights** (Part III), Independence of Judiciary, **Judicial Review** (Art. 13), **Impeachment of the President** (Art. 61), Removal of SC/HC Judges, and the office of the Vice-President.
8. **Ireland** provided the **Directive Principles of State Policy (DPSP)** (Part IV), the method of **Presidential Election** (PR-STV), and nomination of **12 members to Rajya Sabha** by the President.
9. **Canada** provided a Federation with a **strong Centre**, vesting of **Residuary Powers in the Centre** (Art. 248), appointment of State Governors by the Centre, and the **Advisory Jurisdiction of the Supreme Court** (Art. 143).
10. **Australia** provided the **Concurrent List** (7th Schedule), Freedom of Trade, Commerce and Intercourse (Part XIII), and the mechanism of **Joint Sitting of Parliament** (Art. 108).
11. **Germany (Weimar Constitution)** provided the provision for **suspension of Fundamental Rights during National Emergency** (Art. 359). Note: The emergency framework itself is largely drawn from the **Government of India Act, 1935**.
12. **USSR (Russia)** provided **Fundamental Duties** (Art. 51A, Part IVA) and the ideals of Social, Economic, and Political Justice in the Preamble; **France** provided the Republic and the ideals of Liberty, Equality, and Fraternity.
13. **South Africa** provided the procedure for **Amendment of the Constitution** (Art. 368) and the election of members of the Rajya Sabha by elected MLAs.
14. **Schedules Master Summary (TEARS OF OLD PM):** 1st (28 States & 8 UTs); 2nd (Salaries of President, Governors, Judges, CAG — *Ministers are NOT in 2nd Sch*); 3rd (Forms of Oaths — *President, VP, and Governors take oath under Arts. 60, 69, 159, NOT 3rd Sch*); 4th (Rajya Sabha seats: UP leads with 31 seats).
15. **Schedules 5 & 6:** The **5th Schedule** governs Scheduled Areas in 10 States; the **6th Schedule** provides Autonomous District Councils in **4 North-Eastern States: AMTM** (Assam, Meghalaya, Tripura, Mizoram; *Manipur is NOT included*).
16. **Schedules 7 to 12:** 7th (Union: 100, State: 61, Concurrent: 52 entries); 8th (22 Languages); 9th (Validation of Acts, added by 1st Amd 1951; post-1973 laws subject to judicial review per *Coelho case*); 10th (Anti-Defection Law, 52nd Amd 1985); 11th (Panchayats: **29 subjects**, 73rd Amd 1992); 12th (Municipalities: **18 subjects**, 74th Amd 1992).
17. **Eighth Schedule Language Additions:** Originally 14 languages; **Sindhi** added by 21st Amd (1967); **Konkani, Manipuri, Nepali** (KMN) added by 71st Amd (1992); **Bodo, Dogri, Maithili, Santhali** (BDMS) added by 92nd Amd (2003). *English and Bhojpuri are NOT in the 8th Schedule*.
18. **Citizenship (Articles 5–11, Part II):** India has **single citizenship**; the Citizenship Act of **1955** provides 5 modes of acquisition (Birth, Descent, Registration, Naturalisation, Incorporation) and 3 modes of loss (Renunciation, Termination, Deprivation).
19. **Fundamental Rights exclusively for Citizens:** Articles **15, 16, 19, 29, and 30** are available ONLY to Indian citizens; all other Fundamental Rights (Arts. 14, 20, 21, 21A, 22, 25, 26, 27, 28) apply to both citizens and foreigners (except enemy aliens).
20. **Article 12 & 13:** Article 12 defines 'State' for Part III purposes (including statutory and non-statutory authorities like LIC, ONGC, SAIL); Article 13 establishes **Judicial Review**, voiding any law violative of Fundamental Rights (*Doctrines of Severability and Eclipse*).
21. **Right to Equality (Articles 14–18):** Art. 14 (Equality before Law — UK negative concept; Equal Protection of Laws — US positive concept); Art. 15 (No discrimination *only* on grounds of religion, race, caste, sex, place of birth; 15(4) backward classes, 15(6) 10% EWS); Art. 16 (Equal opportunity in public employment); Art. 17 (Abolition of Untouchability — absolute right); Art. 18 (Abolition of Titles).
22. **Article 19 (Six Democratic Freedoms):** 19(1)(a) Speech & Expression; 19(1)(b) Peaceful assembly without arms; 19(1)(c) Associations/Unions/Cooperatives; 19(1)(d) Free movement throughout India; 19(1)(e) Reside and settle; 19(1)(g) Trade/Occupation. The right to property under 19(1)(f) was repealed by the **44th Amendment, 1978**.
23. **Article 20 (Three Criminal Safeguards):** Protection against **ex-post-facto criminal laws** (20(1)), protection against **Double Jeopardy** (20(2)), and protection against **Self-Incrimination** (20(3) — applies only to accused in criminal proceedings).
24. **Article 21 & 21A:** Article 21 guarantees protection of life and personal liberty; expanded in ***Maneka Gandhi (1978)*** to require 'Due Process of Law' (just, fair, and reasonable procedure) and in ***Puttaswamy (2017)*** to include the **Right to Privacy**. **Article 21A** (Right to Education ages 6–14) was added by the **86th Amendment, 2002**.
25. **Non-Suspendable Rights:** Under **Article 359** (as amended by 44th Amd 1978), the enforcement of **Articles 20 and 21 CANNOT BE SUSPENDED** even during a National Emergency.
26. **Prerogative Writs (Art. 32 vs Art. 226):** Dr. Ambedkar described **Article 32** as the 'Heart and Soul' of the Constitution. The Supreme Court issues writs only for Fundamental Rights, whereas the High Court under **Article 226** can issue writs for both Fundamental Rights and ordinary legal rights (making Art. 226 broader in scope).
27. **The Five Writs: Habeas Corpus** ('To have the body of', against both public and private entities); **Mandamus** ('We Command', against public officials for statutory duties; *cannot issue against President or Governor*); **Prohibition** (preventive against lower courts); **Certiorari** (quashes illegal orders of judicial/quasi-judicial/administrative bodies); **Quo-Warranto** ('By what authority', challenges illegal tenure in substantive public office).
28. **Key Directive Principles (Part IV):** Art. 39A (Equal Justice & Free Legal Aid — 42nd Amd); Art. 40 (Village Panchayats); Art. 43B (Cooperatives — 97th Amd); Art. 44 (Uniform Civil Code); Art. 45 (Early childhood care up to age 6 — 86th Amd); Art. 48A (Environment & Wildlife — 42nd Amd); Art. 50 (Separation of Judiciary from Executive).
29. **Fundamental Duties (Part IVA, Art. 51A):** Added by the **42nd Amendment, 1976** on the recommendation of the **Swaran Singh Committee**; non-justiciable; originally 10 duties; the **11th duty** (education of child aged 6–14 by parent/guardian) was added by the **86th Amendment, 2002**.
30. **Presidential Election (Articles 54 & 55):** Electoral College consists of: (1) Elected members of both Houses of Parliament; (2) Elected members of State Legislative Assemblies; (3) Elected members of Delhi and Puducherry Assemblies (70th Amd 1992). *Nominated MPs/MLAs and ALL Legislative Council members (MLCs) DO NOT VOTE*.
31. **Vice-Presidential Election (Article 66):** Electoral College consists of **ALL members of both Houses of Parliament (both Elected and Nominated)**. State MLAs and MLCs have NO role in the Vice-President's election.
32. **Impeachment of President (Article 61):** Quasi-judicial process initiated in either House on grounds of 'Violation of the Constitution'; requires 14 days' written notice signed by 1/4th members; must be passed by a **special majority of not less than 2/3rds of the TOTAL MEMBERSHIP** of each House.

33. **Pardoning Power (Art. 72 vs Art. 161):** The **President (Art. 72)** can grant pardons in all cases including **Death Sentences** and **Court-Martial (military)** sentences; the **Governor (Art. 161)** has no power to pardon death sentences or court-martial punishments.
34. **Ordinance Promulgation (Art. 123 vs Art. 213):** The President (Art. 123) and Governor (Art. 213) can issue ordinances only when the legislature is in recess; an ordinance ceases to operate **6 weeks** after the reassembly of the legislature (maximum duration is 6 months + 6 weeks).
35. **Council of Ministers Size (91st Amendment, 2003):** Total number of Ministers including the Prime Minister (or Chief Minister in States) shall not exceed **15% of the total strength** of the Lok Sabha (or State Legislative Assembly); in States, the minimum number of ministers cannot be less than **12** (Art. 164(1A)).
36. **Joint Sitting of Parliament (Article 108):** Summoned by the President to resolve deadlocks on Ordinary or Financial Bills; presided over by the **Speaker of Lok Sabha** (or Deputy Speaker / Deputy Chairman of Rajya Sabha; *Chairman of Rajya Sabha NEVER presides*). *NO joint sitting is permissible for Money Bills or Constitutional Amendment Bills*.
37. **Money Bill (Article 110):** Introduced only in Lok Sabha with prior presidential recommendation; the Speaker's decision that a bill is a Money Bill is final; Rajya Sabha cannot reject or amend it, and must return it within **14 days**.
38. **Comptroller and Auditor General (CAG, Article 148):** Appointed by the President; tenure is **6 years or up to 65 years of age**; removed on the same grounds and manner as a Supreme Court Judge; audits accounts of Union and States; reports submitted to PAC.
39. **Finance Commission (Article 280):** Quasi-judicial body constituted by the President every 5th year; consists of a **Chairman and 4 other members**; recommends devolution of net tax proceeds between Union and States.
40. **Election Commission of India (Article 324):** Consists of Chief Election Commissioner (CEC) and Election Commissioners; CEC is removed in the same manner and grounds as a Supreme Court Judge. *Elections to Panchayats and Municipalities are conducted by the State Election Commission (Arts. 243K & 243ZA), NOT by the ECI.*
41. **All-India Services (Article 312):** The **Rajya Sabha** has the exclusive constitutional power to pass a resolution by a **2/3rd majority of members present and voting** declaring it necessary in the national interest to create one or more new All-India Services.
42. **Emergency Provisions (Part XVIII): Art. 352** (National Emergency: War, External Aggression, Armed Rebellion — approved within 1 month by special majority); **Art. 356** (President's Rule: failure of constitutional machinery — approved within 2 months by simple majority; max 3 years); **Art. 360** (Financial Emergency — never imposed).
43. **Constitutional Amendment (Article 368, Part XX):** Requires Special Majority (majority of total membership + 2/3rd of members present and voting); federal provisions require additional ratification by legislatures of not less than half the States; the President **must give assent** to an amendment bill (24th Amd 1971).
44. **Warrant of Precedence (1979 Notification):** 1. President → 2. Vice-President → 3. Prime Minister → 4. Governors (within their States) → 5. Former Presidents → 6. CJI and Lok Sabha Speaker (Equal Rank) → 7. Union Cabinet Ministers, Chief Ministers (within States), Leaders of Opposition → 7A. Bharat Ratna awardees → 9. Supreme Court Judges → 9A. CEC, CAG, UPSC Chairman → 11. Attorney General for India, Cabinet Secretary.
45. **Uttar Pradesh Political Structure:** Vidhan Sabha has **403 seats** (84 reserved for SC, 2 for ST); Vidhan Parishad has **100 seats**; Lok Sabha representation is **80 seats** (17 SC, 0 ST); Rajya Sabha representation is **31 seats** (highest in the country).

1. Borrowed Features of the Indian Constitution (Country-Wise Master Table)

Source Country / Document	Borrowed Features & Principles
Government of India Act 1935 (*Major Source — >50% of text*)	Federal Scheme, Office of Governor, Judiciary structure, Public Service Commissions (UPSC/SPSC), Emergency provisions (administrative details), Administrative details.
United Kingdom (British Constitution)	Parliamentary form of government, Rule of Law (Art. 14), Legislative procedure, **Single Citizenship**, Cabinet system, Prerogative **Writs** (Art. 32/226), Parliamentary privileges (Art. 105), **Bicameralism**, Office of Speaker & Deputy Speaker.
United States (American Constitution)	**Fundamental Rights** (Part III), Independence of Judiciary, **Judicial Review** (Art. 13), **Impeachment of the President** (Art. 61), Removal of Supreme Court & High Court judges, Post of **Vice-President** (ex-officio Chairman of Rajya Sabha), Preamble phrasing ("We the People").
Ireland (Irish Constitution 1937)	**Directive Principles of State Policy (DPSP)** (Part IV), Nomination of 12 members to Rajya Sabha by President, Method of **Election of the President** (proportional representation by STV).
Canada	Federation with a **strong Centre**, Vesting of **Residuary Powers in the Centre** (Art. 248), **Appointment of State Governors by the Centre**, Advisory jurisdiction of the Supreme Court (Art. 143).
Australia	**Concurrent List** (7th Schedule), Freedom of Trade, Commerce, and Intercourse (Part XIII), **Joint Sitting of both Houses of Parliament** (Art. 108).
Germany (Weimar Constitution)	**Suspension of Fundamental Rights during National Emergency** (Art. 359). *(Note: Emergency itself is from GOI 1935, suspension of FR is from Weimar!)*
USSR / Russia (Soviet Constitution)	**Fundamental Duties** (Art. 51A, Part IVA - 42nd Amd 1976), Ideals of **Justice (Social, Economic, and Political)** in the Preamble, Five-Year Plans.
France (French Constitution)	Ideals of **Liberty, Equality, and Fraternity** in the Preamble; **Republic** character of the Indian State.
South Africa	Procedure for **Amendment of the Constitution** (Art. 368), **Election of members of the Rajya Sabha** (by elected MLAs via STV).
Japan	Procedure established by Law (*Vidhi dwara sthapit prakriya* - Art. 21).

2. Parts of the Indian Constitution (All 25 Parts Cheat-Sheet)

Originally 22 Parts in 1950; currently 25 Parts (counting sub-parts: IVA, IXA, IXB, XIVA; Part VII repealed).

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part I	**I**	**The Union and its Territory**	**Arts. 1–4**	Art. 1: "India, that is Bharat, shall be a Union of States"; Art. 3: Parliament alters state boundaries/names by simple majority
Part II	**II**	**Citizenship**	**Arts. 5–11**	Single citizenship (borrowed from UK); Citizenship Act 1955
Part III	**III**	**Fundamental Rights**	**Arts. 12–35**	**"Magna Carta of India"**; borrowed from US Bill of Rights; justifiable
Part IV	**IV**	**Directive Principles of State Policy (DPSP)**	**Arts. 36–51**	Borrowed from Ireland; non-justiciable; fundamental in the governance of the country
Part IVA	**IV-A**	**Fundamental Duties**	**Art. 51A**	Added by **42nd Amendment 1976** (Swaran Singh Committee); 10 originally, 11th added by **86th Amendment 2002**; non-justiciable
Part V	**V**	**The Union Government**	**Arts. 52–151**	Ch. 1: Executive (52–78), Ch. 2: Parliament (79–122), Ch. 3: President's Legislative Power (123), Ch. 4: Union Judiciary (124–147), Ch. 5: CAG (148–151)
Part VI	**VI**	**The State Governments**	**Arts. 152–237**	Governor (153–162), State Legislature (168–212), Governor's Ordinance (213), High Courts (214–232), Subordinate Courts (233–237)
Part VII	*VII*	*States in Part B of First Schedule*	*Art. 238*	**REPEALED** by **7th Constitutional Amendment Act 1956**
Part VIII	**VIII**	**The Union Territories**	**Arts. 239–242**	Administration of UTs by President through Administrator / Lieutenant Governor; Art. 239AA: Special status to NCT of Delhi (69th Amd 1991)
Part IX	**IX**	**The Panchayats**	**Arts. 243 to 243-O**	Inserted by **73rd Amendment 1992**; 3-tier Panchayati Raj; 11th Schedule (29 functional items)

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part IXA	**IX-A**	**The Municipalities**	**Arts. 243P to 243ZG**	Inserted by **74th Amendment 1992**; Urban Local Bodies; 12th Schedule (18 functional items)
Part IXB	**IX-B**	**The Co-operative Societies**	**Arts. 243ZH to 243ZT**	Inserted by **97th Amendment 2011** (partially struck down in 2021 for state cooperatives, holds for multi-state)
Part X	**X**	**The Scheduled and Tribal Areas**	**Arts. 244–244A**	5th & 6th Schedules administration
Part XI	**XI**	**Relations between the Union and the States**	**Arts. 245–263**	Ch. 1: Legislative Relations (245–255), Ch. 2: Administrative Relations (256–263); Art. 263: Inter-State Council. **Trap: NOT municipalities or tribunals!**
Part XII	**XII**	**Finance, Property, Contracts and Suits**	**Arts. 264–300A**	Consolidated Fund (266), Contingency Fund (267), GST Council (279A), Finance Commission (280); **Art. 300A**: Right to Property (Legal/Constitutional right, NOT fundamental right!)
Part XIII	**XIII**	**Trade, Commerce and Intercourse within India**	**Arts. 301–307**	Freedom of inter-state trade and commerce
Part XIV	**XIV**	**Services under the Union and the States**	**Arts. 308–323**	All India Services (Art. 312 created by Rajya Sabha); UPSC & State PSCs (Arts. 315–323)
Part XIVA	**XIV-A**	**Tribunals**	**Arts. 323A–323B**	Added by **42nd Amendment 1976** (Swaran Singh Committee); 323A: Administrative Tribunals (CAT/SAT), 323B: Other Tribunals
Part XV	**XV**	**Elections**	**Arts. 324–329A**	Art. 324: Election Commission of India; Art. 326: Universal Adult Suffrage
Part XVI	**XVI**	**Special Provisions Relating to Certain Classes**	**Arts. 330–342A**	Reservation of seats in Lok Sabha & State Assemblies (SC: 330/332; ST: 330/332); NCSC (338), NCST (338A), NCBC (338B)
Part XVII	**XVII**	**Official Language**	**Arts. 343–351**	Ch. 1: Official Language of Union (343 - Hindi in Devanagari script), Ch. 2: Regional Languages (345), Ch. 3: Judiciary (348), Ch. 4: Special Directives (350A: Primary instruction in mother tongue, 350B: Special Officer for Linguistic Minorities, 351: Promotion of Hindi)
Part XVIII	**XVIII**	**Emergency Provisions**	**Arts. 352–360**	Art. 352: National Emergency, Art. 356: President's Rule (State Emergency), Art. 360: Financial Emergency
Part XIX	**XIX**	**Miscellaneous**	**Arts. 361–367**	Art. 361: Immunity of President and Governors from criminal prosecution
Part XX	**XX**	**Amendment of the Constitution**	**Art. 368**	Constituent power of Parliament to amend the Constitution (borrowed from South Africa)
Part XXI	**XXI**	**Temporary, Transitional and Special Provisions**	**Arts. 369–392**	Special provisions for states: **Art. 371 (Maha & Guj), 371A (Nagaland), 371B (Assam), 371C (Manipur), 371D & E (Andhra/Telangana), 371F (Sikkim), 371G (Mizoram), 371H (Arunachal), 371-I (Goa), 371J (Karnataka - Hyderabad-Karnataka region)**
Part XXII	**XXII**	**Short Title, Commencement & Repeals**	**Arts. 393–395**	Short title: "Constitution of India"

3. All 12 Schedules (The Master Mnemonic: TEARS OF OLD PM)

Schedule	Mnemonic Letter	Subject Matter	Key Details / High-Yield Trap
1st	**T**	**Territories**	Names of the 28 States and 8 Union Territories and their territorial extents
2nd	**E**	**Emoluments & Salaries**	Salaries, allowances, and pensions of: President, Governors, Lok Sabha Speaker/Deputy Speaker, Rajya Sabha Chairman/Deputy Chairman, SC/HC Judges, CAG. **PM and Ministers are NOT in the 2nd Schedule!**
3rd	**A**	**Affirmations & Oaths**	Forms of Oaths for: Union/State Ministers, MPs/MLAs, SC/HC Judges, CAG. **President (Art. 60), Vice-President (Art. 69), and Governors (Art. 159) have oaths under separate articles, NOT in the 3rd Schedule!**
4th	**R**	**Rajya Sabha Seat Allocation**	Allocation of seats in the Council of States to States and UTs. **Uttar Pradesh has the highest: 31 seats; Uttarakhand has 3 seats.**
5th	**S**	**Scheduled Areas & Tribes**	Administration and control of Scheduled Areas and Scheduled Tribes in 10 states (excluding the 4 states of the 6th Schedule); Tribes Advisory Council
6th	**O**	**Other Tribal Areas**	Administration of Tribal Areas in **4 North-Eastern States: AMTM = Assam, Meghalaya, Tripura, Mizoram** (Autonomous District Councils; **Manipur is NOT in the 6th Schedule!**)
7th	**F**	**Federal Lists (Division of Powers)**	Three legislative lists: 1. **Union List**: Originally 97, now **100 subjects** 2. **State List**: Originally 66, now **61 subjects** 3. **Concurrent List**: Originally 47, now **52 subjects** (Education, Forests, Weights & Measures, Wild animals & birds, Administration of justice transferred by 42nd Amd)
8th	**O**	**Official Languages**	**22 recognized languages** (Originally 14): • 1967 (21st Amd): Added **Sindhi** • 1992 (71st Amd): Added **Konkani, Manipuri, Nepali** (KMN) • 2003 (92nd Amd): Added **Bodo, Dogri, Maithili, Santhali** (BDMS) **Traps: English and Bhojpuri are NOT in the 8th Schedule!**
9th	**L**	**Land Reforms & Validation**	Added by **1st Amendment 1951** to protect land reform laws from judicial review; **I.R. Coelho Case (2007)**: SC ruled laws placed in 9th Schedule post **24 April 1973** (Kesavananda judgment date) are **open to judicial review**
10th	**D**	**Defection (Anti-Defection Law)**	Added by **52nd Amendment 1985**; disqualification on ground of defection; decided by Presiding Officer; subject to judicial review (**Kihoto Hollohan 1992**); split exemption of 1/3 deleted by 91st Amd 2003; merger requires **2/3rd members**
11th	**P**	**Panchayati Raj**	Added by **73rd Amendment 1992**; specifies **29 functional subjects** within the purview of Panchayats (Article 243G)
12th	**M**	**Municipalities**	Added by **74th Amendment 1992**; specifies **18 functional subjects** within the purview of Municipalities (Article 243W)

4. Warrant of Precedence (Order of Precedence, 1979 Notification)

Frequently tested in arrange-order questions in UPPCS/UKPCS:

1. **Rank 1**: **President of India**
2. **Rank 2**: **Vice-President of India**

3. **Rank 3**: **Prime Minister of India**
4. **Rank 4**: **Governors of States** (within their respective States)
5. **Rank 5**: **Former Presidents** - *Rank 5A*: **Deputy Prime Minister** (if any)
6. **Rank 6**: **Chief Justice of India (CJI)** and **Speaker of Lok Sabha** (*Both have equal rank!*)
7. **Rank 7**: **Cabinet Ministers of the Union**, **Chief Ministers of States** (within respective states), Deputy Chairman of NITI Aayog (former Planning Commission), **Leaders of Opposition in Rajya Sabha and Lok Sabha** - *Rank 7A*: **Holders of Bharat Ratna**
8. **Rank 8**: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers (outside their respective states), Governors (outside their respective states)
9. **Rank 9**: **Judges of the Supreme Court of India** - *Rank 9A*: **Chief Election Commissioner (CEC)**, **Comptroller and Auditor General (CAG)**, Chairperson of UPSC
10. **Rank 10**: Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union
11. **Rank 11**: **Attorney General for India**, Cabinet Secretary, Lieutenant Governors (within their UTs).

5. Parliamentary Terms, Motions & Working Procedure

Parliamentary Term	Core Meaning & Procedural Rules
Question Hour	First hour of every parliamentary sitting (11:00 AM to 12:00 PM): • **Starred Questions**: Oral answers required; **supplementary questions CAN be asked** (green paper). • **Unstarred Questions**: Written answers required; **NO supplementary questions allowed** (white paper). • **Short Notice Questions**: Relates to matter of urgent public importance; asked with less than 10 days notice; answered orally (light pink paper).
Zero Hour	**Unique Indian parliamentary innovation (introduced in 1962)**; starts immediately after Question Hour (12:00 PM); members raise urgent matters without prior notice; **not mentioned in Rules of Procedure**.
Adjournment Motion	Introduced in **LOK SABHA ONLY** to draw attention to a definite matter of urgent public importance; requires support of **at least 50 members** to be admitted; sitting adjourned for debate ≥ 2.5 hours; involves censure of government.
No-Confidence Motion	Moved in **LOK SABHA ONLY** under Rule 198; requires support of **at least 50 members**; no specific grounds needed; if passed, Council of Ministers must resign.
Censure Motion	Moved in Lok Sabha against specific ministers or entire council for specific policies; requires specific grounds; if passed, government is not obligated to resign immediately but must seek confidence.
Calling Attention Motion	Indian parliamentary innovation (since 1954); calling attention of a Minister to a matter of urgent public importance and seeking an authoritative statement. Mentioned in Rules of Procedure.
Cut Motions	Moved during Budget debate (Lok Sabha only): 1. **Disapproval of Policy Cut**: Amount reduced to **Re 1** (shows complete policy rejection). 2. **Economy Cut**: Amount reduced by a specific lump sum. 3. **Token Cut**: Amount reduced by **Rs 100** to express specific grievance.
Guillotine	When time allotted for discussion on demands for grants concludes, all remaining undiscussed demands are put to vote immediately without debate.
Lame-Duck Session	Refers to the last session of the existing Lok Sabha after a new Lok Sabha has been elected. Those existing MPs who failed to get re-elected are called "Lame Ducks".
Quorum	Minimum number of members required to be present to conduct a sitting: **1/10th of total membership** of the House (55 in Lok Sabha, 25 in Rajya Sabha) per **Article 100(3)**.

6. Parliamentary Committees (Must-Memorize Facts)

Committee Name	Total Strength	Lok Sabha Members	Rajya Sabha Members	Term	Chairperson Rules & Key Functions
Public Accounts Committee (PAC)	**22**	**15**	**7**	**1 year**	Set up first in **1921** (GOI Act 1919); scrutinizes **CAG Audit Reports**; elected by PR by STV; **Ministers CANNOT be members**; by convention since **1967**, Chairperson is appointed by the Speaker from the **Opposition**; known as **"Twin sister" of Estimates Committee** and **"Friend, Philosopher, and Guide"** of the CAG.
Estimates Committee	**30**	**30**	**0 (NO RS!)**	**1 year**	Set up in **1950** on recommendation of Finance Minister **John Mathai**; **LARGEST PARLIAMENTARY COMMITTEE**; all 30 members from Lok Sabha only; examines budget estimates and suggests alternative policies ("Continuous Economy Committee"); Chairperson appointed by Speaker from ruling party.
Committee on Public Undertakings (COPU)	**22**	**15**	**7**	**1 year**	Created in **1964** on recommendation of **Krishna Menon Committee**; examines reports of CAG on public undertakings; Chairperson appointed by Speaker from Lok Sabha members only.
Departmentally Related Standing Committees (DRSCs)	**31** (each)	**21**	**10**	**1 year**	Total **24 DRSCs** (16 work under Lok Sabha, 8 under Rajya Sabha); examine demands for grants, bills, and annual reports of respective ministries.

7. Constitutional Offices: Age Limits, Tenures & Appointments

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
President of India	**35 years**	**5 years** (eligible for re-election)	Electoral College (Elected MPs of LS/RS + Elected MLAs of States/UTs - Art. 54)	**Vice-President**	**Impeachment under Art. 61** (Quasi-judicial, 14 days notice, 2/3rd of total membership of both Houses; nominated MPs participate!)
Vice-President of India	**35 years**	**5 years**	Electoral College (All MPs of LS & RS, both elected & nominated - Art. 66; no MLAs!)	**President**	Resolution in Rajya Sabha by effective majority + agreed to by Lok Sabha (Art. 67)
Governor of a State	**35 years**	**5 years** (Holds office during **pleasure of President**)	President of India	**President**	Removed by President at any time without constitutional procedure
Prime Minister / Union Minister	**25 yrs** (LS) / **30 yrs** (RS)	No fixed tenure (during pleasure of President / confidence of LS)	President	**President**	Loss of majority in Lok Sabha
Member of Parliament (Lok Sabha)	**25 years**	**5 years** (unless dissolved earlier)	Direct Election (First-past-the-post)	**Speaker of Lok Sabha**	Disqualification under Art. 102 or 10th Schedule
Member of Parliament (Rajya Sabha)	**30 years**	**6 years** (Permanent body; **1/3rd members retire every 2 years**)	Indirect Election by elected MLAs (STV)	**Chairman of Rajya Sabha**	Disqualification under Art. 102 or 10th Schedule

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
Member of Legislative Assembly (MLA)	**25 years**	**5 years**	Direct Election	**Speaker of Assembly**	Disqualification under Art. 191
Member of Legislative Council (MLC)	**30 years**	**6 years** (1/3rd retire every 2 years)	Indirect (MLAs 1/3, Local bodies 1/3, Teachers 1/12, Grads 1/12, Gov nominates 1/6)	**Chairman of Council**	Disqualification under Art. 191
Panchayat / Municipality Member	**21 years**	**5 years**	Direct Election	Presiding Officer	Disqualification under state municipal/panchayat laws
Voter (Universal Adult Suffrage)	**18 years** (lowered from 21 by 61st Amd)	—	Enrolled in electoral roll	—	Ineligibility under Art. 326 (unsound mind, crime)
Supreme Court Judge / CJI	No min age	**65 years**	President (Collegium recommendation)	**President**	Removed by Presidential order supported by special majority of both Houses for proved misbehaviour or incapacity (Art. 124(4))
High Court Judge / Chief Justice	No min age	**62 years** (15th Amd raised from 60)	President (after consulting CJI, Governor, HC CJ)	**President**	Same manner and grounds as Supreme Court Judge
Comptroller & Auditor General (CAG)	No min age	**6 years or 65 years** (whichever earlier)	President	**President**	Same manner and grounds as Supreme Court Judge (Art. 148(1))
Chief Election Commissioner (CEC)	No min age	**6 years or 65 years**	President	**President**	Same manner and grounds as Supreme Court Judge (Art. 324(5))
Attorney General for India	Qualified as SC Judge	**No fixed term** (pleasure of President)	President	**President**	Removed by President at pleasure
Advocate General for the State	Qualified as HC Judge	**No fixed term** (pleasure of Governor)	Governor	**Governor**	Removed by Governor at pleasure
UPSC Chairman / Member	No min age	**6 years or 65 years**	President	**President**	Removed by President on ground of misbehaviour after inquiry by Supreme Court (Art. 317)
State PSC Chairman / Member	No min age	**6 years or 62 years**	**Governor appoints**	**Governor**	**REMOVED ONLY BY PRESIDENT** (Not Governor!) on SC inquiry under Art. 317
Central Vigilance Commissioner	No min age	**4 years or 65 years** (whichever earlier)	President on 3-member panel (PM, Home Min, LoP LS)	**President**	Removed by President on SC inquiry

8. High-Frequency Articles Must-Revise Daily

A. Fundamental Rights (Part III, Arts. 12–35)

- **Art. 12**: Definition of "State" (includes Union/State Governments, Parliament/Legislatures, Local authorities, other statutory authorities like LIC, ONGC).
- **Art. 13**: Laws inconsistent with or in derogation of Fundamental Rights shall be void (*Doctrine of Judicial Review*, *Doctrine of Severability*, *Doctrine of Eclipse*).
- **Art. 14**: Equality before law (British origin, negative concept) & Equal protection of the laws (American origin, positive concept).
- **Art. 15**: Prohibition of discrimination **ONLY** on grounds of religion, race, caste, sex, place of birth.
- *Art. 15(4)*: Special provisions for SC/ST/OBC (1st Amd 1951).
- *Art. 15(6)*: 10% EWS reservation in educational institutions (103rd Amd 2019).
- **Art. 16**: Equality of opportunity in matters of public employment.
- *Art. 16(4)*: Reservation for backward classes not adequately represented.
- *Art. 16(6)*: 10% EWS reservation in public employment (103rd Amd 2019).
- **Art. 17**: **Abolition of Untouchability** (Absolute right; enforced via Protection of Civil Rights Act 1955).
- **Art. 18**: Abolition of titles (Bharat Ratna/Padma awards are decorations, not titles — *Balaji Raghavan Case 1996*).
- **Art. 19**: Protection of **Six Democratic Freedoms**: 1. *19(1)(a)*: Freedom of speech and expression (includes freedom of press, right to remain silent). 2. *19(1)(b)*: Freedom to assemble peaceably and without arms. 3. *19(1)(c)*: Freedom to form associations, unions, or co-operative societies (97th Amd). 4. *19(1)(d)*: Freedom to move freely throughout the territory of India. 5. *19(1)(e)*: Freedom to reside and settle in any part of the territory of India. 6. *19(1)(g)*: Freedom to practice any profession, trade, or business.
- *(Note: 19(1)(f) Right to acquire, hold, and dispose of property was REPEALED by 44th Amd 1978).*
- **Art. 20**: Protection in respect of conviction for offences:
- *20(1)*: No ex-post-facto criminal law.
- *20(2)*: No double jeopardy (cannot be prosecuted twice for the same offence).
- *20(3)*: No self-incrimination (cannot be compelled to be a witness against oneself).
- **Art. 21**: **Protection of Life and Personal Liberty** (*Procedure Established by Law → Due Process of Law* via *Maneka Gandhi Case 1978*; encompasses Right to Privacy - *Puttaswamy 2017*, Right to clean environment, Right to livelihood, Right to sleep, Right to die with dignity / passive euthanasia - *Common Cause 2018*).
- **Art. 21A**: **Right to Free and Compulsory Education** for children aged 6 to 14 years (Inserted by **86th Amendment 2002**; RTE Act enacted in 2009, in force 1 April 2010).
- **Art. 22**: Protection against arrest and detention (production before magistrate within 24 hours; preventive detention max 3 months without advisory board approval).
- **Art. 23**: Prohibition of traffic in human beings and **Begar** (forced labour).
- **Art. 24**: Prohibition of employment of children **below 14 years in factories, mines**, or hazardous employment.
- **Arts. 25–28**: Freedom of Religion:
- *Art. 25*: Freedom of conscience, free profession, practice, and propagation of religion.
- *Art. 26*: Freedom to manage religious affairs.
- *Art. 27*: Freedom from payment of taxes for promotion of any particular religion.
- *Art. 28*: Freedom from attendance at religious instruction in state-funded educational institutions.
- **Arts. 29–30**: Cultural and Educational Rights of Minorities:
- *Art. 29*: Protection of language, script, and culture of minorities.
- *Art. 30*: Right of religious and linguistic minorities to establish and administer educational institutions.
- **Art. 32**: **Right to Constitutional Remedies**: Power of Supreme Court to issue 5 Writs (**Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto**); Dr. B.R. Ambedkar called Article 32 the **"Heart and Soul of the Constitution"**.

> **NON-SUSPENDABLE RIGHTS:** Under **Article 359 (as amended by 44th Amd 1978)**, the President **CANNOT suspend the enforcement of Articles 20 and 21** even during a National Emergency!

B. Directive Principles of State Policy (DPSP, Part IV, Arts. 36–51)

- **Art. 38**: State to secure a social order for the promotion of welfare of the people (minimize inequalities).
- **Art. 39(b) & (c)**: Equitable distribution of material resources of the community to subserve common good (39b); prevention of concentration of wealth (39c) — *Articles 39(b) and 39(c) take precedence over Articles 14 and 19 per Art. 31C!*
- **Art. 39A**: **Equal justice and free legal aid** (Added by 42nd Amd 1976; Legal Services Authorities Act 1987 / NALSA).
- **Art. 40**: **Organization of Village Panchayats** (Gandhian principle).
- **Art. 41**: Right to work, to education, and to public assistance in cases of unemployment, old age, sickness.
- **Art. 42**: Provision for just and humane conditions of work and **Maternity relief**.
- **Art. 43**: Living wage and decent standard of life for workers.
- **Art. 43A**: **Participation of workers in management of industries** (Added by 42nd Amd 1976).
- **Art. 43B**: Promotion of **Co-operative societies** (Added by 97th Amd 2011).
- **Art. 44**: **Uniform Civil Code (UCC)** for all citizens (**Goa** had Portuguese civil code; **Uttarakhand became the first state in post-independence India to pass a UCC bill in 2024!**).
- **Art. 45**: Provision for early childhood care and education for all children until they complete the age of **6 years** (Amended by 86th Amd 2002).
- **Art. 48**: Organization of agriculture and animal husbandry; prohibiting slaughter of cows, calves, and milch cattle.
- **Art. 48A**: **Protection and improvement of environment, and safeguarding of forests and wildlife** (Added by 42nd Amd 1976).
- **Art. 50**: **Separation of Judiciary from the Executive** in the public services of the State.
- **Art. 51**: Promotion of international peace and security.

C. Union & State Executive / Legislature Comparisons

Constitutional Matter	Union Article (President / Parliament)	State Article (Governor / State Legislature)	Key Distinction / Comparison
Office of Head	**Art. 52**: President of India	**Art. 153**: Governor of a State	7th Amd 1956: Same person can be appointed Governor for two or more states
Executive Power	**Art. 53**: Vested in President	**Art. 154**: Vested in Governor	Governor is appointed by President (Canadian model); holds office during pleasure
Pardoning Power	**Art. 72**: President of India	**Art. 161**: Governor of a State	**President alone can pardon Death Sentences and Court Martial (Military) sentences.** Governor can suspend/remit, but cannot grant full pardon for death sentence
Council of Ministers	**Art. 74**: CoM to aid & advise	**Art. 163**: CoM to aid & advise	Governor has broader constitutional discretionary powers (Art. 163(2))
Appointment of PM/CM	**Art. 75**: PM appointed by President	**Art. 164**: CM appointed by Governor	CoM size capped at **max 15%** of Lower House membership (91st Amd 2003); State min = 12
Top Legal Officer	**Art. 76**: **Attorney General for India**	**Art. 165**: **Advocate General for the State**	AG has right to speak in both Houses of Parliament but **NO right to vote** (Art. 88)
Joint Sitting	**Art. 108**: Joint Sitting of Parliament	**NO PROVISION** for Joint Sitting in State Legislature!	Summoned by President; presided over by **Lok Sabha Speaker** (simple majority)
Money Bill Definition	**Art. 110**: Money Bill in Parliament	**Art. 199**: Money Bill in State Assembly	Speaker's decision is final; Rajya Sabha / Legislative Council has only **14 days** to suggest
Annual Budget	**Art. 112**: Annual Financial Statement	**Art. 202**: Annual Financial Statement	Word "Budget" is nowhere used in the Constitution!
Ordinance Power	**Art. 123**: President	**Art. 213**: Governor	Can only be promulgated when legislature is not in session; max lifespan: **6 weeks from reassembly** (absolute maximum lifespan = 6 months + 6 weeks)
Assent to Bills	**Art. 111**: President's Assent	**Art. 200**: Governor's Assent	Governor can reserve bill for consideration of President (**Art. 201**)
Creation/Abolition of Council	—	**Art. 169**: Legislative Council	State Assembly passes resolution by special majority → Parliament approves by simple majority

9. Constitutional vs Statutory vs Executive Bodies

Body Name	Category	Governing Article / Parent Act	Head / Composition	Appointed By	Removal / Tenure
Election Commission of India (ECI)	**Constitutional**	**Art. 324**	Chief Election Commissioner + 2 Election Commissioners	President (per 2023 Act: panel of PM, LoP, Cabinet Min)	Same grounds and manner as Supreme Court Judge (6 yrs or 65 yrs)
Union Public Service Commission (UPSC)	**Constitutional**	**Arts. 315–323**	Chairman + Members (usually 9–11)	President	6 yrs or 65 yrs; removed by President on SC enquiry under Art. 317
Finance Commission	**Constitutional**	**Art. 280**	Chairman + 4 Members	President every 5th year	Recommends devolution of net tax proceeds between Union & States
Comptroller & Auditor General (CAG)	**Constitutional**	**Art. 148**	Single-member office	President	6 yrs or 65 yrs; removed like a Supreme Court Judge; **"Guardian of the Public Purse"**
Attorney General for India	**Constitutional**	**Art. 76**	Single-member office	President	Holds office **during the pleasure of the President**; must be qualified to be an SC Judge
Advocate General for the State	**Constitutional**	**Art. 165**	Single-member office	Governor	Holds office **during the pleasure of the Governor**; qualified to be an HC Judge
National Commission for SC (NCSC)	**Constitutional**	**Art. 338**	Chairperson, Vice-Chairperson + 3 Members	President	3 years tenure
National Commission for ST (NCST)	**Constitutional**	**Art. 338A**	Separated by 89th Amd 2003; Chairperson + 4	President	3 years tenure
National Commission for BC (NCBC)	**Constitutional**	**Art. 338B**	Accorded constitutional status by 102nd Amd 2018	President	3 years tenure

Body Name	Category	Governing Article / Parent Act	Head / Composition	Appointed By	Removal / Tenure
GST Council	**Constitutional**	**Art. 279A**	Chaired by Union Finance Minister; members: MoS Finance + State Finance Ministers	-	Voting weight: Centre = 1/3rd, States = 2/3rd; 3/4th majority needed to pass decisions
Inter-State Council	**Constitutional**	**Art. 263**	Set up in 1990 (**Sarkaria Commission**); chaired by Prime Minister	-	CMs of all states + 6 Union Cabinet Ministers
National Human Rights Commission (NHRC)	**Statutory**	**Protection of Human Rights Act (PHRA) 1993**	Retired CJI or Judge of SC (Chairperson) + Members	President on panel (PM, Speaker, Home Min, LoP LS, LoP RS, Dy Chairman RS)	3 years or 70 years
Central Vigilance Commission (CVC)	**Statutory**	**CVC Act 2003** (set up 1964 on **Santhanam Committee**)	Central Vigilance Commissioner + max 2 Vigilance Commissioners	President on panel (PM, Home Minister, LoP LS)	**4 years or 65 years** (Unique tenure!)
Central Information Commission (CIC)	**Statutory**	**Right to Information (RTI) Act 2005**	Chief Information Commissioner + max 10 ICs	President on panel (PM, LoP LS, Union Cabinet Min)	Set by Central Govt or 65 yrs
Lokpal of India	**Statutory**	**Lokpal and Lokayuktas Act 2013**	Chairperson (CJI/SC Judge/eminent person) + max 8 Members	President on panel (PM, Speaker LS, LoP LS, CJI or nominee, eminent jurist)	5 years or 70 years
National Green Tribunal (NGT)	**Statutory**	**NGT Act 2010**	Chairperson (retired SC judge or HC CJ) + Judicial/Expert members	Central Govt in consultation with CJI	5 years; not eligible for reappointment
NITI Aayog	**Non-Constitutional (Executive Body)**	Created by **Union Cabinet Resolution on 1 Jan 2015** (replacing Planning Commission 1950)	Chairperson: Prime Minister; Vice-Chairperson + CEO + Ex-officio members	PM appoints	Think tank; promotes Cooperative & Competitive Federalism

10. Landmark Constitutional Amendments (The Complete PCS Sheet)

Amendment Act & Year	Prime Minister / Context	Landmark Provisions / Changes Made
1st (1951)	J.L. Nehru	Added **9th Schedule** to protect land reform laws from judicial review; placed reasonable restrictions on freedom of speech (public order, friendly relations with foreign states, incitement to an offence)
7th (1956)	J.L. Nehru	Implemented **States Reorganisation Act 1956** (Fazal Ali Commission); abolished Part A, B, C, D classification; created 14 States & 6 UTs; allowed common High Court for two or more states; allowed same person as Governor of multiple states
24th (1971)	Indira Gandhi	Affirmed Parliament's power to amend any part of the Constitution, including Fundamental Rights; made it **obligatory for the President to give assent** to a Constitutional Amendment Bill
42nd (1976)	Indira Gandhi (**Swaran Singh Committee**)	Known as the **"Mini-Constitution"**: 1. Preamble: Added words **"SOCIALIST, SECULAR, INTEGRITY"** 2. Added **Part IVA (Fundamental Duties, Art. 51A)** with 10 duties 3. Added **Part XIVA (Tribunals, Arts. 323A–323B)** 4. Added DPSPs: Arts. **39A** (Free legal aid), **43A** (Workers' participation), **48A** (Environment) 5. Transferred **5 subjects from State List to Concurrent List**: Education, Forests, Weights & Measures, Protection of Wild Animals & Birds, Administration of Justice
44th (1978)	Morarji Desai (Janata Party)	Undid emergency excesses of 42nd Amendment: 1. Replaced "Internal Disturbance" with **"Armed Rebellion"** in Art. 352 2. Mandated that President can declare National Emergency only on **written advice of the Cabinet** 3. **Right to Property deleted from Fundamental Rights** (Art. 19(1)(f) & Art. 31 deleted; made a legal right under **Art. 300A**) 4. Provided that **Articles 20 and 21 CANNOT be suspended** during emergency
52nd (1985)	Rajiv Gandhi	Added **10th Schedule (Anti-Defection Law)**; disqualified MPs/MLAs defecting from their political party
61st (1988)	Rajiv Gandhi	**Lowered voting age from 21 years to 18 years** for Lok Sabha and Legislative Assembly elections (amended **Art. 326**)
69th (1991)	P.V. Narasimha Rao	Conferred special status on Union Territory of Delhi as **National Capital Territory of Delhi (NCT)** with Legislative Assembly and 7-member Council of Ministers (inserted **Art. 239AA**)
73rd (1992)	P.V. Narasimha Rao	Accorded constitutional status to **Panchayati Raj Institutions (PRIs)**; inserted **Part IX (Arts. 243 to 243-O)** and **11th Schedule (29 subjects)**; 33% mandatory reservation for women
74th (1992)	P.V. Narasimha Rao	Accorded constitutional status to **Urban Local Bodies (Municipalities)**; inserted **Part IXA (Arts. 243P to 243ZG)** and **12th Schedule (18 subjects)**
86th (2002)	A.B. Vajpayee	1. Inserted **Article 21A** (Right to free and compulsory education for children aged 6–14 as a Fundamental Right) 2. Substituted Article 45 (Early childhood care) 3. Added **11th Fundamental Duty** under **Art. 51A(k)**
91st (2003)	A.B. Vajpayee	1. Capped the size of the Council of Ministers to **maximum 15%** of the total strength of Lok Sabha / State Legislative Assembly (minimum 12 in states) 2. **Deleted 1/3rd split provision** from 10th Schedule (only 2/3rd merger protected)
99th (2014)	Narendra Modi	Established National Judicial Appointments Commission (NJAC); **struck down as unconstitutional by Supreme Court in 2015** (*Fourth Judges Case*), restoring the Collegium system
101st (2016)	Narendra Modi	Introduced **Goods and Services Tax (GST)**; inserted **Art. 246A, 269A, and 279A** (GST Council chaired by Union Finance Minister); in force from **1 July 2017**
102nd (2018)	Narendra Modi	Accorded constitutional status to the **National Commission for Backward Classes (NCBC)**; inserted **Articles 338B and 342A**
103rd (2019)	Narendra Modi	Provided **10% reservation for Economically Weaker Sections (EWS)** in educational admissions and civil posts; amended **Articles 15(6) and 16(6)**
104th (2020)	Narendra Modi	Extended reservation of seats for **SC and ST in Lok Sabha and State Assemblies for another 10 years (until 2030)**; **discontinued the nomination of 2 Anglo-Indian members** in Lok Sabha and 1 in Assemblies
105th (2021)	Narendra Modi	Clarified that State Governments maintain the power to prepare and maintain their own list of **Socially and Educationally Backward Classes (SEBCs / OBCs)**
106th (2023)	Narendra Modi	***Nari Shakti Vandan Adhiniyam***: Provides **33% reservation for women in Lok Sabha, State Legislative Assemblies, and NCT of Delhi Assembly** (inserted Arts. 330A, 332A, 239AA(2)(b)); effective after the next delimitation exercise

11. Panchayati Raj Committees Chronological Ladder

Committee Name	Year	Landmark Recommendation / Impact
Balwant Rai Mehta Committee	**1957**	Recommended **Three-Tier Panchayati Raj System**: 1. Gram Panchayat (Village) 2. Panchayat Samiti (Block - executive body) 3. Zilla Parishad (District - advisory body) **First implemented in Nagaur (Rajasthan) on 2 October 1959** by J.L. Nehru; second state was **Andhra Pradesh**
K. Santhanam Committee	**1963**	Panchayati Raj finances and budgetary powers
Ashok Mehta Committee	**1977** (Janata Govt)	Recommended **Two-Tier System**: 1. **Mandal Panchayat** (group of villages, pop. 15,000–20,000) 2. **Zilla Parishad** (District executive body) Advocated official participation of political parties in elections
G.V.K. Rao Committee	**1985** (Planning Commission)	Critiqued bureaucratic takeover, describing PRIs as **"Grass without Roots"**; recommended strengthening Zilla Parishad and creating post of District Development Commissioner (DDC)
L.M. Singhvi Committee	**1986** (Rajiv Gandhi)	**FIRST TO STRONGLY RECOMMEND CONSTITUTIONAL RECOGNITION FOR PANCHAYATI RAJ**; advocated Nyaya Panchayats and financial autonomy
P.K. Thungon Committee	**1988**	Sub-committee of Parliamentary Consultative Committee; strongly urged **Constitutional status**, 3-tier system, fixed 5-year tenure, Zilla Parishad as main planning agency
V.N. Gadgil Committee	**1988**	Blueprint for the 73rd Amendment bill: 3 tiers, fixed 5-yr tenure, reservation for SC/ST/Women, State Election Commission, State Finance Commission

12. Landmark Supreme Court Judgments (Chronological Table)

Case Name & Year	Key Issue / Doctrine Established
Shankari Prasad Case (1951)	Parliament can amend any part of the Constitution, including Fundamental Rights under Article 368.
Golaknath Case (1967)	11-Judge bench; ruled that **Fundamental Rights are transcendental and sacrosanct**; Parliament CANNOT amend or take away Fundamental Rights.
Kesavananda Bharati Case (1973)	**13-Judge bench (largest ever, 7:6 verdict on 24 April 1973)**; upheld Parliament's power to amend the Constitution, BUT established the **"Basic Structure Doctrine"** — Parliament cannot alter the basic framework/features of the Constitution.
Indira Nehru Gandhi v. Raj Narain (1975)	Struck down 39th Amendment (Article 329A); held that **Free and Fair Elections and Judicial Review are part of the Basic Structure**.
Maneka Gandhi Case (1978)	Reinterpreted Article 21; replaced rigid "Procedure Established by Law" with **"Due Process of Law"**; procedure must be *just, fair, and reasonable*. Golden Triangle: Articles 14, 19, and 21 are interrelated.
Minerva Mills Case (1980)	Struck down clauses of 42nd Amendment; held that **limited amending power and judicial review are basic features**; Indian Constitution is founded on the bedrock of **balance between Fundamental Rights and DPSPs**.
Waman Rao Case (1981)	Reaffirmed Basic Structure Doctrine; set cutoff date of **24 April 1973** for applying Basic Structure scrutiny to the 9th Schedule.
Shah Bano Case (1985)	Upheld divorced Muslim woman's right to maintenance under Section 125 CrPC; urged enactment of a Uniform Civil Code.
Indira Sawhney Case (1992) (*Mandal Case*)	9-Judge bench; upheld 27% OBC reservation; introduced **"Creamy Layer"** exclusion; capped **total reservations at 50%**; no reservation in promotions.
S.R. Bommai Case (1994)	9-Judge bench; curbed misuse of **Article 356 (President's Rule)**; held that **Secularism is part of the Basic Structure**; floor test in Assembly is the only valid test of majority.
Vishaka v. State of Rajasthan (1997)	Formulated **Vishaka Guidelines** to prevent sexual harassment of women at workplaces (precursor to POSH Act 2013).
I.R. Coelho Case (2007)	9-Judge bench; held that all laws inserted into the **9th Schedule after 24 April 1973 are subject to judicial review** if they violate Fundamental Rights forming part of the Basic Structure.
Justice K.S. Puttaswamy Case (2017)	9-Judge bench unanimously held that the **Right to Privacy is a Fundamental Right** intrinsically protected under Article 21.
Navtej Singh Johar Case (2018)	Decriminalized consensual homosexual acts between adults by reading down **Section 377 of the Indian Penal Code (IPC)**.
Jarnail Singh Case (2018)	Held that the **"Creamy Layer" principle applies to SC/ST** when extending reservation in promotions.
Janki Janak v. UOI (2022)	Upheld the constitutional validity of the **103rd Constitutional Amendment (10% EWS reservation)** by 3:2 majority.

13. State Reorganization Chronology (Post-Independence India)

1. **1953**: **Andhra State** created (first linguistic state, separated Telugu-speaking areas of Madras after 56-day fast unto death of **Potti Sreeramulu**; Kurnool capital).
2. **1956**: **States Reorganisation Act 1956** (Fazal Ali Commission with H.N. Kunzru and K.M. Panikkar); created **14 States and 6 Union Territories**.
3. **1960**: **Bilingual Bombay State bifurcated into Maharashtra and Gujarat** (Gujarat became the 15th state).
4. **1961**: **Dadra & Nagar Haveli** (10th Amd) and **Goa, Daman & Diu** (12th Amd) integrated via Operation Vijay.
5. **1962**: **Pondicherry** (Puducherry) integrated via 14th Amd (ceded by French in 1954).
6. **1963**: **Nagaland** created as 16th state (incorporating Naga Hills-Tuensang Area).
7. **1966**: **Punjab bifurcated** into Punjab (Punjabi) and **Haryana** (17th state, Hindi) on recommendation of **Shah Commission**; **Chandigarh** made common UT.
8. **1971**: **Himachal Pradesh** elevated from UT to 18th State.
9. **1972**: North-Eastern reorganization: **Manipur (19th), Tripura (20th), and Meghalaya (21st)** became full states; Mizoram and Arunachal Pradesh created as UTs.
10. **1975**: **Sikkim**: 35th Amd 1974 made it "Associate State" (10th Schedule added); **36th Amendment 1975 made Sikkim 22nd full State of India**.
11. **1987**: **Mizoram (23rd)**, **Arunachal Pradesh (24th)**, and **Goa (25th state)** elevated to full statehood.
12. **2000 (November)**: Three new states carved out:
    - **Chhattisgarh (26th state)**: 1 Nov 2000 (carved from MP).
    - **Uttarakhand (Uttaranchal, 27th state)**: **9 Nov 2000** (carved from Uttar Pradesh, 13 hill districts; renamed Uttarakhand on 1 Jan 2007).
    - **Jharkhand (28th state)**: 15 Nov 2000 (carved from Bihar on Birsa Munda's birth anniversary).
13. **2014 (2 June)**: **Telangana (29th state)** carved out of Andhra Pradesh (Sri Krishna Committee).

14. **2019 (31 October)**: **Jammu & Kashmir Reorganisation Act 2019**: State of J&K bifurcated into **two Union Territories: J&K (with assembly) and Ladakh (without assembly)**; total count: **28 States and 8 Union Territories**.
15. **2020 (26 Jan)**: Merged **Dadra & Nagar Haveli and Daman & Diu** into a single Union Territory.

> **From–to (do not stop at the birth year): Uttarakhand** as a state runs **9 Nov 2000 → present** (name **Uttaranchal** till **1 Jan 2007**). **Jammu & Kashmir as a State** ran till **31 Oct 2019**; **Art. 370** operative **1950 → 5/6 Aug 2019**. Goa was a UT **1961–1987**, then the **25th state**.

14. UP & Uttarakhand State Legislature Quick Facts

State	Legislative Assembly (Vidhan Sabha)	Legislative Council (Vidhan Parishad)	Lok Sabha Seats	Rajya Sabha Seats	High Court & Benches
Uttar Pradesh	**403 seats** (SC: 84, ST: 2)	**100 seats** (Bicameral!)	**80 seats** (Highest in India; SC reserved: 17, ST: 0)	**31 seats** (Highest in India)	**Allahabad High Court** (Established 1866 at Agra, shifted to Allahabad 1869; Lucknow Bench created 1948)
Uttarakhand	**70 seats** (SC: 13, ST: 2)	**Unicameral** (No Council)	**5 seats** (Tehri, Garhwal, Almora - SC, Haridwar, Nainital-US Nagar)	**3 seats**	**Uttarakhand High Court** (Established 9 Nov 2000 at Nainital; shifting to Haldwani approved)

15. The Five Types of Writs (Articles 32 & 226)

Power to issue prerogative writs: Supreme Court (Article 32 — only for Fundamental Rights) and High Courts (Article 226 — for Fundamental Rights AND ordinary legal rights; HC writ jurisdiction is wider than SC!)

Writ Name	Literal Latin Meaning	Purpose & Grounds for Issue	Against Whom Issued	Exceptions (Cannot be Issued Against)
Habeas Corpus (बन्दी प्रत्यक्षीकरण)	**"To have the body of"**	Remedy against **unlawful detention or illegal custody**; court orders the detaining authority to produce the detained person before it to examine legality of detention	**Both Public Authorities and Private Individuals**	1. Detention is lawful 2. Proceeding is for contempt of court/legislature 3. Detention is by competent court 4. Outside court's territorial jurisdiction
Mandamus (परमादेश)	**"We Command"**	Order issued to a public official/body directing them to **perform an official public duty** which they have failed or refused to perform	**Public officials, Public Corporations, Inferior Courts, Tribunals, Government**	1. **Private individuals or private bodies** 2. Discretionary duties (not mandatory) 3. To enforce private contracts 4. **President of India or State Governors** (Art. 361) 5. Chief Justice of HC acting in judicial capacity
Prohibition (प्रतिषेध)	**"To Forbid"**	Issued by a higher court to a lower court/tribunal to **prevent it from exceeding its jurisdiction** or usurping a jurisdiction not vested in it; preventive in nature	**Judicial and Quasi-Judicial Authorities only**	Administrative authorities, legislative bodies, and private individuals/bodies
Certiorari (उत्प्रेषण)	**"To be Certified" / "To be Informed"**	Issued by a higher court to a lower court/tribunal to **quash an order already passed** in excess of jurisdiction, lack of jurisdiction, or violation of natural justice; both **preventive and curative**	**Judicial, Quasi-Judicial, and Administrative Authorities** (SC expanded to administrative bodies in 1991)	Legislative bodies and private individuals/bodies
Quo-Warranto (अधिकार-पृच्छा)	**"By What Authority or Warrant"**	Issued to enquire into the **legality of the claim of a person to a public office**; prevents illegal usurpation of a substantive public office	**Substantive Public Offices of a permanent nature created by statute/Constitution**	Ministerial offices (PM/Minister), private offices. *(Can be sought by ANY interested person, not necessarily the aggrieved party!)*

16. Constituent Assembly Committees & Drafting Committee Members

A. Major Committees & Their Chairpersons (High-Frequency Match)

Committee Name	Chairperson	Scope & Responsibility
Drafting Committee (प्रारूप समिति)	**Dr. B.R. Ambedkar**	Prepared the draft of the Constitution; appointed on **29 August 1947**
Union Powers Committee	**Jawaharlal Nehru**	Defined the extent of Union legislative authority
Union Constitution Committee	**Jawaharlal Nehru**	Drafted structure of the Union Executive and Parliament
States Committee (Committee for Negotiating with States)	**Jawaharlal Nehru**	Negotiations with Princely States
Provincial Constitution Committee	**Sardar Vallabhbhai Patel**	Drafted structure of State Governors and Legislatures
Advisory Committee on Fundamental Rights, Minorities & Tribal Areas	**Sardar Vallabhbhai Patel**	Apex advisory body with 5 sub-committees: • *Fundamental Rights Sub-Committee*: **J.B. Kripalani** • *Minorities Sub-Committee*: **H.C. Mukherjee** • *North-East Frontier Tribal Areas*: **Gopinath Bardoloi** • *Excluded & Partially Excluded Areas*: **A.V. Thakkar**
Rules of Procedure Committee	**Dr. Rajendra Prasad**	Formulated rules for conduct of assembly business
Steering Committee	**Dr. Rajendra Prasad**	Steered legislative agenda and debates
Ad-hoc Committee on the National Flag	**Dr. Rajendra Prasad**	Adopted the National Flag on **22 July 1947**
Order of Business Committee	**Dr. K.M. Munshi**	Scheduled daily proceedings

B. The 7 Members of the Drafting Committee (Must-Memorize List)

Set up on 29 August 1947 under the chairmanship of Dr. B.R. Ambedkar:

1. **Dr. B.R. Ambedkar** (Chairman)
2. **N. Gopalaswami Ayyangar**

3. **Alladi Krishnaswamy Iyer**
4. **Dr. K.M. Munshi** (Only original Congress politician member)
5. **Syed Mohammad Saadulla** (Only Muslim League member)
6. **N. Madhava Rau** (Replaced **B.L. Mitter** who resigned due to ill-health)
7. **T.T. Krishnamachari** (Replaced **D.P. Khaitan** who died in 1948)

> **Constitutional Adviser**: **Sir B.N. Rau** (prepared original constitutional draft).
> **Chief Draftsman**: **S.N. Mukherjee**.
> **Calligrapher of English text**: **Prem Behari Narain Raizada** (flowery italic style).
> **Illuminator / Decorator**: **Nandalal Bose** and **Beohar Rammanohar Sinha** (Santiniketan artists).
> **Hindi Calligrapher**: **Vasant Krishan Vaidya** (decorated by Nandalal Bose).

17. Center-State Relations & Inter-State River Water Dispute Tribunals

A. Major Commissions on Center-State Relations

Commission / Committee	Year	Appointed By / State	Key Recommendations / Landmark Findings
Administrative Reforms Commission (ARC-I)	**1966**	Central Govt (Morarji Desai → K. Hanumanthaiah)	Recommended setting up of an **Inter-State Council under Article 263**; non-partisan Governors
Rajamannar Committee	**1969**	**Tamil Nadu Govt** (DMK, Dr. P.V. Rajamannar)	Strongly advocated State Autonomy; recommend immediate deletion of **Articles 356 and 365**; vesting residuary powers in States; abolishing All-India Services (IAS/IPS)
Anandpur Sahib Resolution	**1973**	Akali Dal (Punjab)	Demanded restriction of Central jurisdiction strictly to **Defence, Foreign Affairs, Currency, and Communications**
West Bengal Memorandum	**1977**	Left Front Govt (WB)	Demanded word "Union" be replaced by "Federation"; 75% of central revenues to states
Sarkaria Commission	**1983–1987**	Central Govt (Justice **R.S. Sarkaria**, B. Sivaraman, Dr. S.R. Sen)	**MOST INFLUENTIAL COMMISSION**: 1. **Article 356 must be used sparingly, only as a measure of last resort** 2. Institutionalize **Inter-State Council** under Art. 263 (established 1990) 3. Governor should be an eminent person from outside the state, detached from active politics, appointed after consulting CM 4. Opposed abolishing All-India Services, advocated strengthening them 5. Residuary legislative powers should remain with Centre (except taxation)
Punchhi Commission	**2007–2010**	Central Govt (Justice **M.M. Punchhi**)	1. Localized emergency (targeted under Art. 355/356 without dissolving state assembly) 2. Governor's tenure: fixed 5 years, removal only through impeachment by State Legislature 3. Governor should not be Chancellor of state universities

B. Inter-State River Water Disputes (Article 262)

Inter-State River Water Disputes Act 1956 empowers Central Govt to set up ad-hoc tribunals; jurisdiction of Supreme Court is barred:

Water Dispute Tribunal	Year Set Up	Riparian States Involved in Dispute
Krishna Water Dispute Tribunal I & II	1969 / 2004	Maharashtra, Karnataka, Andhra Pradesh, Telangana
Godavari Water Dispute Tribunal	1969	Maharashtra, Andhra Pradesh, MP, Chhattisgarh, Odisha, Karnataka
Narmada Water Dispute Tribunal	1969	Gujarat, Madhya Pradesh, Maharashtra, Rajasthan
Ravi & Beas Water Dispute Tribunal	1986	Punjab, Haryana, Rajasthan
Cauvery Water Dispute Tribunal	1990	Tamil Nadu, Karnataka, Kerala, Puducherry
Mahadayi (Mandovi) Tribunal	2010	Goa, Karnataka, Maharashtra
Vansadhara Water Dispute Tribunal	2010	Odisha and Andhra Pradesh
Mahanadi Water Dispute Tribunal	2018	Chhattisgarh and Odisha

Confused Pairs & Common Traps

Confused Pairs & Common Examiner Traps

Pair	Correct Concept	Common Examiner Trap	Hindi Key
Art. 32 vs Art. 226	SC writ is for **Fundamental Rights only**; HC writ is for **FR + ordinary legal rights (wider)**	Believing SC writ power is wider than High Court	अनु. 32 (केवल मूल अधिकार) vs अनु. 226 (विस्तृत)
Habeas Corpus vs Mandamus	Habeas Corpus lies against **public AND private**; Mandamus lies **only against public bodies/officials**	Claiming Mandamus can be issued against private firms	बंदी प्रत्यक्षीकरण (निजी भी) vs परमादेश (केवल लोक)
Estimates vs PAC	Estimates Committee has **30 members (all Lok Sabha)**; PAC has **22 members (15 LS + 7 RS)**	Saying Estimates Committee includes Rajya Sabha members	प्राक्कलन (30 केवल लोकसभा) vs लोक लेखा (15+7)
State PSC Appointment vs Removal	Governor **appoints**; but **REMOVED ONLY BY THE PRESIDENT** under Art. 317	Marking Governor as the removing authority for SPSC	नियुक्ति: राज्यपाल; निष्कासन: राष्ट्रपति
Emergency Origin vs FR Suspension	Emergency framework from **GOI Act 1935**; Suspension of FRs from **Weimar Germany**	Crediting Germany with creating the emergency provisions	आपातकाल: 1935 एक्ट; मू.अ. निलंबन: वाइमर
Non-Suspendable Rights	**Articles 20 and 21** can **NEVER be suspended** during emergency (44th Amd 1978)	Claiming all Fundamental Rights are suspended in emergency	अनु. 20 व 21 कभी निलंबित नहीं
Right to Property Status	**Legal/Constitutional right under Art. 300A** (Part XII); deleted from FRs by 44th Amd 1978	Calling Right to Property a Fundamental Right	विधिक अधिकार (Art. 300A)
Precedence: CJI vs Speaker	**Both hold EQUAL Rank 6** in official Warrant of Precedence	Ranking CJI above Speaker or vice-versa	CJI = लोकसभा अध्यक्ष (समान रैंक 6)
Precedence: Ministers vs SC Judges	Cabinet Ministers = **Rank 7**; Supreme Court Judges = **Rank 9**	Putting Supreme Court Judges ahead of Union Cabinet Ministers	कैबिनेट मंत्री (रैंक 7) vs सुप्रीम कोर्ट जज (रैंक 9)
Inter-State Council vs Zonal Council	Inter-State Council = **Constitutional (Art. 263)**; Zonal Councils = **Statutory (SRA 1956)**	Mixing constitutional and statutory status of councils	अंतर-राज्य परिषद (संवैधानिक) vs क्षेत्रीय परिषद (सांविधिक)

Pair	Correct Concept	Common Examiner Trap	Hindi Key
CVC vs NCBC	CVC = **Statutory Body (2003 Act)**; NCBC = **Constitutional Body (Art. 338B via 102nd Amd)**	Marking CVC as a constitutional body	CVC (सांविधिक) vs NCBC (संवैधानिक)
NITI Aayog Status	**Non-Constitutional, Non-Statutory (Executive Body by Cabinet Resolution 2015)**	Calling NITI Aayog a statutory body created by Parliament	नीति आयोग (कार्यकारी निकाय)
Panchayat vs Municipality Subjects	11th Schedule = **29 subjects**; 12th Schedule = **18 subjects**	Swapping 29 and 18 between Panchayats and Municipalities	11वीं अनुसूची (29) vs 12वीं अनुसूची (18)
6th Schedule vs 5th Schedule	6th Schedule = **Assam, Meghalaya, Tripura, Mizoram (AMTM)**; 5th = Other 10 states	Including Manipur or Nagaland in the 6th Schedule	छठी अनुसूची (केवल AMTM; मणिपुर बाहर)
8th Schedule Exclusions	**English and Bhojpuri** are NOT in the 22 languages of the Eighth Schedule	Assuming English or Bhojpuri are officially recognized in 8th Sch	अंग्रेजी व भोजपुरी 8वीं अनुसूची में नहीं
Voting Age: 21 to 18	Enacted by **61st Constitutional Amendment Act 1988** (in force 1989)	Confusing with 42nd or 44th Amendment	मतदान आयु 18 वर्ष: 61वां संशोधन
Council of Ministers Ceiling	**Max 15%** of Lok Sabha / Vidhan Sabha strength (**91st Amendment 2003**); State min = 12	Stating 10% or 20% limit for Council of Ministers	मंत्री परिषद अधिकतम 15% (91वां संशोधन)
Art. 2 vs Art. 3	Art. 2 = Admission/Establishment of **NEW (foreign) states**; Art. 3 = Alteration of **EXISTING states**	Conflating external admission with internal reorganization	अनु. 2 (नया राज्य) vs अनु. 3 (विद्यमान राज्य)
Kesavananda vs Golaknath	*Golaknath (1967)* = FR unamendable; *Kesavananda (1973)* = Amending power intact BUT Basic Structure limited	Confusing which case introduced the Basic Structure	गोलकनाथ (अपरिवर्तनीय) vs केशवानंद (मूल ढांचा)
S.R. Bommai vs Minerva Mills	*Bommai (1994)* = Curbs on Art. 356 & Secularism; *Minerva Mills (1980)* = Balance between FR and DPSP	Swapping case holdings on federalism and judicial review	बोम्मई (अनु. 356) vs मिनर्वा मिल्स (सन्तुलन)
Ordinance Max Duration	**6 weeks from reassembly of Parliament**; absolute max without approval = **6 months + 6 weeks**	Stating ordinance maximum lifespan is strictly 6 months	6 सप्ताह (सत्रारंभ से) / अधिकतम 7.5 माह
Money Bill Certifier	**Speaker of Lok Sabha alone** certifies; Rajya Sabha has only **14 days**	Stating President or Finance Minister certifies a Money Bill	धन विधेयक: अध्यक्ष का अंतिम निर्णय
UP Legislative Strength	Vidhan Sabha = **403**; Vidhan Parishad = **100**; Lok Sabha = **80**; Rajya Sabha = **31**	Writing 404 for Assembly (Anglo-Indian nomination abolished)	विधानसभा: 403, विधान परिषद: 100, LS: 80, RS: 31
104th vs 106th Amendment	104th (2020) = End of Anglo-Indian nomination; 106th (2023) = 33% Women reservation	Confusing women quota amendment number	104वां (ऐंग्लो-इंडियन अंत) vs 106वां (नारी शक्ति)

Practice Zone — UPPCS Format Drill

Topic 1 — Constitutional Development

Consolidated — 42 Must-Score Facts

1. The **Regulating Act of 1773** marked the first step towards British parliamentary control over the East India Company; it designated the Governor of Bengal as the **Governor-General of Bengal** (**Warren Hastings** was the first) assisted by a Council of four members.
2. The Regulating Act, 1773 provided for the establishment of a **Supreme Court at Fort William, Calcutta (1774)**, consisting of a Chief Justice (**Sir Elijah Impey**) and three other judges.
3. The **Act of Settlement, 1781** (Declaratory Act) exempted the actions of the Governor-General in Council and Company public servants done in their official capacity from the jurisdiction of the Supreme Court at Calcutta.
4. **Pitt's India Act of 1784** established a system of **Double Government**: the **Court of Directors** managed commercial operations, while a new 6-member **Board of Control** managed political, military, and revenue affairs in India.
5. Under the **Act of 1786**, **Lord Cornwallis** was granted the power to override his Council in extraordinary circumstances concerning peace or safety, and was simultaneously appointed both Governor-General and Commander-in-Chief.
6. The **Charter Act of 1793** extended the East India Company's commercial trade monopoly for another **20 years** and mandated that salaries of Board of Control members be paid out of Indian revenues ('Home Charges').
7. The **Charter Act of 1813** abolished the commercial monopoly of the Company in India, opening Indian trade to all British merchants, with two exceptions: trade in **tea** and trade with **China** remained Company monopolies; it also set aside **₹1 lakh annually** for the promotion of education in India.
8. The **Charter Act of 1833** made the Governor-General of Bengal the **Governor-General of India** (**Lord William Bentinck** became the first Governor-General of India), centralising all civil and military authority.
9. The Charter Act of 1833 completely ended the commercial activities of the East India Company, converting it into a purely administrative body; it also added a **fourth member (Law Member — Lord Macaulay)** to the Governor-General's Council.
10. Under the **Charter Act of 1853**, the legislative and executive functions of the Governor-General's Council were separated for the first time, establishing a 6-member **Indian (Central) Legislative Council**; it also introduced an **open competitive examination for the Indian Civil Services (ICS)** (Macaulay Committee on Civil Services appointed in 1854).
11. The **Government of India Act, 1858** (Act for the Better Government of India) ended East India Company rule following the 1857 revolt, transferring sovereignty directly to the British Crown; it abolished the Board of Control and Court of Directors.
12. The 1858 Act created the office of the **Secretary of State for India** (a member of the British Cabinet assisted by a 15-member Council of India) and redesignated the Governor-General as the **Viceroy of India** (**Lord Canning** became the first Viceroy).
13. The **Indian Councils Act of 1861** initiated representative institutions by associating Indians with legislation (Lord Canning nominated the Raja of Benaras, Maharaja of Patiala, and Sir Dinkar Rao to his Council in 1862) and restored legislative decentralisation to Bombay and Madras Presidencies.
14. The 1861 Act gave statutory recognition to the **Portfolio System** introduced by Lord Canning in 1859, and empowered the Viceroy to issue **Ordinances** with a validity of 6 months during emergencies without his Council's concurrence.
15. The **Indian Councils Act of 1892** increased the non-official membership in central and provincial councils, introduced the principle of **indirect election** through nominations on recommendations of local bodies, and allowed members to **discuss the budget** (without voting or asking supplementary questions).
16. The **Indian Councils Act of 1909 (Morley-Minto Reforms)** introduced **separate electorates for Muslims**, legally institutionalising communalism (Lord Minto is known as the 'Father of Communal Electorate'); it also permitted members to move resolutions and ask **supplementary questions** on the budget.
17. Under the 1909 Act, **Satyendra Prasad Sinha** became the first Indian appointed to the Viceroy's Executive Council as the Law Member.
18. The **Government of India Act, 1919 (Montagu-Chelmsford Reforms)** introduced **Dyarchy (द्वैध शासन)** in provincial governments, dividing provincial subjects into **Transferred Subjects** (administered by Governor with ministers responsible to legislative council) and **Reserved Subjects** (administered by Governor and his executive council without legislative accountability).
19. The 1919 Act introduced for the first time **Bicameralism** at the Centre (Council of State and Legislative Assembly), direct elections, and extended separate electorates to **Sikhs, Indian Christians, Anglo-Indians, and Europeans**.
20. The 1919 Act provided for the establishment of a **Public Service Commission** (the **Central Public Service Commission** was set up in **1926** on the recommendation of the Lee Commission of 1923–24) and created the **Chamber of Princes (Narendra Mandal)** in 1921.
21. The **Simon Commission** was appointed in **November 1927** under Sir John Simon with **7 all-British members** (no Indian representation); its 1930 report recommended the abolition of dyarchy and establishment of provincial autonomy.
22. The **Nehru Report (August 1928)**, drafted by a committee chaired by Motilal Nehru, was the first major Indian attempt to draft a complete constitutional framework; it demanded **Dominion Status**, Fundamental Rights, adult franchise, and rejected separate electorates in favor of joint electorates with reservation.
23. The **Communal Award** announced by British Prime Minister Ramsay MacDonald on **16 August 1932** extended separate electorates to the **Depressed Classes**; Mahatma Gandhi protested via a fast unto death in Yerwada Jail, culminating in the **Poona Pact (24 September 1932)** between Dr. B.R. Ambedkar and Congress leaders, which retained joint electorates but increased reserved seats for Depressed Classes.
24. The **Government of India Act, 1935** was the most voluminous pre-independence constitutional document; it proposed an **All-India Federation** (consisting of British Indian provinces and princely states) which **never came into effect** because princely states refused to join.
25. The 1935 Act abolished provincial dyarchy and introduced **Provincial Autonomy**; it introduced dyarchy at the Centre (which never took operational effect) and introduced **bicameralism in 6 out of 11 provinces** (Bengal, Bombay, Madras, Bihar, Assam, and United Provinces).
26. The 1935 Act divided legislative powers into three lists: **Federal List (59 items)**, **Provincial List (54 items)**, and **Concurrent List (36 items)**; **Residuary Powers** were vested exclusively in the **Governor-General (Viceroy)**.
27. The 1935 Act established the **Federal Court of India** (inaugurated on **1 October 1937** with Sir Maurice Gwyer as first CJI) and provided for the establishment of the **Reserve Bank of India** (RBI Act passed in 1934, RBI began operations on 1 April 1935).
28. The **August Offer of 8 August 1940** (by Viceroy Lord Linlithgow) proposed dominion status after the war and acknowledged for the first time that framing a new constitution would be 'primarily the responsibility of Indians themselves'.
29. The **Cripps Mission (March 1942)** under Sir Stafford Cripps proposed an elected Constituent Assembly after World War II to frame an Indian Dominion constitution; it was rejected by Congress (Gandhi called it a 'post-dated cheque on a crashing bank') and by the Muslim League (which demanded a separate Pakistan).
30. The **Wavell Plan** was presented at the **Shimla Conference (June–July 1945)** proposing an Executive Council with equal Hindu and Muslim representation (except Viceroy and Commander-in-Chief); it broke down due to the Muslim League's insistence on nominating all Muslim members.
31. The **Cabinet Mission** arrived in India in **March 1946** consisting of three British Cabinet ministers: **Lord Pethick-Lawrence** (Secretary of State), **Sir Stafford Cripps**, and **A.V. Alexander**; it rejected the demand for a sovereign Pakistan and proposed a 3-tier Union and the framework for electing the Constituent Assembly.
32. The **Constituent Assembly** was constituted in **November 1946** under the Cabinet Mission Plan with an initial strength of **389 members** (292 from British provinces, 93 from Princely States, and 4 from Chief Commissioners' Provinces: Delhi, Ajmer-Merwara, Coorg, British Baluchistan); after partition, membership was reduced to **299** (229 provinces + 70 princely states).

33. Members of the Constituent Assembly were **indirectly elected** by the provincial legislative assemblies using Proportional Representation by Single Transferable Vote (**PR-STV**); princely state representatives were nominated by their rulers; the Assembly comprised roughly **15 women members**; **Mahatma Gandhi and M.A. Jinnah were NOT members**.
34. The Constituent Assembly held its first meeting on **9 December 1946**; **Dr. Sachchidananda Sinha** was elected as the temporary/interim President following the French practice of electing the oldest member.
35. On **11 December 1946**, **Dr. Rajendra Prasad** was elected permanent President of the Assembly, with **H.C. Mukherjee** and **V.T. Krishnamachari** as Vice-Presidents; **Sir B.N. Rau** was appointed the **Constitutional Adviser** to the Assembly.
36. On **13 December 1946**, Jawaharlal Nehru moved the historic **'Objectives Resolution'**, outlining the foundational philosophy of the Constitution; it was unanimously adopted on **22 January 1947** and later became the basis of the **Preamble**.
37. The **Drafting Committee** was appointed on **29 August 1947** consisting of 7 members chaired by **Dr. B.R. Ambedkar**: N. Gopalaswami Ayyangar, Alladi Krishnaswamy Iyer, Dr. K.M. Munshi, Syed Mohammad Saadulla, N. Madhava Rau (replaced B.L. Mitter), and T.T. Krishnamachari (replaced D.P. Khaitan).
38. Key Constituent Assembly Committees and Chairpersons: Union Powers & Union Constitution Committees = **Jawaharlal Nehru**; Provincial Constitution Committee & Advisory Committee on Fundamental Rights, Minorities and Tribal Areas = **Sardar Vallabhbhai Patel**; Steering Committee & Rules of Procedure = **Dr. Rajendra Prasad**; Minorities Sub-Committee = **H.C. Mukherjee**; Fundamental Rights Sub-Committee = **J.B. Kripalani**.
39. The **Mountbatten Plan (3 June Plan, 1947)** laid down the partition scheme; the **Indian Independence Act, 1947** received royal assent on **18 July 1947** and created two sovereign Dominions (India and Pakistan) effective **15 August 1947**.
40. The **National Flag** (designed by Pingali Venkayya with a 3:2 ratio and 24 spokes in the Ashoka Chakra) was adopted on **22 July 1947**; the **National Anthem (Jana Gana Mana)** and **National Song (Vande Mataram)** were adopted on **24 January 1950**.
41. The Constitution was adopted, enacted, and signed by 284 members on **26 November 1949** (**Constitution Day / Samvidhan Diwas**); while provisions relating to citizenship, elections, provisional parliament, and temporary articles came into force immediately, the remaining provisions came into full force on **26 January 1950** (commemorating the 1930 Purna Swaraj declaration).
42. The original Constitution was handwritten and calligraphed in English by **Prem Behari Narain Raizada** in flowing italic style and illuminated/decorated by artists from Shantiniketan led by **Nandalal Bose** and Beohar Rammanohar Sinha; the Hindi version was calligraphed by **Vasant Krishan Vaidya**; the seal of the Constituent Assembly was the **Elephant**.

📋 Must-score facts — Acts, missions, CA dates

Act ↔ year / lock

Act	Lock
Regulating Act	**1773** — GG of **Bengal**; SC Calcutta **1774**
Pitt's India Act	**1784** — Board of Control (political) / Court of Directors (commercial)
Charter 1833	GG of **India** (Bentinck first)
Charter 1853	Open **ICS** competition
GOI Act 1858	Crown rule (क्राउन शासन); first Viceroy **Canning**
Councils Act 1861	Portfolio system legal recognition
Councils Act 1909	Muslim separate electorates; **S.P. Sinha** first Indian EC member
GOI Act 1919	**Dyarchy** (द्वैध शासन) in provinces; Chamber of Princes
GOI Act 1935	**Provincial Autonomy** (worked); Federation / Centre Dyarchy **did not**
Communal Award	**1932** (not 1933); Poona Pact = reserved seats + joint electorate

CA / transfer tags

Item	Lock
Interim announced / office	**24 Aug 1946** / **2 Sep 1946**
CA first meet	**9 Dec 1946**
Drafting Committee	**29 Aug 1947**; Chair **Ambedkar** (अम्बेडकर); Adviser **B.N. Rau**
CA strength	**389** → **299**; ~**15** women; **284** signed
Adopt / Enforce	**26 Nov 1949** / **26 Jan 1950**
Flag	**22 Jul 1947**

Borrowed features (quick)

Feature	Source
Residuary	**Canada**
Concurrent List	**Australia**
Fundamental Rights	**USA**
DPSP	**Ireland**

Confused Pairs

Pair	Correct	Trap	Hindi
GG of Bengal vs GG of India	**1773** Bengal (Hastings); **1833** India (Bentinck)	Call 1773 = GG of India	बंगाल ≠ भारत
Board of Control vs Court of Directors	Board = **political**; Directors = **commercial**	Swap	बोर्ड = राजनीति
Act of 1786	GG may **overrule** Council; Cornwallis = first GG+CinC	Credit 1784 alone	1786 ओवररूल
First SC Chief Justice	**Sir Elijah Impey**	Lemaister	इम्पे
ICS open competition	**Charter 1853** (implemented)	Charter 1833 (only spirit / §87)	1853 खुली परीक्षा
1813 revenue control	Remained with **Company** for 20 years	Say Parliament took revenues in 1813	राजस्व = कंपनी

Pair	Correct	Trap	Hindi
Portfolio system	Legal recognition = **1861** (practice from 1859)	1858 / 1892 / 1909	पोर्टफोलियो = 1861
Budget discuss vs supplementary Q	Discuss budget = **1892**; supplementary Q = **1909**	Give 1892 supplementary power	1892 पूरक नहीं
Muslim separate electorates	Begin **1909**	Communal Award 1932 as "first"	1909 मुस्लिम
Dyarchy vs Provincial Autonomy	**1919** provinces; **1935** autonomy	Swap or call both central	द्वैध / स्वायत्तता
1935 Federation / Centre Dyarchy	**Never operated**	Assume they ran like Autonomy	संघ / केंद्र द्वैध नहीं चले
Residuary under 1935	With **Viceroy / GG**	Federal Legislature	अवशिष्ट = वायसराय
Residuary (Constitution source)	**Canada**	Australia	अवशिष्ट = कनाडा
Concurrent List source	**Australia**	Canada	समवर्ती = ऑस्ट्रेलिया
Federal Court	Began **1 Oct 1937**; first CJ **Maurice Gwyer**	Say established in 1935 alone	1937 ग्वायर
Communal Award vs Poona Pact	Award = separate for Depressed Classes; Poona = **reserved + joint**	Swap	पूना = संयुक्त
Award year	**1932**	1933 (2019 trap)	1932
2nd RTC attendance	Gandhi **yes**; Rajendra Prasad **no**	Prasad as Congress delegate	प्रसाद नहीं
Interim date	Announced **24 Aug 1946**; office **2 Sep 1946**	Mix the two	24 अगस्त घोषणा
Adopt vs Enforce	**26 Nov 1949** / **26 Jan 1950**	Swap	अंगीकरण / प्रवर्तन
B.N. Rau vs Ambedkar	Rau = **Constitutional Adviser**; Ambedkar = **Drafting Chair**	Swap titles	राऊ सलाहकार
RBI creation	**RBI Act 1934**; GOI 1935 only *provided for*	"Created by GOI Act 1935 alone"	RBI = 1934 अधिनियम
First Viceroy	**Lord Canning** (same man = last Company GG)	Mountbatten as first	कैनिंग पहला वायसराय
First Indian GG	**C. Rajagopalachari** (1948–50)	Mountbatten	राजगोपालाचारी
Chamber of Princes	**GOI Act 1919** (~120); first Chancellor **Ganga Singh**	1909 / 1935	नरेंद्र मंडल = 1919
Gandhi in CA	**Not a member**	List him among CA framers	गांधी सदस्य नहीं
CA election method	**Indirect** (provincial assemblies; PR-STV)	Universal adult franchise at CA stage	अप्रत्यक्ष चुनाव
CA idea vs formal demand	Idea = **M.N. Roy**; first formal demand = **Swaraj Party, Ranchi 1934**	Credit only Congress 1935	स्वराज पार्टी
Temporary vs permanent CA chair	Temp = **Sinha**; permanent = **Rajendra Prasad**	Swap	सिन्हा अस्थायी
Temp vs permanent CA Vice-Chair	Temp Deputy = **Frank Anthony**; permanent VP = **H.C. Mukherjee**	Swap	एंथनी / मुखर्जी
Minorities Sub-Committee	**H.C. Mukherjee** (Chair)	Sardar Patel as chair of this sub-committee	अल्पसंख्यक = मुखर्जी
Advisory Committee	**Sardar Patel** (parent committee)	Confuse with Minorities Sub-Chair	सलाहकार = पटेल
Flag Ad hoc Committee	**Rajendra Prasad** (23 June 1947)	Credit Kripalani / Ambedkar as chair	ध्वज = प्रसाद
Election Commission source	**Indian original**	Say borrowed from Ireland/UK/USA	निर्वाचन आयोग स्वदेशी
CA strength breakdown	**292 + 93 + 4 = 389**	Call total 296+93 only	292+93+4
Calligrapher vs Drafting Chair	**Prem Behari Narain Raizada** (calligrapher) vs **Ambedkar** (Drafting Chair)	Say Ambedkar calligraphed the manuscript	रायज़ादा = सुलेखक
English vs Hindi Calligrapher	**Prem Behari Narain Raizada** (English) vs **Vasant Krishan Vaidya** (Hindi)	Assume same person wrote both	अंग्रेज़ी = रायज़ादा; हिंदी = वैद्य

N.8 Interim Government, Mountbatten Plan & Independence Act

Interim Government

Member	Portfolio
Jawaharlal Nehru	Vice-President; External Affairs & Commonwealth Relations
Sardar Vallabhbhai Patel	Home; Information & Broadcasting
Dr. Rajendra Prasad	Food & Agriculture
Dr. John Matthai	Industries & Supplies
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
C.H. Bhabha	Works, Mines & Power
Liaquat Ali Khan	Finance
Abdur Rab Nishtar	Posts & Air
Asaf Ali	Railways, Communications & Transport
C. Rajagopalachari	Education & Arts
I.I. Chundrigar	Commerce
Ghazanfar Ali Khan	Health
Jogendra Nath Mandal	Law

N.9 Constituent Assembly

Key Functionaries, Calligraphy & Illumination of the Constitution

Role / Element	Person / Institution	Specific Fact (UPPCS Trap Lock)
Constitutional Adviser	**Sir B.N. Rau**	Prepared the initial working draft of the Constitution.
Secretary to Constituent Assembly	**H.V.R. Iyengar**	Senior ICS officer; chief administrative executive of the Assembly Secretariat.
Chief Draftsman	**S.N. Mukherjee**	Renowned for drafting complex constitutional and legal clauses with extraordinary precision.

Role / Element	Person / Institution	Specific Fact (UPPCS Trap Lock)
Calligrapher (English Original)	**Prem Behari Narain Raizada**	Handwrote the entire original Constitution in a flowing italic style with a calligraphic nib (no typewriter or printing was used). He charged no fee, asking only to write his name on every page and his grandfather's name on the last page.
Illumination & Decoration (English)	**Nand Lal Bose & Beohar Rammanohar Sinha**	Celebrated artists from Shantiniketan (Kala Bhavana); decorated borders and margins. Beohar Rammanohar Sinha specifically illuminated the famous **Preamble** page.
Calligrapher (Hindi Original)	**Vasant Krishan Vaidya**	Handwrote the original Hindi translation/version of the Constitution.
Illumination & Decoration (Hindi)	**Nand Lal Bose**	Illuminated and decorated the Hindi manuscript pages.
Official Seal / Emblem of CA	**Elephant (*Gaja*)**	Adopted as the official emblem and seal of the Constituent Assembly.

Women members

Woman member	Province / seat (1946 election)
Ammu Swaminathan	Madras
Begum Aizaz Rasul	United Provinces
Dakshayani Velayudhan	Madras
Durgabai Deshmukh	Madras
Hansa Mehta	Bombay
Kamla Chaudhry	United Provinces
Leela Roy	Bengal
Malati Choudhury	Orissa
Purnima Banerjee (बनर्जी)	United Provinces
Rajkumari Amrit Kaur	Central Provinces & Berar
Renuka Ray	Bengal
Sarojini Naidu	Bengal
Sucheta Kripalani	United Provinces
Vijayalakshmi Pandit	United Provinces
Annie Mascarene	Travancore–Cochin

Minorities, tribal areas & excluded areas — Advisory Committee work

Sub-committee	Chairman	Focus
Fundamental Rights Sub-Committee	**J.B. Kripalani**	Draft catalogue of justiciable rights
Minorities Sub-Committee	**H.C. Mukherjee**	Religious and linguistic minorities
North-East Frontier Tribal Areas & Assam Excluded Areas Sub-Committee	**Gopinath Bardoloi**	Tribal / excluded areas of Assam–NE
Excluded & Partially Excluded Areas Sub-Committee	**A.V. Thakkar**	Scheduled / backward tribal tracts
North-West Frontier Tribal Areas Sub-Committee	(as constituted)	NW frontier tribal belt

Important committees

Committee	Chairman
Drafting Committee (**29 Aug 1947**; **7** members)	**B.R. Ambedkar**
Union Constitution Committee	**Jawaharlal Nehru**
Union Powers Committee	**Jawaharlal Nehru**
States Committee	**Jawaharlal Nehru**
Provincial Constitution Committee	**Sardar Patel**
Advisory Committee on Fundamental Rights, Minorities etc.	**Sardar Patel**
Rules of Procedure Committee	**Rajendra Prasad**
Steering Committee	**Rajendra Prasad**
Finance and Staff Committee	**Rajendra Prasad**
Order of Business Committee	**K.M. Munshi**
House Committee	**B. Pattabhi Sitaramayya**
Constituent Assembly Functions Committee	**G.V. Mavalankar**
Credential Committee	**Alladi Krishnaswami Ayyar**
Fundamental Rights Sub-Committee	**J.B. Kripalani**
Minorities Sub-Committee	**H.C. Mukherjee**
North-East Frontier Tribal Areas & Assam Excluded Areas Sub-Committee	**Gopinath Bardoloi**
Excluded & Partially Excluded Areas Sub-Committee	**A.V. Thakkar**
Ad hoc Committee on National Flag (**23 June 1947**)	**Rajendra Prasad**
Constitutional Adviser	**B.N. Rau**

N.10 Sources / Borrowed Features

Master source table

Feature / provision	Source country	Key fact
Parliamentary government, Cabinet system, Rule of Law, legislative procedure, **single citizenship**, bicameralism, writs (idea)	**UK**	Parliamentary ≠ USA
Fundamental Rights (मौलिक अधिकार), judicial review, independence of judiciary, impeachment of President, removal of SC/HC judges, office of **Vice-President**	**USA**	FR ≠ UK
Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy, method of Presidential election, nomination of Rajya Sabha (राज्यसभा) members	**Ireland**	DPSP ≠ USA
Federation with a **strong Centre**; **residuary powers with Centre**; Centre-appointed **Governor**; **"Union of States"** phrasing (British North America Act, 1867)	**Canada**	Residuary ≠ Australia
Concurrent List (समवर्ती सूची); freedom of trade & commerce; **joint sitting** (संयुक्त बैठक) of Parliament; language of Preamble	**Australia**	Concurrent ≠ Canada
Suspension of Fundamental Rights during **Emergency** (except financial emergency (वित्तीय आपात) lineage)	**Germany (Weimar)**	—
Procedure established by law (original Art. 21 wording)	**Japan**	Not US "due process"
Amendment procedure; election of Rajya Sabha members (idea)	**South Africa**	—
Republic; liberty–equality–fraternity spirit in Preamble discussions	**France**	Ideals, not structure
Federal scheme, three lists, emergency lineage, PSC, Federal Court → SC path, much administrative skeleton	**GOI Act 1935**	Largest structural borrow
Fundamental Duties (मौलिक कर्तव्य) (Part IVA) and Justice ideals in Preamble discussions	**USSR** model (Duties added later by **42nd**, 1976)	Not in original 1950 text

Common Traps

1. GG Bengal (**1773**) ≠ GG India (**1833**)
2. ICS open competition = **1853** (not 1833)
3. Portfolio = **1861** (not 1892/1909)
4. Muslim separate electorates start = **1909**
5. Chamber of Princes = **1919**
6. Dyarchy = **1919**; Autonomy = **1935**
7. 1935 Federation / Centre Dyarchy = never operated
8. Federal Court inauguration = **1937**
9. Bicameral under 1935 = **six** provinces (not all eleven; Punjab not in the six)
10. RBI: GOI 1935 *provided for*; statute = **RBI Act 1934**
11. Communal Award = **1932** (not 1933)
12. Poona Pact = reserved seats + joint electorates
13. 2nd RTC: Gandhi yes; **Prasad no**
14. Cripps → Wavell/Shimla → Cabinet Mission
15. Interim announced **24 Aug 1946** (office 2 Sep)
16. Residuary source = **Canada**; Concurrent = **Australia**
17. Rau = Adviser; Ambedkar = Drafting Chair
18. Flag **22 Jul 1947**; last CA meeting **24 Jan 1950**
19. Adopt **26 Nov 1949**; enforce **26 Jan 1950**
20. First Viceroy = **Canning**; first Indian GG = **Rajagopalachari**
21. 15 Aug 1947 ≠ Republic Day
22. CA idea first floated by **M.N. Roy (1934)**
23. CA strength = **292 + 93 + 4 = 389**; after Partition **~299**; **~15 women**
24. Gandhi was **not** a CA member; election was **indirect PR-STV**, not UAF
25. Minorities Sub-Committee chair = **H.C. Mukherjee** (Advisory Committee = Patel)
26. **284** signed on **26 Nov 1949**; FR = **USA**; DPSP = **Ireland**; GOI **1935** = structural skeleton

Topic 2 — Features of the Constitution

Consolidated — 42 Must-Score Facts

1. The Indian Constitution is the **lengthiest written constitution** in the world, owing to India's vast geographical diversity, historical factors (influence of the detailed GOI Act 1935), a single constitution for both Union and States, and the dominance of legal luminaries in the Constituent Assembly.
2. India is a **Sovereign Democratic Republic** with a **Parliamentary Executive**; the President is the **nominal/de jure** head of state, while the Prime Minister heading the Council of Ministers is the **real/de facto** head of government.
3. India is described by constitutional jurists as **'Quasi-Federal' (K.C. Wheare)**, characterized as a **federal system with a strong unitary bias**; Dr. B.R. Ambedkar stated in the Constituent Assembly that the Constitution is **'federal in form, but unitary in spirit'**.
4. Scholar characterizations of Indian Federalism: **K.C. Wheare** = 'Quasi-federal'; **Granville Austin** = 'Cooperative federalism'; **Morris-Jones** = 'Bargaining federalism'; **Sir Ivor Jennings** = 'Federation with a strong centralising tendency'; **Paul Appleby** = 'Extremely federal'.
5. The Constitution embodies a unique blend of **Rigidity and Flexibility**: while certain provisions can be amended by a **Simple Majority** of Parliament (outside Art. 368, such as Art. 2, 3, 169), constitutional amendments under **Article 368** require either a **Special Majority** (2/3rd present and voting + absolute majority) or a Special Majority with ratification by at least half the State Legislatures.
6. The Constitution provides for an **Integrated and Independent Judiciary**: a single pyramidal hierarchy with the Supreme Court at the apex, followed by State High Courts and Subordinate Courts, enforcing both Union and State laws (unlike the dual court system of the USA).
7. India synthesizes the British principle of **Parliamentary Sovereignty** with the American principle of **Judicial Supremacy**: Parliament can enact laws within constitutional bounds, while the Supreme Court exercises **Judicial Review (Art. 13, 32, 136, 142)** to invalidate unconstitutional legislation.
8. The Constitution guarantees **Single Citizenship** to all citizens irrespective of the State of their birth or residence, fostering fraternity and national unity; there is no separate state citizenship as found in the United States or Switzerland.
9. **Universal Adult Franchise** is established under **Article 326**; the voting age was lowered from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (effective from 28 March 1989).
10. The Constitution adopts an **Indian concept of Secularism** (*Sarva Dharma Sambhava*): equal respect and protection for all religions, rather than the strict western model of complete separation between Church and State.
11. Independent Constitutional Sentinel Bodies created by the Constitution include the **Election Commission of India (Art. 324)**, **Comptroller and Auditor General (Art. 148)**, **Union Public Service Commission (Art. 315)**, and **State Public Service Commissions (Art. 315)**.
12. The Constitution incorporated a **Three-Tier Governance Structure** via the **73rd and 74th Amendments of 1992**, adding constitutional status to rural local bodies (Panchayats - Part IX) and urban local bodies (Municipalities - Part IXA), a feature unique among major world democracies.
13. The **Preamble** acts as the key to unlock the minds of the constitution-makers; it is based on the **'Objectives Resolution'** moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947.
14. The opening words of the Preamble — **'WE, THE PEOPLE OF INDIA'** — emphasize that ultimate sovereignty resides in the people of India and that the Constitution derives its authority from the people.
15. Exact sequence of words in the Preamble: **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC**; this sequence is frequently tested in UPPCS/UKPCS arranged-order questions.
16. The terms **'SOCIALIST'**, **'SECULAR'**, and **'INTEGRITY'** were not in the original 1950 Preamble; they were inserted by the **42nd Constitutional Amendment Act, 1976** under the Indira Gandhi government.
17. **Democratic Socialism** in India aims to end poverty, ignorance, disease, and inequality of opportunity; as held in ***Excel Wear (1978)*** and ***D.S. Nakara (1983)***, Indian socialism is a blend of Marxism and Gandhism, leaning heavily towards Gandhian socialism.
18. The Preamble secures **Three Types of Justice**: **Social Justice** (no discrimination based on caste, creed, color, religion, sex), **Economic Justice** (elimination of glaring wealth disparities), and **Political Justice** (equal access to political office and right to vote) — ideals borrowed from the **Russian Revolution of 1917**.
19. The Preamble guarantees **Five Types of Liberty**: Liberty of **Thought, Expression, Belief, Faith, and Worship**; liberty is not absolute but subject to reasonable restrictions defined in the Constitution.
20. The Preamble guarantees **Two Dimensions of Equality**: Equality of **Status** and of **Opportunity**; this ideal is legally operationalized through Articles 14, 15, 16, 17, and 18 of Part III.
21. The Preamble promotes **Fraternity**, assuring two things: the **Dignity of the Individual** and the **Unity and Integrity of the Nation**; the ideals of Liberty, Equality, and Fraternity were inspired by the **French Revolution (1789)**.
22. Legal Status of the Preamble: In the ***Berubari Union Case (1960)***, the Supreme Court held that the Preamble is *not* a part of the Constitution; this was explicitly **overruled** in ***Kesavananda Bharati (1973)***, which held that the Preamble **is an integral part of the Constitution**.
23. In ***LIC of India Case (1995)***, the Supreme Court once again reaffirmed that the Preamble is an integral part of the Constitution of India.
24. Enforceability of the Preamble: The Preamble is **Non-Justiciable** and non-enforceable in courts of law; it is neither a direct source of legislative power nor a limitation or prohibition upon the powers of the legislature.
25. Amendability of the Preamble: In *Kesavananda Bharati (1973)*, the Supreme Court held that the Preamble **can be amended under Article 368**, provided that the **Basic Structure** of the Constitution is not altered or destroyed; it has been amended **only once** so far (by the 42nd Amendment, 1976).
26. Eminent Jurist Epithets for the Preamble: **N.A. Palkhivala** called it the **'Identity Card of the Constitution'**; **Dr. K.M. Munshi** called it the **'Political Horoscope of our Sovereign Democratic Republic'**; **Pandit Thakur Das Bhargava** described it as the **'Soul of the Constitution, a precious jewel set in the Constitution'**; **Sir Ernest Barker** called it the **'Key-note to the Constitution'**.
27. The date of adoption stated in the Preamble is **26 November 1949** (*Miti Margashirsha Shukla Saptami, Samvat 2006 Vikrami*); on **26 January 1950**, the constitutional status in force was a **'Sovereign Democratic Republic'**.
28. The **Basic Structure Doctrine** propounded in *Kesavananda Bharati (1973)* establishes that Parliament's amending power under Article 368 is not unlimited and cannot damage or destroy core features such as Supremacy of Constitution, Republican & Democratic form, Secularism, Separation of Powers, Federalism, and Judicial Review.
29. Chronology of Fundamental Rights Amendability Cases: ***Shankari Prasad (1951)*** (Parliament can amend FRs) → ***Sajjan Singh (1965)*** (reiterated Shankari Prasad) → ***Golaknath (1967)*** (FRs cannot be amended) → **24th Amendment (1971)** (Parliament asserted power to amend FRs) → ***Kesavananda Bharati (1973)*** (Basic Structure Doctrine) → ***Minerva Mills (1980)*** (harmony between Part III & Part IV is basic structure).
30. Borrowed Foundations: The structural framework is largely drawn from the **Government of India Act, 1935** (Federal Scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency Provisions, and Administrative Details).
31. Borrowed Foundations: The philosophical part of the Constitution (Fundamental Rights and Directive Principles) is inspired by the **American Bill of Rights** and the **Irish Constitution** respectively.
32. Borrowed Foundations: The political part of the Constitution (principle of Cabinet government and relations between executive and legislature) is largely drawn from the **British Constitution**.
33. Emergency flexibility: Dr. Ambedkar highlighted that while federal constitutions like the USA are cast in a rigid mold, the Indian Constitution can be **both unitary as well as federal** according to the requirements of time and circumstances; in normal times it operates as a federal system, but during emergencies it functions as a unitary system.

34. The National Anthem (**Jana Gana Mana**, written by Rabindranath Tagore) and the National Song (**Vande Mataram**, composed by Bankim Chandra Chatterji) were officially adopted on **24 January 1950**; the playing time of the full version of the National Anthem is **52 seconds** (short version = 20 seconds).
35. The **State Emblem of India** (adapted from the Lion Capital of Ashoka at Sarnath, featuring four lions and the motto **'Satyameva Jayate'** in Devanagari script taken from the **Mundaka Upanishad**) was adopted on **26 January 1950**.
36. The **National Calendar** based on the **Saka Era** (with Chaitra as its first month and a normal year of 365 days) was adopted on **22 March 1957** (corresponding to 1 Chaitra 1879 Saka) along with the Gregorian calendar for official government purposes.
37. Unlike the USA where residuary legislative powers rest with the States, the Indian Constitution vests **Residuary Powers in the Centre (Article 248)**, following the **Canadian constitutional model**.
38. The Indian parliamentary executive features **Collective Responsibility (Article 75(3))**, meaning the Council of Ministers is collectively responsible to the **Lok Sabha (Lower House)**; if a No-Confidence Motion passes in Lok Sabha, the entire Ministry must resign.
39. **Individual Responsibility (Article 75(2))**: Ministers hold office during the **pleasure of the President**; in constitutional practice, the President exercises this power only on the advice of the Prime Minister.
40. **Double Membership**: A Minister must be a member of either House of Parliament; under **Article 75(5)**, a person who is not an MP can be appointed a Minister, but ceases to be one if not elected/nominated to either House within **6 consecutive months**.
41. The **Rule of Law (Dicey's Formulation)** incorporates three principles: (1) Absence of arbitrary power; (2) Equality before the law; (3) Predominance of legal spirit. In India, the first two principles apply fully, but the third is replaced by **Constitutional Supremacy**.
42. Constitutional Morality: Dr. B.R. Ambedkar emphasized that **Constitutional Morality** is not a natural sentiment but must be cultivated; it requires adherence to constitutional values, norms, institutions, and processes rather than raw majoritarian impulses.

📋 Must-score facts — type, Preamble, scholars

Type / design tags

Item	Lock
Type of government	**Parliamentary** + Democratic Republic
Polity structure	**Quasi-federal Union** (not Presidential)
Ambedkar line	Federal in form, **unitary in spirit**
Dual executive	President nominal; PM real; responsible to **Lok Sabha**
Art. 1	**Union of States** (word "federation" unused)
Third tier	**73rd / 74th**, **1992**
Voting age 18 (from 21)	**61st** Amendment (**1988**, enforced 1989)
Parts and Schedules	Originally **22 Parts, 8 Schedules**; Now **25 Parts, 12 Schedules**

Federalism scholars

Scholar	Label
K.C. Wheare	Quasi-federal / Federation with strong centralizing tendency
Granville Austin	Cooperative
Morris-Jones	Bargaining
Ivor Jennings	Centralising tendency
C.H. Alexandrowicz	Sui Generis (Unique)

Preamble locks

Item	Lock
Counts	Justice **3** · Liberty **5** · Equality **2** · Fraternity **1** (with 2 aims)
Word **Federal**	**Not** in Preamble
26 Jan 1950 text	Sovereign Democratic Republic only
42nd (1976)	Added **Socialist** + **Secular** (+ integrity)
Status	Part of Constitution; **non-justiciable / not enforceable**
Palkhivala	**Identity card** (Preamble)
K.M. Munshi	**Political Horoscope** (Preamble)
Ambedkar "heart and soul"	**Art. 32** (not Preamble)
Objective Resolution	Moved by **JL Nehru** (13 Dec 1946), Adopted (अंगीकृत) **22 Jan 1947**
French Revolution	Source of **Liberty, Equality, Fraternity**
Russian Revolution	Source of **Justice** (Social, Economic, Political)

Borrowed map

Feature	Source
Parliamentary, Writs, Rule of Law	UK
FR, Judicial review, Independent Judiciary, President Impeachment	USA
DPSP, RS nominations by President	Ireland
Residuary with Centre, Advisory SC jurisdiction	Canada
Concurrent List, Joint sitting	Australia
Emergency model (FR suspension)	Germany (Weimar)
Procedure established by law (Art. 21)	Japan
Constitution amendment, RS members election	South Africa

Feature	Source
Fundamental Duties, Ideals of Justice	USSR (Russia)
Republic, Ideals of Liberty/Equality/Fraternity	France

Confused Pairs

Pair	Correct	Trap	Hindi
Rigid vs Flexible	Blend under Art. 368 + simple-majority paths	"Only rigid like USA"	कठोर+लचीला
Federal vs Unitary	Dual polity + strong Centre = **quasi-federal**	Pure classical federation	अर्ध-संघीय
Quasi-federal (Wheare)	Unitary bias label	Call Austin "quasi"	व्हीयर = अर्ध
Cooperative (Austin)	Centre–State collaboration	Mix with Wheare	ऑस्टिन = सहयोगी
Bargaining (Morris-Jones)	Political bargaining federalism	Mix with Jennings	मॉरिस-जोंस
Sui Generis (Alexandrowicz)	Unique in character	Mix with Wheare	एलेग्जेंड्रोविच = sui generis
Parliamentary vs Presidential	Executive responsible to legislature	President = Presidential system	संसदीय
Independent vs Integrated judiciary	Free of organ control vs one hierarchy under SC	Swap meanings	स्वतंत्र / एकीकृत
Preamble is part vs enforceable	Part after Kesavananda; **still not enforceable**	Treat as FR	उद्देशिका
Adopt date vs enforce date	Preamble date = **26 Nov 1949**; force = **26 Jan 1950**	Swap	अंगीकरण / प्रवर्तन
26 Jan 1950 status	**Sovereign Democratic Republic**	Include Socialist/Secular already	1950 स्थिति
42nd Preamble words	**Socialist + Secular** (+ integrity)	Sovereignty / Republic	समाजवादी+धर्मनिरपेक्ष
Single vs Dual citizenship	India = **single**; USA = dual	India has state citizenship	एकल नागरिकता
Rule of Law vs Constitutional supremacy	No one above law vs Constitution highest law	Treat as identical	विधि / संविधान
Residuary powers	**Centre** (Canada pattern)	States like USA	अवशिष्ट = केंद्र
Art. 3 vs Art. 368	Boundary change = simple majority path	Call every change "special majority"	अनुच्छेद 3
Residual vs Concurrent source	**Canada** vs **Australia**	Swap the pair	कनाडा / ऑस्ट्रेलिया
FR vs DPSP source	**USA** vs **Ireland**	Swap or mix with UK	अमेरिका / आयरलैंड
Amendment Procedure source	**South Africa**	Mix with Germany	दक्षिण अफ्रीका
FR Suspension in Emergency	**Germany (Weimar)**	Mix with South Africa	जर्मनी
GOI 1935 vs full copy	**Structural skeleton** only	"Pure carbon copy"	1935 = ढांचा
Type of govt vs polity	**Parliamentary** form vs **quasi-federal** structure	Call India "Presidential" because of President	संसदीय ≠ राष्ट्रपति
Original vs 42nd Preamble	**1950 = SDR**; Socialist/Secular later	Call 1950 already Socialist Secular	1950 ≠ समाजवादी
Palkhivala tag	Preamble = **identity card**	Mix with Austin / Wheare	पहचान पत्र
Munshi vs Ambedkar tags	Munshi = **political horoscope** (Preamble); Ambedkar **heart and soul** = **Art. 32**	Swap Preamble / Art. 32	मुंशी / आंबेडकर
Berubari vs Kesavananda	*Berubari* = Preamble **not** part (1960); *Kesavananda* = **is** part (1973)	Say Kesavananda first denied it	बेरुबारी / केशवानंद

N.1A Type of government in India

What India's type of government means (frame)

Dimension	India's fact	What it is not
Form of government	**Parliamentary** (Cabinet / Westminster system)	**Presidential** (USA model)
Head of State	**Republic** — elected President	Hereditary monarchy (राजतंत्र) (UK crown)
Source of authority	**Democratic** — universal adult franchise	Hereditary / limited franchise
Structure of polity	**Quasi-federal** / **federal with unitary bias**	Pure federation (USA) or pure unitary State
Preamble nature of State	**Sovereign Socialist Secular Democratic Republic**	"Federal Republic" (word **Federal** is **not** in Preamble)

N.2 Lengthiest written Constitution

Schedules at a glance (high-yield)

Schedule	Content fact
I	Names / territories of States and UTs
II	Emoluments — President, Governors, Speakers, Judges, CAG, etc.
III	Forms of Oaths / Affirmations
IV	Rajya Sabha (राज्यसभा) seat allocation to States/UTs
V	Scheduled Areas and Scheduled Tribes
VI	Tribal (आदिवासी) Areas in Assam, Meghalaya (मेघालय), Tripura, Mizoram
VII	Union / State / Concurrent Lists (**Art. 246**)
VIII	Official Languages
IX	Acts protected from judicial challenge (land-reform era; limited by *I.R. Coelho*, 2007)
X	Anti-defection (**10th Schedule**)
XI	Panchayats — **29** subjects (**73rd**)
XII	Municipalities — **18** subjects (**74th**)

N.3 Blend of rigidity and flexibility

Type	Procedure	Examples (key facts)
Simple majority of Parliament	Like ordinary law; **outside** Art. 368	Formation/alteration of States (**Arts. 2–4**); abolition/creation of Legislative Councils (**Art. 169**); some Second Schedule / procedure matters as specified
Special majority (Art. 368)	Majority of **total membership** (सदन की कुल सदस्य संख्या का) of each House + **2/3 of members present and voting**	Many FR/DPSP/institutional provisions
Special majority + State ratification	Special majority in Parliament + ratification by **half of State legislatures**	Federal provisions: election of President; extent of executive power Union/States; SC/HC; distribution of legislative powers; representation of States in Parliament; Art. 368 itself

N.4 Federal system, quasi-federal nature, federal vs unitary

Political scientists — labels and what they mean

Scholar	Label for Indian federalism	Description (coaching fact)
K.C. Wheare	**Quasi-federal** / quasi-federation	India is federal in **form** but the **strong Centre** makes it **not** a true federation like the USA.
Granville Austin	**Cooperative federalism**	Centre and States must **cooperate as partners** in nation-building; Constitution creates **cooperative, not confrontational**, federalism (*The Indian Constitution: Cornerstone of a Nation*).
Morris-Jones	**Bargaining federalism**	Centre–State relations are worked out through **political bargaining and negotiation**, not only by rigid legal division of powers.
Ivor Jennings	**Federalism with centralising tendency**	India has a **federal structure**, but power and authority show a **centralising / unitary bias** at the Union level.

Match-list quick fact (2024 PYQ pattern)

Label	Scholar
Cooperative Federalism	**Granville Austin**
Bargaining Federalism	**Morris-Jones**
Quasi Federalism	**K.C. Wheare**
Federalism with Centralising Tendency	**Ivor Jennings**

N.5 Parliamentary system

Parliamentary vs Presidential

Point	Parliamentary (India)	Presidential (USA)
Executive	From legislature; responsible to it	Separate; fixed tenure
Head of state / govt	Dual — President + PM	Single — President
Ministers	Usually MPs	Need not be legislators
Tenure	Depends on House confidence	Fixed (impeachment rare)
Dissolution	Lok Sabha can be dissolved	House of Representatives fixed term
Separation of powers	Fusion of executive–legislature	Stricter separation
Responsibility	Collective to Lower House	Not collectively responsible to Congress (कांग्रेस)

N.6 Preamble

Original text vs 42nd Amendment

Element	Original (26 Nov 1949 / 26 Jan 1950)	After 42nd Amendment, 1976
Nature of State	**Sovereign Democratic Republic**	**Sovereign Socialist Secular Democratic Republic**
Fraternity clause	Unity of the Nation	Unity **and integrity** of the Nation
Words added	—	**Socialist**, **Secular**, **integrity**

Soul / heart traps (do not swap)

Tag	Who / case	What it refers to
Soul of the Constitution	Preamble (Bhargava / Kashyap line)	Philosophical key
Heart and soul	**Ambedkar** (अम्बेडकर) on **Art. 32** (Right to Constitutional Remedies)	Not the Preamble
Political horoscope	**K.M. Munshi** on Preamble	Not Ambedkar
Identity card	**Palkhivala** on Preamble	Not Austin / Wheare
Pious / sacred document	**Ambedkar** on the Constitution as a whole	Not Munshi on Preamble

Meaning of key words

Word	Meaning fact
Sovereign	No external power controls India; internal + external supremacy
Socialist	Added by **42nd (1976)**; democratic socialism — mixed economy, reduce inequality
Secular	Added by **42nd (1976)**; State has no official religion; equal freedom of religion (positive secularism)
Democratic	Government by the people — based on universal adult franchise
Republic	Head of State is **elected**, not hereditary (गैर-वंशानुगत) monarch

Keyword counts (UPPCS favourite)

Ideal	Components	Count
Justice	Social, Economic, Political	**3**
Liberty	Thought, Expression, Belief, Faith, Worship	**5**
Equality	Status and Opportunity	**2**
Fraternity	Assuring dignity of the individual + unity **and integrity** of the Nation	**1** (ideal)

N.7 Basic Structure Doctrine

Case / amendment chronology (must fact)

Case / Event	Year	Holding (key fact)
Shankari Prasad vs Union of India	**1951**	Parliament can amend FR (Art. 368 includes FR)
Sajjan Singh vs State of Rajasthan	**1965**	Same line affirmed
Golaknath vs State of Punjab	**1967**	Parliament **cannot** amend FR (amendment = "law" under Art. 13)
24th Constitutional Amendment	**1971**	Restored power to amend any part including FR; amended Arts. 13 and 368
Kesavananda Bharati	**1973**	Can amend, but **cannot destroy Basic Structure**
Indira Nehru Gandhi vs Raj Narain	**1975**	Applied Basic Structure (free and fair elections / Rule of Law elements)
42nd Amendment	**1976**	Tried to make Art. 368 unlimited (ss. 4 and 55)
Minerva Mills vs Union of India	**1980**	Struck down unlimited amending power; judicial review and limited amendability = Basic Structure; balance FR–DPSP
Waman Rao / later cases	**1981 onwards**	Basic Structure applied to 9th Schedule (9वीं अनुसूची) post-Kesavananda, etc.
S.R. Bommai (1994)	—	Secularism as Basic Structure (also federalism / Art. 356 misuse)

N.10 Comparison with USA / UK / Canada / Ireland (basic)

Feature	India	USA	UK	Canada / Ireland notes
Form of govt	Parliamentary	Presidential	Parliamentary	Canada parliamentary
Constitution	Written, lengthy, supreme	Written, short, supreme	Unwritten + Parliamentary sovereignty	Canada written federal
Citizenship	Single	Dual (federal + state)	—	Single like Canada
Residuary powers	Centre	States	—	Centre like Canada
Federation	Strong Centre / quasi-federal	Classical dual federalism	Unitary	Canada federal
DPSP	Yes (Ireland)	No equivalent	—	Ireland source
Judicial review	Strong	Strong	Limited / different	—
Amendment	Rigid + flexible blend	Mostly rigid	Flexible (sovereignty of Parliament)	—
Rights	FR justiciable + DPSP	Bill of Rights	Common law + statutes + HRA later	—
Head of State	Elected President (Republic)	Elected President	Hereditary monarch	—

N.13 Sources of the Indian Constitution (borrowed features)

Country-wise source table

Feature / provision	Borrowed from	Common trap
Parliamentary government, Cabinet, Rule of Law, legislative procedure, **single citizenship**, bicameralism, writs (idea)	**UK**	Not USA for parliamentary system
Fundamental Rights, judicial review, independent judiciary, impeachment of President, removal of judges, **Vice-President**	**USA**	Not UK for FR
Directive Principles of State Policy, Presidential election method, RS nominations	**Ireland**	Not USA for DPSP
Strong-Centre federation; **residuary powers with Centre**; Centre-appointed Governor	**Canada**	**Not Australia** for residuary
Concurrent List (समवर्ती सूची); freedom of trade (पण्याध्यक्ष) & commerce; joint sitting	**Australia**	**Not Canada** for concurrent
Suspension of FR during Emergency	**Germany (Weimar)**	—
Procedure established by law (original Art. 21)	**Japan**	Not US "due process" wording
Liberty–equality–fraternity Preamble spirit	**France**	Ideals, not full structure
Lists, emergency frame, PSC, much administrative detail	**GOI Act 1935**	"Only copy of 1935" oversimplifies
Fundamental Duties (Part IVA)	**USSR** model via **42nd Amendment, 1976**	Not in original 1950 Constitution

Common Traps

1. **Federal** is NOT in the Preamble (2021)
2. 42nd added **Socialist + Secular**, not Sovereignty/Republic (2025)
3. On **26 Jan 1950** = **Sovereign Democratic Republic** only
4. Preamble is **not enforceable** (2019)
5. Justice–Liberty–Equality–Fraternity = **3, 5, 2, 1** (2018)
6. Quasi-federal = **Wheare**, not Austin (2019/2024)
7. Cooperative federalism = **Austin**; Bargaining = **Morris-Jones**; Centralising = **Jennings**
8. Basic Structure = **Kesavananda 1973**, not Golaknath
9. India ≠ Presidential merely because there is a President

10. Single citizenship — not USA dual model
11. No absolute separation of powers like USA
12. Constitutional supremacy ≠ UK Parliamentary sovereignty
13. Residuary powers with **Centre** (Canada), not States
14. Berubari "Preamble not part" superseded by Kesavananda — Preamble **is part**
15. Voting age 18 via **61st** Amendment — not since 1950
16. Third tier = **1992** (73rd/74th), not 1990/91
17. States **cannot** secede (2019)
18. Quasi-federal A/R: judiciary true but **does not explain** quasi-federal (2020)
19. Parliamentary system first in **UK** (2018)
20. Art. 2–4 changes ≠ Art. 368 amendment (simple majority path)
21. **Minerva Mills (1980)** restored limits after 42nd's attempt to make Art. 368 unlimited
22. Inter-State Council set up on **Sarkaria** recommendation (1990) — cooperative federalism tool
23. Preamble date line = **26 November 1949** (adoption), not 26 January 1950
24. Residual powers source = **Canada**; Concurrent List = **Australia** — do not swap
25. FR = **USA**; DPSP = **Ireland**; parliamentary system = **UK**
26. Art. 21 "procedure established by law" = **Japan**, not USA due-process wording
27. GOI Act **1935** = structural skeleton — not a complete carbon copy of independent Constitution
28. Palkhivala = Preamble is the **identity card** of the Constitution
29. Original Preamble = **Sovereign Democratic Republic**; Socialist/Secular/integrity = **42nd**
30. Schedules: **VII** = Lists; **X** = anti-defection; **XI/XII** = Panchayats/Municipalities

Topic 3 — Parts, Articles & Schedules

Consolidated — 41 Must-Score Facts

1. The original Constitution of 1950 contained **22 Parts, 395 Articles, and 8 Schedules**; through subsequent amendments, four parts were added (**IVA, IXA, IXB, XIVA**), one part was repealed (**Part VII** by the 7th Amendment, 1956), and four schedules were added (**9th, 10th, 11th, 12th**), bringing the total to **25 Parts and 12 Schedules**.
2. **Part I (Articles 1–4):** The Union and its Territory; Art. 1 ('India, that is Bharat, shall be a Union of States'); Art. 2 (admission/establishment of new states from foreign territory); Art. 3 (formation of new states, alteration of areas, boundaries, or names of existing states by simple majority).
3. **Part II (Articles 5–11):** Citizenship; deals with citizenship at the commencement of the Constitution; Art. 9 (loss of Indian citizenship on voluntary acquisition of foreign citizenship; strict single citizenship); Art. 11 (Parliament's plenary power to regulate citizenship by law).
4. **Part III (Articles 12–35):** Fundamental Rights; described as the **'Magna Carta of India'**; classified into 6 categories: Right to Equality (14–18), Right to Freedom (19–22), Right against Exploitation (23–24), Right to Freedom of Religion (25–28), Cultural and Educational Rights (29–30), and Right to Constitutional Remedies (32).
5. **Part IV (Articles 36–51):** Directive Principles of State Policy (DPSP); fundamental in governance; non-justiciable; Art. 39A (Free legal aid); Art. 40 (Village Panchayats); Art. 44 (Uniform Civil Code); Art. 45 (Early childhood education); Art. 50 (Separation of Judiciary from Executive); Art. 51 (Promotion of international peace).
6. **Part IVA (Article 51A):** Fundamental Duties; 11 duties; added by the **42nd Amendment, 1976** (Swaran Singh Committee); 11th duty added by **86th Amendment, 2002**; non-justiciable.
7. **Part V (Articles 52–151):** The Union Government; divided into 5 chapters: Ch. 1 Executive (52–78), Ch. 2 Parliament (79–122), Ch. 3 Legislative Powers of President (123 - Ordinance), Ch. 4 Union Judiciary (124–147), Ch. 5 Comptroller and Auditor General of India (148–151).
8. **Part VI (Articles 152–237):** The State Governments; divided into 6 chapters: Ch. 1 General (152), Ch. 2 State Executive (153–167), Ch. 3 State Legislature (168–212), Ch. 4 Legislative Power of Governor (213 - Ordinance), Ch. 5 High Courts (214–232), Ch. 6 Subordinate Courts (233–237).
9. **Part VII (Article 238):** States in Part B of the First Schedule; **REPEALED** by the **7th Constitutional Amendment Act, 1956** upon the reorganization of States into States and Union Territories.
10. **Part VIII (Articles 239–242):** The Union Territories; administration by President via Administrator/Lt. Governor; **Article 239AA** provides special provisions for the **National Capital Territory of Delhi** (inserted by 69th Amendment, 1991).
11. **Part IX (Articles 243 to 243-O):** The Panchayats; inserted by the **73rd Amendment, 1992**; constitutionalized 3-tier Panchayati Raj institutions; linked with the **11th Schedule** (29 functional subjects).
12. **Part IXA (Articles 243-P to 243-ZG):** The Municipalities; inserted by the **74th Amendment, 1992**; constitutionalized urban local bodies; linked with the **12th Schedule** (18 functional subjects).
13. **Part IXB (Articles 243-ZH to 243-ZT):** The Co-operative Societies; inserted by the **97th Amendment, 2011**; in 2021, the Supreme Court struck down provisions affecting intra-state cooperatives for lack of state ratification, upholding it only for multi-state cooperatives.
14. **Part X (Articles 244–244A):** The Scheduled and Tribal Areas; Art. 244 provides for administration of 5th Schedule areas (10 States) and 6th Schedule areas (AMTM); Art. 244A empowers Parliament to form an autonomous State comprising certain tribal areas in Assam.
15. **Part XI (Articles 245–263):** Relations between the Union and the States; divided into Ch. 1 Legislative Relations (245–255) and Ch. 2 Administrative Relations (256–263); Art. 262 (Inter-state water disputes adjudication); Art. 263 (Inter-State Council). *Examiner Trap: Tribunals are NOT in Part XI!*
16. **Part XII (Articles 264–300A):** Finance, Property, Contracts and Suits; Art. 266 (Consolidated Fund & Public Account); Art. 267 (Contingency Fund); Art. 279A (GST Council); Art. 280 (Finance Commission); **Article 300A** (Right to Property — made a legal/constitutional right by 44th Amendment 1978).
17. **Part XIII (Articles 301–307):** Trade, Commerce, and Intercourse within the Territory of India; Art. 301 guarantees freedom of trade and commerce; Art. 302 empowers Parliament to impose restrictions in the public interest.
18. **Part XIV (Articles 308–323):** Services under the Union and the States; Art. 312 (All-India Services, created via Rajya Sabha resolution); Arts. 315–323 (UPSC and State Public Service Commissions).
19. **Part XIVA (Articles 323A–323B):** Tribunals; inserted by the **42nd Amendment, 1976** on Swaran Singh Committee recommendation; Art. 323A (Administrative Tribunals - CAT/SAT); Art. 323B (Tribunals for other matters: taxation, tenancy, foreign exchange, elections).
20. **Part XV (Articles 324–329A):** Elections; Art. 324 (Election Commission of India superintendence); Art. 325 (Single electoral roll without religious/racial discrimination); Art. 326 (Universal Adult Suffrage); Art. 329 (Bar to interference by courts in electoral matters).
21. **Part XVI (Articles 330–342A):** Special Provisions Relating to Certain Classes; Art. 330 (SC/ST reservation in Lok Sabha); Art. 332 (SC/ST reservation in State Assemblies); Art. 338 (NCSC); Art. 338A (NCST); Art. 338B (NCBC); Art. 340 (Backward Classes Commission).
22. **Part XVII (Articles 343–351):** Official Language; Ch. 1 Language of Union (343 - Hindi in Devanagari script); Ch. 2 Regional Languages (345); Ch. 3 Language of SC/HCs (348 - English); Ch. 4 Special Directives (350A mother tongue instruction, 350B Linguistic Minorities Officer, 351 Hindi development).
23. **Part XVIII (Articles 352–360):** Emergency Provisions; Art. 352 (National Emergency); Art. 355 (Duty of Union to protect States); Art. 356 (President's Rule / State Emergency); Art. 358 (Suspension of Art. 19 during external emergency); Art. 359 (Suspension of enforcement of FRs, excluding Arts. 20 & 21); Art. 360 (Financial Emergency).
24. **Part XIX (Articles 361–367):** Miscellaneous; **Article 361** gives personal immunity to the President and Governors from criminal proceedings and arrest during their term of office; Art. 365 (effect of failure to comply with Union directions).
25. **Part XX (Article 368):** Amendment of the Constitution; constituent power of Parliament to amend by way of addition, variation, or repeal; borrowed from the South African Constitution.
26. **Part XXI (Articles 369–392):** Temporary, Transitional, and Special Provisions; contains special asymmetric federal provisions for 12 States under **Articles 371 to 371-J**; former Art. 370 (J&K special status) rendered inoperative in August 2019.
27. **Part XXII (Articles 393–395):** Short Title, Commencement, Authoritative Text in Hindi and Repeals; Art. 393 sets short title: 'The Constitution of India'; Art. 394 specifies commencement; Art. 395 repealed the Indian Independence Act 1947 and GOI Act 1935.
28. **1st Schedule:** Lists the names and territorial jurisdictions of the **28 States and 8 Union Territories** of India.
29. **2nd Schedule:** Provisions relating to the salaries, allowances, and pensions of: President of India, Governors of States, Speaker & Deputy Speaker of Lok Sabha, Chairman & Deputy Chairman of Rajya Sabha, Speaker & Deputy Speaker of State Legislative Assemblies, Chairman & Deputy Chairman of State Legislative Councils, Judges of Supreme Court and High Courts, and the CAG. *Ministers (PM/CM) and Attorney General are NOT in the 2nd Schedule!*
30. **3rd Schedule:** Forms of Oaths or Affirmations for: Union Ministers, Candidates for election to Parliament, MPs, Supreme Court Judges, CAG, State Ministers, Candidates for State legislature elections, MLAs/MLCs, High Court Judges. *Examiner Trap: The President (Art. 60), Vice-President (Art. 69), and Governor (Art. 159) have oaths prescribed in specific articles, NOT in the 3rd Schedule!*
31. **4th Schedule:** Allocation of seats in the **Rajya Sabha (Council of States)** to each State and Union Territory; allocation is based on population; Uttar Pradesh has the largest share with **31 seats**, followed by Maharashtra with 19 seats; Uttarakhand has 3 seats.
32. **5th Schedule:** Provisions for the administration and control of **Scheduled Areas and Scheduled Tribes** in 10 States (Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, Rajasthan); provides for a **Tribes Advisory Council (TAC)** with up to 20 members (3/4th ST MLAs).
33. **6th Schedule:** Administration of Tribal Areas in **4 North-Eastern States: AMTM (Assam, Meghalaya, Tripura, Mizoram)**; establishes **Autonomous District Councils (ADCs)** and Regional Councils with legislative, judicial, and financial autonomy; *Manipur and Nagaland are NOT covered by the 6th Schedule.*

34. **7th Schedule (Article 246):** Three Legislative Lists dividing powers between Union and States: (1) **Union List (List I)**: originally 97, currently **100 entries**; (2) **State List (List II)**: originally 66, currently **61 entries**; (3) **Concurrent List (List III)**: originally 47, currently **52 entries**.
35. **42nd Amendment 7th Schedule Transfer (1976):** Transferred **5 subjects from State List to Concurrent List**: (1) Education; (2) Forests; (3) Weights and Measures; (4) Protection of Wild Animals and Birds; (5) Administration of Justice (constitution and organisation of all courts except SC and HCs).
36. **8th Schedule:** Recognizes **22 Official Languages**: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia (spelling changed from Oriya by 96th Amd 2011), Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu. *English and Bhojpuri are NOT included.*
37. **9th Schedule:** Added by the **1st Constitutional Amendment Act, 1951** to protect land reforms and agrarian laws from judicial challenge under Article 31B; currently contains 284 Acts. In ***I.R. Coelho v. State of Tamil Nadu (2007)***, a 9-judge bench ruled that laws placed in the 9th Schedule after **24 April 1973** (Kesavananda judgment date) are open to judicial review if they violate the Basic Structure.
38. **10th Schedule:** Added by the **52nd Constitutional Amendment Act, 1985** (Anti-Defection Law); disqualifies legislators on grounds of defection; decided by the Presiding Officer of the House; in ***Kihoto Hollohan (1992)***, the SC ruled that the Presiding Officer's decision is subject to **Judicial Review**; the **91st Amendment, 2003** deleted the 1/3rd split defence, requiring a minimum of **2/3rd members to merge**.
39. **11th Schedule:** Added by the **73rd Constitutional Amendment Act, 1992**; contains **29 functional subjects** within the administrative purview of Panchayats under Article 243-G (e.g., agriculture, minor irrigation, rural housing, drinking water, roads).
40. **12th Schedule:** Added by the **74th Constitutional Amendment Act, 1992**; contains **18 functional subjects** within the administrative purview of Municipalities under Article 243-W (e.g., urban planning, land use regulation, roads and bridges, public health, fire services).
41. **Special Provisions under Articles 371 to 371-J (Part XXI):** Art. 371 (Maharashtra and Gujarat - Vidarbha, Saurashtra); Art. 371A (Nagaland - religious/social practices, customary law); Art. 371B (Assam); Art. 371C (Manipur); Art. 371D & 371E (Andhra Pradesh & Telangana - educational/employment opportunities); Art. 371F (Sikkim); Art. 371G (Mizoram); Art. 371H (Arunachal Pradesh - Governor's special law & order responsibility); Art. 371-I (Goa); Art. 371-J (Karnataka - Hyderabad-Karnataka region, 98th Amd 2012).

📋 Must-score facts — Parts, Schedules, Articles

Part ↔ subject

Part	Subject
II	Citizenship
III	Fundamental Rights
IV	DPSP
IVA	Fundamental Duties (42nd Amd)
V / VI / VIII	Union / States / UTs
IX / IXA / IXB	Panchayats / Municipalities / Cooperatives
XI	Centre–State relations
XIV	Services under Union and States (UPSC)
XIVA	Tribunals (42nd Amd)
XV	Elections
XVII	Official Language
XVIII	Emergency
XX	Amendment (Art. 368)
XXI	Temporary / special (**371–371J**)

Schedule ↔ subject

Schedule	Lock
1st	Territories of States / UTs
2nd	Emoluments / Salaries (President, CJI, CAG, etc.)
3rd	Oaths (President's oath is NOT here)
4th	Rajya Sabha seats
5th	Scheduled Areas / STs (many States)
6th	**AMTM**: Assam, Meghalaya, Tripura, Mizoram Autonomous Councils
7th	Union / State / Concurrent Lists
8th	**22** languages (**Sindhi, Konkani, Manipuri, Nepali, Bodo, Dogri, Maithili, Santhali** added later. Bhojpuri/English **out**)
9th	Validation of Acts (1st Amd, 1951)
10th	Anti-defection (52nd Amd, 1985)
11th	**29** Panchayat subjects (73rd Amd)
12th	**18** Municipality subjects (74th Amd)

High-yield Articles

Article	Lock
1 / 3	Union of States / form–alter States
14-18 / 19 / 21	Right to Equality / Freedom / Life & Liberty
32 / 226	SC FR remedy / HC wider writs
40 / 44	Village Panchayats / Uniform Civil Code
72 / 161	President / Governor pardon
110 / 112	Money Bill / Annual Financial Statement (Budget)
123 / 213	President / Governor ordinance
148	CAG

Article	Lock
249	RS power to legislate on State List subject
263 / 280 / 324	ISC / Finance Commission / Election Commission
300A	Legal right to property
312 / 315	All-India Services / UPSC
338 / 338A / 338B	NCSC / NCST / NCBC
352 / 356 / 360	National / State / Financial Emergency
368	Amendment procedure (प्रक्रिया)

Confused Pairs

A	B	Correct	Hindi
Part III	Part IV	FR justiciable vs DPSP non-justiciable	मौलिक अधिकार / नीति निर्देशक
Part IV	Part IVA	DPSP vs Fundamental Duties	—
Part IX / IXA / IXB	—	Panchayats / Municipalities / Cooperatives	—
Part XI	Part XIVA	Centre–State relations vs Tribunals	—
4th Schedule	9th Schedule	RS seats vs validation of Acts	—
5th Schedule	6th Schedule	Scheduled Areas (many States) vs AMTM Autonomous Councils	—
7th Schedule	8th Schedule	Three Lists (Union, State, Concurrent) vs 22 Languages	—
11th Schedule	12th Schedule	29 Panchayat subjects vs 18 Municipality subjects	—
Art. 32	Art. 226	SC writs (FR) vs HC writs (wider — any purpose)	—
Art. 226	Art. 227	HC writs vs HC **superintendence** over subordinate courts	—
Art. 54	Art. 66	President: elected MPs + elected MLAs vs VP: **Parliament only**	—
Art. 61	Art. 67	President **impeachment** vs VP removal by RS resolution + LS agreement	—
Art. 72	Art. 161	President's pardon vs Governor's pardon	—
Art. 76	Art. 165	Attorney-General of India vs Advocate-General of a State	—
Art. 110	Art. 112	Money Bill vs Annual Financial Statement (Budget)	—
Art. 123	Art. 213	President's Ordinance vs Governor's Ordinance	—
Art. 124 age	Art. 217 age	SC Judge **65** vs HC Judge **62**	—
Art. 266	Art. 267	Consolidated Fund vs Contingency Fund	—
Art. 21	Art. 21A	Life/liberty (wide, all persons) vs RTE **6–14** only	—
Art. 29	Art. 30	Any **section** (culture) vs **minorities**' institutions	—
Art. 338	Art. 338A	National Commission for SCs vs National Commission for STs	—
Art. 352	Art. 356 / 360	National vs State vs Financial Emergency	—
Art. 371I	Art. 371J	**Goa** (min. 30 MLAs) vs **Karnataka** (Kalyana-Karnataka)	—

Parts of the Constitution

Parts Master Table (learn once)

Part	Subject
I	The Union and its Territory
II	Citizenship
III	Fundamental Rights
IV	Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy
IVA	Fundamental Duties
V	The Union (President, VP, CoM, Parliament, AG, Union Judiciary structure)
VI	The States
VII	Repealed
VIII	The Union Territories
IX	The Panchayats
IXA	The Municipalities
IXB	The Cooperative Societies
X	The Scheduled and Tribal Areas
XI	Relations between the Union and the States
XII	Finance, Property, Contracts and Suits
XIII	Trade, Commerce and Intercourse within India
XIV	Services under the Union and the States
XIVA	Tribunals
XV	Elections
XVI	Special Provisions relating to certain Classes
XVII	Official Language

Part	Subject
XVIII	Emergency Provisions
XIX	Miscellaneous
XX	Amendment of the Constitution
XXI	Temporary, Transitional and Special Provisions (Arts. 371–371J; ex-370 teaching)
XXII	Short Title, Commencement, Authoritative Text, Repeals

Important Parts (syllabus set — elaborated)

Part	Articles	What it contains
III	**12–35**	Fundamental Rights — justiciable; Art. 32 called the "heart and soul" by Ambedkar (अम्बेडकर)
IV	**36–51**	DPSP — **not** justiciable; fundamental in governance (Art. 37)
IVA	**51A**	Fundamental Duties — **42nd Amd, 1976**; **11** duties (10 original + **51A(k)** by **86th**)
IX	**243–243O**	Panchayats — **73rd Amd**; Gram Sabha (ग्राम सभा); 3-tier; SEC; **11th Schedule** (11वीं)
IXA	**243P–243ZG**	Municipalities — **74th Amd**; **12th Schedule** (12वीं)
IXB	**243ZH–243ZT**	Cooperative Societies — **97th Amd, 2011**
XV	**324–329**	Elections; Election Commission; adult suffrage (**326**); bar on court interference (**329**)
XVIII	**352–360**	National Emergency (**352**); State / President's Rule (**356**); Financial Emergency (**360**)
XXI	**369–392**	Temporary, Transitional & Special — **370** (J&K, now inoperative); **371–371J**

Important Articles — number · subject · elaboration

Part I–II — Union, Territory, Citizenship (Arts. 1–11)

Art.	Subject	Elaboration
1	Name and territory of the Union	India, that is Bharat, shall be a **Union of States**. Territory = States + UTs + such other territories as may be acquired.
2	Admission / establishment of new States	Parliament may by law admit new States into the Union or establish new States on such terms as it thinks fit.
3	Formation of new States; alteration of area, boundaries, name	Parliament may form a new State, increase or diminish area, alter boundaries or name. **President's recommendation** is needed. The State Legislature's view is **not binding**.
4	Laws under Arts. 2–3	Such laws may amend the First and Fourth Schedules and are **not** deemed amendments under **Art. 368**.
5	Citizenship at commencement	A person domiciled in India who was born in India, or either of whose parents was born in India, or who had been ordinarily resident for not less than five years, became a citizen on **26 Jan 1950**.
6	Rights of citizenship of certain persons who have migrated to India from Pakistan	Cut-off teaching: migrants before **19 July 1948** (and related domicile rules) vs those who came after and registered.
7	Rights of citizenship of certain migrants to Pakistan	A person who migrated to Pakistan after **1 March 1947** generally loses citizenship under Arts. 5–6, with a narrow return-and-resettle exception.
8	Rights of citizenship of certain persons of Indian origin residing outside India	Persons of Indian origin abroad may register as citizens on prescribed terms.
9	Persons voluntarily acquiring citizenship of a foreign State not to be citizens	Such a person **shall not** be a citizen by virtue of Arts. 5–8.
10	Continuance of the rights of citizenship	Citizenship continues subject to any law made by Parliament.
11	Parliament to regulate the right of citizenship by law	Parliament may make any provision on acquisition, termination and related matters — basis of the **Citizenship Act, 1955**.

Part III — Fundamental Rights (Arts. 12–35) — full clause map

Art.	Subject	Quick label
12	Definition of **State**	Who is bound by FR
13	Laws inconsistent with FR	Voidness + what "law" means
14–18	Right to Equality	Equality cluster
19–22	Right to Freedom	Six freedoms + conviction + life + arrest
23–24	Right against Exploitation	Trafficking, begar (बेगार), child labour
25–28	Freedom of Religion	Conscience to religious instruction
29–30	Cultural & Educational Rights	Sections / minorities
31A–31C	Saving of certain laws	Estates / 9th Schedule (9वीं अनुसूची) / DPSP link
32–35	Constitutional remedies & Parliament's power	Writs; armed forces; martial law; legislation

Clause	What it does
15(1)	State shall not discriminate against any **citizen** only on religion, race, caste, sex, place of birth, or any of them.
15(2)	No citizen shall face disability on those grounds regarding access to shops, restaurants, hotels, places of public entertainment, or use of wells, tanks, bathing ghats, roads and places of public resort (State-funded or for general public). This reaches certain **private** discrimination in public spaces.
15(3)	Special provisions for **women and children** are allowed.
15(4)	Special provisions for advancement of **SEBCs / SCs / STs** are allowed (**1st Amendment**, after *Champakam Dorairajan*).
15(5)	Special provisions for SEBC/SC/ST admission to educational institutions, including private aided/unaided ones, **except** minority institutions under Art. 30(1) (**93rd Amendment**).
15(6)	Special provisions for **EWS** (other than classes in 15(4)/(5)), including education reservation up to **10%** (**103rd Amendment**).

Clause	What it does
16(1)	Equality of opportunity for all **citizens** in employment or appointment under the State.

Clause	What it does
16(2)	No citizen shall be discriminated against in State employment only on religion, race, caste, sex, **descent**, place of birth, **residence**, or any of them.
16(3)	Parliament may prescribe residence requirements for certain classes of State employment.
16(4)	State may reserve posts for any backward class not adequately represented in State services.
16(4A)	Reservation in **promotion** for SCs/STs (**77th Amendment** line).
16(4B)	Carry-forward of unfilled reserved vacancies (**81st** / related teaching).
16(5)	Religious denomination offices / connected institutions may be reserved for members of that denomination.
16(6)	EWS reservation in public employment (**103rd Amendment**).

Sub-clause	Freedom	Restriction clause
19(1)(a)	Freedom of speech and expression	**19(2)** — sovereignty, security, foreign relations, public order, decency/morality, contempt of court, defamation, incitement to offence
19(1)(b)	Assemble peaceably and without arms	**19(3)**
19(1)(c)	Form associations or unions or cooperative societies	**19(4)**
19(1)(d)	Move freely throughout India	**19(5)**
19(1)(e)	Reside and settle in any part of India	**19(5)**
19(1)(g)	Practise any profession, or carry on any occupation, trade or business	**19(6)**

Clause	Rule	Teaching sentence
20(1)	No **ex post facto** criminal law	No person shall be convicted of an offence except for violation of a law in force at the time of the act. No greater penalty than what the law then provided.
20(2)	No **double jeopardy**	No person shall be prosecuted and punished for the same offence more than once.
20(3)	No **self-incrimination**	No person accused of an offence shall be compelled to be a witness against himself.

Right read into Art. 21	Leading case / note
Fair, just and reasonable procedure; travel abroad	*Maneka Gandhi* (1978)
Speedy trial; free legal aid (linked teaching)	*Hussainara Khatoon*
Live with human dignity	*Francis Coralie Mullin*
Livelihood	*Olga Tellis*
Against handcuffing / inhuman treatment (custody)	*Prem Shankar Shukla* / *D.K. Basu* line
Education (before Art. 21A)	*Mohini Jain* / *Unni Krishnan* → later **21A**
Health and emergency medical care	*Paschim Banga Khet Mazdoor Samity* line
Shelter / housing dignity themes	Court expansion after *Olga Tellis* line
Clean environment (पर्यावरण) / clean air	Environment cases (*Subhash Kumar*, *Murli Deora* line)
Food / against starvation themes	*PUCL* line
Against sexual harassment at workplace	*Vishaka* guidelines
Gender identity of transgender persons	*NALSA* (2014)
Privacy as a Fundamental Right	*K.S. Puttaswamy* (2017)
Die with dignity / passive euthanasia framework	*Common Cause* (2018)
Choose life partner / personal autonomy themes	Later autonomy cases

Block	Clauses	What it teaches
Ordinary arrest	**22(1)–(2)**	Person arrested must be informed of grounds as soon as may be; right to consult and be defended by a legal practitioner of choice; produce before the nearest magistrate within **24 hours** (excluding journey time); no further detention without magistrate's authority.
Carve-out	**22(3)**	22(1)–(2) do **not** apply to an enemy alien or to a person detained under a **preventive detention** law.
Preventive detention	**22(4)–(7)**	Detention beyond **three months** needs an **Advisory Board** opinion (High Court judges / qualified persons), unless Parliament by law fixes the maximum period and procedure under 22(7). Parliament may prescribe the circumstances and classes of cases, and the maximum period of detention.

Part IV–IVA — DPSP & Fundamental Duties (Arts. 36–51A)

Art.	Subject	Elaboration
36	Definition of State (Part IV)	Same meaning as **Art. 12**.
37	Application of DPSP	DPSP are **not enforceable** in court, but are **fundamental in the governance** of the country. It is the State's duty to apply them in making laws.
38	Social order; minimise inequalities	Secure a social order for the promotion of welfare. **38(2)** (44th) directs the State to minimise inequalities in income, status, facilities and opportunities.
39	Certain principles of policy	Livelihood for all citizens; ownership and control of material resources distributed for the common good **39(b)**; operation of the economic system does not result in concentration of wealth **39(c)**; equal pay for equal work; health of workers and children; children are given opportunities to develop in a healthy manner. **39(b)–(c)** link to Art. **31C**.
39A	Equal justice and free legal aid	Inserted by the **42nd Amendment**.
40	Organisation of village panchayats	State shall take steps to organise village panchayats and endow them with powers of self-government — seed of **Part IX / 73rd**.
41	Right to work, to education and to public assistance	Within the limits of economic capacity and development — unemployment, old age, sickness and disablement, and undeserved want.
42	Just and humane conditions of work and maternity relief	Basis of labour welfare and maternity benefit laws.
43	Living wage for workers; cottage industries	Living wage, decent standard of life, and cottage industries on an individual or co-operative basis in rural areas.
43A	Participation of workers in management	**42nd Amendment**.
43B	Promotion of co-operative societies	**97th Amendment**.

Art.	Subject	Elaboration
44	Uniform Civil Code	State shall endeavour to secure for citizens a Uniform Civil Code throughout India.
45	Early childhood care and education	After the **86th**: State shall endeavour to provide early childhood care and education for all children until they complete the age of **six years** (6–14 shifted to Art. **21A**).
46	Promotion of educational and economic interests of SC, ST and other weaker sections	Protect them from social injustice and all forms of exploitation.
47	Duty to raise nutrition and standard of living and improve public health	Primary duty of the State. Includes endeavour to prohibit consumption of intoxicating drinks and drugs injurious to health, except for medicinal purposes.
48	Organisation of agriculture and animal husbandry	Organise on modern and scientific lines. Take steps to prohibit slaughter of cows, calves and other milch and draught cattle.
48A	Protection of environment, forests and wildlife	Protect and improve the environment and safeguard forests and wildlife — **42nd Amendment**. Pairs with duty **51A(g)**.
49	Protection of monuments and places and objects of national importance	Protect every monument, place or object of artistic or historic (ऐतिहासिक) interest declared to be of national importance.
50	Separation of judiciary from executive	In the public services of the State.
51	Promotion of international peace and security	Promote international peace and security; maintain just and honourable relations between nations; foster respect for international law and treaty obligations; encourage settlement of international disputes by arbitration.

Clause	Duty of every citizen
51A(a)	Abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.
51A(b)	Cherish and follow the noble ideals which inspired the national struggle for freedom.
51A(c)	Uphold and protect the sovereignty, unity and integrity of India.
51A(d)	Defend the country and render national service when called upon to do so.
51A(e)	Promote harmony and the spirit of common brotherhood among all the people of India, transcending religious, linguistic and regional or sectional diversities; renounce practices derogatory to the dignity of women.
51A(f)	Value and preserve the rich heritage of our composite culture.
51A(g)	Protect and improve the natural environment including forests, lakes, rivers and wildlife, and have compassion for living creatures.
51A(h)	Develop the scientific temper, humanism and the spirit of inquiry and reform.
51A(i)	Safeguard public property and abjure violence.
51A(j)	Strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement.
51A(k)	Parent or guardian shall provide opportunities for education to the child or ward between the ages of **six and fourteen years** (**86th Amendment**).

Union Executive — President, Vice-President, Council of Ministers, Attorney-General

Art.	Subject	Elaboration
52	President of India	There shall be a President of India.
53	Executive power of the Union	Vested in the President and exercised directly or through officers subordinate to him. Supreme command of the Defence Forces of the Union, regulation by law.
54	Election of President	Electoral college: elected members of both Houses of Parliament + elected members of the Legislative Assemblies of States (**and of Delhi and Puducherry** after the 70th). Nominated members do **not** vote.
55	Manner of election	Proportional representation by means of the **single transferable vote**; voting by secret ballot. Uniformity among States and parity between the Union and the States.
56	Term of office of President	**Five years** from the date of entering office. Continues until the successor enters office. May resign by writing to the Vice-President. May be removed by impeachment under Art. **61**.
57	Eligibility for re-election	A person who holds, or who has held, office as President is eligible for re-election.
58	Qualifications for election as President	Citizen of India; completed **35 years**; qualified for election as a member of the Lok Sabha (लोकसभा); must not hold any office of profit (exceptions as provided).
59	Conditions of President's office	Shall not be a member of either House of Parliament or of a State Legislature (seat becomes vacant on entering office). Shall not hold any other office of profit. Emoluments in the Second Schedule / by law; privileges protected.
60	Oath of President	Oath or affirmation before the **Chief Justice of India** (or, in his absence, the senior-most Judge of the Supreme Court). This form is **not** in the Third Schedule.
61	Impeachment of President	For **violation of the Constitution**. Charge may be preferred by either House after notice by **not less than one-fourth** of the total members of that House and **14 days**. Resolution must be passed by a majority of **not less than two-thirds (ते-भागा) of the total membership (सदन की कुल सदस्य संख्या का)** of that House. The other House investigates.
62	Time of holding election to fill vacancy	Election to fill a vacancy caused by expiry of term shall be completed before the expiry of the term. Casual vacancy election as soon as possible, and in no case later than **six months** from the date of vacancy.

Art.	Subject	Elaboration
63	The Vice-President of India	There shall be a Vice-President of India.
64	VP as ex-officio Chairman of Rajya Sabha	The Vice-President is **ex-officio Chairman of the Council of States** and shall not hold any other office of profit. While acting as President under Art. 65, he does **not** perform the duties of Chairman of Rajya Sabha.
65	VP to act as President or discharge functions	If the President's office falls vacant by death, resignation, removal or otherwise, the VP **acts as President** until a new President enters office. If the President is unable to discharge functions owing to absence, illness or any other cause, the VP **discharges** those functions until the President resumes. While so acting, the VP has all powers and immunities of the President and the emoluments as determined by Parliament / Second Schedule.
66	Election of Vice-President	Elected by members of an electoral college consisting of the members of **both Houses of Parliament** (elected **and nominated**). System: proportional representation by STV; secret ballot. **State MLAs do not vote** (contrast Art. **54**).
67	Term of office of Vice-President	**Five years** from entering office. May resign by writing to the **President**. May be removed by a resolution of the Rajya Sabha passed by a majority of **all the then members** of the Council of States and agreed to by the Lok Sabha; **14 days'** notice is required. Continues until successor enters office.
68	Time of holding election to fill vacancy	Election to fill a vacancy by expiry of term shall be completed before expiry. Casual vacancy: as soon as possible. Person elected to a casual vacancy holds office for the full term of five years from the date of entering office.
69	Oath of Vice-President	Oath or affirmation before the **President** (or a person appointed by him). This form is **not** in the Third Schedule.

Art.	Subject	Elaboration
70	Discharge of President's functions in other contingencies	Parliament may make provision for discharge of Presidential functions in contingencies not provided for in this Chapter.
71	Matters relating to election of President / VP	Doubts and disputes arising out of or in connection with the election of a President or Vice-President shall be inquired into and decided by the **Supreme Court**, whose decision is final.

Art.	Subject	Elaboration
72	Power of President to grant pardons etc.	Pardon, reprieve, respite, remission, suspension, commutation — for offences against Union law, sentences by **court-martial**, and **death sentences** in all cases.
73	Extent of executive power of the Union	Extends to matters on which Parliament has power to make laws, and to exercise of rights/authority/jurisdiction exercisable by the Government of India by virtue of any treaty or agreement — subject to the Constitution and to State executive power on Concurrent List (समवर्ती सूची) matters where a State law applies.
74	Council of Ministers to aid and advise President	There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President. The **42nd** made advice binding. The **44th Amendment** (44वां संशोधन) allows the President to require the CoM to reconsider advice **once**; thereafter the President shall act in accordance with the advice tendered after such reconsideration.
75	Other provisions as to Ministers	PM is appointed by the President. Other Ministers are appointed by the President on the advice of the PM. Collective responsibility to the **Lok Sabha** (लोकसभा). A Minister who for any period of **six consecutive months** is not a member of either House ceases to be a Minister. **91st Amendment**: CoM of the Union shall not exceed **15%** of the total number of members of the Lok Sabha.
76	Attorney-General for India	Appointed by the President. Must be qualified to be appointed a Judge of the Supreme Court. Gives advice on legal matters and performs other duties of a legal character as assigned. Right of audience in all courts in India. May take part in the proceedings of Parliament without vote. Holds office during the pleasure of the President.
77	Conduct of business of the Government of India	All executive action of the Government of India shall be expressed to be taken in the name of the President. Orders and instruments are authenticated as rules provide. President makes rules for convenient transaction of business and allocation among Ministers.
78	Duties of Prime Minister as respects furnishing of information to President	Communicate to the President all decisions of the CoM relating to administration and legislation. Furnish such information relating to administration as the President may call for. If the President so requires, submit for the consideration of the CoM any matter on which a decision has been taken by a Minister but which has not been considered by the Council.

Parliament, Union Judiciary, CAG

Art.	Subject	Elaboration
79	Constitution of Parliament	Parliament consists of the President and two Houses — **Rajya Sabha** (राज्यसभा) (Council of States) and **Lok Sabha** (House of the People).
80	Composition of Rajya Sabha	Maximum **250** members: not more than **238** representatives of States and UTs + **12** nominated by the President from persons having special knowledge or practical experience in literature, science, art and social service.
81	Composition of Lok Sabha	Not more than **530** representatives of States + not more than **20** representatives of UTs. Nomination of not more than two Anglo-Indian members lapsed after the **104th Amendment (2020)**.
83	Duration of Houses	Rajya Sabha is a continuing House; as nearly as possible **one-third** of members retire every **second year**. Lok Sabha continues for **five years** from its first meeting unless sooner dissolved. During a Proclamation of Emergency, Parliament may by law extend the life of the Lok Sabha (लोकसभा का कार्यकाल समाप्त) by **one year at a time**, not extending beyond six months after the Proclamation ceases.
85	Sessions of Parliament, prorogation (सत्रावसान) and dissolution (विघटन)	President summons each House. **Six months** shall not intervene between its last sitting (बैठक) in one session (पंगु सत्र) and the date appointed for its first sitting in the next session. President may prorogue Houses and dissolve the Lok Sabha.
93	Speaker and Deputy Speaker of Lok Sabha	Lok Sabha chooses a Speaker and a Deputy Speaker from among its members.
108	Joint sitting (संयुक्त बैठक) of both Houses	If a Bill (other than a Money Bill or a Constitution Amendment Bill) is rejected by the other House, or Houses disagree on amendments, or more than six months elapse from receipt without passage, the President may summon (आहूत करना) a joint sitting. Presided over by the **Speaker** of the Lok Sabha.
110	Definition of Money Bill	A Bill dealing with taxation, borrowing, Consolidated Fund, Appropriation, etc., as listed. The **Speaker's certificate** that a Bill is a Money Bill is **final**. Rajya Sabha cannot amend a Money Bill; it may recommend (सिफारिश) within **14 days**.
111	Assent to Bills	When a Bill is presented, the President may assent, withhold assent, or (except a Money Bill) return the Bill once for reconsideration. After reconsideration and re-passage, the President shall not withhold assent.
112	Annual Financial Statement	The President causes to be laid before both Houses a statement of estimated receipts and expenditure of the Government of India for that year — the Union **Budget**.
123	Power of President to promulgate Ordinances	When **both Houses** are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action. Ordinance has the same force as an Act. Must be laid before both Houses. Ceases to operate at the expiration of **six weeks** from reassembly unless approved earlier; may be withdrawn.
124	Establishment and constitution of Supreme Court	Chief Justice of India and other Judges as Parliament may by law prescribe. Appointed by the President. Judge holds office until age **65**. Removal by Presidential order after address by each House on grounds of proved misbehaviour or incapacity (special majority process under 124(4)).
129	Supreme Court to be a court of record	SC is a court of record and has power to punish for contempt of itself.
131	Original jurisdiction of the Supreme Court	Centre vs State(s); State vs State — subject to exclusions for disputes arising out of treaties/agreements that exclude such jurisdiction.
132–134	Appellate jurisdiction (constitutional / civil / criminal)	Appeals from High Courts in certain constitutional, civil and criminal matters as provided.
136	Special leave to appeal	SC may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed by any court or tribunal in India (except a court or tribunal constituted by or under any law relating to the Armed Forces).
137	Review of judgments or orders by the Supreme Court	SC may review its own judgment or order, subject to law made by Parliament / rules.
141	Law declared by Supreme Court to be binding on all courts	The law declared by the Supreme Court is binding on **all courts** within the territory of India.
143	Power of President to consult Supreme Court	President may refer a question of law or fact of public importance to the SC for consideration. The opinion is **advisory** (not binding like a judgment), though highly respected.
148	Comptroller and Auditor-General of India	Appointed by the President. Oath in the Third Schedule. Removed in like manner and on like grounds as a Judge of the Supreme Court.
149–151	Duties and reports of CAG	Duties prescribed by Parliament. Reports relating to Union accounts are submitted to the **President**, who causes them to be laid before each House of Parliament. State accounts reports go to the **Governor**, who causes them to be laid before the Legislature.

States — Governor, State Executive, Legislature, Advocate-General

Art.	Subject	Elaboration
153	Governors of States	There shall be a Governor for each State. The same person may be appointed Governor for two or more States.
154	Executive power of State	Vested in the Governor and exercised directly or through officers subordinate to him.
155	Appointment of Governor	By the **President** by warrant under his hand and seal (मुद्रा).
156	Term of office of Governor	Holds office during the pleasure of the President. Usual term teaching: **five years** from entering office. May resign to the President.
159	Oath of Governor	Oath or affirmation before the Chief Justice of the High Court (or, in his absence, the senior-most Judge of that Court). **Not** in the Third Schedule.
161	Power of Governor to grant pardons etc.	For offences against any law relating to a matter to which the executive power of the State extends. **No** power over court-martial. Death-sentence teaching: Governor may suspend, remit or commute; the full pardon map for death sentences sits with the President under Art. **72**.
163	Council of Ministers to aid and advise Governor	There shall be a CoM with the Chief Minister at the head to aid and advise the Governor, except in so far as the Governor is by or under the Constitution required to exercise functions in his **discretion**.
164	Other provisions as to Ministers	CM appointed by the Governor; other Ministers on CM's advice. Collective responsibility to the Legislative Assembly. In the States of Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha there shall be a Minister in charge of tribal welfare (and may hold additional charge). CoM size cap under the **91st** (15% of Assembly).
165	Advocate-General for the State	Appointed by the Governor. Must be qualified to be appointed a Judge of a High Court. Advises the State Government on legal matters. Right of audience in all courts in the State. Holds office during the pleasure of the Governor. Parallel to the Union's Attorney-General (Art. **76**).
167	Duties of Chief Minister as respects furnishing of information to Governor	Parallel to Art. **78** — communicate CoM decisions, furnish information the Governor calls for, and submit a Minister's decision for CoM consideration if the Governor so requires.
168	Constitution of Legislatures in States	Every State shall have a Legislature which consists of the Governor and one House (unicameral) or two Houses (bicameral). Creation or abolition of a Legislative Council follows Art. **169**.
200	Assent to Bills	When a Bill is presented to the Governor, he may assent, withhold assent, return the Bill (if it is not a Money Bill) for reconsideration, or **reserve the Bill for the consideration of the President**.
201	Bills reserved for consideration of President	President may assent, withhold assent, or direct the Governor to return the Bill to the House or Houses for reconsideration.
213	Power of Governor to promulgate Ordinances	When the Legislature (or both Houses where bicameral) is not in session. Same force as an Act of the State Legislature. Needs instructions from the President in specified cases (for example where a Bill would have required reservation).

High Courts and Subordinate Courts (Arts. 214–237) — missing cluster filled

Art.	Subject	Elaboration
214	High Courts for States	There shall be a High Court for each State. Parliament may establish a **common High Court** for two or more States under Art. **231**.
215	High Courts to be courts of record	Every High Court is a court of record and has power to punish for contempt of itself. Parallel to Art. **129** for the Supreme Court.
216	Constitution of High Courts	Every High Court consists of a Chief Justice and such other Judges as the President may from time to time deem necessary.
217	Appointment and conditions of the office of a Judge of a High Court	Appointed by the President after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court. Holds office until age **62**. Resignation to the President. Removal in the manner provided for removal of a Supreme Court Judge (Art. 124 procedure via Art. 218).
219	Oath of High Court Judges	Oath or affirmation before the Governor (or a person appointed by him). Form is in the **Third Schedule**.
222	Transfer of a Judge from one High Court to another	President may transfer a Judge after consultation with the Chief Justice of India.
223	Appointment of acting Chief Justice	When the office of Chief Justice is vacant or the CJ is unable to perform duties, the President may appoint one of the other Judges to perform them.
224	Appointment of additional and acting Judges	President may appoint additional Judges for a temporary increase in business (up to two years) and acting Judges when a Judge is absent or unable to sit.
224A	Appointment of retired Judges at sittings of High Courts	Chief Justice of a High Court may, with the previous consent of the President, request a retired Judge to sit and act as a Judge of that Court.
226	Power of High Courts to issue certain writs	Every High Court may issue to any person or authority, including in appropriate cases any Government, directions, orders or writs, including habeas corpus, mandamus, prohibition, quo warranto and certiorari, for enforcement of **Fundamental Rights** and **for any other purpose**. This is **wider than Art. 32**. Territorial reach depends on whether the cause of action arises wholly or in part within the Court's jurisdiction.
227	Power of superintendence over all courts by the High Court	Every High Court has **superintendence** over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction (subject to exclusions for Armed Forces courts). This is supervisory jurisdiction — distinct from the writ power under Art. **226**.
228	Transfer of certain cases to High Court	If a case pending in a subordinate court involves a substantial question of law as to the interpretation of the Constitution, the High Court may withdraw the case and either dispose of it or determine the question and return it.
231	Establishment of a common High Court for two or more States	Parliament may by law establish a common High Court for two or more States or for two or more States and a Union Territory.
233	Appointment of district judges	Appointed by the Governor in consultation with the High Court exercising jurisdiction in relation to the State.
235	Control over subordinate courts	The High Court has control over district courts and courts subordinate thereto, including posting, promotion and leave of persons belonging to the judicial service and holding posts inferior to district judge.

UTs and Local Government (selected)

Art.	Subject	Elaboration
239	Administration of Union Territories	Every UT is administered by the President acting through an **Administrator** appointed by him (Lieutenant Governor / Chief Commissioner as designated).
239AA	Special provisions with respect to Delhi	National Capital Territory of Delhi has a Legislative Assembly and a Council of Ministers. Subjects of **public order, police and land** remain with the Centre. Inserted by the **69th Amendment, 1991**.
243	Definitions (Panchayats)	Defines district, Gram Sabha, intermediate level, Panchayat, village and related terms for Part IX.
243A	Gram Sabha	A Gram Sabha may exercise such powers and perform such functions at the village level as the Legislature of a State may by law provide.
243D	Reservation of seats (Panchayats)	Seats reserved for SCs/STs in proportion to population (जनसंख्या). Not less than **one-third** of total seats reserved for women (including seats reserved for women belonging to SC/ST).
243E	Duration of Panchayats	Every Panchayat continues for **five years**. Election to constitute a Panchayat shall be completed before expiry of duration; if dissolved, before expiration of a period of **six months** from the date of dissolution (with limited exceptions).
243G	Powers, authority and responsibilities of Panchayats	State may by law endow Panchayats with powers for economic development and social justice, including implementation of schemes for subjects in the **Eleventh Schedule (29 subjects)**.

Art.	Subject	Elaboration
243K	Elections to the Panchayats	Superintendence, direction and control of electoral rolls and elections vested in a **State Election Commission**. The State Election Commissioner is appointed by the Governor.
243W	Powers, authority and responsibilities of Municipalities	State may endow Municipalities with powers for subjects in the **Twelfth Schedule (18 subjects)**.
243ZA	Elections to the Municipalities	Superintendence of municipal elections also vested in the State Election Commission (same institutional line as Art. 243K).
244	Administration of Scheduled Areas and Tribal Areas	**244(1)** applies the **Fifth Schedule** to Scheduled Areas and Scheduled Tribes in States other than Assam, Meghalaya, Tripura and Mizoram. **244(2)** applies the **Sixth Schedule** to tribal areas in **Assam, Meghalaya, Tripura and Mizoram**.

Centre–State, Finance, Services, Elections, Emergency, Amendment

Art.	Subject	Elaboration
245	Extent of laws made by Parliament and by State Legislatures	Parliament may make laws for the whole or any part of India. A State Legislature may make laws for the whole or any part of the State. A law made by Parliament shall not be invalid because it would have extra-territorial operation.
246	Subject-matter of laws made by Parliament and State Legislatures	**Seventh Schedule**: List I (Union), List II (State), List III (Concurrent). In case of overlap, Union power prevails subject to Art. **254** nuances on the Concurrent List.
248	Residuary (अवशिष्ट) powers of legislation	Parliament has exclusive power to make any law with respect to any matter not enumerated in the Concurrent List or State List. Linked to Union List (संघ सूची) Entry **97**.
249	Power of Parliament to legislate with respect to a matter in the State List in the national interest	If the Rajya Sabha passes a resolution supported by not less than **two-thirds** (ते-भागा) of the members **present and voting**, Parliament may legislate on that State List matter for the whole or any part of India. Such resolution remains in force for a period not exceeding **one year** and may be renewed.
250	Power of Parliament to legislate with respect to any matter in the State List if a Proclamation of Emergency is in operation	While a Proclamation of Emergency is in operation, Parliament may legislate for a State on State List matters.
252	Power of Parliament to legislate for two or more States by consent	If the Legislatures of two or more States pass resolutions that Parliament should legislate on a State List matter, Parliament may do so for those States. Other States may adopt later by resolution.
253	Legislation for giving effect to international agreements	Parliament may make any law for implementing any treaty, agreement or convention, or any decision at an international conference — even on a State List matter.
254	Inconsistency between laws made by Parliament and laws made by State Legislatures	On a Concurrent List matter, if a State law is repugnant to a Parliamentary law, the Union law prevails. A State law reserved for the President and assented to may prevail in that State until Parliament legislates further.
256	Obligation of States and the Union	Executive power of every State shall be so exercised as to ensure compliance with Union laws. Union may give directions to a State as may appear necessary.
262	Adjudication of disputes relating to waters of inter-State rivers or river valleys	Parliament may by law provide for adjudication of any dispute or complaint. Parliament may also provide that neither the Supreme Court nor any other court shall exercise jurisdiction in respect of any such dispute.
263	Provisions with respect to an Inter-State Council	If at any time it appears to the President that the public interests would be served, he may establish an Inter-State Council. Sarkaria (सरकारिया आयोग) Commission recommended its activation; it was set up in **1990**.
265	Taxes not to be imposed save by authority of law	No tax shall be levied or collected except by authority of law.
266	Consolidated Funds and public accounts of India and of the States	Consolidated Fund of India (भारत की संचित निधि) and Consolidated Fund of each State — all revenues, loans and moneys received in repayment of loans.
267	Contingency Fund	Parliament / State Legislature may establish a Contingency Fund of India / of the State for advances pending authorisation.
280	Finance Commission	President shall constitute a Finance Commission within two years from commencement and thereafter at the expiration of every **fifth year** or at such earlier time as he considers necessary. Recommends distribution of net proceeds of taxes, principles of grants-in-aid, and other related matters. Chairman + four (चातुर्याम) other members.
300A	Persons not to be deprived of property save by authority of law	No person shall be deprived of his property save by authority of law. This is a **legal / constitutional right**, not a Fundamental Right. The **44th Amendment** deleted the old Fundamental Right to property (Arts. 19(1)(f) and 31).
310	Tenure of office of persons serving the Union or a State	Except as expressly provided, a Union civil servant holds office during the pleasure of the President, and a State civil servant during the pleasure of the Governor — subject to Art. **311**.
311	Dismissal, removal or reduction in rank of persons employed in civil capacities	No person shall be dismissed or removed by an authority subordinate to that by which he was appointed. No dismissal, removal or reduction in rank except after an inquiry and a reasonable opportunity of being heard — with exceptions (conviction on criminal charge; impracticable to hold inquiry; security of the State).
312	All-India Services	If the Rajya Sabha declares by resolution supported by not less than **two-thirds** of the members present and voting that it is necessary in the national interest, Parliament may create one or more All-India Services common to the Union and the States. IAS, IPS and Indian Forest Service are the classic examples.
315	Public Service Commissions for the Union and for the States	UPSC for the Union; a Public Service Commission for each State; two or more States may agree to a Joint State Commission.
320	Functions of Public Service Commissions	Conduct examinations for appointments. Consulted on recruitment methods, principles of appointment/promotion/transfer, suitability of candidates, disciplinary matters, and related claims — subject to regulations making exceptions.
323A	Administrative tribunals	Parliament may by law provide for adjudication of disputes relating to recruitment and conditions of service of Union / State public servants. Basis of CAT / SATs. Part **XIVA** (42nd Amendment).
323B	Tribunals for other matters	Appropriate Legislature may provide tribunals for tax, foreign exchange, industrial and labour disputes, land reforms, ceiling on urban (नगरीय) property, elections to Legislature, and other listed matters.
324	Superintendence, direction and control of elections	Vested in the **Election Commission** (निर्वाचन आयोग) for elections to Parliament, State Legislatures, and offices of President and Vice-President. Commission consists of the Chief Election Commissioner and such number of other Election Commissioners as the President may fix. CEC removed like a Supreme Court Judge.
325	No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste or sex	There shall be one general electoral roll for every territorial constituency.
326	Elections to the House of the People and to the Legislative Assemblies of States to be on the basis of adult suffrage	Citizen of India, not less than **eighteen years** of age (reduced from 21 by the **61st Amendment**), and not otherwise disqualified.
329	Bar to interference by courts in electoral matters	Validity of laws relating to delimitation or allotment of seats shall not be called in question in any court. No election to Parliament or a State Legislature shall be called in question except by an election petition presented to such authority and in such manner as Parliament may by law provide.
330 / 332	Reservation of seats for Scheduled Castes and Scheduled Tribes	In the Lok Sabha / State Legislative Assemblies — seats reserved in proportion to population, as provided.

Art.	Subject	Elaboration
335	Claims of Scheduled Castes and Scheduled Tribes to services and posts	Shall be taken into consideration, consistently with the maintenance of efficiency of administration.
338 / 338A / 338B	National Commissions for SC / ST / Backward Classes	Constitutional bodies. NCBC strengthened as a constitutional body by the **102nd Amendment**.
343	Official language of the Union	Hindi in Devanagari script. The international form of Indian numerals. English continues for official purposes of the Union as provided by law (Official Languages Act line).
348	Language to be used in the Supreme Court and in the High Courts and for Acts, Bills, etc.	Until Parliament by law otherwise provides, all proceedings in the Supreme Court and in every High Court shall be in English. Governor, with previous consent of the President, may authorise use of Hindi or the State language in the High Court, with judgments still in English unless Parliament provides otherwise.
351	Directive for development of the Hindi language	It shall be the duty of the Union to promote the spread of Hindi and to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India.
352	Proclamation of Emergency (National Emergency)	If the President is satisfied that a grave emergency exists whereby the security of India or any part is threatened by **war**, **external aggression**, or **armed rebellion** (44th replaced "internal disturbance"). Written advice of the Union Cabinet is required. Parliamentary approval and duration rules apply.
355	Duty of the Union to protect every State against external aggression and internal disturbance	Also to ensure that the government of every State is carried on in accordance with the Constitution.
356	Provisions in case of failure of constitutional machinery in States (President's Rule)	If the President, on receipt of a report from the Governor or otherwise, is satisfied that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution. Initially for six months with parliamentary approval rhythm; maximum duration teaching is typically **three years** with conditions.
358 / 359	Suspension of provisions of Art. 19 / enforcement of FR during Emergencies	**358**: while a Proclamation of Emergency on war or external aggression is in operation, Art. **19** does not restrict State power (automatic suspension teaching). **359**: President may by order declare that the right to move any court for enforcement of such of the rights conferred by Part III (except Arts. **20** and **21**) as may be named shall remain suspended.
360	Provisions as to financial emergency	If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part is threatened. Directions may include reduction of salaries and allowances of persons serving the Union or a State, including Judges. **Never imposed so far**.
365	Effect of failure to comply with, or to give effect to, directions given by the Union	Where a State fails to comply with Union directions, it shall be lawful for the President to hold that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution — a ground linked to Art. **356**.
368	Power of Parliament to amend the Constitution and procedure therefor	Parliament may amend by adding, varying or repealing any provision. Ordinary amendments need a special majority. Amendments of certain federal features also need ratification by not less than **one-half** of the State Legislatures. Basic Structure cannot be destroyed (*Kesavananda*).
393	Short title	This Constitution may be called the **Constitution of India**.
394	Commencement	Some articles came into force on **26 Nov 1949**. The Constitution as a whole commenced (लागू) on **26 Jan 1950**.
395	Repeals	The Indian Independence Act (अधिनियम), 1947, and the Government of India Act, 1935, together with related enactments as specified, stand repealed.

Part XXI — 371 series (special States)

Art.	State	Elaboration
370	Jammu & Kashmir (historical)	Temporary provisions relating to the State of Jammu and Kashmir. Special status teaching is historical. The article was made **inoperative** after the Presidential Order and the constitutional reorganisation of 2019. J&K and Ladakh (लद्दाख) became Union Territories.
371	Maharashtra and Gujarat	Governor's special responsibility for Vidarbha, Marathwada and the rest of Maharashtra, and for Saurashtra, Kutch and the rest of Gujarat — development boards and equitable allocation of funds and opportunities.
371A	**Nagaland**	No Act of Parliament in respect of Naga (नागा) religious or social practices, Naga customary law and procedure, administration of civil and criminal justice involving Naga customary law, or ownership and transfer of land and its resources, shall apply to Nagaland unless the **Legislative Assembly** of Nagaland so decides.
371B	**Assam**	President may provide for the constitution and functions of a committee of the Legislative Assembly consisting of members elected from the tribal areas of Assam.
371C	**Manipur**	Special provision for a committee of the Legislative Assembly consisting of members elected from the Hill Areas of Manipur, with responsibility of the Governor.
371D	Andhra Pradesh and Telangana	Equitable opportunities and facilities for the people of different parts of the State in public employment and education; administrative tribunal history (इतिहास) in teaching.
371E	Andhra Pradesh	Parliament may by law provide for the establishment of a **Central University** in Andhra Pradesh.
371F	**Sikkim**	Special provisions consequential upon the admission of Sikkim into the Union (1975), including Legislative Assembly composition and the Governor's special responsibility for peace and for the social and economic advancement of different sections of the population.
371G	**Mizoram**	Parallel to 371A for Mizo (मिज़ो) religious or social practices, customary law and procedure, administration of civil and criminal justice involving Mizo customary law, and ownership and transfer of land — Parliament's Act applies only if the **Legislative Assembly** so decides.
371H	**Arunachal Pradesh**	Governor has special responsibility with respect to **law and order** in the State. In discharge of that responsibility, the Governor acts after consulting the Council of Ministers, but exercises individual judgment as provided.
371I	**Goa**	The Legislative Assembly of the State of Goa shall consist of not less than **thirty members**.
371J	**Karnataka**	Special provision for the Hyderabad-Karnataka / **Kalyana-Karnataka** region — establishment of a development board, equitable allocation of funds, and reservation in education and State government posts for local persons as provided.

Schedules — Master Match (1 to 12)

Schedule	Subject	Amendment / note
First	Names of States & UTs; territorial extent	—
Second	Emoluments, allowances, privileges — President, Governors, Speakers, Judges (SC/HC), CAG, etc.	—
Third	Forms of **Oaths or Affirmations**	—
Fourth	Allocation of seats in **Rajya Sabha** (Council of States) to States/UTs	—
Fifth	Administration & control of **Scheduled Areas and Scheduled Tribes** (except areas under 6th Schedule)	—
Sixth	Administration of **tribal areas** in **Assam, Meghalaya, Tripura, Mizoram (AMTM)** — Autonomous District/Regional Councils	—

Schedule	Subject	Amendment / note
Seventh	**Union / State / Concurrent Lists** (distribution of powers)	—
Eighth	**Languages** recognised by the Constitution (**22**)	Expanded by amendments
Ninth	Validation of certain Acts and Regulations (land reform etc.)	Added by **1st Amendment (1951)**; judicial review later via *I.R. Coelho* (2007) for post-Kesavananda entries
Tenth	**Anti-defection** provisions	Added by **52nd Amendment (1985)**
Eleventh	Powers/authority of **Panchayats** — **29** subjects	**73rd Amendment (1992)**
Twelfth	Powers/authority of **Municipalities** — **18** subjects	**74th Amendment (1992)**

Fifth vs Sixth Schedule

Point	Fifth Schedule	Sixth Schedule
Article	**244(1)**	**244(2)** (+ 275 as relevant)
Coverage	Scheduled Areas & STs in States **other than** 6th Schedule areas	Tribal areas of **Assam, Meghalaya, Tripura, Mizoram** only
Who declares	**President** notifies Scheduled Areas	Specified tribal areas in AMTM
Body	**Tribes Advisory Council** (not more than 20; ~¾ ST MLAs)	**Autonomous District / Regional Councils**
ADC composition	—	Not more than **30** members; not more than **4** nominated by the Governor; rest elected on adult suffrage
Role	Governor special responsibility; report to President	Councils make laws on land, forests (other than reserved), shifting cultivation, village admin, inheritance, marriage, social customs
Memory	Broader ST/Scheduled Areas tool; **PESA 1996** (पेसा) applies here	**AMTM only** — **not** Nagaland / Sikkim / Arunachal / Manipur

Seventh Schedule — Union / State / Concurrent Lists

Who legislates

List	Who	Typical items
Union (I)	Parliament exclusive	Defence, foreign affairs, UN, war & peace, atomic energy, railways, airways, posts, currency, RBI, banking, insurance, stock exchanges, **census**, UPSC, inter-State trade, oilfields
State (II)	State Legislature exclusive	**Public order**, **police**, **public health & sanitation**, local government, agriculture, land, fisheries, intoxicating liquors, betting & gambling
Concurrent (III)	Both	Criminal law & procedure, marriage & divorce, **succession** (उत्तराधिकार क्रम), contracts, bankruptcy, **adulteration of foodstuffs/goods**, trade unions, labour welfare, electricity, newspapers, economic & social planning

PYQ-tested list items

Item	List
Census	**Union**
Public Health and Sanitation	**State**
Adulteration of foodstuffs / goods	**Concurrent**
Succession	**Concurrent**
Criminal law / Criminal procedure	**Concurrent**
Trade unions; industrial disputes	**Concurrent**
Education; Forests; wild animals (after 42nd)	**Concurrent**
Population control and family planning (Entry 20A)	**Concurrent** (42nd)
Prevention of cruelty to animals	**Concurrent**
Price control	**Concurrent**
Economic and social planning	**Concurrent**
Police / Public order / Prisons / Local government (Panchayati Raj (पंचायती राज)) / Gas / Agriculture / Land	**State**
Banking / Currency / Defence / Insurance / Stock exchanges / Railways / Corporation tax	**Union**
Inter-State quarantine; Inter-State migration; Inter-State trade and commerce	**Union**
Tax on agricultural income; Tax on consumption/sale of electricity	**State**
Space research / other residuary subjects	**Union** (residuary)
"Trade and Commerce" as a bare unqualified label	**Not** whole Concurrent (Union/State split) — UPPCS 2024 trap

Eleventh & Twelfth Schedules

Schedule	Article	Local body	Subjects	Amendment
11th	**243G**	Panchayats	**29**	73rd (1992)
12th	**243W**	Municipalities	**18**	74th (1992)

Common Traps

1. Part XI ≠ Municipalities (**IXA**) — 2025
2. Part XI ≠ Tribunals (**XIVA**) — 2023

3. Ninth ≠ RS seats (**Fourth**) — 2023
4. Second ≠ RS seats (Second = emoluments) — 2019
5. Attorney General ≠ Part XIII (**Part V**) — 2020
6. 11th Schedule = **29**, not 22/24/32 — 2019
7. 12th Schedule = **18**, not 29
8. Sixth Schedule = **AMTM only** — not Nagaland/Sikkim — 2019
9. **Bhojpuri** not in 8th Schedule — 2025
10. Nepali / Dogri / Bodo **are** in 8th Schedule
11. Bare "Trade and Commerce" ≠ whole Concurrent — 2024
12. Public Health = **State** List; Census = **Union** List
13. Duties = **Part IVA**, not Part IV
14. Anti-defection = **10th**, not 9th
15. Citizenship = **Part II** — 2018
16. 9th Schedule added by **1st** Amendment; 10th by **52nd**
17. Art. **4** laws (new/altered States) ≠ Art. **368** amendments
18. Art. **32** SC vs Art. **226** HC (HC wider)
19. Art. **226** writs vs Art. **227** superintendence — different powers
20. President oath = **Art. 60**; VP oath = **Art. 69**; Governor oath = **Art. 159** — none in 3rd Schedule
21. 371J = Karnataka, **not** Goa (371I)
22. Property = **Art. 300A** (legal right), not FR after 44th
23. Second Schedule ≠ PM/CM salaries (emoluments of President, Governors, Judges, CAG, Speakers)
24. Art. **54** (President) includes State MLAs; Art. **66** (VP) is Parliament only
25. SC Judge age **65**; HC Judge age **62**
26. Art. **76** = Attorney-General of India; Art. **165** = Advocate-General of a State
27. Art. **21** expansions ≠ Art. **21A** RTE ages 6–14
28. Art. **51A** has **11** clauses (a–k); (k) is the 86th addition only

Topic 4 — Union & Territory

Consolidated — 40 Must-Score Facts

1. Under **Article 1(1)**, 'India, that is Bharat, shall be a **Union of States**'; the drafting committee used 'Union' instead of 'Federation' to make it clear that the Union of India is not an agreement by the states to join a federation and that the federation is an **indestructible Union of destructible units**.
2. Under **Article 1(3)**, the **'Territory of India'** is a wider term than the **'Union of India'**: the 'Union of India' includes only the States, whereas the 'Territory of India' includes: (1) Territories of States; (2) Union Territories; (3) Such other territories as may be acquired by India at any time.
3. **Article 2** empowers Parliament to **admit into the Union of India, or establish, new States** on such terms and conditions as it thinks fit; this relates to territories that were *not* part of India previously (e.g., admission of **Sikkim** in 1975).
4. **Article 3** deals with the internal readjustment of existing Indian States; it empowers Parliament by law to: (a) form a new State by separation or union of territories; (b) increase the area of any State; (c) diminish the area of any State; (d) alter the boundaries of any State; (e) alter the name of any State.
5. Procedure under **Article 3**: An Article 3 Bill can be introduced in either House of Parliament **only on the prior recommendation of the President**; before recommending it, the President must refer the Bill to the concerned State Legislature for expressing its views within a specified time limit.
6. State Views are **Non-Binding**: The President and Parliament are **NOT bound** by the views of the State Legislature under Article 3, and can accept or reject them; for Union Territories, no reference needs to be made to the local legislature (held in *Parbati Gopal v. Union of India*).
7. Under **Article 4**, laws made under Article 2 and Article 3 for amendment of the First Schedule and Fourth Schedule require only a **Simple Majority** of Parliament and **are NOT to be deemed constitutional amendments under Article 368**.
8. Cession of Territory: In the landmark ***Berubari Union Case (Re: Berubari Union, 1960)***, the Supreme Court ruled that Parliament's power under Article 3 to diminish state area does **not** include the power to cede Indian territory to a foreign state; cession of Indian territory can only be effected by an **Amendment under Article 368** (leading to the **9th Amendment Act, 1960** for Berubari and the **100th Amendment Act, 2015** for exchange of enclaves with Bangladesh).
9. Boundary Disputes Settlement: In 1969, the Supreme Court held that the settlement of a **boundary dispute** between India and another country does not require a constitutional amendment under Article 368; it can be implemented by **executive action** as it does not involve cession of territory.
10. **S.K. Dhar Commission (June 1948):** Appointed by President of CA Dr. Rajendra Prasad to examine reorganization of States on linguistic basis; submitted report in December 1948, **rejecting language** as the basis and recommending reorganization purely on administrative convenience, geographical contiguity, and financial viability.
11. **JVP Committee (December 1948):** Appointed at Jaipur Congress session comprising **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; submitted report in April 1949, formally **rejecting language** as the basis for state reorganization.
12. Creation of First Linguistic State: Following the 56-day hunger strike and death of **Potti Sreeramulu** on 15 December 1952, the Government was forced to create the **first linguistic State — Andhra State** — on **1 October 1953** by separating Telugu-speaking areas from Madras Presidency (capital: **Kurnool**; HC: Guntur).
13. **Fazl Ali Commission (States Reorganisation Commission - SRC, December 1953):** 3-member commission comprising **Justice Fazl Ali (Chairman), H.N. Kunzru, and K.M. Panikkar**; submitted report in September 1955, accepting language as a basis of reorganization but rejecting the theory of 'one language, one state', giving primacy to unity and security of India.
14. The **States Reorganisation Act, 1956** and the **7th Constitutional Amendment Act, 1956** abolished the fourfold classification of States (Part A, Part B, Part C, and Part D) and reorganized India into **14 States and 6 Union Territories** effective **1 November 1956**.
15. The 14 original States in 1956 were: Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, and West Bengal; the 6 UTs were: Andaman & Nicobar, Delhi, Himachal Pradesh, Laccadive/Minicoy/Amindivi, Manipur, and Tripura.
16. Evolution of States (Chronology): In **1960**, Bombay State was bifurcated into Marathi-speaking **Maharashtra** and Gujarati-speaking **Gujarat** (**15th State**).
17. In **1961**, **Dadra and Nagar Haveli** (10th Amd 1961) and **Goa, Daman and Diu** (liberated from Portuguese by Operation Vijay, 12th Amd 1962) became Union Territories; **Puducherry** (ceded by French in 1954, legally transferred in 1962) became a UT by the 14th Amd 1962.
18. In **1963**, **Nagaland** was created as the **16th State** by carving out Naga Hills-Tuensang area out of Assam to satisfy the Naga tribal movement.
19. In **1966**, on the recommendation of the **Shah Commission**, Punjab was reorganized to create Hindi-speaking **Haryana** (**17th State**) and the Union Territory of **Chandigarh**, while Punjabi-speaking areas remained Punjab and hill areas were merged with Himachal Pradesh.
20. In **1971**, the Union Territory of **Himachal Pradesh** was elevated to the status of a full state (**18th State**).
21. In **1972**, through the North-Eastern Areas (Reorganisation) Act, the political map of Northeast changed: **Manipur** (**19th State**), **Tripura** (**20th State**), and **Meghalaya** (autonomous state within Assam elevated to **21st State**) were created; Mizoram and Arunachal Pradesh became UTs.
22. Integration of **Sikkim**: The **35th Amendment Act, 1974** introduced Article 2A and 10th Schedule conferring on Sikkim the unique status of an **'Associate State'** of India; following a referendum, the **36th Constitutional Amendment Act, 1975** repealed Article 2A and made Sikkim a full-fledged **22nd State** of the Indian Union.
23. In **1987**, three new States were established: **Mizoram** (**23rd State**, following Mizo Peace Accord 1986), **Arunachal Pradesh** (**24th State**), and **Goa** (**25th State**, separated from Daman & Diu).
24. In **November 2000**, three new States were carved out: **Chhattisgarh** (**26th State**, from Madhya Pradesh on 1 Nov 2000), **Uttaranchal** (**27th State**, renamed Uttarakhand in 2007, from Uttar Pradesh on 9 Nov 2000), and **Jharkhand** (**28th State**, from Bihar on 15 Nov 2000 - Birsa Munda birth anniversary).
25. In **2014**, **Telangana** was carved out of Andhra Pradesh as the **29th State** of the Indian Union on **2 June 2014** (Andhra Pradesh Reorganisation Act, 2014; Hyderabad made joint capital for up to 10 years).
26. The **Jammu and Kashmir Reorganisation Act, 2019** bifurcated the State of J&K into two Union Territories: **UT of Jammu & Kashmir** (with a Legislative Assembly) and **UT of Ladakh** (without a Legislative Assembly), effective **31 October 2019** (National Unity Day, birth anniversary of Sardar Patel).
27. In **January 2020**, the **Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Act, 2019** came into effect, merging the two into a single Union Territory (headquarters: **Daman**); as of 2024–2026, India comprises **28 States and 8 Union Territories**.
28. Renaming of States/UTs: United Provinces became **Uttar Pradesh (1950)**; Madras became **Tamil Nadu (1969)**; Mysore became **Karnataka (1973)**; Laccadive, Minicoy and Amindivi Islands became **Lakshadweep (1973)**; Union Territory of Delhi became **NCT of Delhi (69th Amd 1991)**; Uttaranchal became **Uttarakhand (2007)**; Pondicherry became **Puducherry (2006)**; Orissa became **Odisha (96th Amd 2011)**.
29. **Citizenship (Part II, Articles 5–11):** Deals with persons who became citizens at the commencement of the Constitution on 26 January 1950: Art. 5 (Citizenship by Domicile); Art. 6 (Migrants from Pakistan); Art. 7 (Migrants to Pakistan who later returned under permit); Art. 8 (Persons of Indian origin residing outside undivided India).
30. **Article 9:** Any person who **voluntarily acquires citizenship of a foreign State** ceases to be an Indian citizen; dual citizenship is strictly impermissible under the Constitution of India.
31. **Article 10:** Every person who is or is deemed to be a citizen of India shall continue to be such citizen, subject to the provisions of any law made by Parliament.
32. **Article 11:** Empowers **Parliament alone** to regulate the right of citizenship by law, including the acquisition, termination, and all other matters relating to citizenship (State Legislatures have zero jurisdiction).
33. The **Citizenship Act, 1955** prescribes **5 Modes of Acquiring Indian Citizenship**: (1) **By Birth** (*Jus Soli*); (2) **By Descent** (*Jus Sanguinis*); (3) **By Registration** (e.g., PIOs residing 7 years, persons married to Indian citizens); (4) **By Naturalisation** (residence in India for 12 years, 8th Schedule language knowledge); (5) **By Incorporation of Territory** (e.g., Goa 1961, Pondicherry 1962).
34. The **Citizenship Act, 1955** prescribes **3 Modes of Losing Indian Citizenship**: (1) **Renunciation** (voluntary declaration by a citizen upon acquiring another citizenship); (2) **Termination** (automatic operation of law when a citizen voluntarily acquires citizenship of another country); (3) **Deprivation** (compulsory termination by the Central

Government for fraud, disloyalty to Constitution, unlawfully trading with enemy during war, or imprisonment for 2+ years within 5 years of registration/naturalisation).

35. **Citizenship (Amendment) Act, 2019 (CAA):** Provides that illegal migrants belonging to **6 minority communities (Hindus, Sikhs, Buddhists, Jains, Parsis, Christians)** from **3 neighbouring countries (Pakistan, Bangladesh, Afghanistan)** who entered India on or before **31 December 2014** shall not be treated as illegal migrants and are eligible for citizenship by naturalisation with reduced residence requirement of **5 years**.
36. CAA 2019 Exceptions: CAA provisions **do NOT apply** to tribal areas of **Assam, Meghalaya, Tripura, and Mizoram** included in the **Sixth Schedule**, nor to areas covered under the **Inner Line Permit (ILP)** system (Arunachal Pradesh, Nagaland, Mizoram, and Manipur).
37. **Overseas Citizen of India (OCI) Cardholders:** Created by Citizenship (Amendment) Act, 2005 (merging PIO and OCI cards in 2015); OCI is **NOT dual citizenship**; OCI cardholders enjoy lifelong visa-free travel and parity with NRIs in economic/financial/educational fields, but **cannot vote, hold constitutional posts (President, VP, Judges, MP/MLA), or buy agricultural land**.
38. **Single Citizenship Privileges:** Unlike the USA where state citizens can receive preferential political or constitutional rights from their state, Indian citizens have equal rights across the country regardless of state domicile, subject only to reasonable residence qualifications for public employment (Art. 16(3)) or protections for tribal areas (Art. 19(5)).
39. **Zonal Councils:** Statutory bodies established under the **States Reorganisation Act, 1956** (not constitutional bodies) to promote interstate cooperation; 5 original Zonal Councils: Northern, Central, Eastern, Western, and Southern; the **Union Home Minister** acts as the common Chairman for all Zonal Councils; Chief Ministers act as Vice-Chairmen by annual rotation; the **North-Eastern Council** was created separately by the North-Eastern Council Act, 1971.
40. Central Zonal Council includes **Uttar Pradesh, Uttarakhand, Madhya Pradesh, and Chhattisgarh**; its permanent headquarters is located at **Prayagraj (Allahabad)**.

📋 Must-score facts — Arts. 1–4, SRC, citizenship

Article & Constitutional Tags

Entity	Core Lock
Art. 1	India = Union of States; Territory = States + UTs + Acquired
Art. 2	Admit / establish **new** States (e.g., Sikkim entry)
Art. 3	Form / alter **existing** States; President's recommendation mandatory; State views **not binding**
Art. 4	Changes to 1st & 4th Schedules not deemed Art. 368 amendment
Art. 5–11	Citizenship (Part II); Single citizenship
Art. 239	UT administered via Administrator / LG
Art. 239AA	NCT Delhi (69th Amd) — public order / police / land strictly with Centre

Quick Chronology & Committees

Item	Core Lock
Dhar & JVP (1948)	Rejected immediate linguistic States; focus on unity
Andhra (1953)	First linguistic State (**1 Oct 1953**); capital **Kurnool**
SRC (1953)	Fazl Ali (Chair), K.M. Panikkar, H.N. Kunzru (Sitaramayya NOT a member)
SRA (1956) + 7th Amd	**1 Nov 1956** — 14 States + 6 UTs scheme
Sikkim	35th Amd (Associate State), 36th Amd 1975 (Full State)
Uttarakhand (UP focus)	Carved from UP on **9 Nov 2000** (27th State)

Citizenship Locks

Item	Core Lock
Statute & Power	Citizenship Act **1955**; Parliament's absolute (निरपेक्ष) power (**Art. 11**)
Citizen-only FRs	Arts. **15, 16, 19, 29, 30**
Acquisition (5 modes)	Birth, descent, registration, naturalisation, incorporation of territory
Loss (3 modes)	Renunciation, termination (automatic on foreign passport), deprivation (Central order)
Pravasi Bh. Divas	**9 Jan**; L.M. Singhvi Committee (2000) recommendation
CAA 2019	6 minority religions from Pak, Afghan, Bangladesh entering before **31 Dec 2014**

Confused Pairs

A	B	Correct Distinction	Hindi Terminology
Art. 2	**Art. 3**	Admit/establish **new** States (foreign) vs form/alter **existing** States (domestic)	प्रवेश/स्थापना (2) vs निर्माण/सीमा परिवर्तन (3)
Art. 3	**Art. 368**	Simple majority + Art. 4 ≠ constitutional amendment under 368	साधारण बहुमत (Simple)
Acquisition	**Cession**	Parliament by ordinary law vs **constitutional amendment** (*Berubari*, 1960)	अर्जन vs समर्पण
Zonal Council	**Inter-State Council**	**Statutory** (SRA 1956, Home Minister chairs) vs **Constitutional** (Art 263, PM chairs)	क्षेत्रीय परिषद् vs अंतर-राज्यीय परिषद्
NCT (Delhi)	**NCR**	69th Amd **Territory** (Constitution) vs statutory planning region (1985 Act)	राष्ट्रीय राजधानी राज्यक्षेत्र
LG (Delhi)	**Governor (State)**	Delhi LG holds reserved powers (police/land/public order) on behalf of Centre	उपराज्यपाल vs राज्यपाल
OCI	**Dual citizenship**	OCI ≠ dual citizen; no vote / no constitutional office / no agricultural land	समुद्रपारीय नागरिक
NRI	**OCI**	Indian **citizen** living abroad vs foreign citizen of Indian origin	आप्रवासी भारतीय vs OCI
SRC (Fazl Ali)	**JVP / Dhar**	1953: Linguistic-friendly but not 1 language=1 state vs 1948: Rejected language strictly	फजल अली आयोग
Renunciation	**Deprivation**	Voluntary by citizen vs Centre's order against regd/naturalised	त्याग vs से वंचित करना

Union and its Territory (Part I)

Art.	Subject	Elaboration
1	Name and territory	India, that is Bharat, shall be a **Union of States**. First Schedule = names & territorial extent of States/UTs.
2	Admission / establishment of new States	Parliament may by law **admit** into the Union, or **establish**, new States on such terms as it thinks fit. Used for territory that was **not already a State of the Union** (classic path: **Sikkim**).
3	Formation / alteration of States	Five powers: (a) form a new State (b) increase area (c) diminish area (d) alter boundaries (e) **alter name**. Can also form a **UT** from a State / merge UTs (as done for J&K 2019 / DNH–DD 2020).
4	Laws under 2 and 3	May amend **First & Fourth** Schedules (and supplemental/incidental provisions). Such a law is **not** an amendment under **Art. 368** — **simple majority** of Parliament is enough.

After 1956 — State / UT chronology (spine)

Year	What happened
1960	Bombay split → **Maharashtra + Gujarat**
1961	Goa, Daman & Diu liberated (**19 Dec**, Operation Vijay); 12th Amd 1962 (UT); DNH already UT
1963	**Nagaland** 16th State
1966	Punjab Reorganisation → **Punjab + Haryana**; **Chandigarh** UT; HP enlarged
1971	**Himachal Pradesh** State
1972	**Manipur, Tripura, Meghalaya** States; Mizoram & Arunachal become UTs
1975	**Sikkim** 22nd State (**36th Amendment**; 35th had made it associate State, 1974)
1987	**Goa, Mizoram, Arunachal Pradesh** States (Goa 30 May; Daman & Diu remained UT)
2000	**Chhattisgarh** 1 Nov · **Uttarakhand** (then Uttaranchal) **9 Nov** · **Jharkhand** 15 Nov
2014	**Telangana** 2 June (AP Reorganisation Act, 2014)
2019	J&K Reorganisation Act — **J&K UT** (with legislature) + **Ladakh UT** (no legislature) from **31 Oct 2019**
2020	**Dadra & Nagar Haveli and Daman & Diu** merged into **one UT** (26 Jan 2020)

Union Territories — Administration

UT type	UTs	Political executive
No legislature	Andaman & Nicobar; Chandigarh; DNH & DD; Lakshadweep; **Ladakh**	President → Administrator / LG only
Legislature + CoM	**Delhi (239AA)**; **Puducherry (239A)**; **J&K** (J&K Reorganisation Act, **2019**)	Elected Assembly + CM; LG remains the Centre's appointee

Lieutenant Governor (vs Administrator / Governor)

Point	Lieutenant Governor / Administrator (UT)	Governor (State)
Source	**Art. 239** (President's appointee; may be titled LG)	**Art. 155**
Tenure	Pleasure of the **President**	Pleasure of the President; normally 5 years
Aid & advice	Only where a CoM exists (Delhi / Puducherry / J&K) — and even then **discretion / reference to President** is wider	Art. 163 — aid & advice except constitutional discretion
Delhi special	Public order, police, land with Centre; difference of opinion → **President**	No such Union-reserve triplet
Same person	One person may administer **two UTs** (or a Governor may be Administrator of a UT — **Chandigarh** often the Punjab Governor)	One person may be Governor of two or more States (Art. 153)

Special Provisions — Puducherry

Delhi vs Puducherry vs J&K (UT-with-legislature)

Point	Delhi (NCT)	Puducherry	J&K (from 31 Oct 2019)
Article / law	**239AA** (69th Amd)	**239A** (14th Amd)	**J&K Reorganisation Act, 2019** (not 239AA)
Reserve subjects	Public order, police, **land** with Centre	No 239AA-style triplet	Police, public order, All-India Services etc. with LG / Centre (as in the Act)
Assembly size (order)	**70**	**30** elected (+ nominated)	**90** elected (24 PoK seats remain vacant as provided)
Presidential college	Yes (70th)	Yes (70th)	No Assembly vote in Art. 54 college in the Delhi/Puducherry way
Statehood	Never a full State after 1956	Never a State	**Was a State** till 2019; Centre has said restoration is intended — **still UT (Aug 2026)**

Citizenship (Part II)

Single citizenship

Art.	Subject	Elaboration
5	Citizenship at commencement	Domiciled in India + (born in India **or** either parent born in India **or** ordinarily resident **5 years** before commencement).
6	Migrants from Pakistan	Rights of citizenship of certain persons who migrated from Pakistan. Cut-off **19 July 1948** (after that: registration).
7	Migrants to Pakistan	Persons who migrated to Pakistan after 1 Mar 1947 generally **not** citizens; returning permit-holders may register.
8	Indians residing abroad	Persons of Indian origin abroad may register as citizens with Indian diplomatic/consular post.
9	Voluntary foreign citizenship	If a person voluntarily acquires citizenship of a foreign State, Arts. 5–8 **do not apply**.
10	Continuance	Citizenship continues subject to any law made by Parliament.

Art.	Subject	Elaboration
11	Parliament's power	Parliament may make **any** provision on acquisition / termination / other matters of citizenship.

Citizenship Act, 1955 — Acquisition

1. By birth (s. 3) — three clocks

Born in India	Rule
26 Jan 1950 – 1 Jul 1987	Citizen by birth **irrespective of parents** (except children of enemy aliens / foreign diplomats as provided)
1 Jul 1987 – 2 Dec 2004	Citizen if **either parent** was an Indian citizen at birth (**1986** amendment)
On/after 3 Dec 2004	Citizen only if **both parents** are Indian citizens, **or** one is Indian and the other is **not an illegal migrant** (**2003** amendment)

Citizenship Act, 1955 — Loss

Mode	Who / how	Fact
Renunciation (s. 8)	Voluntary declaration by an Indian citizen of **full age and capacity** who is also a citizen of another country	Minor children **also lose**; child may **resume** Indian citizenship within **1 year of turning 18**
Termination (s. 9)	**Automatic** when an Indian citizen **voluntarily acquires** citizenship of another country	Mirrors **Art. 9**. Question of *when* foreign citizenship was acquired is decided as provided in the Act
Deprivation (s. 10)	**Central Government order** — only against citizenship obtained by **registration or naturalisation**	Grounds: fraud/false representation; disloyalty; unlawfully traded/communicated with the enemy in war; ordinary residence **outside India for 7 years** without the prescribed annual declaration

NRI / PIO / OCI (basic)

Label	Who	Passport	Vote / office	Other fact
NRI	**Indian citizen** residing outside India	**Indian**	**Can vote** (in person in the Indian constituency; postal/proxy as law provides)	FEMA/tax resident rules are separate
PIO	Foreign citizen of Indian origin	Foreign	No	PIO **card scheme withdrawn**; merged into **OCI from 9 Jan 2015**
OCI	Foreign citizen registered as Overseas Citizen of India (2005 scheme; s. 7A)	Foreign	**No** vote; **no** LS/RS/Assembly; **no** constitutional posts (President, VP, Judge, etc.); **no** public employment as of right	**Not dual citizenship.** Lifelong multi-entry visa; parity with NRIs in specified economic/education matters. Eligible to **register as citizen** after 5 years OCI + 1 year residence

Citizenship Amendment Act (basic)

Cue	Fact
Religions	**Hindu, Sikh, Buddhist, Jain, Parsi, Christian** (six)
Countries	**Pakistan, Afghanistan, Bangladesh** (three)
Entry cut-off	**On or before 31 December 2014**
What it does	They shall **not** be treated as illegal migrants; naturalisation residence relaxed (**11 years → 5 years** in the Third Schedule, as provided)
What it does **not**	Does **not** take away anyone's existing Indian citizenship. Does **not** apply to Indian Muslims / any Indian citizen. Does **not** cover Sri Lanka / Myanmar Rohingya / Nepal
Exclusions often asked	Does not apply to **Sixth Schedule** (6वीं अनुसूची) tribal areas of Assam, Meghalaya, Tripura, Mizoram, and to **Inner Line** notified areas (as in the Act)
Court	**SC, 17 Oct 2024** — CAA **upheld**

Current Affairs (this topic)

Fact	Fact (as of Aug 2026)
Map	**28 States + 8 UTs** unchanged
J&K	Still a **UT with legislature** (elections 2024). SC (Dec 2023) upheld 370 abrogation; statehood "at the earliest" — **not restored**
Ladakh	UT **without** legislature
Delhi services	SC May 2023 (elected govt) vs **GNCTD 2023** (NCCSA + LG final say, now in 1991 Act)
CAA	In force; SC 2024 upheld

Common Traps

1. Art. **3 ≠ admission** of new States (**Art. 2**) — 2020
2. Altering a State's **name ≠ State Legislature** — Parliament — 2024
3. Art. 2–3 laws ≠ **Art. 368** amendments (**Art. 4**)
4. SRC members = **Fazl Ali, Panikkar, Kunzru** — not K.T. Shah / Sitaramayya — 2025
5. Sitaramayya = **JVP 1948**, not SRC
6. 69th = **NCT Delhi**, not NCR (1985 statute); 70th = Presidential college — 2022
7. Citizenship = **Arts. 5–11 / Part II** — not 3–10 — 2018, 2020
8. UT seats in LS = **20**, not 15/25 — 2018
9. Cession needs **amendment**; acquisition can be by law
10. OCI ≠ dual citizenship; PIO merged **2015**
11. CAA list = 6 communities, 3 countries, **31 Dec 2014**
12. Present map = **28 + 8**, not 29 + 7
13. J&K UT **with** legislature; Ladakh **without**
14. NIC is **not** a constitutional body (≠ Inter-State Council Art. 263)

15. SRC **recommended 16+3**, Union **implemented 14+6**
16. Art. 3 = **views**, not consent; **simple** majority
17. Delhi Assembly **70** / CoM **7**; Puducherry **30** elected
18. Birth: **3 Dec 2004** both-parents (or one + other not illegal migrant)
19. Naturalisation language = **8th Schedule**; CAA relaxes 11 yrs → **5**
20. 7th Amendment **1956** = UTs + end of Part A/B/C/D

Topic 5 — Fundamental Rights & Duties

Consolidated — 42 Must-Score Facts

1. **Part III (Articles 12–35)** of the Constitution is termed the **'Magna Carta of India'**; Fundamental Rights are **justiciable** in courts of law, meaning their violation allows direct approach to the Supreme Court under Article 32 or High Court under Article 226.
2. **Article 12** provides an expansive definition of **'State'** for Part III: (1) Government and Parliament of India; (2) Government and Legislature of States; (3) All local authorities (Panchayats, Municipalities, Port Trusts); (4) Other authorities within India or under control of GOI (including statutory corporations like LIC, ONGC, SAIL, and even private bodies performing public functions).
3. **Article 13** lays down the foundation of **Judicial Review**: any pre-constitutional law (Art. 13(1)) or post-constitutional law (Art. 13(2)) that is inconsistent with or in derogation of Fundamental Rights is void to the extent of inconsistency.
4. Doctrines emerging from Article 13: **Doctrine of Severability** (only the unconstitutional portion of an Act is void if severable), **Doctrine of Eclipse** (pre-constitutional laws conflicting with FRs remain dormant/shadowed, becoming active again if constitutional obstacle is removed), and **Doctrine of Waiver** (citizens cannot waive their Fundamental Rights, held in *Basheshar Nath v. CIT*).
5. Rights exclusively for Indian **Citizens ONLY**: **Articles 15, 16, 19, 29, and 30**; rights available to **all persons** (both citizens and foreigners, except enemy aliens): Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, and 28.
6. **Article 14** combines two principles: **'Equality before the Law'** (borrowed from UK; negative concept meaning absence of special privilege) and **'Equal Protection of the Laws'** (borrowed from USA; positive concept meaning equal treatment under equal circumstances); permits reasonable classification based on an **intelligible differentia** having a rational nexus to the objective sought.
7. **Article 15(1)** prohibits the State from discriminating against any citizen on grounds **ONLY** of religion, race, caste, sex, place of birth, or any of them; **Article 15(2)** prohibits discrimination in access to public shops, hotels, wells, and places of public entertainment.
8. Special Provisions under Article 15: **15(3)** permits special provisions for **women and children**; **15(4)** (added by **1st Amendment, 1951** following *Champakam Dorairajan*) allows advancement of socially and educationally backward classes (SEBCs/OBCs) and SC/STs; **15(5)** (added by **93rd Amendment, 2005**) allows reservations in educational institutions including private institutions (except minority institutions); **15(6)** (added by **103rd Amendment, 2019**) provides up to **10% EWS reservation**.
9. **Article 16** guarantees equality of opportunity in matters of public employment; **16(4)** allows the State to provide reservation for backward classes not adequately represented in State services; **16(4A)** (added by **77th Amendment, 1995**) permits reservation in **promotion** with consequential seniority for SC/STs; **16(4B)** (added by **81st Amendment, 2000**) introduces the **'carry forward rule'**, ending the 50% ceiling for backlog vacancies.
10. **Article 17** abolishes **'Untouchability'** and forbids its practice in any form; it is an **absolute right** enforceable against both the State and private individuals; enacted into law via the **Protection of Civil Rights Act, 1955** (originally Untouchability (Offences) Act, 1955).
11. **Article 18** abolishes all hereditary titles; prohibits citizens from accepting foreign titles without presidential assent; in ***Balaji Raghavan v. Union of India (1996)***, the Supreme Court upheld that National Awards like **Bharat Ratna, Padma Vibhushan, Padma Bhushan, and Padma Shri** are mere decorations/merit honors and **do not constitute 'titles'** under Article 18.
12. **Article 19(1)** guarantees **Six Democratic Freedoms**: (a) Speech and expression; (b) Peaceful assembly without arms; (c) Form associations, unions, or co-operative societies; (d) Move freely throughout India; (e) Reside and settle in any part of India; (g) Practice any profession, trade, or business. *Right to acquire, hold and dispose of property under 19(1)(f) was repealed by the 44th Amendment, 1978.*
13. Freedom of Speech and Expression (Art. 19(1)(a)) includes: freedom of the press, right against tapping of phones, right to broadcast, right against bandh, right to know government activities, right to silence; subject to **reasonable restrictions** under **Article 19(2)** on 8 specific grounds: sovereignty & integrity of India, security of the State, friendly relations with foreign states, public order, decency or morality, contempt of court, defamation, or incitement to an offence.
14. **Article 20** provides **Three Inviolable Safeguards against Arbitrary Prosecution**: **20(1)** Protection against **ex-post-facto criminal laws** (cannot convict for an act that was not an offence when committed, nor impose heavier penalty than that prevalent; applies only to criminal law, not civil/tax laws); **20(2)** Protection against **Double Jeopardy** (no person shall be prosecuted and punished for the same offence more than once; applies only before judicial courts, not departmental/administrative inquiries); **20(3)** Protection against **Self-Incrimination** (accused cannot be compelled to be a witness against himself; does not protect against giving blood samples, thumb impressions, or handwriting).
15. **Article 21** guarantees that 'No person shall be deprived of his life or personal liberty except according to **procedure established by law**'; in ***A.K. Gopalan (1950)***, SC adopted a narrow literal interpretation; in ***Maneka Gandhi (1978)***, SC overruled Gopalan, establishing that the procedure must be **just, fair, and reasonable**, effectively introducing the American concept of **'Due Process of Law'**.
16. The expansive scope of Article 21 now includes: Right to live with human dignity, Right to clean environment (*Subhash Kumar 1991*), Right to livelihood (*Olga Tellis 1985*), Right to free legal aid (*Hussainara Khatoon 1979*), Right to speedy trial, Right against solitary confinement, Right to emergency medical aid (*Paramanand Katara 1989*), and the **Right to Privacy** declared a Fundamental Right in ***K.S. Puttaswamy v. Union of India (2017)***.
17. **Article 21A** mandates that the State shall provide free and compulsory education to all children of the age of **6 to 14 years**; inserted by the **86th Constitutional Amendment Act, 2002**; operationalized by the **Right of Children to Free and Compulsory Education (RTE) Act, 2009** (in force from **1 April 2010**).
18. **Article 22** provides protection against arrest and detention: **Punitive detention** safeguards (Art. 22(1)–(2)) require informing grounds of arrest, right to consult legal practitioner, and production before nearest magistrate within **24 hours** (excluding journey time); **Preventive detention** safeguards (Art. 22(4)–(7)) limit initial detention to a maximum of **3 months** unless extended by an Advisory Board chaired by an HC judge.
19. **Article 23** prohibits **trafficking in human beings, begar (forced labor)**, and other similar forms of forced labor; permits the State to impose compulsory service for public purposes (e.g., military or social service) without discriminating on grounds of religion, race, caste, or class.
20. **Article 24** prohibits the employment of children below the age of **14 years** in any factory, mine, or other hazardous employment; the Child Labour (Prohibition and Regulation) Amendment Act, 2016 completely bans employment of children under 14 in all occupations and adolescent employment (14–18 years) in hazardous occupations.
21. **Article 25** guarantees freedom of conscience and free profession, practice, and propagation of religion to all persons; religious propagation does **not include the right to forcibly convert** others (*Rev. Stainislaus 1977*); allows the State to regulate economic/financial secular activities of religious practices and provide social reform (opening Hindu temples to all classes; Hindus include Sikhs, Jains, Buddhists).
22. **Article 26** guarantees every **religious denomination** the right to: (a) establish and maintain institutions for religious and charitable purposes; (b) manage its own affairs in matters of religion; (c) own and acquire movable and immovable property; (d) administer such property in accordance with law (*S.P. Mittal case 1983* established criteria for denomination: common faith, common organisation, distinctive name).
23. **Article 27** prohibits the State from compelling any citizen to pay **taxes** the proceeds of which are specifically appropriated in payment of expenses for the promotion of any particular religion; however, it permits the levy of a **fee** for providing secular regulation or services/facilities (e.g., pilgrimage fees).
24. **Article 28** regulates religious instruction in educational institutions: completely prohibited in wholly State-maintained institutions; permitted in institutions administered by State but established under an endowment/trust requiring religious instruction; voluntary (requiring consent of student/guardian) in State-recognized or State-aided institutions.
25. **Article 29** protects the interests of minorities: **29(1)** gives any section of citizens having a distinct language, script, or culture the right to conserve the same; **29(2)** bars denial of admission into State-maintained or State-aided educational institutions on grounds only of religion, race, caste, or language.

26. **Article 30** grants **all religious and linguistic minorities** the right to establish and administer educational institutions of their choice; the Constitution defines minorities only on the basis of **religion or language**; in ***T.M.A. Pai Foundation (2002)***, the SC ruled that the unit for determining minority status is the **State**, not the entire country.
27. Repeal of Right to Property: Originally a Fundamental Right under **Article 19(1)(f)** and **Article 31**; repealed by the **44th Constitutional Amendment Act, 1978** under the Morarji Desai government; relocated to **Part XII, Article 300A** as a legal/constitutional right, meaning property cannot be taken without authority of law, but ordinary property loss cannot be challenged via Article 32.
28. **Article 32** guarantees the **Right to Constitutional Remedies** for the enforcement of Fundamental Rights; Dr. B.R. Ambedkar termed it the **'very Soul and the very Heart of the Constitution'**; the Supreme Court cannot refuse to entertain an Article 32 petition (it is a Fundamental Right itself), whereas High Court writ remedy under Article 226 is discretionary.
29. **The Five Prerogative Writs:** (1) **Habeas Corpus** ('To produce the body' - against illegal detention by public or private person); (2) **Mandamus** ('We command' - against public official to perform non-discretionary statutory duty; *cannot issue against President, Governor, or private body*); (3) **Prohibition** (preventive writ issued to lower courts/tribunals exceeding jurisdiction); (4) **Certiorari** (quashes illegal decisions of judicial, quasi-judicial, and administrative bodies); (5) **Quo-Warranto** ('By what authority' - challenges illegal usurpation of a substantive public office; can be filed by any citizen, no locus standi required).
30. **Article 33, 34, 35: Art. 33** empowers Parliament to restrict Fundamental Rights of armed forces, police forces, intelligence agencies; **Art. 34** enables Parliament to indemnify officials and restrict FRs during **Martial Law** (military rule); **Art. 35** specifies that power to make laws to give effect to certain FRs (Arts. 16(3), 32(3), 33, 34, and penalties for Arts. 17 & 23) rests **exclusively with Parliament**, not State Legislatures.
31. **Directive Principles of State Policy (Part IV, Arts. 36–51):** Borrowed from the **Irish Constitution of 1937** (which borrowed from Spain); non-justiciable (Art. 37: courts cannot enforce them, but they are **fundamental in the governance of the country** and the State has a duty to apply them in making laws).
32. Granville Austin described Fundamental Rights and Directive Principles together as the **'Conscience of the Constitution'**; Sir B.N. Rau envisioned rights as two tiers: justiciable rights (Part III) and non-justiciable rights (Part IV).
33. **Socialistic DPSPs:** Art. 38 (Promote welfare of people, minimize inequalities in income, status, facilities); Art. 39 (Equitable distribution of material resources of community - 39(b), prevention of concentration of wealth - 39(c), equal pay for equal work for men and women - 39(d)); Art. 39A (Equal justice and free legal aid - added by 42nd Amd); Art. 41 (Right to work, education, public assistance); Art. 42 (Humane conditions of work and maternity relief); Art. 43 (Living wage for workers); Art. 43A (Workers' participation in management - 42nd Amd).
34. **Gandhian DPSPs:** Art. 40 (Organize Village Panchayats as units of self-government); Art. 43 (Promote cottage industries); Art. 43B (Promote autonomous functioning of Co-operative societies - added by 97th Amd 2011); Art. 46 (Promote educational and economic interests of SCs, STs, and weaker sections); Art. 47 (Prohibit intoxicating drinks and drugs injurious to health); Art. 48 (Prohibit slaughter of cows, calves, and other milch and draught cattle).
35. **Liberal-Intellectual DPSPs:** Art. 44 (Secure a **Uniform Civil Code** throughout India; *Uttarakhand became the first state in post-independence India to pass a UCC law in 2024*); Art. 45 (Early childhood care and education for children below 6 years - amended by 86th Amd 2002); Art. 48 (Organize agriculture and animal husbandry on modern lines); Art. 48A (Protect and improve environment, forests, wildlife - 42nd Amd 1976); Art. 49 (Protect monuments and historic places); Art. 50 (Separation of Judiciary from Executive); Art. 51 (Promote international peace and security, respect international law/treaties).
36. **Relationship between FRs and DPSPs:** In ***Champakam Dorairajan (1951)***, SC held FRs prevail over DPSPs; in ***Golaknath (1967)***, FRs held sacrosanct; **25th Amendment (1971)** inserted **Article 31C**, stating that laws giving effect to **Article 39(b) and 39(c)** cannot be challenged under Articles 14 or 19; in ***Kesavananda (1973)***, Art. 31C was upheld; in ***Minerva Mills (1980)***, SC struck down 42nd Amendment expansion of 31C, holding that **the Indian Constitution is founded on the bedrock of the balance between Part III and Part IV**.
37. Directives Outside Part IV: **Article 335** (Claims of SC/STs to services consistent with maintenance of efficiency of administration); **Article 350A** (Facilities for instruction in mother tongue at primary stage to linguistic minorities); **Article 351** (Duty of the Union to promote the spread of the Hindi language).
38. **Fundamental Duties (Part IVA, Article 51A):** Added by the **42nd Constitutional Amendment Act, 1976** under the government of Indira Gandhi; based on the recommendations of the **Swaran Singh Committee**; borrowed from the **USSR Constitution**; non-justiciable in character.
39. Swaran Singh Committee Recommendations: Recommended 8 duties; also suggested duty to pay taxes and penalties for non-compliance (both **rejected** by Congress government); the 42nd Amendment incorporated **10 Fundamental Duties**.
40. The **86th Constitutional Amendment Act, 2002** added the **11th Fundamental Duty** under **Article 51A(k)**: duty of every parent or guardian to provide opportunities for education to his child or ward between the age of **6 and 14 years**.
41. **Verma Committee on Fundamental Duties (1999):** Identified the existence of legal provisions for the enforcement of several Fundamental Duties (e.g., Prevention of Insults to National Honour Act 1971, IPC, Protection of Civil Rights Act 1955, Unlawful Activities (Prevention) Act 1967, Representation of the People Act 1951, Wildlife Protection Act 1972, Forest Conservation Act 1980).
42. Fundamental Duties apply **ONLY to Indian Citizens** and do not extend to foreigners; unlike some foreign constitutions, Indian Fundamental Duties are not made a condition precedent for the enjoyment of Fundamental Rights.

📋 Must-score facts — FR groups, writs, DPSP, Duties

Citizens-only vs all persons

Only citizens	All persons
15, 16, 19, 29, 30	**14, 20, 21, 21A, 22, 23–24, 25–28, 32**

Six FR groups (present)

Group	Articles
Equality	**14–18**
Freedom	**19–22**
Against exploitation	**23–24**
Religion	**25–28**
Culture & education	**29–30**
Constitutional remedies	**32**

Key article locks

Article	Lock
17	Untouchability (≠ exploitation 23–24)
19	Six freedoms; property **19(1)(f)** deleted by **44th → 300A**
20	Ex post facto · double jeopardy · self-incrimination (torture ≠ 20 alone)
21	Life / liberty; privacy = *Puttaswamy* **2017**

Article	Lock
21A	RTE ages **6–14** (**86th**)
32 vs 226	FR only / FR + other legal rights
Prohibition vs Certiorari	**Before** decision / **After** to quash
358 / 359	Art. 19 auto-suspend (war/external); **20 & 21 never** suspended

DPSP / Duties

Item	Lock
DPSP	Part IV **36–51**; Ireland; non-justiciable (**37**)
43A vs 43B	Workers' participation vs cooperatives
48 vs 50	Cattle/agriculture vs separation of judiciary
48A + 51A(g)	Environment in **both** Parts
Duties	**42nd** (10) + **86th** 51A(k); **vote is NOT a Duty**
Monuments	DPSP **49** (not a Duty)

Confused Pairs

A	B	Correct	Hindi
Art. 14	Art. 16	Any **person** vs public employment (**citizens**)	—
Art. 15	Art. 17	Discrimination grounds vs **Untouchability** (absolute)	—
Art. 19	Art. 21	Citizens + six freedoms vs **all persons** + life/liberty	—
Art. 19(1)(f)	Art. 300A	Deleted FR (44th) vs legal right to property	—
Art. 20	Art. 21	Conviction protections vs torture/privacy/livelihood	—
Art. 21	Art. 21A	Life/liberty (wide) vs RTE **6–14** only	—
Art. 22 ordinary	Art. 22 PD	24-hour magistrate vs preventive detention code	—
Art. 17	Arts. 23–24	Equality (untouchability) vs **Exploitation**	—
Art. 29	Art. 30	Any section (culture) vs **minorities** institutions	—
Art. 27	Fee	No **tax** for a religion vs regulatory **fee** allowed	—
Art. 32	Art. 226	SC (FR only) vs HC (FR + any legal right)	—
Prohibition	Certiorari	**Before** decision vs **after** (quash)	—
Art. 43A	Art. 43B	Workers' participation vs **co-operatives** (97th)	—
Art. 48	Art. 50	Cattle/agriculture vs **separation of judiciary**	—
Art. 358	Art. 359	Only Art. 19 (auto) vs other FRs by order (not 20/21)	—
FR	DPSP	Justiciable (USA) vs non-justiciable (**Ireland**)	—

N.1 Fundamental Rights — overview

Who enjoys which FR

Available to citizens only	Available to all persons (citizens + foreigners)
Arts. **15, 16, 19, 29, 30**	Arts. **14, 20, 21, 21A, 22, 23, 24, 25–28, 32**

N.14 Right to Constitutional Remedies — Article 32 (+ 226)

Point	Art. 32 (SC)	Art. 226 (HC)
Nature	Fundamental Right	Constitutional (not a FR)
Scope	**FR only**	FR **+ other legal rights**
Discretion	SC cannot ordinarily refuse (FR)	Discretionary
Suspension	Possible under 359 (not 20/21)	Not tied to 359 in the same way

N.18 FR vs DPSP vs Legal Rights

Point	Fundamental Rights (III)	DPSP (IV)
Source of idea	USA (Bill of Rights)	**Ireland**
Enforceable	**Yes** (Art. 32) — justiciable	**No** (Art. 37) — non-justiciable
Nature	Mostly **negative** (limits on the State)	**Positive** (State to secure ends)
Sanction	Legal (courts)	Moral and political
Aim	**Political** democracy	**Social and economic** democracy / welfare State
Focus	Individual welfare	Community welfare
Implementation	Automatically enforceable	Need **legislation**
Against	Mainly the State	Positive obligations on the State
Conflict	*Kesavananda / Minerva Mills* — **balance**; DPSP cannot destroy FR basic structure	39(b)(c) laws saved by **31C**

Point	Fundamental Rights (III)	DPSP (IV)
FR	Legal / Constitutional right	
----	------------------------------	
In **Part III**; enforceable via **Art. 32** (SC)	Outside Part III (e.g. **300A**); enforced via ordinary law / **226**	
Guaranteed by Constitution	May be created/altered by ordinary law (except constitutional ones)	

N.19 Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy — Articles 36–51 (Part IV)

Conflict — FR vs DPSP (chronology)

- *Champakam Dorairajan* (1951): FR prevails → **1st Amendment** (15(4)).
- **25th Amendment (1971)** → **Art. 31C:** laws for 39(b)(c) immune from 14/19.
- **42nd Amendment (1976):** extended 31C to **all** DPSP.
- **Minerva Mills (1980):** struck down that extension — **balance** of FR & DPSP is **basic structure**; 31C survives only for **39(b)(c)**.

Common Traps

1. Equality before law = **14**, not 12/19/21 — 2024
2. Property **not** in present Art. 19 — 2024
3. Exploitation = **23–24**, not untouchability (17) or minorities (29–30) — 2024
4. Torture ≠ Art. 20 — 2023
5. RTE = **86th / 21A**, not 103rd (EWS) — 2022
6. 14 = all persons; **16 and 19 = citizens**
7. 19(1)(f) was **property**, 19(1)(g) is **profession**
8. 15 grounds do **not** include residence (that is 16)
9. Bharat Ratna ≠ Art. 18 title
10. PD is **constitutional**; 44th's 2-month Board rule is **not in force**
11. Art. **361** = President/Governor exception to Art. 14
12. Promotion reservation: **77th (4A)**, backlog **81st (4B)**, seniority **85th**
13. Property removed by **44th** (→ 300A), **not** 42nd/86th
14. 15(4) = **1st** · 15(5) = **93rd** · 15(6)/16(6) = **103rd**
15. Art. **27** = no **tax** (fee allowed); 25 = **propagate**
16. **29** = any section of citizens; **30** = minorities only; minority **undefined**
17. **32** = FR only (heart & soul); **226** wider
18. Habeas Corpus vs **private** person too; Mandamus **not** vs President/Governor
19. Prohibition = **before**, Certiorari = **after**; Quo Warranto = **public office**
20. **358** = only Art. 19 (war/external aggression); **359** never **20 & 21**
21. DPSP = **Ireland**, non-justiciable (Art. 37)
22. **43A** workers ≠ **43B** co-operatives; **50** separation ≠ **48** cattle
23. Duties: **42nd** added 10; **86th** added 11th (51A(k)); **citizens** only
24. Monuments = DPSP **49** (not a Duty); environment in **both** (48A + 51A(g))
25. Right to **strike** / right to **property** are **not** FRs

Topic 6 — Union Executive

Consolidated — 43 Must-Score Facts

1. The **Union Executive (Part V, Articles 52–78)** consists of the **President**, the **Vice-President**, the **Prime Minister**, the **Council of Ministers**, and the **Attorney General for India**.
2. **Article 52** mandates that there shall be a President of India; **Article 53** vests the executive power of the Union in the President, to be exercised either directly or through subordinate officers in accordance with the Constitution.
3. The President is the **Head of the State (nominal/de jure executive)** and the first citizen of India; the Prime Minister is the **Head of the Government (real/de facto executive)**.
4. **Electoral College for Presidential Election (Article 54):** Consists of: (1) **Elected members of both Houses of Parliament**; (2) **Elected members of Legislative Assemblies of all States**; (3) **Elected members of Legislative Assemblies of NCT of Delhi and Puducherry** (added by **70th Amendment Act, 1992**).
5. Who does **NOT vote** in Presidential Election: Nominated members of Lok Sabha and Rajya Sabha; Nominated members of State Legislative Assemblies; **ALL members of State Legislative Councils (both elected and nominated MLCs)**; Nominated members of Delhi and Puducherry Assemblies.
6. **Method of Presidential Election (Article 55):** Conducted through **Proportional Representation by means of Single Transferable Vote (PR-STV)** and voting is by **secret ballot**; ensures parity between the States as a whole and the Union, and among States based on population.
7. **Value of Vote of an MLA:** `(Total State Population according to 1971 Census) / (Total Elected MLAs in State × 1000)`; **Uttar Pradesh has the highest MLA vote value (208)**, while **Sikkim has the lowest (7)**; Uttarakhand has an MLA vote value of 64.
8. **Value of Vote of an MP:** `(Total Value of Votes of all elected MLAs of all States) / (Total Number of Elected MPs of both LS and RS)`; currently fixed at **700** (earlier 708 prior to J&K bifurcation).
9. Qualifications for President (**Article 58**): Citizen of India; completed **35 years of age**; qualified for election as a member of the **Lok Sabha**; must not hold any office of profit under Union, State, or local authorities (sitting President, VP, Governor, or Minister is not deemed office of profit).
10. Nomination for Presidential Election: Must be subscribed by at least **50 electors as proposers and 50 electors as seconders**; security deposit is **₹15,000 in RBI** (forfeited if candidate fails to secure **1/6th (16.67%)** of valid votes polled).
11. **Oath of President (Article 60):** Administered by the **Chief Justice of India** (or seniormost SC judge available); specifically swears to 'preserve, protect and defend the Constitution and the law'; *the President's oath is NOT found in the 3rd Schedule*.
12. **Term and Vacancy (Article 56 & 62):** Term is **5 years** from date of entering office; eligible for re-election for any number of terms (**Article 57** — Dr. Rajendra Prasad is the only President elected twice); resigns by writing to the **Vice-President** (who must communicate it immediately to the Lok Sabha Speaker).
13. **Impeachment of President (Article 61):** Sole ground is **'Violation of the Constitution'** (not defined in Constitution); quasi-judicial process initiated in **either House**; requires **14 days' written notice** signed by not less than **1/4th of the total members** of that House.
14. Majority required for Impeachment: Must be passed by a **Special Majority of not less than 2/3rds of the TOTAL MEMBERSHIP of each House**; in impeachment, **nominated members of Parliament participate**, but **elected MLAs DO NOT participate** (reversing the election college rules!). No Indian President has ever been impeached.
15. Election Disputes (**Article 71**): All doubts and disputes arising out of the election of the President or Vice-President are inquired into and decided **exclusively by the Supreme Court of India**, whose decision is final.
16. Executive Powers of President: Appoints PM, Ministers, Attorney General, CAG, CEC and Election Commissioners, UPSC Chairman/members, Governors of States, and Finance Commission members; all executive actions are formally taken in the President's name (**Art. 77**).
17. Legislative Powers of President: Summons and prorogues Parliament; dissolves Lok Sabha; addresses Parliament at commencement of first session after general election and first session each year (**Art. 87**); nominates **12 members to Rajya Sabha** (Art. 80); prior recommendation required for Money Bills (Art. 110), Finance Bills, and state boundary alteration bills (Art. 3).
18. **Veto Powers of the President (Article 111):** (1) **Absolute Veto** (withholding assent; bill ends); (2) **Suspensive Veto** (returning bill for reconsideration; overridden by Parliament passing it again with simple majority; *cannot return Money Bills*); (3) **Pocket Veto** (taking no action indefinitely; used by President **Zail Singh in 1986** on Indian Post Office (Amendment) Bill). The Indian President has no Qualified Veto (unlike US President).
19. Assent to Constitutional Amendments: Under the **24th Constitutional Amendment Act, 1971**, the President **HAS NO VETO** over a Constitutional Amendment Bill and **MUST give assent**.
20. **President's Power over State Bills (Article 201):** When a Governor reserves a State Bill for Presidential consideration, the President can give assent, withhold assent, or direct Governor to return it to State Legislature; if State Legislature repasses it, **the President is STILL NOT bound to give assent** (unlike Parliament bills!).
21. **Ordinance-Making Power (Article 123):** Executive legislation promulgated only when **either House or both Houses are in recess**; cannot amend the Constitution; co-extensive with legislative power of Parliament; must be laid before Parliament upon reassembly and ceases to operate **6 weeks from reassembly** (maximum lifespan = 6 months + 6 weeks).
22. In ***D.C. Wadhwa v. State of Bihar (1987)***, the Supreme Court held that repeated repromulgation of ordinances without placing them before the legislature is a **fraud on the Constitution** and unconstitutional.
23. **Pardoning Power of President (Article 72):** Exercised on advice of Union Council of Ministers; covers 5 forms: (1) **Pardon** (removes punishment and guilt); (2) **Commutation** (substitutes lighter form); (3) **Remission** (reduces amount of sentence without changing character); (4) **Respite** (lesser sentence on special grounds, e.g., pregnancy); (5) **Reprieve** (temporary stay on execution); President has exclusive power to pardon **Death Sentences** and **Court-Martial sentences**.
24. In ***Kehar Singh (1989)*** and ***Epuru Sudhakar (2006)***, SC ruled that the President's pardoning power under Article 72 is subject to **limited Judicial Review** on grounds of arbitrariness, mala fides, or extraneous considerations.
25. **Vice-President of India (Part V, Articles 63–71):** Article 63 mandates the office; modeled on the **American Vice-President**; Article 64 declares the VP to be the **ex-officio Chairman of the Council of States (Rajya Sabha)**; receives salary as RS Chairman (₹4 lakh/month), not as Vice-President.
26. **Electoral College for Vice-President (Article 66):** Consists of **ALL members of both Houses of Parliament (both Elected and Nominated)**; State Assemblies and Councils have NO role; system: PR-STV with secret ballot.
27. Qualifications for Vice-President (Art. 66(3)): Citizen of India; completed **35 years of age**; qualified for election as a member of the **Rajya Sabha**; must not hold office of profit; nomination requires **20 proposers and 20 seconders** and ₹15,000 deposit.
28. **Removal of Vice-President (Article 67(b)):** Can be removed by a **Resolution of the Rajya Sabha passed by an Effective Majority** (majority of all the then members) and **agreed to by the Lok Sabha by a Simple Majority**; requires at least **14 days' written notice**; no ground is specified in the Constitution.
29. Acting President: Under **Article 65**, the Vice-President acts as President when a vacancy arises due to death, resignation, or removal; can act as President for a **maximum period of 6 months** (within which election must be held); in 1969, when President Zakir Husain died and VP V.V. Giri resigned, CJI **Justice M. Hidayatullah** acted as President per the President (Discharge of Functions) Act, 1969.
30. **Council of Ministers (Articles 74 & 75): Article 74(1)** establishes a Council of Ministers with the **Prime Minister at the head to aid and advise the President**, who *shall*, in the exercise of his functions, act in accordance with such advice.
31. Nature of Presidential Advice: Under the **42nd Amendment (1976)**, advice was made absolutely binding; the **44th Amendment (1978)** added a proviso empowering the President to **require the Council of Ministers to reconsider such advice once**, but the President must act in accordance with the advice tendered after reconsideration.

32. Secrecy of Advice (**Article 74(2)**): The question whether any, and if so what, advice was tendered by Ministers to the President **shall NOT be inquired into in any court**.
33. **Appointment of Prime Minister (Article 75(1)):** The Prime Minister is appointed by the President; other Ministers are appointed by the President **on the advice of the Prime Minister**; by convention, the leader of the majority party in Lok Sabha is appointed PM.
34. **Collective Responsibility (Article 75(3)):** The Council of Ministers is **collectively responsible to the Lok Sabha (House of the People)**; they swim and sink together; if a No-Confidence Motion is passed in Lok Sabha, all ministers including those from Rajya Sabha must resign.
35. **Individual Responsibility (Article 75(2)):** Ministers hold office during the **pleasure of the President**; in practice, this pleasure is exercised exclusively on the advice of the Prime Minister (PM can dismiss a dissenting minister).
36. Ceiling on Council of Ministers: The **91st Constitutional Amendment Act, 2003** added **Article 75(1A)**, capping the total number of Ministers including the Prime Minister at **15% of the total strength of the Lok Sabha**.
37. Six-Month Rule (**Article 75(5)**): A Minister who for any period of **6 consecutive months** is not a member of either House of Parliament ceases to be a Minister at the expiration of that period.
38. Three Tiers of Ministers (not mentioned in Constitution, established by convention): (1) **Cabinet Ministers** (head crucial ministries, attend Cabinet meetings); (2) **Ministers of State** (independent charge or attached to Cabinet ministers); (3) **Deputy Ministers** (assist Cabinet/MoS; no independent charge).
39. The **Cabinet** was given constitutional recognition for the first time in **Article 352** by the **44th Amendment Act, 1978**, defining it as the council consisting of the Prime Minister and other Ministers of cabinet rank appointed under Article 75.
40. **Duties of Prime Minister (Article 78):** Acts as the principal channel of communication between the President and the Council of Ministers; communicates all decisions of CoM relating to administration and legislation, and submits for CoM consideration any matter on which a decision was taken by a minister but not considered by the Council.
41. **Attorney General for India (Article 76, Part V):** The highest law officer of the country; appointed by the President; qualification must match a **Judge of the Supreme Court** (citizen, 5 yrs HC judge or 10 yrs HC advocate or distinguished jurist).
42. Tenure and Removal of AG: The Constitution **does NOT fix the tenure or salary** of the Attorney General; holds office during the **pleasure of the President**; remuneration determined by the President; by convention, resigns when the government resigns.
43. Rights and Limitations of AG (**Article 88**): Has the right of audience in all courts in India; has the **right to speak and take part in proceedings of both Houses of Parliament** and any Parliamentary committee of which he may be named a member, but **HAS NO RIGHT TO VOTE**; enjoys all parliamentary privileges under Article 105; is not a full-time government servant and is **not debarred from private legal practice** (subject to restrictions against advising/briefing against GOI).

📋 Must-score facts — President, VP, PM, ordinances

Frame

Item	Lock
Part / Arts.	**Part V, 52–78**
Nominal / real	President / PM + CoM
Executive power	Art. **53**; aid & advice Art. **74**

President election / office

Item	Lock
Electoral College	Elected MPs + elected MLAs of States/UTs with Assemblies
Do **not** vote	Nominated MPs; Legislative Council members
Method	PR-STV; secret ballot
Age	**35**; qualified for Lok Sabha
Term	**5 years**; re-election unlimited
Impeachment	Art. **61**
Pardon	Art. **72** (death + court-martial stay with President)
Ordinance	Art. **123**

VP / PM tags

Item	Lock
VP election	Parliament only (Art. **66**) — no State MLAs
VP role	Ex-officio RS Chair
PM	Appointed by President; real executive; collective responsibility to LS
AG	Art. **76**; may speak both Houses; no vote

Current Affairs (Union Executive)

Year	Fact	Why it matters
2022	**Droupadi Murmu** elected **15th President** (took office 25 July 2022)	First **tribal** (दिकू) and **second woman** President; youngest to hold the office
2022	Jagdeep Dhankhar sworn as **16th** Vice-President	Electoral college = **all** MPs (elected + nominated); States out
2025	**C. P. Radhakrishnan** sworn as Vice-President	Continuity of Art. 64 / Art. 67 traps

> **For the aspirant:** verify the **current** President / Vice-President name and the latest Cabinet Committee reshuffle — office-holders change.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q116

Who participates in the election of the Vice-President of India?

A. All the members of both Houses of Parliament B. Members of Parliament and State Legislatures C. Members of Rajya Sabha (राज्यसभा) only D. Members of Lok Sabha (लोकसभा) only

Confused Pairs

A	B	Correct	Hindi
President election voters	VP election voters	Only **elected** MPs + MLAs (no nominated / Councils) vs **all** MPs including nominated (no States)	राष्ट्रपति / उपराष्ट्रपति मतदाता
Nominated MPs in election	Nominated MPs in impeachment	**No** vote in Presidential election vs **yes** vote in impeachment	नामित सांसद
MLAs in Presidential election	MLAs in impeachment	**Yes** in election vs **no** in impeachment	विधायक
Absolute / suspensive / pocket veto	Qualified veto	India's three types vs **USA-only** qualified veto	वीटो
Money Bill return	Ordinary Bill return	President **cannot** return Money Bill vs may return ordinary Bill	धन विधेयक
Art. 72 pardon	Art. 161 pardon	President: death + court-martial vs Governor: **neither**	क्षमा
VP as RS Chairman	VP as RS member	Ex-officio Chairman vs **not** a member	सभापति
CoM responsibility	"Both Houses" claim	Collective responsibility to **Lok Sabha only**	सामूहिक उत्तरदायित्व
PMO head	Cabinet Secretariat head	**Principal Secretary** vs **Cabinet Secretary**	पीएमओ / सचिवालय
AG tenure	SC judge removal	AG during **pleasure** vs judge removal by special process	महान्यायवादी
Ordinance power	Constitution amendment	Art. 123 **cannot** amend the Constitution	अध्यादेश
Warrant of Precedence	Constitutional succession	Ceremonial ranks only vs Arts. 56–65 succession	वरीयता / उत्तराधिकार
Rank 6 (CJI = Speaker)	Rank 7 (Cabinet Ministers)	Speaker **not** below Cabinet	रैंक 6 / 7
SC judges (9)	CEC/CAG/UPSC (9A)	Do not swap the bands	9 / 9A

President — Election (Art. 52–55)

Electoral College (Art. 54)

Included	Excluded
Elected MPs (both Houses)	**Nominated** members of Parliament
Elected MLAs of States	Members of **Legislative Councils** (Vidhan Parishad (विधान परिषद))
Elected MLAs of Delhi & Puducherry	**Nominated** MLAs; other UT assemblies

President — Qualifications, Oath, Term (Art. 56–62)

Item	Fact
Qualifications (Art. 58)	Citizen of India; completed **35 years**; qualified for election as a member of the **Lok Sabha**; must **not** hold any office of profit
Conditions (Art. 59)	Not a member of either House / State legislature (if elected, seat vacated); no other office of profit; official residence rent-free; emoluments not reduced during term
Oath (Art. 60)	Administered by the **Chief Justice of India** (in his absence, the senior-most SC judge)
Term (Art. 56)	**5 years**; can resign (addressed to the **Vice-President**); **re-election** allowed any number of times (Art. 57)
Vacancy (Art. 62)	Election to fill a vacancy by expiry within the term; a vacancy by death/resignation/removal must be filled **within 6 months**; VP acts until then
If VP also vacant	**Chief Justice of India** acts as President (*President (Discharge of Functions) Act, 1969*); if CJI's office is vacant, the **senior-most SC judge** available
Emoluments	Paid from the **Consolidated Fund of India** (भारत की संचित निधि) (current teaching figure: **₹5 lakh** per month)

President — Impeachment (Art. 61)

Impeachment feature	Fact
Nature	**Quasi-judicial** procedure
Who participates	**Nominated** members of Parliament **can** take part (they didn't in his election)
Who does **not**	**Elected members of State Legislative Assemblies** (they voted in the election but **not** in impeachment)
Ground	Violation of the Constitution **only**

President — Powers

Category	Key powers
Executive	All Union executive action is in his name; appoints PM, other ministers, AG, CAG, CJI & judges, Governors, Election Commissioners, UPSC/FC chairs, etc.
Legislative	Summons/prorogues Parliament, dissolves Lok Sabha; **special address** (Art. 87); nominates 12 RS members (literature, science, art, social service) & (earlier) Anglo-Indians; assents to Bills (Art. 111) — **veto**; **ordinance** (Art. 123)
Financial	Money Bill needs prior recommendation; causes Budget to be laid; Contingency Fund (आकस्मिकता निधि) at his disposal; constitutes the **Finance Commission** (वित्त आयोग)
Judicial	Appoints judges; seeks **advisory opinion** (Art. 143); **pardoning power** (Art. 72)
Diplomatic	Treaties/agreements negotiated in his name; appoints & receives diplomats
Military	**Supreme Commander** of the Defence Forces; appoints chiefs (actual power regulated by law)
Emergency	National (352), President's Rule (राष्ट्रपति शासन) (356), Financial (360)

President — Veto Powers (Art. 111)

Veto	Meaning	In India?
Absolute	Withholds assent entirely; the Bill dies	Yes (e.g. private members' bills; bills of an ousted cabinet)
Suspensive	Returns the Bill for reconsideration; if **repassed** (with or without changes) he **must** assent	Yes — but **not** for a **Money Bill**
Pocket	Neither assents, returns, nor rejects — keeps it pending indefinitely (**no time limit** in Art. 111)	Yes (famously used by Zail Singh on the 1986 Postal Bill)
Qualified	Override needs a higher majority	**No** — this exists in the **USA**, not India

President — Pardoning Power (Art. 72) vs Governor (Art. 161)

Power	President (Art. 72)	Governor (Art. 161)
Pardon, reprieve, respite, remission, commutation	**Yes**	Yes
Death sentence	**Can** pardon	**Cannot** pardon (only commute/suspend/remit)
Court-martial (military) punishment	**Can** pardon	**Cannot**
Punishment under a **Union law**	Yes	No

President — Ordinance-Making Power (Art. 123)

Ordinance vs Bill — compare card

Point	Ordinance (Art. 123)	Ordinary Bill	Money Bill	Constitution Amendment Bill
When	Houses **not** in session; immediate need	Houses in session	LS only introduction; RS limited	Special majority path
Force	Same as an Act until it lapses	Becomes Act after assent	Becomes Act after assent	Amends Constitution after assent
Assent / return	Laid before Houses; **no** Art. 111 return story	President may assent, withhold, return, or pocket	Assent or withhold — **cannot return**	President **must** assent (24th Amendment)
Life	**Six weeks** from reassembly (or earlier disapproval)	Permanent until repealed / struck down	Same as ordinary Act	Permanent until later amendment
Joint sitting (संयुक्त बैठक)	Not the ordinance path	Possible for ordinary Bills	**No** joint sitting	**No** joint sitting
Amend Constitution?	**No**	**No** (ordinary path)	**No**	**Yes** — that is its purpose

Vice-President (Art. 63–71)

Vice-Presidents of India (must-score list)

#	Name	Term
1	Dr. S. Radhakrishnan	1952–1962
2	Dr. Zakir Hussain	1962–1967
3	V.V. Giri	1967–1969
4	G.S. Pathak	1969–1974
5	B.D. Jatti	1974–1979
6	M. Hidayatullah	1979–1984
7	R. Venkataraman	1984–1987
8	Dr. Shankar Dayal Sharma	1987–1992
9	K.R. Narayanan	1992–1997
10	Krishna Kant	1997–2002
11	Bhairon Singh Shekhawat	2002–2007
12	Mohammad Hamid Ansari	2007–2017
13	M. Venkaiah Naidu	2017–2022
14	Jagdeep Dhankhar	2022–2025
15	**C.P. Radhakrishnan**	**2025– incumbent**

Cabinet, Kitchen Cabinet, Committees & Secretariat

Body	Role
Cabinet	Inner body of **Cabinet-rank** ministers plus the PM; the real policy-deciding core. The word "Cabinet" was inserted into **Art. 352** by the **44th Amendment** — it did **not** appear in the original text
Kitchen / Inner Cabinet	Informal group of the PM's most trusted colleagues — **extra-constitutional**
Cabinet Committees	**Extra-constitutional**, set up by the PM as per need — Security (CCS (सुरक्षा कैबिनेट समिति)), Economic Affairs (CCEA), Appointments, Political Affairs, Parliamentary Affairs. If the **PM is a member**, he is **necessarily** the Chairman of that committee
Cabinet Secretariat	Under the **direct charge of the PM** (not the Vice-President); headed by the **Cabinet Secretary** — senior-most civil servant and **ex-officio Chairman of the Civil Services Board**; prepares Cabinet agendas and assists Cabinet Committees
PMO (Prime Minister's Office)	A **staff agency**; headed by the **Principal Secretary** (not the Cabinet Secretary); renamed "PMO" in **1977**
Ministries count	**18** ministries on **15 August 1947**; the present figure changes with Allocation of Business (dump teaching figure ≈ **53**)

Attorney General of India (Art. 76)

Item	Fact
Status	**First law officer** of the Government of India; **highest law officer**; chief legal adviser to the **Government of India** (not personally to the President alone)
Appointment	By the **President**; must be qualified to be a **Judge of the Supreme Court** (Art. 76(1))
Term / Removal	**No fixed tenure**; holds office **during the pleasure of the President**; Constitution states **no** impeachment-style removal process
Remuneration	Determined by the **President** (Art. 76(4)) — **not** by Parliament
Rights (Art. 76 / 88 / 105)	Right of audience in **all courts**; may **speak/participate** in both Houses and committees but has **no right to vote**; enjoys members' privileges
Restrictions	Not a full-time government servant — **may take private practice**, but **not against the Government of India**; need **not** resign when the appointing ministry falls (no constitutional automatic-resignation rule)
Assisted by	**Solicitor General** & **Additional Solicitors General** — **statutory**, not in the Constitution

Advocate-General of a State (Art. 165) — mirror trap

- Appointed by the **Governor** (not the President); must be qualified to be a **High Court** judge.
- Advises the **State** government; holds office during the **Governor's** pleasure.
- May speak in the State legislature under Art. 177 but cannot vote.

Comptroller and Auditor General (नियंत्रक-महालेखापरीक्षक) of India (Art. 148–151)

Item	Fact
Office	Independent constitutional office under **Art. 148**; Ambedkar (अम्बेडकर) called the CAG probably the **most important officer** under the Constitution
Appointment / removal	Appointed by the **President**; removed **only like a Supreme Court judge** (special-majority address of both Houses — **not** pleasure tenure)
Tenure	**6 years** or until age **65**, whichever is earlier (CAG Act, 1971); salary equals an **SC judge** (Second Schedule / Act)
After demitting	**Not eligible** for further office under the Union or any State (Art. 148(4))
Role	Guardian of the **public purse**; audits Union and State accounts; "friend, philosopher and guide" of the **Public Accounts Committee**
Reports (Art. 151)	Union reports → **President** → laid before Parliament; State reports → **Governor** → State legislature
Three audit reports	Appropriation accounts; finance accounts; public undertakings
Expenses of office	Charged on the **Consolidated Fund of India** (Art. 148(6)) — **not** voted annually like ordinary demand
Accounts vs audit	**1976** amendment of the CAG Act separated **accounts** from **audit** at the Centre; CAG's Centre task is mainly **audit**

President vs US President (quick contrast)

Point	India	USA
Nature	**Nominal** head; real power with CoM	**Real** executive head
Election	Indirect (Electoral College, PR-STV)	Indirect (Electoral College, but different)
Term	5 years, unlimited re-election	4 years, max 2 terms (22nd Amendment)
Veto	Absolute, suspensive, pocket	Qualified veto (Congress (कांग्रेस) override 2/3)
System	Parliamentary	Presidential

President chronology (high-yield)

Order of Precedence (Warrant / Table of Precedence)

High-yield ranks (Articles 1–11)

Rank	Dignitaries (key facts)
1	**President**
2	**Vice-President**
3	**Prime Minister**
4	**Governors** — **within their respective States** only
5	**Former Presidents** (by date of leaving office)
5A	**Deputy Prime Minister** (when office exists)
6	**Chief Justice of India** and **Speaker of Lok Sabha** — **equal rank**
7	**Union Cabinet Ministers**; **Chief Ministers** (within their States); **Former Prime Ministers**; **Leaders of Opposition** in RS and LS
7A	Holders of **Bharat Ratna** (भारत रत्न) decoration
8	Ambassadors / High Commissioners; **Governors outside their States**; **Chief Ministers outside their States**
9	**Judges of the Supreme Court**
9A	**Chairman, UPSC**; **Chief Election Commissioner**; **Comptroller and Auditor General** (नियंत्रक-महालेखापरीक्षक)
10	**Deputy Chairman, Rajya Sabha**; **Deputy Speaker, Lok Sabha**; **Ministers of State** (Union); **Deputy Chief Ministers** (within State); NITI (नीति) Aayog (नीति आयोग) members (as listed)
11	**Lieutenant Governors** (within UT); **Cabinet Secretary**; **Attorney General of India**; Principal Scientific Adviser

Confused pairs (precedence traps)

Pair	Correct	Trap
Precedence vs succession	**Ceremonial table only**	Treat rank 2 VP as automatic President-in-waiting for all purposes
CJI vs Speaker	**Same rank — 6**	Call Speaker rank 7 or below Cabinet Ministers
Former President vs CJI	**Former President = 5** (above 6)	Place ex-President below Speaker
Governor vs PM	**PM = 3** always at Centre	Governor always outranks PM
Governor "rank 4"	Only **within own State**	Same rank at an all-India Delhi function
AG vs Cabinet Minister	**Cabinet Minister = 7**; **AG = 11**	AG outranks every Minister
CEC / CAG vs SC judge	**SC judge = 9**; **CEC/CAG/UPSC = 9A**	Swap 9 and 9A
Bharat Ratna	**7A** — after rank 7 block	Place with rank 1–3

Common Traps

Trap	Correct
"All members" vote for President	Only **elected** members; **nominated** & **Councils** excluded
Nominated MPs never vote	They **do** vote in **impeachment** and in the **VP** election
State MLAs in impeachment	**No** — MLAs vote only in the **election**, not impeachment
President can return a Money Bill	**No** — only assent or withhold
Qualified veto in India	**No** — that is the **US** system
Governor can pardon a death sentence	**No** — only the **President** (Art. 72)
VP is a member of the Rajya Sabha	**No** — ex-officio **Chairman**, not a member
CoM responsible to both Houses	**Lok Sabha only** (Art. 75(3))
PMO headed by Cabinet Secretary	**Principal Secretary**; Cabinet **Secretariat** is headed by the Cabinet Secretary
AG removed like an SC judge	**No** — holds office **during pleasure**
Ordinance can amend the Constitution	**No** (Art. 123)
Precedence = constitutional power	**No** — ceremonial **Warrant of Precedence** only
Speaker below Cabinet Minister	**No** — Speaker = **rank 6** with **CJI**; Cabinet Minister = **7**
AG outranks Cabinet Minister	**No** — AG = **rank 11**
CEC/CAG same as SC judge	**No** — SC judges **9**; CEC/CAG/UPSC **9A**

Topic 7 — Parliament

Consolidated — 40 Must-Score Facts

1. Under **Article 79**, the Parliament of India consists of the **President**, the **Council of States (Rajya Sabha)**, and the **House of the People (Lok Sabha)**; although not a member of either House, the President is an integral part of Parliament because no bill can become law without presidential assent.
2. **Rajya Sabha (Article 80):** Maximum constitutionally sanctioned strength is **250** (up to 238 representatives of States and UTs, and **12 nominated by the President** for special knowledge/practical experience in **Literature, Science, Art, and Social Service**).
3. Current Rajya Sabha strength is **245** (225 States, 8 UTs: Delhi 3, Puducherry 1, J&K 4; and 12 Nominated); members are elected by the **elected members of State Legislative Assemblies** through **PR-STV**; voting is by **open ballot** (introduced in 2003 to curb cross-voting).
4. Rajya Sabha is a **permanent body** not subject to dissolution (**Article 83(1)**); one-third of its members retire every second year; each member serves a **term of 6 years** (prescribed by the Representation of the People Act, 1951, NOT by the Constitution).
5. **Lok Sabha (Article 81):** Originally maximum strength was 500; raised to 552; with the discontinuation of 2 nominated Anglo-Indian seats by the **104th Amendment Act, 2019**, maximum strength is **550** (530 from States + 20 from UTs); current active strength is **543** (all directly elected from single-member territorial constituencies).
6. Term of Lok Sabha (**Article 83(2)**): Normal term is **5 years** from date appointed for its first meeting; can be dissolved earlier by the President; during a National Emergency (Art. 352), Parliament can extend the term of Lok Sabha by law for a period not exceeding **1 year at a time**, and not extending beyond 6 months after the emergency proclamation has ceased to operate.
7. Qualifications for MP (**Article 84**): Citizen of India; not less than **30 years of age for Rajya Sabha**, and not less than **25 years of age for Lok Sabha**; subscribed oath before person authorized by Election Commission.
8. Disqualifications of MP (**Article 102**): (a) Holds office of profit; (b) Unsound mind; (c) Undischarged insolvent; (d) Ceases to be Indian citizen; (e) Disqualified under any law made by Parliament (e.g., RPA 1951 for corrupt electoral practices, imprisonment for ≥ 2 years). Decisions under Art. 102 are taken by the **President in accordance with the opinion of the Election Commission** (**Article 103**).
9. Disqualification on Ground of Defection (**Tenth Schedule**): Decided by the **Speaker of Lok Sabha** or **Chairman of Rajya Sabha**; under *Kihoto Hollohan (1992)*, this decision is subject to judicial review.
10. Vacation of Seats (**Article 101**): If an MP is absent from all meetings of a House without its permission for a period of **60 days**, the House may declare his seat vacant (excluding periods of prorogation or adjournment > 4 consecutive days).
11. **Speaker and Deputy Speaker of Lok Sabha (Article 93):** Elected by the Lok Sabha from amongst its members by simple majority; date of election of Speaker is fixed by the **President**, while date of election of Deputy Speaker is fixed by the **Speaker**.
12. Tenure of Speaker (**Article 94**): Remains in office from election until immediately before the first meeting of the new Lok Sabha after dissolution; resigns by writing to the **Deputy Speaker** (and Deputy Speaker resigns to the Speaker); removed by a resolution passed by an **Effective Majority** (majority of all the then members of Lok Sabha) after 14 days' notice.
13. Powers of Speaker: Presides over joint sittings of Parliament (Art. 108); certifies whether a bill is a **Money Bill** and his decision is final (**Art. 110(3)**); exercises a **Casting Vote** under Article 100(1) in case of an equality of votes; appoints chairmen of all parliamentary committees.
14. **Pro Tem Speaker (Speaker pro tempore):** Appointed by the President (usually the seniormost member of Lok Sabha) to administer oaths to newly elected MPs and preside over the election of the permanent Speaker; office lapses once the Speaker is elected.
15. **Chairman of Rajya Sabha (Article 89):** The **Vice-President of India** is ex-officio Chairman; does not hold membership of Rajya Sabha; can be removed from office only by removing him as Vice-President; has a casting vote in case of a tie; *cannot preside over a joint sitting*.
16. **Deputy Chairman of Rajya Sabha:** Elected by the Rajya Sabha from amongst its members; resigns by writing to the Chairman; removed by effective majority of Rajya Sabha.
17. **Sessions of Parliament (Article 85):** The President summons each House; maximum gap between two sessions of Parliament **cannot exceed 6 months** (Parliament must meet at least twice a year); typically 3 sessions annually: **Budget Session** (Feb–May), **Monsoon Session** (July–Aug/Sept), **Winter Session** (Nov–Dec).
18. Adjournment vs Prorogation vs Dissolution: **Adjournment** suspends sitting for hours/days/weeks (done by Presiding Officer); **Adjournment sine die** terminates sitting indefinitely (by Presiding Officer); **Prorogation** terminates a session (by President under Art. 85(2)); **Dissolution** ends the very life of Lok Sabha (by President; Rajya Sabha never dissolved).
19. Lapse of Bills on Dissolution (**Article 107**): A Bill pending in Lok Sabha lapses; a Bill passed by Lok Sabha and pending in Rajya Sabha lapses; a Bill originating in Rajya Sabha and pending in Rajya Sabha (not passed by Lok Sabha) **DOES NOT LAPSE**; a Bill passed by both Houses and awaiting Presidential assent **DOES NOT LAPSE**; a Bill returned by President for reconsideration **DOES NOT LAPSE**; a Bill for which President has notified a Joint Sitting prior to dissolution **DOES NOT LAPSE**.
20. **Quorum (Article 100(3)):** Minimum number of members required to be present to conduct a meeting: **1/10th of the total membership of the House** (**55 members in Lok Sabha**, **25 members in Rajya Sabha**); if no quorum, presiding officer must adjourn or suspend meeting.
21. **Language in Parliament (Article 120):** Business transacted in **Hindi or English**; Presiding Officer may permit any member who cannot adequately express himself in Hindi/English to address the House in his mother tongue.
22. Parliamentary Hours: **Question Hour** is the first hour of a sitting (11:00 AM – 12:00 PM); **Starred Questions** (marked with asterisk; require oral answers; supplementary questions permitted); **Unstarred Questions** (require written answers; no supplementaries); **Short Notice Questions** (urgent matter; < 10 days' notice).
23. **Zero Hour:** Follows Question Hour immediately (starts at 12:00 PM); an **informal Indian parliamentary innovation since 1962**; not mentioned in the Rules of Procedure; members raise urgent matters without prior notice.
24. Types of Motions: **Adjournment Motion** (draws attention to definite matter of urgent public importance; Lok Sabha only; needs support of 50 members; debate lasts ≥ 2.5 hours; involves censure of government); **No-Confidence Motion** (Art. 75; Lok Sabha only; needs support of 50 members; no grounds needed; government falls if passed); **Censure Motion** (Lok Sabha only; specific policy/minister censure; government need not resign if passed); **Calling Attention Motion** (Indian innovation since 1954; calls minister's attention to urgent matter).
25. **Cut Motions (Budgetary Scrutiny):** Moved only in Lok Sabha during Demands for Grants: (1) **Disapproval of Policy Cut** ('that the amount of demand be reduced to ₹1' - represents disapproval of underlying policy); (2) **Economy Cut** ('that amount of demand be reduced by a specified amount'); (3) **Token Cut** ('that amount of demand be reduced by ₹100' - ventilates specific grievance). Passage of a Cut Motion implies lack of confidence and the government must resign.
26. **Legislative Procedure — Ordinary Bills (Articles 107 & 108):** Can be introduced in either House; passes through 3 readings; if deadlocked (rejected by other House, disagreement on amendments, or passed > 6 months without action), President may summon a **Joint Sitting**.
27. **Joint Sitting of Parliament (Article 108):** Summoned by the President; presided over by: (1) **Speaker of Lok Sabha**, (2) Deputy Speaker of Lok Sabha, (3) Deputy Chairman of Rajya Sabha, (4) Person chosen by members present; *Chairman of Rajya Sabha NEVER presides*; bill decided by **Simple Majority of total members present and voting**; only 3 Joint Sittings held in history: Dowry Prohibition Bill (1961), Banking Service Commission Bill (1978), and POTA Bill (2002).
28. **Money Bills (Article 110):** A bill containing *only* provisions dealing with taxation, borrowing, Consolidated/Contingency Funds, audit of accounts; introduced **only in Lok Sabha** with prior Presidential recommendation; Rajya Sabha cannot reject or amend, can only make recommendations within **14 days**; if not returned in 14 days, deemed passed; *NO joint sitting for Money Bills*.
29. **Financial Bills (Article 117): Financial Bill (I) [Art. 117(1)]** contains matters of Art. 110 plus general legislation; introduced only in Lok Sabha with prior presidential recommendation, but otherwise treated as an Ordinary Bill (can be rejected by RS; joint sitting applicable); **Financial Bill (II) [Art. 117(3)]** involves expenditure from

Consolidated Fund; introduced in either House, but cannot be passed by either House without presidential recommendation.

30. **Annual Financial Statement - Budget (Article 112):** The term 'Budget' is not used in the Constitution; the President causes it to be laid before both Houses; contains estimated receipts and expenditure; divided into **Expenditure Charged upon Consolidated Fund** (non-votable, can only be discussed) and **Expenditure Made from Consolidated Fund** (votable Demands for Grants).
31. Expenditure Charged on Consolidated Fund of India (**Article 112(3)**): Emoluments of President; salaries/allowances of Chairman/Deputy Chairman of RS and Speaker/Deputy Speaker of LS; salaries, allowances, and **pensions of Supreme Court Judges**; **PENSIONS ONLY of High Court Judges** (*salaries of HC judges are charged on State Consolidated Fund!*); salary and pension of CAG; debt charges of GOI.
32. **Appropriation Bill (Article 114):** No money can be withdrawn from the Consolidated Fund of India except under appropriation made by law passed by Parliament; legalizes expenditure approved under Demands for Grants.
33. **Vote on Account (Article 116(a)):** Grant in advance to the executive to meet expenditure for a part of the financial year pending the passage of the Appropriation Bill (usually 2 months' grant; with Union Budget advanced to 1 February since 2017, Vote on Account is now rarely needed).
34. **Funds of the Union (Articles 266 & 267):** (1) **Consolidated Fund of India (Art. 266(1))**: all revenues, loans, and loan recoveries; withdrawals require parliamentary law; (2) **Public Account of India (Art. 266(2))**: provident funds, judicial deposits, remittances; executive operated; (3) **Contingency Fund of India (Art. 267)**: corpus held by Finance Secretary on behalf of President for unforeseen expenditure pending parliamentary authorization (corpus raised from ₹500 crore to ₹30,000 crore).
35. **Parliamentary Financial Committees:** (1) **Public Accounts Committee (PAC)**: created in 1921 under GOI 1919; **22 members (15 LS + 7 RS)**; elected by PR-STV; term 1 yr; minister cannot be member; examines CAG audit reports; by convention since 1967, Chairman is from **Opposition**; known as 'twin sister' of Estimates Committee.
36. (2) **Estimates Committee:** Created in 1950 on recommendation of John Mathai; **30 members, ALL FROM LOK SABHA ONLY** (Rajya Sabha has zero representation; largest parliamentary committee); term 1 yr; examines estimates to suggest economies in expenditure; nicknamed **'Continuous Economy Committee'**.
37. (3) **Committee on Public Undertakings (COPU):** Created in 1964 on recommendation of Krishna Menon Committee; **22 members (15 LS + 7 RS)**; term 1 yr; examines reports and accounts of public sector undertakings (PSUs) and CAG audit reports on PSUs.
38. Departmentally Related Standing Committees (DRSCs): Introduced in 1993; currently **24 DRSCs** (16 work under Lok Sabha Speaker, 8 under Rajya Sabha Chairman); each committee has **31 members (21 from Lok Sabha + 10 from Rajya Sabha)**; examine Demands for Grants, bills, and annual reports of ministries.
39. **Exclusive Special Powers of Rajya Sabha:** (1) **Article 249**: Can pass a resolution by 2/3rd majority present and voting empowering Parliament to legislate on a **State List subject** in national interest for 1 year; (2) **Article 312**: Can pass a resolution by 2/3rd majority present and voting to create new **All-India Services**; (3) **Article 67(b)**: Vice-President removal resolution can originate ONLY in Rajya Sabha; (4) Approval of Emergency when Lok Sabha is dissolved (**Arts. 352, 356, 360**).
40. **Parliamentary Privileges (Article 105):** Collective privileges (right to publish debates, exclude strangers, punish for contempt of House) and Individual privileges (freedom of speech in Parliament, **freedom from arrest in civil cases 40 days before and 40 days after session**; *no immunity from arrest in criminal cases or preventive detention*).

📋 Must-score facts — RS, LS, Money Bill, seats

Composition

House	Lock
Parliament	President + RS + LS (Art. **79**)
Rajya Sabha max	**250** (238 + **12** nominated)
RS election / term	Elected MLAs; PR-STV; **6 years**; 1/3 retire every 2 years
Nominated 12	Literature, science, art, social service
Lok Sabha max	**550** (530 States + 20 UTs)
Anglo-Indian LS nomination	Ended by **104th**

Special RS powers

Article	Lock
249	State List for national interest (1 year)
312	All-India Services

High-yield seats / Money Bill

Item	Lock
UP in RS	**31** (highest)
Money Bill	Art. **110**; Speaker's certificate; RS **14 days** only
Joint sitting	Art. **108** (not for Money / Constitution amendment Bills)
Quorum	1/10 of total membership

Current Affairs

- **2024: 18th Lok Sabha** constituted; **Om Birla** re-elected Speaker; **Rahul Gandhi (गांधी)** recognised as Leader of the Opposition.
- **2019–20: 104th Amendment** ended Anglo-Indian nomination to LS (and State Assemblies) — Art. 331 / 334 trap.
- **Frozen:** LS territorial seats frozen on **1971** census till the first census after **2026** (84th) — delimitation.
- **Jan 2022:** ECI revised candidate expenditure ceilings — Lok Sabha up to **₹95 lakh** (smaller States **₹75 lakh**); Assembly up to **₹40 lakh** (smaller States **₹28 lakh**).
- **2024 polls:** 7 phases; **Malogam** (Arunachal East) one-voter booth; **Shompen** (Great Nicobar (निकोबार)) voted for the first time in Andaman (अंडमान) & Nicobar LS seat.
- **2017–:** Union Budget on **1 February**; **Railway Budget merged** with General Budget.
- **Convention:** PAC chair from the **Opposition** (since 1967).
- **18th Lok Sabha committee chairs (2024–25, Om Birla): Public Accounts** — **K.C. Venugopal**; **Estimates** — **Sanjay Jaiswal**; **Public Undertakings** — **Baijayant Panda**; **SC/ST Welfare** — **Faggan Singh Kulaste**; **OBC (अन्य पिछड़ा वर्ग) Welfare** — **Ganesh Singh**. Trap: Baijayant Panda is **COPU**, not Estimates.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q130

Who among the following officials can be invited to give his opinion in the Parliament?

A. Auditor General B. Attorney General (महान्यायवादी) C. Chief Justice of India D. Governor

Confused Pairs

A	B	Correct	Hindi
Art. 79 Parliament	"Two Houses only"	President + RS + LS	संसद
Art. 108 joint sitting	Art. 109 Money Bill procedure	Joint sitting ≠ 109	संयुक्त बैठक / धन विधेयक
Money Bill (110)	Financial Bill (117)	LS only + RS 14 days vs 117(1)/117(3) paths	धन / वित्तीय
Finance Bill	Financial Bill	Annual tax Bill vs Art. 117 categories	वित्त / वित्तीय
RS permanent House	Member's 6-year term	House **never** dissolved vs individual term	राज्य सभा
VP as Chairman	VP as RS member	Ex-officio Chairman vs **not** a member	सभापति
Question Hour	Zero Hour	First hour vs **after** Question Hour	प्रश्न / ज़ीरो ऑवर
PAC (22; opp. chair)	Estimates (30 LS-only)	Mixed Houses + opposition chair vs LS-only largest	लोक लेखा / प्राक्कलन
CFI / Public Account (266)	Contingency Fund (267)	Do not park Contingency under 266	निधि
Charged expenditure	Voted expenditure	Discussed **not** voted vs needs vote	भारित / मतदेय
No-confidence	Rajya Sabha	**Lok Sabha only**	अविश्वास
Civil privilege	Criminal process	Privilege covers civil arrest window, **not** crime	विशेषाधिकार
Anglo-Indian nomination	SC/ST reservation	Ended by **104th** vs continues till **25 Jan 2030**	एंग्लो-इंडियन / आरक्षण
Speaker Money Bill certificate	Office-of-profit decision	Speaker final on Money Bill vs **President** + **EC** on office of profit	अध्यक्ष / लाभ का पद

Rajya Sabha — composition & special powers (Art. 80, 83)

Rajya Sabha seats — high-yield match list

State / UT	RS seats
Uttar Pradesh	**31** (largest)
Maharashtra	**19**
Tamil Nadu	**18**
Bihar	**16**
West Bengal	**16**
Karnataka	**12**
Andhra Pradesh	**11**
Gujarat	**11**
Madhya Pradesh	**11**
Rajasthan	**10**
Odisha	**10**
Kerala	**9**
Punjab	**7**
Telangana	**7**
Assam	**7**
Jharkhand	**6**
Chhattisgarh	**5**
Haryana	**5**
Jammu & Kashmir	**4**
Himachal (हिमाचल) Pradesh	**3**
Uttarakhand (उत्तराखंड)	**3**
NCT of Delhi	**3**
Goa (गोवा) and other small North-Eastern States	**1** each
Puducherry	**1**

Lok Sabha vs Rajya Sabha (one table)

Point	Lok Sabha	Rajya Sabha
Nature	**Popular** chamber; can be **dissolved**	**Federal / continuing** chamber; **never** dissolved
Election	Direct (FPTP)	Indirect (PR-STV by elected MLAs)
Max strength	**550** (+ 2 Anglo-Indian, now ended)	**250** (238 + 12 nominated)
Present	**543**	**245**
Term	**5 years** (House)	**6 years** (member); 1/3 retire every 2 years
Min. age	**25**	**30**
Presiding officer	**Speaker** (a member)	**Vice-President** (not a member)
Money Bill	Introduced **only here**; Speaker's certificate final	Cannot reject / amend; 14-day recommendatory role
Confidence	CoM responsible **only to LS**	No-confidence **cannot** be moved

Point	Lok Sabha	Rajya Sabha
Joint sitting	Speaker presides; LS numbers usually prevail	Sits as one body with LS
Representation	Population-based	**Fourth Schedule** — **not** equal per State

Exclusive powers (quick split)

Only Lok Sabha	Only Rajya Sabha
Introduce **Money Bill** / **Appropriation**	Art. **249** (State List in national interest)
No-confidence / confidence / adjournment motion	Art. **312** (new All-India Service)
Vote on **Demand for Grants**	Initiate **removal of the Vice-President**
Decide (via Speaker) that a Bill is a Money Bill	—

Speaker, Deputy Speaker, Pro Tem Speaker

Speaker — powers (list)

- The Speaker is the **final interpreter** of the Constitution and the Rules of Procedure **inside the House**.
- The Speaker may **adjourn or suspend** the sitting when there is **no quorum**, and maintains order by **naming or suspending** a member.
- The Speaker decides whether a Bill is a **Money Bill** (Art. **110**), and that decision is **final**.
- The Speaker **presides over a joint sitting** of both Houses (Art. **108**).
- The Speaker decides **Tenth Schedule** disqualification cases, subject to **judicial review**.
- The Speaker may **allow a secret sitting** of the House.
- The Speaker **appoints the chairpersons** of Lok Sabha committees, and is himself the ***ex-officio* chair** of the Business Advisory, Rules, and General Purposes Committees.
- The Speaker is the **guardian of the privileges** of the House and the **head of the Lok Sabha Secretariat**.
- The Speaker **does not vote in the first instance** — only a **casting vote** on a tie.

Chairman of the Rajya Sabha

Speaker vs Chairman

Point	Speaker (LS)	Chairman (RS)
Who	Elected LS member	**VP** — not a member
Removal	Art. **94** — LS alone	Art. **67** — RS effective majority **+ LS agrees**
When he is absent	Deputy Speaker	Deputy Chairman
Joint sitting	**Presides**	**Does not preside**
Money Bill certificate	**Yes** (Art. 110)	No
Casting vote	Yes	Yes

Sessions — Summoning, Prorogation, Adjournment, Dissolution (सत्र — आहूत करना, सत्रावसान, स्थगन एवं विघटन: Art. 85)

Device	Who	What it ends	What lapses
Summon (आहूत करना)	**President** (राष्ट्रपति)	Starts a session. Max gap between two sessions: **6 months** (≥ **two** sessions a year)	—
Adjournment (स्थगन)	**Presiding officer** (पीठासीन अधिकारी)	A **sitting** (बैठक: hours/days)	**Nothing** — business is only postponed
Adjournment *sine die* (अनिश्चितकाल के लिए स्थगन)	Presiding officer	A sitting **indefinitely** (no date)	Nothing by itself
Prorogation (सत्रावसान)	**President** (can prorogue even while adjourned sine die)	A **session** (सत्र)	Notices of questions, motions, resolutions. **Bills do not lapse**
Dissolution (विघटन)	**President** (only **LS**; on PM advice, including a PM who has lost majority in some situations)	**Life of the Lok Sabha** (लोकसभा का कार्यकाल समाप्त)	See bill-lapse fact below

Common Traps

- **Parliament = two Houses only:+ the President** (Art. 79).
- **RS seats equal for every State:No** — Fourth Schedule; population-weighted (UP 31 vs Goa 1).
- **Art. 109 = joint sitting:108**; **109** is Money Bill.
- **Joint sitting for CAB / Money Bill:Never.**
- **VP is a member of RS:Ex-officio Chairman**, not a member.
- **RS dissolved after 6 years:** House is **permanent**; members' term is 6 years.
- **Art. 312 = 2/3 of total membership:2/3 present and voting**.
- **Max UT LS seats = 13 / 15 / present strength:maximum is 20** (Art. 81).
- **Anglo-Indian LS members still nominated:** ended by **104th**; SC/ST reservation **continues till 25 Jan 2030**.
- **Speaker elected by ECI:House elects**; ECI has no role.
- **Chairman (VP) presides over joint sitting:Speaker** does.
- **60-day absence is automatic disqualification:** House **may declare** the seat vacant.
- **Office of profit decided by the Speaker:President + binding EC advice** (Art. 103).
- **Dual membership = instant dual sitting:** LS+RS: choose in **10 days**; Parliament+State: Parliament seat goes after **14 days**.
- **Privilege covers criminal arrest:No** — only civil cases, 40 days before/after + during session.
- **Prorogation kills Bills:No** — only notices/motions; Bills survive.

- **Art. 109 defines Money Bill:110** defines; **109** is procedure.
- **Money Bill can originate in RS:Never.**
- **RS can amend a Money Bill:** only **recommend**; LS may accept or reject.
- **Financial Bill = Finance Bill:Finance** = annual tax Bill; **Financial** = 117(1) or 117(3).
- **Contingency Fund = Art. 266:267**; 266 = CFI + Public Account.
- **LS can increase a Demand for Grants:No** — only reduce or refuse.
- **AG's salary is charged:No.**
- **PAC has 15 members from RS:** No — **15 LS + 7 RS**.
- **Estimates Committee has RS members:** No — **30, all LS**.
- **PAC chair from ruling party:** Opposition (since **1967**).
- **Ethics complaint only by an MP:** Wrong — any person may complain if **forwarded by a member**.
- **Baijayant Panda = Estimates chair (2024–25):** Wrong — he chairs **COPU**; **Sanjay Jaiswal** chairs Estimates.
- **Zero Hour is the first hour:** first hour = **Question Hour**; Zero Hour **follows** it.
- **No-confidence in Rajya Sabha:LS only**.
- **Charged expenditure is not discussed:** it **is discussed**, but **not voted**.
- **Token grant = policy cut:** token **grant** = ₹1 demand for re-appropriation; policy **cut** reduces a demand to ₹1.
- **Consultative Committees are House committees:extra-constitutional**; Ministry of Parliamentary Affairs.

Budget & the three funds (Arts. 112, 265–267)

Fund	Article	What goes in	Vote of Parliament?
Consolidated Fund of India (CFI)	**266(1)**	All revenues, loans raised, loan repayments	**Yes** — no money out except by **Appropriation Act**
Public Account of India	**266(2)**	Provident funds, remittances, deposits (govt as banker)	**No** — executive operates without a vote
Contingency Fund of India	**267**	Imprest for unforeseen expenditure; at the **disposal of the President** (in practice Finance Secretary); later **recouped from CFI**	Corpus fixed by Parliament by law

Bills — types and traps

Money Bill vs Financial Bill vs Finance Bill

	Money Bill Art. 110	Financial Bill I Art. 117(1)	Financial Bill II Art. 117(3)
Contents	**Only** Art. 110 matters	Art. 110 matters **+ other** provisions	Ordinary Bill that involves **expenditure from CFI**
Where introduced	**LS only**	**LS only**	**Either House**
President's recommendation	For **introduction**	For **introduction**	For **consideration** (not introduction)
RS powers	14-day recommendatory	Can **amend / reject**	Can **amend / reject**
Joint sitting	**No**	**Yes**	**Yes**
President's return	**Cannot return**	Can return	Can return

- The **Finance Bill** is the **annual taxation** Bill accompanying the Budget, **usually certified as a Money Bill**, and it must be passed within **75 days** of introduction — do **not** confuse its name with a "Financial Bill".
- The **Appropriation Bill (Art. 114)** authorises withdrawal from the Consolidated Fund, covering charged, voted, and vote-on-account amounts, and **it is a Money Bill**.
- **No amendment** may vary the *amount* or *destination* of a grant in the Appropriation Bill, and **cut motions are not moved** on it — they were already moved on the Demands.
- An **Art. 3 (State reorganisation) Bill** may originate in **either House**, needs the **President's recommendation**, and requires the affected State's views to be sought — though those views are **not binding**; it is **not** a Money Bill.

Parliamentary devices & motions

Adjournment vs Censure vs No-confidence

	Adjournment	Censure	No-confidence
House	**LS only**	**LS only**	**LS only**
Need to state grounds	Yes (the urgent matter)	**Yes**	**No**
Target	Government policy / a happening	A minister **or** CoM	**Entire CoM only**
If passed	Censure implied; business interrupted	Politically fatal; resignation not automatic in theory	**CoM must resign**
Support to admit	**50 members**	As per Rules	**50 members**

Cut motions (three)

Cut	What it says	Meaning
Policy cut	Reduce the demand to **₹1**	Disapproval of the **policy** behind the demand
Economy cut	Reduce by a **specified amount**	Economy should be effected
Token cut	Reduce by **₹100**	Ventilate a **specific grievance**

Topic 8 — State Government

Consolidated — 40 Must-Score Facts

1. **Part VI (Articles 152–237)** governs the State Executive and State Legislature; the State Executive consists of the **Governor**, the **Chief Minister**, the **State Council of Ministers**, and the **Advocate General for the State**.
2. **Office of Governor (Article 153):** Mandates a Governor for each State; the **7th Constitutional Amendment Act, 1956** added a proviso permitting the appointment of the **same person as Governor for two or more States**.
3. **Appointment of Governor (Article 155):** Appointed by the **President** by warrant under his hand and seal; holds office during the **pleasure of the President (Article 156(1))**; the office of Governor is not an employment under the Central Government, but an independent constitutional office (*Hargovind Pant v. Raghukul Tilak 1979*).
4. Qualifications for Governor (**Article 157**): Must be a **citizen of India** and must have completed the age of **35 years**; two conventions have evolved: (1) should be an outsider not belonging to the State; (2) President should consult the State Chief Minister before appointment (recommended by Sarkaria Commission).
5. **Oath of Governor (Article 159):** Administered by the **Chief Justice of the High Court** exercising jurisdiction in relation to the State (or seniormost HC judge); *the Governor's oath is NOT in the 3rd Schedule.*
6. Emoluments of Governor (**Second Schedule**): Salary fixed by Parliament (₹3.5 lakh/month); charged on the **Consolidated Fund of the State**; when the same person is appointed Governor of two or more States, emoluments are allocated among the States by the President in such proportion as he may determine.
7. Personal Immunity of Governor (**Article 361**): Not answerable to any court for the exercise and performance of the powers and duties of his office; no criminal proceedings can be instituted or continued, and no process for arrest/imprisonment can issue from any court during his term.
8. **Executive Powers of Governor (Articles 154 & 166):** Executive power of the State is vested in the Governor; appoints Chief Minister and other ministers (on CM's advice); appoints **Advocate General (Art. 165)**, State Election Commissioner (Art. 243K), and Chairman/members of SPSC (Art. 316).
9. Crucial SPSC Trap: The Chairman and members of a State Public Service Commission are **appointed by the Governor**, but **CAN BE REMOVED ONLY BY THE PRESIDENT** under Article 317.
10. **Discretionary Powers of Governor (Article 163):** Unlike the President who has no explicit constitutional discretion, **Article 163(1)** explicitly recognizes that the Governor may act **in his discretion**; Article 163(2) provides that the Governor's decision in his discretion is final and cannot be questioned in court.
11. Constitutional Discretion of Governor includes: (1) Reserving a State Bill for Presidential consideration (**Art. 200**); (2) Recommending President's Rule in the State (**Art. 356**); (3) Determining royalty amounts from mining leases to Tribal District Councils in Assam, Meghalaya, Tripura, Mizoram (**6th Schedule**); (4) Seeking administrative information from Chief Minister (**Art. 167**).
12. Situational Discretion of Governor: Appointment of Chief Minister when no party has a clear majority; dismissal of Ministry when it loses confidence in the Assembly and refuses to resign; dissolution of Legislative Assembly if Ministry has lost its majority.
13. **Legislative Powers of Governor (Articles 174, 175, 176):** Summons, prorogues State Legislature; dissolves Legislative Assembly; addresses Legislature at first session each year; nominates **1/6th of members of State Legislative Council** (having special knowledge in literature, science, art, cooperative movement, or social service — *Cooperative movement is unique to MLC nomination, not in Rajya Sabha!*).
14. **Governor's Action on State Bills (Article 200):** When a bill is passed by State Legislature, Governor has 4 options: (1) Give assent; (2) Withhold assent; (3) Return bill (if not Money Bill) for reconsideration; (4) **Reserve the bill for the consideration of the President**.
15. Mandatory Reservation for President: The Governor **MUST reserve** any State Bill that endangers the constitutional position of the **High Court**; may also reserve bills conflicting with Union laws or dealing with compulsory acquisition of property.
16. **Ordinance-Making Power of Governor (Article 213):** Promulgated when State Legislature (or either House in bicameral state) is in recess; co-extensive with legislative power of State Legislature; ceases to operate **6 weeks from reassembly of Legislature** (max duration = 6 months + 6 weeks); requires President's instruction for bills needing presidential sanction.
17. **Pardoning Power of Governor (Article 161):** Can grant pardons, reprieves, respites, and remissions of punishment for offences against laws relating to matters within State executive power; **CANNOT pardon a death sentence** (only President can pardon death sentences under Art. 72; Governor can only suspend, remit, or commute a death sentence); **CANNOT pardon court-martial sentences**.
18. **State Council of Ministers (Articles 163 & 164):** Article 163 establishes a Council of Ministers with the Chief Minister at the head to aid and advise the Governor; **Article 164(2)** establishes **Collective Responsibility** of the Council of Ministers to the **State Legislative Assembly (Vidhan Sabha)**.
19. Size of State Council of Ministers: Added by **91st Amendment Act, 2003** under **Article 164(1A)**: total ministers including CM shall not exceed **15% of the total strength of the Legislative Assembly**, but **shall not be less than 12 ministers**.
20. Tribal Welfare Minister (**Article 164(1)**): Mandatory in the States of **Chhattisgarh, Jharkhand, Madhya Pradesh, and Odisha**; *Bihar was excluded from this requirement by the 94th Amendment Act, 2006.*
21. **Chief Minister (Article 167):** Appointed by the Governor; real executive of State; acts as chief advisor to Governor, leader of the House, and leader of majority party; communicates all administrative and legislative decisions to Governor.
22. **Advocate General for the State (Article 165):** Highest law officer in the State; appointed by the Governor; must be qualified to be appointed a **Judge of a High Court** (citizen, held judicial office for 10 years or HC advocate for 10 years); holds office during the **pleasure of the Governor**; remuneration determined by Governor.
23. Rights of Advocate General (**Article 177**): Right to speak and take part in proceedings of both Houses of State Legislature and any committee of which he may be named, but **HAS NO RIGHT TO VOTE**; enjoys all privileges under Article 194.
24. **Bicameral State Legislatures (Article 168):** Currently only **6 States** have a bicameral legislature (Vidhan Sabha + Vidhan Parishad): **Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh** (Mnemonic: **KUMBAT** — Karnataka, UP, Maharashtra, Bihar, Andhra, Telangana).
25. **Creation or Abolition of Legislative Council (Article 169):** Parliament can abolish an existing Council or create a new one by a **Simple Majority**, IF the **State Legislative Assembly passes a resolution by a Special Majority** (majority of total membership + 2/3rd present and voting); *this is NOT an amendment under Article 368.*
26. **Composition of Legislative Assembly - Vidhan Sabha (Article 170):** Directly elected; maximum strength **500**, minimum strength **60**; exceptions with smaller assemblies: **Sikkim (32)**, **Goa (40)**, **Mizoram (40)**, **Puducherry (30)**; Uttar Pradesh has the highest strength with **403 seats**; term is 5 years.
27. **Composition of Legislative Council - Vidhan Parishad (Article 171):** Indirectly elected permanent body; maximum strength is **1/3rd of the total strength of Legislative Assembly**, but minimum strength **cannot be less than 40**; UP has the largest Council with **100 seats**; term of member is 6 years, 1/3rd retiring every 2 years.
28. Election Breakdown of Legislative Council (Art. 171(3)): (1) **1/3rd elected by Local Bodies** (Municipalities, District Boards); (2) **1/12th elected by Graduates** of 3 years' standing; (3) **1/12th elected by Teachers** (secondary level or higher, 3 yrs experience); (4) **1/3rd elected by MLAs** from non-members; (5) **1/6th nominated by Governor** from Literature, Science, Art, Cooperative Movement, and Social Service.
29. **Presiding Officers of State Legislature:** Speaker & Deputy Speaker in Vidhan Sabha (**Article 178**); Chairman & Deputy Chairman in Vidhan Parishad (**Article 182**); Chairman of Vidhan Parishad is elected by Council members from among themselves (unlike Rajya Sabha where VP is ex-officio).
30. Legislative Primacy of Vidhan Sabha: In State Legislatures, **there is NO provision for a Joint Sitting**; if Vidhan Parishad disagrees or delays an ordinary bill passed by Vidhan Sabha, the bill can be delayed for a maximum of **3 months in the first instance** and **1 month after repassage** (total delay = **4 months**), after which the bill is deemed passed in the form approved by Vidhan Sabha.
31. **Qualifications for MLA and MLC (Article 173):** Must be a citizen of India; not less than **25 years of age for Legislative Assembly (MLA)**, and not less than **30 years of age for Legislative Council (MLC)**; must take oath before Election Commission authorized person.

32. **Disqualifications of State Legislators (Articles 191 & 192):** Disqualification on constitutional grounds (office of profit, unsound mind, insolvency, citizenship loss) is decided by the **Governor according to the opinion of the Election Commission**, whose opinion is binding.
33. **Speaker of Legislative Assembly (Articles 178–181):** Elected by the Assembly; resigns to Deputy Speaker; does not vacate office on dissolution of the Assembly, continuing until immediately before the first meeting of the new Assembly; has a **casting vote** under Article 189 in case of equality of votes.
34. **Money Bills in State Legislature (Article 198 & 199):** Introduced only in the Legislative Assembly with prior recommendation of the Governor; Legislative Council has no power to reject or amend; must return within **14 days** with or without recommendations.
35. **Financial Powers of State Legislature:** Under **Article 202**, the Governor causes the Annual Financial Statement of the State to be laid before the House(s); Demands for Grants are voted exclusively by the **Legislative Assembly** (Legislative Council cannot vote).
36. **Consolidated Fund of the State (Article 266(1)):** All revenues received by the State Government, loans raised, and recoveries of loans form the Consolidated Fund of the State; salaries of Governor, HC Judges, Speaker, and SPSC members are **charged** upon this fund.
37. **High Court Judges' Remuneration Trap:** The **Salaries and Allowances of High Court Judges are CHARGED on the Consolidated Fund of the State** (Art. 202(3)(d)), BUT the **Pensions of High Court Judges are CHARGED on the Consolidated Fund of India** (Art. 112(3)(d)(iii)).
38. **State Legislative Privileges (Article 194):** Freedom of speech in the State Legislature; freedom from arrest in civil cases 40 days before and after session; power of the House to punish for contempt or breach of privilege; holds parity with parliamentary privileges under Art. 105.
39. **Sarkaria Commission on Governor (1988):** Recommended that a Governor should be an eminent person from outside the State, detached from local politics, not actively involved in politics in recent past, appointed in effective consultation with the Chief Minister, and guaranteed a **fixed 5-year tenure** with removal only in rare circumstances after explaining reasons.
40. **Punchhi Commission on Governor (2010):** Recommended amending Articles 155 and 156 to introduce an impeachment process for Governors by the State Legislature (similar to President's impeachment); recommended deletion of 'pleasure of the President' to prevent arbitrary dismissals.

📋 Must-score facts — Governor, CM, AG, legislature

Governor

Article	Lock
153	Office of Governor (same person for ≥2 States — 7th Amd)
155 / 156	Appointment by President / tenure–removal
157	Citizen; age **35**
163	Aid & advice except constitutional **discretion**
161	Pardon (no court-martial / death like President's 72)
213	Ordinance

Discretion / majority

Item	Lock
Hung House / floor test	*Bommai* — majority on **House floor**
Classic discretion	Choose CM; dismiss lost CoM; reserve Bill; dissolve

State legislature / AG

Item	Lock
Advocate General	Art. **165**; HC-judge qualification
Bicameral States	Include UP (Council exists)
Money Bill in State	Similar Speaker role; Council limited time

Current Affairs

Live facts for match / how-many / hung-house questions.

- **Ongoing:** Six bicameral States: AP, Bihar, Karnataka, MH, Telangana, UP (match / how-many).
- **2019:** J&K Legislative Council **abolished** with the State (Art. 169 / reorganisation trap). J&K UT with legislature + Ladakh (लद्दाख) UT without; both under **Lieutenant Governors** appointed by the President.
- **First LGs:** J&K UT — **Girish Chandra Murmu**; Ladakh — **Radha Krishna (कृष्णा) Mathur** (31 Oct 2019).
- **Convention:** *Bommai* floor-test still the fact in every hung-house controversy (discretion vs majority).
- **First woman Governor: Sarojini Naidu** (UP / United Provinces, 15 Aug 1947 – 2 Mar 1949); National Women's Day **13 February** (her birth date).
- **Rajasthan:** Rajpramukh abolished on States Reorganisation Commission recommendation via **7th Amendment** (from 1 Nov 1956); first Governor **Gurumukh Nihal Singh** appointed **25 Oct 1956** (not 1 Nov).

Confused Pairs

A	B	Correct	Hindi
Art. 155 appointment	Art. 156 pleasure / removal	155 ≠ removal	नियुक्ति / पदच्युति
Art. 154 vesting	Art. 162 extent	Power vested vs **extent** of power	154 / 162
Art. 72 death pardon	Art. 161 Governor pardon	Only President for death / court-martial	क्षमा
LC abolished	LC dissolved	Can be **abolished** (169); **never dissolved**	विधान परिषद
CoM min 12	"Min 10" trap	Floor is **12** including CM (91st)	मंत्रिपरिषद
CoM to LA only	"Both Houses" claim	Collective responsibility to **Assembly only**	सामूहिक उत्तरदायित्व
Art. 200 re-passage	Art. 201 reserved Bill	Governor bound after re-passage path vs President **still free**	200 / 201
SPSC appointment	SPSC removal	Governor appoints vs **President** removes	राज्य लोक सेवा आयोग

A	B	Correct	Hindi
State joint sitting	Art. 197	**No** joint sitting; Assembly prevails	संयुक्त बैठक नहीं
LC-origin Bill	Assembly rejection	Bill **dies** if Assembly rejects	परिषद विधेयक
NCT-style LG	State Governor	Different Centre tether; State Governor = 153–162 scheme	उपराज्यपाल / राज्यपाल
Tribal welfare minister	All States optional	**Compulsory** in CG, JH, MP, Odisha	जनजातीय कल्याण
LC Chairman	Governor as automatic Chair	Council elects its **own** Chairman from members	परिषद सभापति
One Governor, one State	7th Amd proviso	Same person **may** govern two or more States	एक व्यक्ति दो राज्य

Discretionary powers — absolute vs situational (Art. 163)

Kind	Meaning	Typical cases
Constitutional / absolute discretion	The Constitution **itself** requires the Governor to act on his own	Reserving a Bill for the President (**200**); recommending **President's Rule (356)**; seeking information from the CM (**167**); special responsibility in **Art. 371** States (e.g. Nagaland, Arunachal, Maharashtra/Gujarat development boards, etc.)
Situational discretion	The Constitution is silent; political reality forces a choice	**Hung Assembly** — whom to invite as CM; dismissing a CoM that has **lost the House** but will not resign; dissolving the LA when the CM has lost majority / advises dissolution (विघटन) after losing a floor test

Reservation of Bills — Arts. 200 & 201

Option	Ordinary Bill	Money Bill
Assent	Yes	Yes
Withhold assent	Yes	Yes
Return for reconsideration ("as soon as possible" — **no fixed time limit** in the Constitution)	Yes	**No**
If House(s) **re-pass** a returned Bill	Governor **shall assent** (or may still **reserve** for the President)	—
Reserve for the President	Yes	**Yes** (can reserve a Money Bill too)

Chief Minister & Council of Ministers (Arts. 163–164, 167)

CM	Governor
Real executive; majority in **LA**	Nominal executive; **appointee** of the President
Can be from LA or LC	Cannot be an MP/MLA
Resigns to the **Governor**	Resigns to the **President**

Governor vs President (quick contrast)

Point	President	Governor
Election	Indirect (Electoral College)	**Nominated** by the President
Removal	Impeachment (Art. 61)	**Pleasure** of the President (no impeachment)
Dual charge	One President	**Can** be Governor of two+ States
Pardon death / court-martial	**Yes** (72)	**No** (161)
Ordinance	Art. 123 (Parliament not in session)	Art. 213 (legislature not in session); **President's instructions** in some cases
Discretion	Narrow (hung LS, pocket veto, one reconsideration of advice)	**Wider** — Art. 163 + reservation under Art. 200 + Art. 356 report + hung LA
Reserved Bill re-passed	—	Governor **must** then assent under Art. 200 path; **President need not** under Art. 201
Pocket / indefinite hold	Art. **111** has **no** fixed time limit (pocket veto)	Art. **200** uses "as soon as possible" for return — different clock from ordinance six weeks

Common Traps

Wrong stem → fact. (Same facts as above; this is the trap list.)

- Art. 155 = removal of Governor → **Appointment**; removal = **156 pleasure**.
- One person cannot be Governor of two States → **Can** — 7th Amd proviso to **153**.
- Art. 162 = executive power of State → that's **154**; **162 = extent**.
- Governor always on CoM advice → **except discretion** (163).
- Governor can pardon a death sentence → **No** — only the President.
- LC can be dissolved → **Never**; it can be **abolished** (169).
- LC minimum 50 / 1/4 of LA → **min 40; max 1/3 of LA**.
- CoM min 10 in a State → **12** including CM (91st).
- CoM responsible to both Houses → **LA only**.
- President must assent if a reserved Bill is re-passed → **No** — unlike the Governor under 200.
- AG removed like an HC judge → **pleasure of the Governor**.
- RS-style Chairman of LC is the Governor → LC elects its **own** Chairman from among members.
- State legislature has a joint sitting → **No** — Art. **197**, LA prevails.
- Bill starting in LC and rejected by LA is saved by 197 → **dies**.
- SPSC members removed by the Governor → **appointed** by Governor, **removed by the President**.
- Art. 192 disqualification decided by the Speaker → **Governor + binding EC** (defection excepted).
- Governor's ordinance needs no one's instructions → **President's instructions** in three listed cases.
- CM must be from the Assembly → can be from the **Council**; or a non-member for **6 months**.

- Tribal welfare minister optional in all States → **compulsory** in CG, JH, MP, Odisha.

Topic 9 — Judiciary

Consolidated — 41 Must-Score Facts

1. India possesses a **single integrated judicial system** adopted from the **Government of India Act, 1935**; the Supreme Court stands at the apex, exercising superintendence over State High Courts and subordinate courts, enforcing both Union and State laws.
2. The **Supreme Court of India** was inaugurated on **28 January 1950**; it succeeded both the **Federal Court of India** (established under GOI Act 1935 in 1937) and the **Judicial Committee of the Privy Council** (the highest appellate body during colonial rule); the first Chief Justice of India was **H.J. Kania**.
3. **Seat of the Supreme Court (Article 130):** The Supreme Court normally sits in **Delhi**; however, the Chief Justice of India is authorized to appoint other place(s) as the seat of the Supreme Court, but only **with the prior approval of the President**.
4. **Strength of Supreme Court (Article 124(1)):** Originally fixed at **8 judges (1 CJI + 7 other judges)**; Parliament has increased it periodically by law: to 11 (1956), 14 (1960), 18 (1977), 26 (1986), 31 (2009), and currently **34 judges (1 CJI + 33 other judges)** under the Supreme Court (Number of Judges) Amendment Act, 2019.
5. **Appointment of Supreme Court Judges (Article 124(2)):** Appointed by the **President**; in appointing the CJI, the outgoing CJI is consulted; in appointing other judges, consultation with the CJI is mandatory.
6. **The Collegium System:** Not mentioned in the Constitution; evolved through three landmark judgments: (1) ***First Judges Case (S.P. Gupta 1981)***: Executive primacy; consultation did not mean concurrence; (2) ***Second Judges Case (1993)***: CJI primacy; consultation meant **concurrence**; Collegium created consisting of **CJI + 2 seniormost SC judges**; (3) ***Third Judges Case (Presidential Reference 1998)***: Expanded Collegium to **CJI + 4 seniormost SC judges**; recommendation requires consensus of at least 4 out of 5.
7. **NJAC Struck Down:** The **99th Constitutional Amendment Act, 2014** and the National Judicial Appointments Commission (NJAC) Act, 2014 sought to replace the Collegium; struck down in October 2015 in the ***Fourth Judges Case (Advocates-on-Record Association 2015)*** as unconstitutional and violative of the **Independence of Judiciary (Basic Structure)**.
8. Qualifications for Supreme Court Judge (Art. 124(3)): Must be a citizen of India; AND either: (a) Judge of a High Court for at least **5 years**; OR (b) Advocate of a High Court for at least **10 years**; OR (c) In the opinion of the President, a **distinguished jurist**. *No minimum age is prescribed in the Constitution.*
9. **Tenure and Resignation (Article 124(2)):** Holds office until attaining the age of **65 years**; resigns by writing under his hand addressed to the **President**; age question is determined by such authority as Parliament provides by law.
10. **Removal of SC Judge (Article 124(4) & Judges Inquiry Act, 1968):** Removed by order of the President after an address by Parliament presented in the same session; grounds are limited to **'Proved Misbehaviour'** or **'Incapacity'**.
11. Removal Procedure: Motion must be signed by **100 Lok Sabha members or 50 Rajya Sabha members**; investigated by a 3-member statutory committee (SC judge + HC Chief Justice + distinguished jurist); if found guilty, motion must be passed in each House by a **Special Majority** (majority of total membership + not less than 2/3rd members present and voting). No SC judge has ever been successfully removed (Justice V. Ramaswami in 1993 and Justice Dipak Misra faced motions that failed).
12. **Salaries and Allowances (Article 125):** Determined by Parliament; CJI salary is ₹2.8 lakh/month, other SC judges ₹2.5 lakh/month; **charged upon the Consolidated Fund of India** (non-votable); cannot be varied to their disadvantage during their tenure, except during a **Financial Emergency (Article 360)**.
13. Ban on Practice (Art. 124(7)): A retired Supreme Court judge is **completely debarred from pleading or acting in any court or before any authority within the territory of India**.
14. **Acting Chief Justice (Article 126):** Appointed by the President when the office of CJI is vacant, or CJI is temporarily absent or unable to perform his duties.
15. **Ad Hoc Judges (Article 127):** If there is a lack of quorum of permanent judges to hold or continue any SC session, the **Chief Justice of India can appoint a High Court Judge as an ad hoc judge of the Supreme Court** for a temporary period, with the **previous consent of the President** and after consultation with the Chief Justice of the concerned High Court.
16. Retired Judges in SC (**Article 128**): The CJI may, with the previous consent of the President, request a retired SC or HC judge to sit and act as a judge of the Supreme Court.
17. **Court of Record (Article 129):** The Supreme Court is a Court of Record having all powers of such court including the **power to punish for contempt of itself**; its records and judgments have evidentiary value and cannot be questioned when produced before any court.
18. **Original Jurisdiction (Article 131):** Exclusive jurisdiction to resolve federal disputes between: (a) Government of India and one or more States; (b) GOI and State(s) on one side and other State(s) on the other; (c) Two or more States. Dispute must involve a **legal right** (not political). *Pre-constitutional treaties, inter-state water disputes (Art. 262), and Finance Commission matters are excluded from Art. 131.*
19. **Writ Jurisdiction (Article 32):** Guarantees right to move SC for enforcement of Fundamental Rights; SC issues Habeas Corpus, Mandamus, Prohibition, Quo-Warranto, Certiorari; unlike Article 226, SC writ jurisdiction is **confined strictly to Fundamental Rights**.
20. **Appellate Jurisdiction (Articles 132–136):** (1) Constitutional matters (Art. 132 - HC certificate under Art. 134A); (2) Civil matters (Art. 133 - substantial question of law of general importance); (3) Criminal matters (Art. 134 - death sentence awarded/enhanced); (4) **Special Leave Petition - SLP (Article 136)**: plenary discretionary power of SC to grant special leave to appeal against any judgment/order from any court/tribunal in India (*except military tribunals/courts-martial*).
21. **Review Jurisdiction (Article 137):** Supreme Court has the power to review any judgment pronounced or order made by it; ensures errors can be corrected (e.g., Curative Petitions originated from ***Rupa Ashok Hurra v. Ashok Hurra 2002***).
22. **Complete Justice (Article 142):** Empowers the Supreme Court to pass such decree or make such order as is necessary for doing **complete justice in any cause or matter pending before it**; enforceable throughout India (used in Babri Masjid case, Union Carbide Bhopal gas leak).
23. **Advisory Jurisdiction (Article 143):** President may refer to SC for opinion: (1) Any question of law or fact of public importance (SC **may refuse** to give opinion, e.g., Babri Masjid reference 1993); (2) Any dispute arising out of pre-constitutional treaty/agreement (SC **must give** opinion). The advisory opinion is **non-binding** on the President.
24. **Binding Law (Article 141):** The law declared by the Supreme Court is **binding on all courts** within the territory of India.
25. **High Courts in India (Part VI, Articles 214–232):** Article 214 mandates a High Court for each State; however, **Article 231** empowers Parliament by law to establish a **Common High Court for two or more States, or for two or more States and a UT** (e.g., Punjab & Haryana HC; Guwahati HC; Bombay HC). Currently there are **25 High Courts** in India (25th is Andhra Pradesh HC at Amaravati, established 1 January 2019).
26. High Courts with Multiple States/UTs: (1) **Bombay HC**: Maharashtra, Goa, Dadra & Nagar Haveli and Daman & Diu (benches at Nagpur, Aurangabad, Panaji); (2) **Guwahati HC**: Assam, Nagaland, Mizoram, Arunachal Pradesh; (3) **Punjab and Haryana HC**: Punjab, Haryana, Chandigarh; (4) **Calcutta HC**: West Bengal, Andaman & Nicobar Islands (bench at Port Blair); (5) **Madras HC**: Tamil Nadu, Puducherry; (6) **Kerala HC**: Kerala, Lakshadweep; (7) **Jammu & Kashmir and Ladakh HC**: J&K, Ladakh.
27. Only Two UTs have their own separate High Courts: **NCT of Delhi (since 1966)** and **Jammu & Kashmir**; other UTs fall under neighboring State High Courts.
28. **Appointment of High Court Judges (Article 217):** Appointed by the **President**; in appointing CJ of HC, President consults CJI and the Governor of the State; in appointing other HC judges, CJ of that HC is also consulted; under Collegium rules, CJI consults 2 seniormost SC judges.
29. Qualifications for High Court Judge (Art. 217(2)): Citizen of India; AND either: (a) Held a **judicial office in India for at least 10 years**; OR (b) **Advocate of a High Court for at least 10 years**. *A distinguished jurist CANNOT be appointed as an HC judge (this provision exists only for the Supreme Court!).*
30. **Tenure and Retirement Age:** A High Court judge holds office until attaining the age of **62 years** (raised from 60 to 62 by the **15th Amendment Act, 1963**; proposal to raise to 65 is pending); resigns by writing to the **President** (NOT to Governor).
31. Removal of High Court Judge: Removed by the **President** on the same grounds (**Proved Misbehaviour or Incapacity**) and through the **exact same parliamentary procedure (Special Majority under Art. 124(4))** as a Supreme Court judge.

32. **Oath of High Court Judge (Article 219):** Administered by the **Governor of the State** (or person appointed by him); *remuneration is charged on State Consolidated Fund, but pension is charged on Consolidated Fund of India*.
33. Transfer of High Court Judges (**Article 222**): The **President** may, after consultation with the Chief Justice of India, transfer a judge from one High Court to any other High Court; requires recommendation of CJI + 4 seniormost SC judges + CJs of both High Courts.
34. **Writ Jurisdiction of High Court (Article 226):** Can issue writs for enforcement of **Fundamental Rights AND for any other legal purpose**; thus, HC writ jurisdiction is **broader in scope than SC's under Article 32**; however, Article 226 is a discretionary remedy, whereas Article 32 is itself a Fundamental Right.
35. Territorial Reach of Article 226: Added by **15th Amendment, 1963** under Art. 226(2): High Court can issue writs to any government or authority outside its territorial jurisdiction if the **cause of action arises, wholly or in part, within its territorial limits**.
36. **Supervisory Jurisdiction of High Court (Article 227):** High Court has superintendence over **all courts and tribunals throughout its territorial jurisdiction** (both administrative and judicial superintendence; *military courts and tribunals are excluded*); broader than appellate power.
37. High Court as a Court of Record (**Article 215**): Power to punish for contempt of itself and subordinate courts.
38. **Subordinate Courts (Part VI, Articles 233–237): Article 233**: District Judges are appointed, posted, and promoted by the **Governor of the State in consultation with the High Court**; qualification: advocate for ≥ 7 years or in judicial service; **Article 235**: Control over subordinate courts is vested in the **High Court**.
39. Hierarchy of Subordinate Judiciary: On Civil side: District Judge Court → Sub-Judge Court → Munsiff Court; On Criminal side: Sessions Judge Court → Chief Judicial Magistrate (CJM) Court → Judicial Magistrate Court. When the highest district judicial officer hears civil cases, he is termed **District Judge**; when hearing criminal cases, he is termed **Sessions Judge** (can award **capital punishment/death sentence**, which requires **mandatory confirmation by High Court** under Section 366 CrPC / Section 407 BNSS before execution).
40. **National Legal Services Authority (NALSA):** Constituted under the **Legal Services Authorities Act, 1987** to give effect to **Article 39A** (free legal aid); CJI is Patron-in-Chief; organizes **Lok Adalats** (statutory forum for amicable settlement; award is deemed a decree of a civil court and is **final and binding with no appeal**).
41. **Gram Nyayalayas Act, 2008:** Established Gram Nyayalayas at intermediate panchayat level for speedy and inexpensive justice; presided over by **Nyayadhikari** (equal to Judicial Magistrate First Class); guided by principles of natural justice.

📋 Must-score facts — SC, HC, collegium, writs

Supreme Court

Item	Lock
Inaugurated	**28 Jan 1950**; first CJI **H.J. Kania**
Art. 124 / 130	Establishment / seat **Delhi**
Court of record / binding law	**129** / **141**
Resignation / oath	To / before **President**
Removal	100 LS or 50 RS members → inquiry → special majority both Houses

Collegium / NJAC

Item	Lock
Collegium	Judge-made (not in text)
First Judges (1981)	Executive primacy
NJAC	**99th** Amd — struck down (*Fourth Judges*)

High Court / writs

Item	Lock
HC for each State	Art. **214**; age **62** (Art. 217)
226 vs 227	Writs (wider than 32) / superintendence
Common HC	Art. **231**
Integrated + independent	One hierarchy; security of tenure / salaries

Current Affairs

- **2019:** SC strength **34** (CJI + 33).
- **2019:** AP & Telangana High Courts **split** (1 Jan) — number of HCs = **25**.
- **2015:** NJAC struck down 4:1; Collegium restored.
- **2013:** Manipur, Meghalaya (मेघालय), Tripura HCs — newest trio before 2019 split.
- **2023:Fathima Beevi (फातिमा)** died; Mediation Act.
- **2025:** PIL A/R on rule of law + access to justice.

Confused Pairs

A	B	Correct	Hindi
Integrated judiciary	Independent judiciary	One hierarchy apexed in the SC vs separation from executive/legislature	एकीकृत / स्वतंत्र
Art. 124	Art. 214	Supreme Court established vs High Court for each State	अनु. 124 / 214
SC age 65	HC age 62	Retirement ages must not be swapped	65 / 62
Distinguished jurist	HC qualification	Jurist route for **SC only**; HC needs 10y office or advocacy	विशिष्ट विधिवेत्ता
First Judges Case	Second Judges Case	Executive primacy (1981) vs Collegium born (1993)	प्रथम / द्वितीय न्यायाधीश
CJI+4 Collegium	CJI+2 Collegium	SC appointments vs HC appointments (Third Judges)	सीजेआई+4 / +2
Art. 131	Art. 71	Federal original disputes vs President/VP election disputes	अनु. 131 / 71
Art. 131	Art. 262	Federal disputes vs river water (Parliament may bar courts)	अनु. 131 / 262

A	B	Correct	Hindi
Art. 32	Art. 226	SC writs for FR only vs HC writs for FR + any legal right	अनु. 32 / 226
Art. 136	Armed-forces courts	SLP is widest but **not** against court-martial type forums	अनु. 136
Art. 137	Curative petition	Review first vs *Rupa Hurra* after review fails	पुनर्विचार / क्यूरेटिव
Art. 143(1)	Art. 143(2)	Court **may** decline vs **shall** report (pre-Const treaties)	परामर्शी
Art. 233	Art. 235	DJ appointment (Governor + HC) vs **control** with HC	अनु. 233 / 235
Part XIVA	Part XI	Tribunals (323A–323B) vs Centre–State relations	भाग XIVA / XI
Art. 323A	Art. 323B	Parliament only (admin) vs Parliament **or** State (other)	323A / 323B
Sampath Kumar	*L. Chandra Kumar*	Tribunal as substitute vs tribunal as **supplement**; 226/227 survive	सम्पथ / एल चंद्र
Lok Adalat	Permanent Lok Adalat	Compromise only vs public-utility merits + pre-litigation	लोक अदालत / PLA
Fathima Beevi	Leila Seth	First woman **SC** judge vs first woman **HC Chief Justice**	फातिमा / लीला सेठ
Art. 127 ad hoc	Art. 128 retired	Sitting HC judge vs retired judge sitting	तदर्थ / सेवानिवृत्त
Chartered HCs 1862	Allahabad 1866	Calcutta–Bombay–Madras vs Allahabad (not Chartered 1862)	चार्टर्ड / इलाहाबाद

High Courts — organisation

Establishment years (match-list)

- **Calcutta / Bombay / Madras:1862** — Kolkata / Mumbai / Chennai.
- **Allahabad:1866** — Prayagraj (प्रयागराज).
- **Karnataka (Mysore (मैसूर)):** 1884 — Bengaluru.
- **Patna (पटना):** 1916 — Patna.
- **J&K:** 1928 — Srinagar / Jammu.
- **Rajasthan:** 1949 — Jodhpur (Jaipur bench).
- **Gujarat:** 1960 — Ahmedabad (अहमदाबाद).
- **Delhi:1966** — New Delhi (UT HC).
- **HP:** 1971 — Shimla.
- **Sikkim:** 1975 — Gangtok.
- **Chhattisgarh / Uttarakhand (उत्तराखंड) / Jharkhand:2000** — Bilaspur / Nainital (नैनीताल) / Ranchi.
- **Manipur / Meghalaya / Tripura:2013** — Imphal / Shillong / Agartala.
- **Andhra Pradesh & Telangana (split):2019** — Amaravati (अमरावती) / Hyderabad (हैदराबाद).

Jurisdiction of a High Court

SC writ vs HC writ

	Art. 32 (SC)	Art. 226 (HC)
Nature	**Fundamental Right**	Constitutional right (**not** a FR)
Scope	**FR only**	FR + **any other legal right**
Territorial	All-India	Territory / **cause of action** (15th)
Against	State (Art. 12)	State; some writs (habeas, quo warranto) can reach private persons
Refusal	SC ordinarily **cannot** refuse if an FR is breached	HC **may** refuse (discretion)
Suspend	Only **359**	Not a FR — but 226 itself was **narrowed by 42nd, restored by 44th**

SC vs HC (one table)

Point	SC	HC
Establishment	**124**	**214**
Age	**65**	**62** (15th Amd: 60→62)
Distinguished jurist	**Yes**	**No**
Judicial office / advocate	5y HC judge / 10y HC advocate	**10y** judicial office / **10y** HC advocate
Oath	**President**	**Governor**
Resignation to	**President**	**President**
Removal	124(4)	**Same** (218)
Court of record	129	215
Writ	32 (FR only)	**226** (wider)
Complete justice	**142**	**No**
After retirement, practice	**No court in India** (124(7))	Not that HC / below; **may** SC & other HCs (220)
Salary charged on	**CFI**	**State CFI** (pension on **CFI**)
Staff appointed by	**CJI** (146)	**HC CJ** (229)
Superintendence	Apex via appeal / 136	**227** over all courts/tribunals in the State
Transfer	Not under 222	**222**

Indian SC vs US Supreme Court (syllabus trap)

	India	USA
System	**Integrated**	**Dual** (federal + state)
Appointment	President + **Collegium**	President + **Senate confirmation**
Tenure	Until **65**	**Life** (during good behaviour)
Original jurisdiction	131 (federal) + 32 + 71	Narrow federal original (ambassadors, states)
Advisory opinion	**Yes (143)**	**No** (case-or-controversy)
Judicial review	Explicit 13/32/131/226 + basic structure	*Marbury v. Madison* (implied)
Number of judges	Parliament by law (**34**)	Congress; currently **9**

Judicial Review

India	USA	UK
Explicit (13, 32, 226…)	*Marbury v. Madison* (implied)	**Parliamentary supremacy** — no JR of primary Acts
JR = **basic structure**	No "basic structure" label	—

Tribunals — Part XIVA (Arts. 323A–323B)

Track	Question	Cases / law
A. Can the HC be skipped?	Does the tribunal **replace** the HC in the hierarchy, or only sit **below** it?	*Sampath Kumar* → *L. Chandra Kumar*
B. Who sits on the tribunal?	Must members be judges, and must **judicial members** form the majority?	*Madras Bar Association* I / II / III
C. How are members appointed?	Can Parliament fix a **4-year term**, control search committees, etc.?	**Tribunals Reforms Act, 2021** — partly struck in MBA-III

Other tribunals (year / parent Act — match)

- **ITAT (Income Tax):1941** — oldest; 323B tax.
- **CAT:** Administrative Tribunals Act **1985** (323A).
- **NGT:National Green Tribunal Act, 2010**. Principal Bench **Delhi**; others Pune (पुणे), Bhopal, Chennai, Kolkata. Chairperson = SC/HC judge.
- **AFT:Armed Forces Tribunal Act, 2007** — the reason CAT **excludes** armed forces. Appeal to SC.
- **NCLT / NCLAT:** Companies Act; NCLT from **2016**. Company law + IBC.
- **DRT / DRAT:** Recovery of Debts (banks/FIs), **1993**.
- **SAT (SEBI):** Securities Appellate Tribunal — capital markets (do **not** mix with State Administrative Tribunal).
- **NCDRC:** consumer — National Commission (not a 323A body).

Legal aid, Lok Adalat, Gram Nyayalaya, Fast Track Courts

Lok Adalat vs Permanent Lok Adalat

	Lok Adalat	Permanent Lok Adalat (2002, Ch. VIA)
First (independent India)	**Gujarat, 1982** (statutory only from 1987)	Statutory from the **2002** amendment
Cases	**Pending** in a court **and** pre-litigation	**Pre-litigation only**
Subject	Civil + **compoundable** criminal	**Public utility services** only: transport, posts, telegraph, power/water, sanitation, hospitals, insurance, education…
Pecuniary cap	**None**	**₹1 crore**
If no settlement	Returned to the court — **cannot** impose a decision	**May decide on merits**
Award	**= civil-court decree. Final. No appeal.** (226 still open)	Same
Bench	Sitting/retired judicial officer + 2 others	Chairperson (**qualified to be a DJ**) + 2 persons with public-utility experience
Court fee	**Refunded** on settlement	Pre-litigation — no court fee in the same sense

Types of Lok Adalat (names): National · State · District · Taluk · Permanent · Mega / National Lok Adalat days · Mobile.

> **Logic:** Regular Lok Adalat = **compromise only**. PLA = the one forum that can **adjudicate**. Do not mix **SAT (SEBI)** with **SAT (State Administrative Tribunal)** or with Lok Adalat.

Common Traps

- **SC established by 214 / 226:124**.
- **Resigns to the CJI:President** (SC **and** HC).
- **Same retirement age:65 vs 62**.
- **Distinguished jurist for HC:SC only**.
- **Collegium in the Constitution:judge-made**; NJAC **was** in the text and fell.
- **First Judges created Collegium:Second (1993)**; First = executive primacy.
- **Third Judges Collegium is always CJI+4:CJI+4 for SC; CJI+2 for HC**.
- **NJAC = CJI + Law Minister only:six**: CJI + 2 SC + Law Min + 2 eminent; **any 2 veto**.
- **Art. 131 covers FRs / private parties / river water:** FR → **32**; private → **no**; water → **262** can **bar** (and **did**).
- **President/VP election is 131:Art. 71**, not 131.
- **MP/MLA election petition in SC:High Court** (RPA / 329).
- **SLP against armed-forces courts:No**.

- **143 is binding / 143 can always be declined:advisory**; **143(2) shall** report.
- **SC exclusive on Central laws:43rd** repealed **131A**.
- **226 narrower than 32:wider**.
- **227 includes armed-forces tribunals:excepted**.
- **HC judge resigns to Governor:President** (oath is before Governor).
- **Common HC needs 368:ordinary law, 231**.
- **Allahabad is a 1862 Chartered HC:1866**; Chartered three = Calcutta, Bombay, Madras.
- **Lucknow is a separate HC:bench** of Allahabad (1948 Oudh merger).
- **Additional HC judge sits till 65:≤ 2 years** and must go at **62**.
- **Ad hoc SC judge = retired judge:** ad hoc **127** = **sitting HC**; retired = **128**.
- **HC salary charged on CFI:** salary on **State CFI**; **pension** on **CFI**.
- **Art. 142 available to HCs:SC only**.
- **US SC gives advisory opinions:No**; India **yes (143)**.
- **Tribunals = Part XI:Part XIVA** (42nd). XI = Union–State relations.
- **323A and 323B both only Parliament:323A Parliament only; 323B Parliament or State**.
- **CAT ousts the High Court:** *L. Chandra Kumar* — **226/227 survive** (basic structure).
- **CAT covers armed forces:No** (Armed Forces Tribunal is separate).
- **PIL is in the Constitution:judge-made** (32/226).
- **PIL CJI = Hidayatullah / Chandrachud (UPPCS options):** key fact **Bhagwati**.
- **Fathima Beevi Governor of Kerala:Tamil Nadu** 1997–2001.
- **First woman HC CJ = Fathima Beevi:** Fathima = first woman **SC** judge. First woman HC CJ = **Leila Seth**.
- **Review = curative:** review **137**; curative = *Rupa Hurra* **after** review fails.
- **DJ appointed by High Court:Governor in consultation with HC (233)**. **Control** = HC (**235**).
- **233(2) 7 years applies to promotees:** only to a person **not already** in Union/State service.
- **Lok Adalat award is appealable:no appeal**; = civil-court **decree**.
- **Regular Lok Adalat can decide merits:compromise only**. Merits → **Permanent** Lok Adalat (public utility).
- **Gram Nyayalaya = Gram Panchayat court:** separate **court** under 2008 Act; Nyayadhikari = JM-I / Civil Judge Jr.
- **Contempt power is only statutory:129/215 inherent**; 1971 Act only **regulates**.
- **Truth is no defence in contempt:2006 Amd** — truth + public interest + bona fide.
- **Criminal contempt needs AG consent always:suo motu does not.** Private motion **does** (s.15).
- **Subordinate court tries its own contempt:** it **refers** to the **HC**.
- **AIJS already exists:312** enables it (**42nd**); **not created**; cannot go **below DJ**.
- **AIJS needs a 368 amendment:** creating law may amend Ch. VI Part VI and is **not** 368.
- **Family Court = Gram Nyayalaya:** Family Courts Act **1984** (district; DJ-rank). Gram Nyayalaya **2008** (block; JM-I rank).
- **SAT always = State Administrative Tribunal:** also **Securities Appellate Tribunal** (SEBI) — read the question.
- **PLA = regular Lok Adalat:** PLA: **pre-litigation + public utility + can decide merits + ₹1 cr cap**.
- **Gram Nyayalaya bound by Evidence Act:not bound**; natural justice.
- **NGT is 323A:NGT Act 2010**; environment — 323B-type, not CAT.
- **AFT matters go to CAT:armed forces excluded** from CAT; **AFT 2007**.
- ***Sampath Kumar* is the last word on tribunals:** overruled in substance by ***L. Chandra Kumar* (1997)**.
- **First woman SC judge from the Bar = Fathima Beevi:** Fathima was from **Kerala HC**. First from the **Bar** = **Indu Malhotra (2018)**.
- **FTC is ADR:No** — it is a regular sessions court on a fast track.
- **Free legal aid is only for BPL:** also women, SC/ST, workmen, custody, disaster victims… (1987 Act).

Topic 10 — Local Government

Consolidated — 40 Must-Score Facts

1. Local Self-Government is a subject listed under **Entry 5 of the State List (List II)** in the Seventh Schedule; **Lord Ripon's Resolution of 1882** is hailed as the **'Magna Carta of Local Self-Government in India'**, earning him the title 'Father of Local Self-Government in India'.
2. **Article 40** (Gandhian Directive Principle in Part IV) directs the State to 'organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government'.
3. **Community Development Programme (CDP):** Launched on **2 October 1952** with US Ford Foundation assistance; its failure due to bureaucratic inertia led to the appointment of the Balwant Rai Mehta Committee.
4. **Balwant Rai Mehta Committee (January 1957):** Submitted report in November 1957; recommended the establishment of a **3-tier Panchayati Raj system**: (1) **Gram Panchayat** at village level (directly elected); (2) **Panchayat Samiti** at block level (indirectly elected, key executive body); (3) **Zila Parishad** at district level (advisory/supervisory, chaired by District Collector); coined the concept of **'Democratic Decentralisation'**.
5. First Panchayati Raj System: Inaugurated by Prime Minister Jawaharlal Nehru on **2 October 1959 at Nagaur, Rajasthan**; **Andhra Pradesh** became the second State to adopt Panchayati Raj in 1959.
6. **Ashok Mehta Committee (December 1977):** Appointed by Janata Party government; submitted report in August 1978; recommended replacing 3-tier system with a **2-tier system**: **Zila Parishad** at district level (executive pivot) and **Mandal Panchayat** (cluster of villages with 15,000–20,000 population); recommended official participation of political parties and a Minister for Panchayati Raj.
7. **G.V.K. Rao Committee (1985):** Appointed by Planning Commission; observed that development administration was becoming bureaucratized, reducing PRIs to **'grass without roots'**; recommended District Development Commissioner (DDC) and making Zila Parishad the apex planning body.
8. **L.M. Singhvi Committee (1986):** Appointed by Rajiv Gandhi government; first committee to strongly recommend that Panchayati Raj institutions should be **constitutionally recognized, protected, and preserved**; recommended constitutional provisions for regular, free, and fair elections.
9. **P.K. Thungon Committee (1988):** Sub-committee of Parliamentary Consultative Committee; recommended constitutional status, fixed 5-year tenure, State Finance Commission, and district collector as chief executive of Zila Parishad.
10. **V.N. Gadgil Committee (1988):** Committee on Policy and Programmes; recommended 3-tier system, direct elections for members, fixed 5-year term, reservations for SC/ST/women, and State Election and Finance Commissions; became the blueprint for the 73rd Amendment Bill.
11. The **73rd Constitutional Amendment Act, 1992** received presidential assent on 20 April 1993 and came into force on **24 April 1993** (celebrated annually as **National Panchayati Raj Day**); inserted **Part IX (Articles 243 to 243-O)** and the **11th Schedule (29 functional subjects)**.
12. **Gram Sabha (Article 243A):** The foundational pillar of the Panchayati Raj system; a body consisting of all **persons registered in the electoral rolls** of a village within the Panchayat area (not all residents, only registered adult voters); exercises powers as determined by State Legislature.
13. **Three Tiers of Panchayati Raj (Article 243B):** Mandates a 3-tier structure in every State: (1) Village level (Gram Panchayat); (2) Intermediate level (Panchayat Samiti / Block); (3) District level (Zila Parishad); Exception: States having a **population not exceeding 20 lakh** have the option **NOT to constitute the intermediate tier**.
14. **Election of Members and Chairpersons (Article 243C):** All seats across all three tiers are filled by **Direct Election** from territorial constituencies; Chairpersons at intermediate and district levels are elected **indirectly** by and from amongst elected members; Chairperson at village level is elected in such manner as the State Legislature determines (direct or indirect; directly elected in UP).
15. **Reservation of Seats (Article 243D):** Mandatory reservations for **Scheduled Castes (SC)** and **Scheduled Tribes (ST)** in proportion to their population in the Panchayat area (both seats and offices of chairpersons, rotated among constituencies).
16. Women's Reservation Floor: **Not less than one-third (33.3%)** of the total number of seats and chairpersons at all levels **MUST be reserved for women** (including within SC/ST quota); several States (e.g., Bihar 2006, UP, MP, Rajasthan) have raised this to **50% reservation for women by State legislation** (the constitutional floor remains 1/3rd).
17. OBC Reservation Discretion: Article 243D(6) permits the **State Legislature** to provide reservations for Backward Classes (OBCs) in seats or chairperson offices at its own discretion (it is **optional**, not constitutionally mandatory).
18. Arunachal Pradesh Exemption: The **83rd Constitutional Amendment Act, 2000** amended Article 243D to provide that **no reservation for Scheduled Castes** is required in Arunachal Pradesh, as the State is wholly inhabited by tribal populations with zero SC population.
19. **Duration of Panchayats (Article 243E):** Fixed term of **5 years** from the date appointed for its first meeting; if dissolved prematurely, elections must be completed within **6 months**; a reconstituted Panchayat continues **ONLY for the remainder of the 5-year period** (unless the remaining period is < 6 months, in which case elections are held for a fresh 5-year term).
20. **Qualifications for Membership (Article 243F):** Minimum age for contesting Panchayat elections is **21 years** (unlike 25 for Lok Sabha/Assembly); all disqualification questions are referred to such authority as the State Legislature provides.
21. **State Finance Commission - SFC (Article 243-I):** The **Governor** of a State constitutes an SFC **every 5 years** to review the financial position of Panchayats and recommend principles for: (1) distribution of net tax proceeds between State and PRIs; (2) assignment of taxes to PRIs; (3) grants-in-aid from State Consolidated Fund; recommendations and Action Taken Report (ATR) laid before State Legislature.
22. Under **Article 280(3)(bb)** (inserted by 73rd Amd), the Central Finance Commission must recommend measures to augment the Consolidated Fund of a State to supplement the resources of Panchayats on the basis of the recommendations of the State Finance Commission.
23. **State Election Commission - SEC (Article 243K):** Superintendence, direction, and control of electoral rolls and conduct of all elections to Panchayats (and Municipalities under Art. 243ZA) are vested in the State Election Commissioner, **appointed by the Governor**.
24. Security of Tenure of SEC: The State Election Commissioner can be **removed from office ONLY in like manner and on like grounds as a Judge of a High Court**; his conditions of service cannot be varied to his disadvantage after appointment.
25. Bar to Interference by Courts (**Article 243-O**): Validity of any law relating to delimitation of constituencies or allotment of seats cannot be questioned in court; no election to any Panchayat can be called in question except by an **election petition** presented to such authority as provided by State law.
26. **Exempted Areas from Part IX (Article 243M):** Part IX does **NOT apply** to: (1) The States of **Nagaland, Meghalaya, and Mizoram**; (2) The Hill areas of Manipur (where District Councils exist); (3) Scheduled Areas under 5th Schedule and Tribal Areas under 6th Schedule; (4) Darjeeling Gorkha Hill Council area in West Bengal.
27. **PESA Act, 1996 (Panchayats Extension to Scheduled Areas Act):** Enacted on recommendation of the **Bhuria Committee (1995)** to extend Part IX provisions to **Fifth Schedule Areas** across 10 States; gives supreme authority to the **Gram Sabha** to approve plans, safeguard customary laws, manage minor water bodies, grant prospecting licenses for minor minerals, enforce prohibition, and ownership over **Minor Forest Produce (MFP)**.
28. **74th Constitutional Amendment Act, 1992:** Came into force on **1 June 1993**; inserted **Part IXA (Articles 243-P to 243-ZG)** and the **12th Schedule (18 functional subjects)** for Urban Local Bodies (ULBs).
29. Three Types of Municipalities (**Article 243Q**): (1) **Nagar Panchayat** (for a transitional area from rural to urban); (2) **Municipal Council** (for a smaller urban area); (3) **Municipal Corporation (Nagar Nigam)** (for a larger urban area); areas are determined and notified by the **Governor** based on population density, revenue, and non-agricultural employment.
30. Industrial Townships: The Governor may notify an urban area as an **Industrial Township** under the proviso to Article 243Q, in which case a municipality **need not be constituted** (services provided by the industry, e.g., Jamshedpur).

31. **Wards Committees (Article 243S):** Mandatory constitution of Wards Committees in all municipalities having a **population of 3 lakh or more**; composition and territorial area determined by State Legislature.
32. Reservations in Municipalities (**Article 243T**): Exactly parallels Article 243D: proportional reservation for SC/STs; **minimum 1/3rd seats and chairperson offices reserved for women**; discretionary OBC reservation by State law.
33. Duration and Age for Municipalities (**Articles 243U & 243V**): Fixed term of **5 years**; dissolution elections within **6 months**; minimum age to contest is **21 years**.
34. **District Planning Committee - DPC (Article 243ZD):** Mandatory in every State at the district level to consolidate plans prepared by Panchayats and Municipalities and draft a development plan for the district as a whole; **not less than 4/5ths (80%) of members** must be elected by and from amongst elected members of Zila Parishad and Municipalities in proportion to rural and urban population.
35. **Metropolitan Planning Committee - MPC (Article 243ZE):** Mandatory for every Metropolitan area (population of **10 lakh or more**); **not less than 2/3rds (66.7%) of members** must be elected by and from amongst elected members of Municipalities and chairpersons of Panchayats in the metropolitan area.
36. Urban Local Bodies Evolution: The first Municipal Corporation in India was established at **Madras in 1688** by Royal Charter; followed by **Bombay and Calcutta in 1726**.
37. Types of Urban Local Bodies in India: (1) Municipal Corporation (headed politically by **Mayor** and administratively by State-appointed **Municipal Commissioner**); (2) Municipality (Municipal Council / Board); (3) Notified Area Committee; (4) Town Area Committee; (5) Cantonment Board; (6) Township; (7) Port Trust; (8) Special Purpose Agency.
38. **Cantonment Boards:** Established under the **Cantonments Act, 2006** (earlier 1924 Act) for municipal administration of civilian populations in cantonment areas; administrative control rests with the **Union Ministry of Defence** (NOT Ministry of Housing & Urban Affairs); the **Station Commander** is the ex-officio President; Executive Officer is appointed by Central Government (IDES officer).
39. Compulsory Provisions under 73rd/74th Amendments (Binding on States): Organisation of Gram Sabha; 3-tier PRIs (intermediate optional for < 20 lakh); direct elections to all seats; indirect elections for chairperson at intermediate/district levels; 21 years voting/contesting age; mandatory SC/ST proportional quota; 1/3rd women quota; 5-year fixed term; State Election Commission; State Finance Commission.
40. Voluntary Provisions (Left to State Discretion): Voting rights to MPs/MLAs in PRIs/ULBs; OBC reservations; giving financial powers to levy taxes; devolution of powers on 29 subjects (11th Schedule) and 18 subjects (12th Schedule) to make local bodies institutions of self-government.

Current Affairs

- **24 April** is National Panchayati Raj Day, marking when the 73rd Amendment came into force (1993).
- On **2 October 1959**, the first 3-tier Panchayati Raj system was inaugurated at Nagaur, Rajasthan.
- In **2021**, the Supreme Court in *Rajendra N. Shah* limited Part IXB (सहकारिता) (97th Amendment on cooperatives) to multi-State cooperatives only.
- Many States, including UP, now give women **50%** reservation by State law, well above the constitutional floor of **1/3** under Art. 243D.
- The Union **Ministry of Panchayati Raj** was created in **2004**.
- The **15th Finance Commission** gives grants to all three PRI tiers, partly tied to water and sanitation outcomes.
- Urban schemes such as **AMRUT, SBM-Urban, PMAY-U,** and **Smart Cities** (under MoHUA) do not replace the 74th Amendment framework.
- The **Madras Municipal Corporation (1688)** remains the first municipal corporation in India, followed by Bombay and Calcutta (1726).

Confused Pairs

A	B	Correct Match / Focus	Hindi Terminology
Part IX	**Part IXA**	Panchayats (73rd) vs Municipalities (74th)	भाग IX / IXA
24 April 1993	**1 June 1993**	73rd in force (National PR Day) vs 74th in force	24 अप्रैल / 1 जून
Art. 40	**Urban local bodies**	Village panchayats DPSP only — **no** urban Art. 40	अनु. 40 (ग्राम पंचायत)
ECI	**SEC (243K / 243ZA)**	Parliament/State Houses vs PRI+ULB poll body	निर्वाचन आयोग / राज्य निर्वाचन आयोग
SEC Removal	**ECI Removal**	SEC removed like **HC judge** vs ECI removed like **SC judge**	उच्च न्यायालय जज समान निष्कासन
Gram Sabha	**All residents**	**Electoral-roll voters** of that GP vs every resident	ग्राम सभा (पंजीकृत मतदाता)
Ashok Mehta	**Balwant Rai Mehta**	**2-tier**, district first vs classic **3-tier**	अशोक मेहता (द्वि-स्तरीय) / बलवंत राय (त्रि-स्तरीय)
G.V.K. Rao	**Dantwala**	**District** planning vs **block** planning	जीवीके राव (ज़िला) / दांताला (ब्लॉक)
11th Schedule	**12th Schedule**	**29** rural subjects vs **18** urban subjects	11वीं (29 विषय) / 12वीं (18 विषय)
DPC 4/5	**MPC 2/3**	District plans (PRIs+ULBs) vs metro ≥10 lakh	जिला (4/5) / महानगर योजना समिति (2/3)
Age 21	**Age 25**	Local body member age is **21** vs MLA/MP age is 25	न्यूनतम आयु 21 वर्ष
Women 1/3	**Women 50%**	Constitutional **floor** vs optional **State law** (e.g. UP, Bihar)	महिला आरक्षण (न्यूनतम 1/3 vs 50%)
Mayor	**Municipal Commissioner**	Political/ceremonial head vs executive (IAS)	महापौर / नगर आयुक्त
NAC	**Nagar Panchayat**	Notified Area Committee (**all nominated**) vs elected transitional ULB (243Q)	अधिसूचित क्षेत्र समिति / नगर पंचायत
Cantonment Board	**74th municipality**	Defence / Station Commander vs constitutional ULB	छावनी बोर्ड / नगरपालिका
PESA 1996	**Sixth Schedule**	Extends 73rd to **Fifth Schedule** areas vs autonomous councils do not need it	पेसा (5वीं अनुसूची) / 6वीं अनुसूची
64th / 65th Bills	**73rd / 74th Acts**	Failed in RS vs passed & enacted local-government dual laws	64वां विधेयक (विफल) / 73वां अधिनियम
Kshetra Panchayat	**Panchayat Samiti**	UP intermediate name vs generic/other-State label	क्षेत्र पंचायत / पंचायत समिति
Part IXB co-ops	**State cooperatives**	97th insert; SC 2021 — IXB **inoperative for State co-ops**	भाग IXB (सहकारिता)

Arts. 243–243O (elaboration)

Job	Articles	One fact
Who they are	243, 243A, 243B	Definitions, Gram Sabha, three tiers
How they sit	243C, 243D	Direct seats; reservation
How long they sit	243E, 243F	5 years; age **21**
What they can do	243G, 243H, 243J	11th Schedule is a menu, not a gift
Money and polls	243I, 243K	SFC and SEC — both by the **Governor**
Where and courts	243L–243O	UTs, exclusions, 1-year window, bar like **329**

Three constitutional types (243Q)

Type	Also called	Where	Political head	Executive
Nagar Panchayat	Town panchayat	**Transitional** (rural → urban)	Chairperson / President	Executive Officer
Municipal Council	Municipality / **Nagar Palika Parishad** (UP)	**Smaller urban**	President / Chairperson	Executive Officer
Municipal Corporation	**Nagar Nigam** / Mahanagar Palika	**Larger urban**	**Mayor**	**Municipal Commissioner** (IAS)

Extra-constitutional / statutory urban bodies

Notified Area Committee vs Town Area Committee vs Nagar Panchayat

	Notified Area Committee	Town Area Committee	Nagar Panchayat
Source	State **notification**	Old **State Act**	**Art. 243Q** (74th)
Where	Fast-growing / special area **not yet** fit to be a municipality	Small town	Transitional rural→urban
Members	**All nominated**	Often **partly elected, partly nominated**	**All seats directly elected**
Chair	Nominated	As the old Act	Elected (State law)
After 74th	Many converted to Nagar Panchayat	Mostly **abolished** / converted	The constitutional replacement

Common Traps

- **PRIs are in Part VI / IV:Part IX**.
- **National PR Day = 2 October:24 April**. 2 Oct = Nagaur inauguration / Gandhi.
- **Gram Sabha = all residents:registered voters** of that GP.
- **Gram Sabha powers fixed by the Centre:** by **State law**.
- **Panchayat elections = ECI:SEC (243K)**.
- **SEC removed like ECI / SC judge:** like an **HC judge**.
- **Tenure 6 years / during pleasure:5 years** from first meeting.
- **Women = 1/4 of reserved seats:≥ 1/3** of **total** seats **and** of SC/ST seats.
- **Constitution mandates 50% women:** floor is **1/3**; 50% is **State law**.
- **Intermediate tier always exists:** optional if State pop. **≤ 20 lakh**.
- **All 29 subjects automatically with PRIs:** State **may** endow (243G).
- **Ashok Mehta = 3-tier / block first:2-tier**; **district** first.
- **GVK Rao = block-level planning:district**. Block = **Dantwala**.
- **Nyaya Panchayat is a BR Mehta tier:No** — Singhvi; not in 73rd as a tier.
- **PESA = 1993 / 1995 / 6th Schedule:1996**, **5th Schedule**.
- **64th Amd enacted PRIs:failed in RS** (1989); 73rd did it.
- **Age 25 for GP member:21** (243F).
- **Dissolved Panchayat's successor gets a fresh 5 years:** only the **remainder**.
- **97th Part IXB binds all State coops:struck for State coops (2021)**; FR 19(1)(c) stays.
- **UP intermediate = Panchayat Samiti:Kshetra Panchayat**.
- **DPC = Zila Panchayat:** DPC is a **planning** body (PRIs + ULBs); ZP is a PRI.
- **11th Schedule has urban planning:** that is **12th** (18 subjects).
- **PESA States include Nagaland / 6th Sch.:10 Fifth-Schedule States** only.
- **Parliament extends Part IX to Nagaland / Meghalaya / Mizoram:** those three opt in only by **their own legislature**. Parliament's PESA route is **Fifth Schedule** only.
- **Coop board can be superseded for years:243ZL: max 6 months** (banks: 1 year).
- **Ripon = 73rd:** Ripon **1882**; 73rd **1992–93**.
- **Municipal age 25:21** (243V) — same as Panchayat.
- **ECI conducts Corporation elections:SEC (243ZA)**.
- **64th and 65th = local government:** those **failed**; enacted pair is **73rd + 74th**.
- **Mayor is the executive of a Corporation:Commissioner** is; Mayor is political / ceremonial in the default model.
- **Cantonment Board = 74th municipality:Cantonments Act, MoD**; President = **Station Commander**.
- **Notified Area Committee is elected:all nominated**.
- **Ward Committee in every town:** only if pop. **≥ 3 lakh**.
- **MPC composition = DPC (4/5):** MPC **≥ 2/3**; metro pop. **≥ 10 lakh**.
- **12th Schedule has 29 subjects:18**. 29 = **11th**.
- **First Municipal Corporation = Calcutta:Madras, 1688**.
- **74th in force 24 April 1993:1 June 1993**.
- **Urban Art. 40:No.** Art. 40 is **village** panchayats only.
- **Ward Committee = urban Gram Sabha:** committee of **councillors**, not all voters.
- **NAC = Nagar Panchayat:** NAC = **nominated**; NP = **elected 243Q**.
- **NDMC = typical 74th corporation:** largely **nominated**.
- **Development Authority = municipality:not elected**; often holds town-planning in practice.
- **Property tax is a Union tax:** main **own** municipal tax.

Topic 11 — Centre–State Relations

Consolidated — 36 Must-Score Facts

1. The Constitution divides Centre-State relations into three categories: **Legislative Relations (Part XI, Arts. 245–255)**, **Administrative Relations (Part XI, Arts. 256–263)**, and **Financial Relations (Part XII, Arts. 264–293)**; there is **no division of judicial power** as India has an integrated judiciary.
2. **Territorial Extent of Central and State Laws (Article 245):** Parliament can make laws for the **whole or any part of the territory of India** and has power of **extraterritorial legislation** (binding on Indian citizens and property worldwide); a State Legislature can make laws only for the whole or any part of that State (no extraterritorial operation unless there is a territorial nexus).
3. Exceptions to Territorial Jurisdiction of Parliament: The President can make regulations for peace, progress, and good government of 5 UTs (Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, Ladakh); the Governor can direct that an Act of Parliament does not apply to a **5th Schedule area**; Governor of Assam and President for Meghalaya, Tripura, Mizoram can direct parliamentary acts not to apply to **6th Schedule areas**.
4. **Distribution of Legislative Subjects (Article 246):** Seventh Schedule 3-tier distribution: **Union List (List I - 100 entries)** has exclusive Parliamentary jurisdiction; **State List (List II - 61 entries)** has exclusive State jurisdiction; **Concurrent List (List III - 52 entries)** has shared jurisdiction.
5. **Predominance of Union Law (Doctrine of Federal Supremacy):** Article 246 establishes a hierarchical principle: Union List prevails over Concurrent List and State List, and Concurrent List prevails over State List.
6. **Residuary Powers (Article 248):** Parliament has exclusive power to make any law with respect to any matter **not enumerated in the Concurrent List or State List**, including imposing taxes not mentioned in either list; borrowed from the **Canadian Constitution** (unlike USA/Australia where residuary powers rest with states).
7. **Doctrine of Pith and Substance:** Evolved to determine which list a law falls under when there is an incidental encroachment; looks at the true nature and character (pith and substance) of the legislation rather than its incidental effects.
8. **Doctrine of Colorable Legislation:** 'What cannot be done directly, cannot be done indirectly'; prevents a legislature from transgressing constitutional limits of its legislative competence under the guise of an apparent power.
9. **Article 254 (Repugnancy in Concurrent List):** If a State law on a Concurrent List subject conflicts with a Union law, the **Union law prevails** and the State law is void to the extent of repugnancy; **Exception (Art. 254(2))**: If a State law was **reserved for the President's consideration and received Presidential assent**, the State law prevails in that State (though Parliament can still enact a subsequent law overriding it).
10. **Five Extraordinary Situations where Parliament can Legislate on State List:** (1) **Article 249**: In national interest if **Rajya Sabha passes a resolution by 2/3rd majority of members present and voting** (remains in force for 1 year at a time); (2) **Article 250**: During a proclamation of **National Emergency** (operates until 6 months after emergency ceases); (3) **Article 252**: When legislatures of **two or more States pass resolutions** requesting Parliament to legislate (law applies only to those states, amendable ONLY by Parliament); (4) **Article 253**: For giving effect to **International Treaties, Agreements, or Conventions**; (5) **Article 356**: During **President's Rule** in a State.
11. **Article 253 Primacy:** Empowers Parliament to make any law for the whole or any part of India for implementing any treaty or convention with another country, even if the subject matter falls exclusively under the **State List** (e.g., TRIPS, environmental treaties).
12. **Administrative Relations — General Obligations (Articles 256 & 257): Article 256** mandates that executive power of every State shall be so exercised as to ensure compliance with laws made by Parliament; **Article 257** directs that State executive power must not impede or prejudice Union executive power, and enables Union to give directions for construction/maintenance of means of communication of national/military importance and protection of railways.
13. **Sanction behind Union Directions (Article 365):** If any State fails to comply with or give effect to any direction given by the Union under constitutional provisions, the President can lawfully hold that a situation has arisen in which the **government of the State cannot be carried on in accordance with the Constitution**, triggering **President's Rule under Article 356**.
14. Delegation of Union Functions to States (**Article 258**): The President may, with the **consent of the State Government**, entrust Union executive functions to that State; Article 258(2) empowers Parliament to confer powers on States by law **even without the State's consent**; Article 258A enables a State Governor to confer State functions on the Union with Union consent.
15. **Full Faith and Credit Clause (Article 261):** Full faith and credit shall be given throughout the territory of India to **public acts, records, and judicial proceedings** of the Union and of every State; civil court judgments delivered in any part of India are executable anywhere within India.
16. **Inter-State Water Disputes (Article 262):** Empowers Parliament to provide by law for the adjudication of any dispute relating to the use, distribution, or control of waters of an **inter-state river or river valley**; Parliament can by law **bar the jurisdiction of the Supreme Court** and all other courts over such disputes (enacted via the Inter-State River Water Disputes Act, 1956).
17. **Inter-State Council (Article 263):** The President can establish an Inter-State Council if public interest so requires; established for the first time in **1990** on the recommendation of the **Sarkaria Commission** by a Presidential Order; chaired by the **Prime Minister**; members include Chief Ministers of all States and UTs with assemblies, Administrators of UTs, and 6 Union Cabinet Ministers nominated by PM.
18. Financial Relations (Part XII): Separation of tax powers: no tax can be levied or collected except by authority of law (**Article 265**); no tax entries exist in the Concurrent List (except GST under Art. 246A).
19. **Article 246A (Special Provision on GST):** Inserted by the **101st Constitutional Amendment Act, 2016**; confers **simultaneous power** on Parliament and State Legislatures to make laws with respect to Goods and Services Tax; Parliament has exclusive power for interstate trade (IGST).
20. **GST Council (Article 279A):** Constitutional body constituted by the President within 60 days of 101st Amendment; chaired by the **Union Finance Minister**; members: Union MoS Finance and Finance Ministers of all States; decisions taken by **3/4th weighted majority** (Centre has 1/3rd voting weight; all States together have 2/3rd weight).
21. Tax Sharing Structure: (1) **Article 268**: Taxes levied by Union but **collected and appropriated by States** (Stamp duties on financial bills); (2) **Article 269**: Taxes levied and collected by Union but **assigned to States** (Taxes on interstate sale of goods/consignment); (3) **Article 269A**: GST on interstate trade (IGST) levied and collected by GOI, apportioned between Union and States; (4) **Article 270**: Taxes levied and collected by Union and **distributed between Union and States** (the divisible pool of direct/indirect taxes recommended by Finance Commission).
22. **Article 271:** Surcharges on certain duties and taxes for purposes of the Union; proceeds of surcharges go **entirely to the Consolidated Fund of India** and do not form part of the divisible pool shared with States.
23. **Grants-in-Aid to States:** (1) **Statutory Grants (Article 275)**: Charged on the Consolidated Fund of India; recommended by the **Finance Commission**; given to specific States in need of assistance; includes special grants for tribal welfare; (2) **Discretionary Grants (Article 282)**: Given by Union or States for any public purpose (used heavily for Centrally Sponsored Schemes).
24. **Borrowing Powers (Articles 292 & 293):** Under Art. 292, the Union can borrow both within India and abroad upon the security of the Consolidated Fund of India; under **Article 293**, a State can borrow **ONLY within the territory of India** (cannot borrow abroad directly); a State cannot raise any fresh loan without Union consent if any part of an earlier Union loan remains outstanding.
25. **Mutual Exemption from Taxation (Articles 285 & 289): Article 285**: Property of the Union is exempt from all taxes imposed by a State or local authority (unless Parliament by law provides otherwise); **Article 289**: Property and income of a State are exempt from Union taxation; however, Union can tax commercial/business activities of a State.
26. **Administrative Reforms Commission - ARC-I (1966):** Chaired initially by Morarji Desai, later K. Hanumanthaiah; recommended setting up the Inter-State Council under Article 263 and appointment of non-partisan persons as Governors.

27. **Rajamannar Committee (1969):** Appointed by the **DMK government of Tamil Nadu** under Dr. P.V. Rajamannar to examine Centre-State relations; radical autonomy recommendations: **repeal of Articles 356 and 365**, abolition of **All-India Services (IAS, IPS, IFS)**, shifting of residuary powers to States, and making Inter-State Council advisory body.
28. **Anandpur Sahib Resolution (1973):** Adopted by Shiromani Akali Dal; demanded restricting Union government's role to only 4 subjects: **Defence, Foreign Affairs, Currency, and Communications**, leaving all other residuary powers with States.
29. **West Bengal Memorandum (1977):** Issued by the Left Front government; demanded replacing the word 'Union' with 'Federation' in the Constitution, 75% tax revenue devolution to States, repeal of Art. 356/357/360, and Rajya Sabha having equal powers with Lok Sabha.
30. **Sarkaria Commission (1983–1988):** 3-member commission appointed in June 1983 chaired by **Justice R.S. Sarkaria** (members: B. Sivaraman and Dr. S.R. Sen); submitted 247 recommendations in January 1988; rejected radical restructuring; emphasized that a strong Centre is essential for unity and integrity.
31. Key Sarkaria Recommendations: (1) Setting up permanent **Inter-State Council** under Art. 263 (instituted 1990); (2) **Article 356 must be used only as an extreme last resort**; (3) Governor's 5-year tenure should not be disturbed; (4) Retain and strengthen All-India Services; (5) Residuary power of taxation to remain with Parliament, other residuary powers to Concurrent List; (6) Prior consultation with States before enacting Concurrent List legislation; (7) Corporation tax should be shared with States (achieved by 80th Amd 2000).
32. **M.M. Punchhi Commission (2007–2010):** Appointed in April 2007 under former CJI **Justice M.M. Punchhi**; submitted report in March 2010; focused on cooperative federalism, internal security, and local governance.
33. Key Punchhi Recommendations: (1) Fixed **5-year tenure for Governors** and removal only via **impeachment by State Legislature**; (2) In hung assemblies, strict convention guidelines for Governor; (3) Amendment of Articles 355 and 356 for **'Localised Emergency'** (bringing only troubled district under Central rule for ≤ 3 months without dissolving State Assembly); (4) Creation of an Inter-State Trade and Commerce Commission under Article 307; (5) Equal representation of States in Rajya Sabha.
34. **Zonal Councils:** Established under Part III of the **States Reorganisation Act, 1956** (statutory bodies, not constitutional bodies); 5 councils: Northern, Central (UP, UK, MP, CG - HQ: Prayagraj), Eastern, Western, Southern; common Chairman is the **Union Home Minister**.
35. **North-Eastern Council (NEC):** Created by separate statute — the **North-Eastern Council Act, 1971**; covers 8 States: Assam, Meghalaya, Manipur, Tripura, Nagaland, Mizoram, Arunachal Pradesh, and **Sikkim** (added in 2002); apex regional planning body for the Northeast.
36. Cooperative vs Competitive Federalism: Cooperative federalism is operationalized through NITI Aayog, GST Council, and Inter-State Council; competitive federalism promotes States competing for investments and ease of doing business rankings.

📋 Must-score facts — Lists, 249–263, Finance

Legislative frame

Item	Lock
Parts	XI (245–263) + XII (finance)
Art. 246	Union > Concurrent > State; residuary with **Centre** (**248**)
249	RS resolution → Parliament on State List (national interest)
252	Two or more States request; only Parliament legislates
254	Union prevails on Concurrent; State law can prevail with assent under 254(2) until repugnant Union law

Doctrines

Doctrine	Lock
Pith and substance	Incidental encroachment can be valid
Colourable legislation	You cannot do indirectly what you cannot do directly
Repugnancy	Concurrent clash → Union wins (with 254(2) nuance)

Administrative / bodies

Item	Lock
256 / 257	States comply with Union laws / directions
263	Inter-State Council
280	Finance Commission
GST Council	Cooperative federalism example

Current Affairs

Year	Fact	Why asked
1 July 2017	GST operational	101st vs "GST Act year"
2022	*Mohit Minerals* — GST Council (जीएसटी परिषद) recommendatory	Binding vs cooperative
2023	**16th FC** under **Arvind Panagariya**	Chair matching; award **2026–31**
2021–26	15th FC (**N.K. Singh**)	vs 14th Y.V. Reddy
2025 PYQ	AIS 312 majority	present and voting (गणपूर्ति) ≠ total
14th / 15th FC	Vertical **42%** → **41%**	Devolution matching
1 Jan 2015	NITI replaces Planning Commission (योजना आयोग)	Extra-constitutional; **≠ FC**
2019	NITI = nodal for **SDGs** (not FC)	2019 PYQ
Mar 2022	Assam–Meghalaya (मेघालय) border: **HM + CMs**	Inter-State dispute ≠ 131
2019	ISRWD Amendment Bill (permanent tribunal)	**LS only; lapsed — not law**
2018	SC Cauvery judgment / CWMA	Award ≠ 131 original

Confused Pairs

A	B	Correct	Hindi
Art. **249**	Art. **250**	RS resolution, **1 year**, national interest	Emergency proclamation — Parliament on State List while Emergency is on
Art. **252**	Art. **253**	**Two or more States** request; others may adopt	Treaties / international conferences — **no** State request needed
Art. **254(1)**	Art. **254(2)**	Union law on Concurrent **prevails**	State Concurrent law **reserved + President assents** → State law prevails *until* Parliament legislates again
Art. **275**	Art. **282**	FC-recommended, **charged** on CFI; tribal proviso	**Discretionary** grant for any public purpose (Union **and** States)
Pith & substance	Colourable legislation	Incidental encroachment **OK** if true nature is in your list	Cannot do **indirectly** what you cannot do directly
Entry **97** residuary	Art. **246A** GST	Leftover subjects → **Union**	GST is a **special** concurrent-style power, **not** residuary
2/3 **present and voting** (312 / 249)	2/3 of **total membership**	AIS creation & 249 RS resolution	That formula is for **other** special majorities (e.g. 368 with majority of total)
ISC (263)	**Zonal Council**	Constitutional, **PM**, 1990	Statutory **SRA 1956**, **Union HM**, five zones
Art. 131	**Art. 262**	SC original for Union/State **legal** disputes	Water: Parliament **may bar** courts — **1956 Act did**
Sarkaria	**Rajamannar**	Strong Centre; keep AIS & 356; ISC **done**	Residuary to States; **abolish AIS**; **repeal 356**

Frame — three Parts, one federal bargain

Part	Arts.	What
XI	**245–263**	Legislative (245–255) + Administrative (256–263)
XII	**264–300A**	Finance, property, contracts, borrowing (slice: **265–293** + GST)
XIII	**301–307**	Trade, commerce, intercourse

When the Centre legislates on the State List

Route	Trigger	Life of the law
249	RS: national interest, **2/3 present and voting**	Resolution **1 year** (renewable); law lasts **6 months** after expiry
250	National Emergency **on**	**6 months** after Emergency ends
252	**Two or more** State legislatures request	Until **Parliament** amends/repeals; other States may **adopt**
253	Treaty / international conference	Ordinary Union law; **no** sunset
356	President's Rule	Parliament (or President) may make laws for that State; after revocation, State may **repeal/alter**

Four doctrines (+ two cousins)

Doctrine	What the court does	Typical result	Case fact
Pith and substance	Looks at the **true nature** of the law, not incidental trespass	**Saves** a law if the pith is in the right list	*Prafulla Kumar v Bank of Commerce, Khulna*; *State of Bombay v F.N. Balsara*
Colourable legislation	**"What you cannot do directly, you cannot do indirectly."** Form ≠ substance	**Strikes** a fraud on legislative power	*K.C. Gajapati Narayan Deo v Odisha*
Repugnancy (254)	Two statutes on **Concurrent** cannot stand together, or Union law **occupies the field**	State law **void** to that extent — unless **254(2)**	*M. Karunanidhi v Union of India* (tests); *Hoechst Pharmaceuticals*
Harmonious construction	Two clauses of the **same** instrument both kept alive	Prefer the reading (रीडिंग) that kills **neither**	*CIT v Hindustan Bulk Carriers*; *Venkataramana Devaru*
Territorial nexus	Extra-State fact may still be taxed/regulated if linked to the State	Saves State extra-territorial reach	*Tata Iron*; *R.M.D. Chamarbaugwala*
Occupied field	Union Concurrent law intended to be a **complete code**	Even a non-clashing State law on the same field falls	A **species of 254**, not a fifth list

Repugnancy (Art. 254) — Concurrent List only

Clause	Rule
254(1)	State law **repugnant** to a Union law (existing or later) on a **Concurrent** matter → State law **void** to the extent of repugnancy
254(2)	If the State Bill was **reserved for the President** and received **assent**, the State law prevails **in that State** — **even if** it clashes with an earlier Union law. Parliament may still **re-legislate** and override
Direct collision	Obeying both is impossible
Occupied field	Union law covers the **whole field**; State law is extra even without a clause-by-clause clash

Zonal Councils

North Eastern Council — do not count as a 6th zonal council

Separate 1971 statute — not SRA 1956, not a sixth zonal council.

- **Law:** North Eastern Council Act, **1971** (body from **1972**).
- **Members: Eight** NE States (Sikkim added by **2002** amendment) — each State's **Governor** and **Chief Minister**, plus **three** members nominated by the **President**.
- **Chair:** Nominated by the **President** (need not be drawn from the other members). In recent practice the **Union Home Minister** is **ex-officio Chairman** and the **DoNER** Minister is **ex-officio Vice-Chairman**.
- **Why separate:** Security + development of the NE; **not** SRA 1956.

> **Logic:** "There are six Zonal Councils including NEC" is **false**. **Five** zonal + **one** NEC. ISC = constitutional (**263**); Zonal Councils = statutory (**SRA 1956**); National Security Council = executive — only **one** of ISC / NSC (राष्ट्रीय सुरक्षा परिषद) / Zonal is created by the Constitution.

Inter-State river water disputes (Art. 262)

Act	Job
Inter-State River Water Disputes Act, 1956	**Adjudication** — tribunal if Centre thinks negotiation failed. **s.11 bars courts** (so **131 is off**)
River Boards Act, 1956	**Advisory** boards for regulation/development — almost unused

Master Table — Inter-State River Water Disputes Tribunals (1956 Act)

No.	Tribunal Name (अधिकरण)	Year Set Up	Riparian States Involved (संबंधित राज्य)	Key Chairman / Status
1	**Krishna Water Disputes Tribunal-I**	**1969**	Maharashtra, Karnataka, Andhra Pradesh	Justice **R.S. Bachawat**; Award in 1973/1976
2	**Godavari Water Disputes Tribunal**	**1969**	Maharashtra, Andhra Pradesh, Karnataka, Madhya Pradesh, Odisha	Justice **R.S. Bachawat**; Final Award in 1980
3	**Narmada Water Disputes Tribunal**	**1969**	Gujarat, Madhya Pradesh, Maharashtra, Rajasthan	Justice **V. Ramaswami**; Sardar Sarovar allocations (1979)
4	**Ravi & Beas Waters Tribunal**	**1986**	Punjab, Haryana, Rajasthan	Justice **V. Balakrishna Eradi**; Eradi Tribunal (SYL canal dispute)
5	**Cauvery Water Disputes Tribunal**	**1990**	Tamil Nadu, Karnataka, Kerala, Puducherry	Justice **Chittatosh Mookerjee**; Final award 2007; SC modified 2018 (CWMA/CWRC formed)
6	**Krishna Water Disputes Tribunal-II**	**2004**	Maharashtra, Karnataka, Andhra Pradesh, Telangana	Justice **Brijesh Kumar**; Report 2010 (sub judice / Telangana re-reference)
7	**Vansadhara Water Disputes Tribunal**	**2010**	Andhra Pradesh & Odisha	Justice **Mukundakam Sharma**; Final report 2017/2019 (Katragadda / Neradi barrage)
8	**Mahadayi (Mandovi) Water Tribunal**	**2010**	Goa, Karnataka, Maharashtra	Justice **J.M. Panchal**; Award 2018 (Kalasa-Banduri project)
9	**Mahanadi Water Disputes Tribunal**	**2018**	Chhattisgarh & Odisha	Justice **A.M. Khanwilkar**; constituted March 2018 (ongoing)

Punchhi Commission (2007–10)

Who wanted what (one line)

Issue	Rajamannar	Sarkaria	Punchhi
Residuary	**States**	**Union**	Union
AIS	**Abolish**	**Continue**	Continue
356	**Repeal**	Keep, last-resort	Keep; **localise** via 355
ISC	Create now	Create under **263** → **1990**	**Strengthen** (already exists)

Common Traps

Trap	Correct
Residuary with States (US model)	**Union** — 248 / Entry **97**
GST is residuary	**246A** special power; **101st**
249 / 312 = 2/3 of **total** RS	**2/3 present and voting**
253 needs State consent	**No**
252 law can be amended by the State	**Only Parliament**
254 applies to Union vs State List	**246** does that; **254 = Concurrent**
Census = State List	**Union 69**
Trade and commerce = Concurrent (bare)	Split **41 / 42 / 26 / 33**
FC = Chair + six; report to NITI	**+ four**; report to **President**
President fixes FC qualifications	**Parliament** (1951 Act)
First FC = Rajamannar / Santhanam	**K.C. Neogy**
FC = 263	**280**. 263 = Inter-State Council
275 = discretionary	**282** is discretionary; **275** is FC / charged
Surcharge shared with States	**271** Union **only**
Mayor of GST Council = PM	**Union FM**
GST Council vote = simple majority	**3/4 weighted**; Centre **1/3**, States **2/3**
301 is a Fundamental Right	It is **Part XIII**, not 19(1)(g)
State 304(b) restriction without Centre	Needs **previous Presidential sanction**
Inter-State migration = State List	**Union Entry 81**
257A still in the text	**Repealed, 44th**
258 and 258A both need the same consent rule	**258(1)** consent; **258(2)** Union law can impose **without** consent; **258A** is State→Union with consent
All Union taxes are shared with States	**Customs, corporation tax, 271 surcharge** stay with Union

Trap	Correct
14th and 15th FC vertical share identical	**42%** then **41%**
Concurrent List is full of tax heads	**No** (GST = **246A**)
GST covers liquor and petrol already	**Liquor out**; **five petro** items out until Council says
NITI Aayog replaced the Finance Commission	NITI replaced **Planning Commission**, **not** 280
Art. 261 = Art. 131	Faith-and-credit vs **original SC** disputes
ISC set up on Punchhi / Rajamannar	**Sarkaria**; constituted **1990**
ISC chair = Union Home Minister	**PM**. HM chairs **Zonal** Councils **and** ISC **Standing Committee**
UP is in the Northern Zonal Council	**Central** (with UK, MP, CG)
NEC is the sixth Zonal Council	**Separate 1971 Act**; PM chairs NEC
SC original jurisdiction over river water	**262 + 1956 Act bar 131**
2019 water Bill is in force	**Lapsed**
Sarkaria wanted residuary with States	**Union**; that was **Rajamannar**
Rajamannar wanted to keep AIS	Wanted them **abolished**
Punchhi before Sarkaria	Sarkaria **1983–88**; Punchhi **2007–10**
Water is only a Union subject	**State 17**, subject to **Union 56**
Assam–Meghalaya 2022 = SC 131	**Union HM + two CMs**
NITI / FC implements SDGs	Nodal = **NITI** (2019), not FC

Topic 12 — Constitutional Bodies

Consolidated — 34 Must-Score Facts

1. A **Constitutional Body** is one whose establishment, powers, composition, and functions are explicitly provided for in the text of the Constitution of India; any alteration to their structure requires a **Constitutional Amendment under Article 368**.
2. Key Constitutional Bodies: (1) **Election Commission of India (Art. 324)**; (2) **Union Public Service Commission (Art. 315)**; (3) **State Public Service Commissions (Art. 315)**; (4) **Finance Commission (Art. 280)**; (5) **Comptroller and Auditor General of India (Art. 148)**; (6) **National Commission for Scheduled Castes (Art. 338)**; (7) **National Commission for Scheduled Tribes (Art. 338A)**; (8) **National Commission for Backward Classes (Art. 338B)**; (9) **Special Officer for Linguistic Minorities (Art. 350B)**; (10) **Attorney General for India (Art. 76)**; (11) **Advocate General for the State (Art. 165)**; (12) **GST Council (Art. 279A)**.
3. **Election Commission of India (Article 324):** All-India constitutional body responsible for superintendence, direction, and control of elections to: **Parliament, State Legislatures, the office of the President of India, and the office of the Vice-President of India**; *elections to Panchayats and Municipalities are conducted by State Election Commissions (Arts. 243K & 243ZA), NOT by ECI*.
4. Composition of ECI: Began as a single-member body in 1950; made multi-member briefly in 1989; permanently made a multi-member body consisting of **Chief Election Commissioner (CEC) and 2 Election Commissioners (ECs)** since **1 October 1993**; all three have **equal powers, equal salary, and equal status matching a Supreme Court Judge**; in case of difference of opinion, matters are decided by majority.
5. Appointment of CEC and ECs: Appointed by the **President**; under the Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, appointments are made on the recommendation of a Selection Committee consisting of the **Prime Minister (Chairperson), a Union Cabinet Minister, and the Leader of the Opposition in Lok Sabha**.
6. Tenure and Removal of ECI: Term of office is **6 years or up to the age of 65 years**, whichever is earlier; resigns to President; **The Chief Election Commissioner (CEC) can be removed from office ONLY in like manner and on like grounds as a Judge of the Supreme Court** (proved misbehaviour/incapacity via special majority of Parliament under Art. 124(4)).
7. EC Removal Trap: Other Election Commissioners **CANNOT be removed except on the recommendation of the Chief Election Commissioner**; the Constitution does not debar retiring election commissioners from further government employment.
8. **Union Public Service Commission - UPSC (Articles 315–323, Part XIV):** The central recruiting agency; consists of a **Chairman and other members** appointed by the **President**; the Constitution does not fix UPSC strength (normally 9 to 11 members); nearly half the members must have held government office for at least **10 years**.
9. Tenure of UPSC Members (**Article 316**): Term is **6 years or until attaining the age of 65 years**, whichever is earlier; resigns by writing to the **President**.
10. **Removal of UPSC Chairman/Members (Article 317):** Removed by order of the **President** on grounds of misbehaviour ONLY AFTER the **Supreme Court conducts an inquiry** on a reference by the President; the advice of the Supreme Court is **binding on the President**; President can remove directly without SC inquiry if adjudged insolvent, engages in paid employment outside, or unfit by infirmity of mind/body.
11. Independence of UPSC: Expenses, salaries, and pensions are **charged upon the Consolidated Fund of India** (non-votable); the Chairman of UPSC is **ineligible for further employment under Central or State Government**; a member is eligible only for appointment as UPSC Chairman or SPSC Chairman.
12. Role of UPSC (**Article 320**): It is a **consultative/recruiting body**, not a classifying agency (cadre classification and service conditions are handled by DoPT); its recommendations are **advisory in nature**, not binding on the government (reasons for non-acceptance must be laid before Parliament).
13. **State Public Service Commission - SPSC (Articles 315–323):** Parallel state body; Chairman and members are **appointed by the GOVERNOR** of the State.
14. Tenure of SPSC Members: Term is **6 years or until attaining the age of 62 years** (unlike 65 for UPSC), whichever is earlier; resigns by writing to the **Governor**.
15. Critical SPSC Removal Trap: Although appointed by the Governor, the Chairman and members of an SPSC **CAN BE REMOVED ONLY BY THE PRESIDENT** (Article 317), on the exact same grounds and after an inquiry by the Supreme Court.
16. **Joint State Public Service Commission - JSPSC (Article 315(2)):** Parliament can by law establish a JSPSC for two or more States on request of concerned State Legislatures; JSPSC is a **statutory body**, not a direct constitutional body; Chairman and members are appointed and removed by the **PRESIDENT**; tenure is **6 years or 62 years**.
17. **Finance Commission (Article 280, Part XII):** A **quasi-judicial body** constituted by the **President every fifth year** (or earlier if needed); consists of a **Chairman and 4 other members** appointed by the President.
18. Qualifications of FC Members (determined by Parliament under Finance Commission Act, 1951): Chairman must be a person having experience in **public affairs**; the 4 members must be selected from: (1) High Court judge or qualified to be one; (2) Special knowledge of finance and accounts of government; (3) Wide experience in financial matters and administration; (4) Special knowledge of economics.
19. Functions of Finance Commission: Recommends: (a) distribution of net tax proceeds between Union and States (**vertical devolution**) and among States (**horizontal devolution**); (b) principles governing grants-in-aid to States under Article 275; (c) measures to augment State Consolidated Funds to supplement PRIs and ULBs resources on SFC basis.
20. Advisory Nature of Finance Commission: The recommendations made by the Finance Commission are **purely advisory in nature** and not binding on the government; however, they carry great moral and convention weight; the first Finance Commission was constituted in **1951** under Chairman **K.C. Neogy**; the **15th Finance Commission** was chaired by **N.K. Singh** (recommended 41% tax devolution to States, retaining 1% for UTs of J&K and Ladakh); the **16th Finance Commission** is chaired by **Dr. Arvind Panagariya**.
21. **Comptroller and Auditor General of India - CAG (Articles 148–151, Part V):** Head of the Indian Audit and Accounts Department; described by Dr. B.R. Ambedkar as **'the most important officer under the Constitution of India'**; guardian of the public purse.
22. Appointment and Tenure of CAG (**Article 148**): Appointed by the **President** by warrant under his hand and seal; holds office for a term of **6 years or up to 65 years of age**, whichever is earlier; resigns by writing to President.
23. Removal of CAG: The CAG can be removed from office **ONLY in like manner and on like grounds as a Judge of the Supreme Court** (proved misbehaviour/incapacity passed by special majority in Parliament).
24. Post-Retirement Ban: The CAG is **ineligible for further office either under the Government of India or under any State Government** after retirement; salary matches SC judge (₹2.5 lakh); salary and administrative expenses are **charged upon the Consolidated Fund of India**.
25. Duties of CAG (**Article 149 & CAG DPC Act, 1971**): Audits all receipts and expenditure from Consolidated Fund of India, Consolidated Funds of each State and UT with assembly, Contingency Funds, and Public Accounts; audits all government companies, corporations, and bodies substantially financed by government revenues.
26. Audit Reports of CAG (**Article 151**): Submits three audit reports to the President: (1) Audit report on Appropriation Accounts; (2) Audit report on Finance Accounts; (3) Audit report on Commercial Undertakings; the President causes them to be laid before both Houses of Parliament; examined by the **Public Accounts Committee (PAC)**; reports relating to State accounts are submitted to Governor, who lays them before State Legislature.
27. In 1976, **accounting was separated from auditing** at the Central level (compilation of accounts transferred to civil accounts under Controller General of Accounts - CGA); however, at the State level, CAG continues to maintain both accounts and audit.
28. **National Commission for Scheduled Castes - NCSC (Article 338):** Originally a combined office of Special Officer under Art. 338; 65th Amd 1990 created a multi-member commission; bifurcated by the **89th Constitutional Amendment Act, 2003** into separate NCSC (Art. 338) and NCST (Art. 338A) effective 2004.
29. Composition of NCSC: Consists of a **Chairperson, a Vice-Chairperson, and 3 other members** appointed by the **President** by warrant; tenure is **3 years**; investigates all matters relating to constitutional safeguards for Scheduled Castes; has powers of a **Civil Court** while investigating complaints.

30. **National Commission for Scheduled Tribes - NCST (Article 338A):** Created by the **89th Amendment Act, 2003**; consists of a Chairperson, Vice-Chairperson, and 3 other members appointed by President; term **3 years**; oversees safeguards for STs; submits annual report to President.
31. **National Commission for Backward Classes - NCBC (Article 338B):** Conferred **Constitutional Status** by the **102nd Constitutional Amendment Act, 2018** (earlier a statutory body under 1993 Act); consists of Chairperson, Vice-Chairperson, and 3 members appointed by President; tenure **3 years**; examines complaints of socially and educationally backward classes (SEBCs).
32. Consultation Requirement under Art. 338/338A/338B: Union and every State Government **shall consult the respective Commission on all major policy matters affecting SCs, STs, and SEBCs**.
33. **Special Officer for Linguistic Minorities (Article 350B, Part XVII):** Inserted by the **7th Constitutional Amendment Act, 1956** on recommendation of the States Reorganisation Commission; appointed by the **President**; investigates all matters relating to safeguards provided for linguistic minorities; submits reports to President; designated as the **Commissioner for Linguistic Minorities** with headquarters at **Prayagraj (Allahabad)**, under the Ministry of Minority Affairs.
34. Summary Table of Constitutional Tenures: SC Judge (until 65); HC Judge (until 62); UPSC Member (6 yrs / 65 yrs); SPSC Member (6 yrs / 62 yrs); CAG (6 yrs / 65 yrs); CEC/EC (6 yrs / 65 yrs); NCSC/NCST/NCBC (3 yrs).

📋 Must-score facts — EC, UPSC, CAG, FC

What is a constitutional body?

Created by the **Constitution**; often charged expenditure; removal harder than ordinary civil servants.

Body ↔ Article / tag

Body	Lock
Election Commission	Art. **324**; multi-member; CEC + ECs
EC term	**6 years or age 65**
First CEC	**Sukumar Sen**
President/VP election dispute	SC under Art. **71** (not EC)
UPSC	Arts. **315–323**; President appoints; advice **not binding**
SPSC	Appointed by Governor; **removed by President**
CAG	Arts. **148–151**; 6 years / age 65
Finance Commission	Art. **280**
National Commission for SCs/STs/BCs	Constitutional (related Articles 338 etc.)

Current Affairs

Year	Fact	Why asked
2023	CEC & Other ECs Act — panel **PM + LoP + Cabinet Minister (कैबिनेट मंत्री)**	Replaced the SC's interim **CJI-on-panel**
2023	*Anoop Baranwal*	Independence of ECI appointments
2022	*Mohit Minerals*	GST Council recommendatory
2023–	16th FC constituted **31 December 2023**, chaired by **Arvind Panagariya**	Body, not NITI (नीति)
1993	ECI became durable multi-member	3 commissioners
2004	89th — NCSC / NCST split	338 vs 338A
2018 / 2021	102nd NCBC constitutional; **105th** State OBC (अन्य पिछड़ा वर्ग) lists	338B vs 340
1992–93	*Indra (इन्द्र) Sawhney* → NCBC Act	Why a standing OBC body
1963 / 67	Official Languages Act	English continues after 15-year clause

Confused Pairs

A	B	Correct	Hindi
CEC removal	**EC** removal	Like **SC judge** (impeachment)	Only on **CEC's recommendation**
UPSC	**SPSC**	President appoints **and** (in effect) removal path is Presidential	**Governor** appoints; **President** removes
ECI	**SEC**	Parliament, State Houses, President, VP	Panchayat + ULB only (**243K/ZA**)
AG	**SC judge**	Pleasure of President; private practice	Impeachment; no private practice
CAG	**PAC**	Audits and **reports**	**Examines** the CAG report
FC	**NITI**	Constitutional, tax-share	Executive think-tank; **not** 280
350B	**350A**	Special Officer (Union)	States' duty: mother-tongue primary
338B NCBC	**340 commission**	Standing constitutional body (2018)	Ad hoc inquiry (Kalelkar / Mandal)
338A NCST	**339(1) commission**	Standing ST commission	Ad hoc Scheduled Areas / ST-welfare inquiry

UPSC (Arts. 315–323)

Art. 319 — who can take which next job

Ceases to be	May later be	May not
UPSC Chairman	—	**Any** further Union **or** State office
UPSC member	UPSC **Chair** or an **SPSC Chair**	Other Union/State office
SPSC Chairman	UPSC Chair **or** Chair of **another** SPSC	Other Union/State office

Ceases to be	May later be	May not
SPSC member	UPSC Chair / UPSC member / SPSC Chair (same or another State)	Other Union/State office

Finance Commission (Art. 280) — as a body

Master Table — 1st to 16th Finance Commissions (वित्त आयोग)

No.	Chairman (अध्यक्ष)	Appointed (वर्ष)	Operational Period (कार्यकाल)	Key Share / Highlights
1st	**K.C. Neogy**	1951	1952–1957	First FC; laid fundamental revenue-sharing rules
2nd	**K. Santhanam**	1956	1957–1962	Post-States Reorganisation realignment
3rd	**A.K. Chanda**	1960	1962–1966	Addressed Planning Commission dualism
4th	**Dr. P.V. Rajamannar**	1964	1966–1969	State autonomy focus
5th	**Mahavir Tyagi**	1968	1969–1974	Interim + final reports
6th	**K. Brahmananda Reddy**	1972	1974–1979	Upgradation grants for backward states
7th	**J.M. Shelat**	1977	1979–1984	Increased excise sharing to 40%
8th	**Y.B. Chavan**	1982	1984–1989	Addressed revenue deficits
9th	**N.K.P. Salve**	1987	1989–1995	Normative approach to state expenditure
10th	**K.C. Pant**	1992	1995–2000	Recommended Alternative Devolution Scheme (80th Amend.)
11th	**Prof. A.M. Khusro**	1998	2000–2005	First local bodies grants under 73rd/74th Amend.
12th	**Dr. C. Rangarajan**	2002	2005–2010	30.5% devolution; debt consolidation & relief facility (FRBM linked)
13th	**Dr. Vijay Kelkar**	2007	2010–2015	32.0% devolution; GST incentive roadmap; disaster response (NDRF/SDRF)
14th	**Dr. Y.V. Reddy**	2013	2015–2020	**42.0%** devolution (record 10% jump; untied funds to States)
15th	**N.K. Singh**	2017	2020–2021 (Interim) / 2021–2026 (Final)	**41.0%** (1% carved out for UTs of J&K & Ladakh); 2011 Census base
16th	**Dr. Arvind Panagariya**	2023 (31 Dec)	2026–2031	16th Commission; Secretary Ritvik Ranjanam Pandey

CAG (Arts. 148–151)

Audit trail — CAG → Houses → PAC (लोक लेखा समिति)

UK Comptroller	Indian CAG
Can **block** a payment **before** it is made	**Audits after** spend — "Comptroller" in the name is **historical**

Constitutional vs Statutory vs Executive

Kind	Test	examples
Constitutional	Created **by the Constitution**	ECI, UPSC/SPSC, FC, CAG, AG/AdvG, GST Council, NCSC/NCST/NCBC, 350B officer (भाषाई अल्पसंख्यक अधिकारी), ISC, SFC, SEC
Statutory	Created by an **Act of Parliament / State**	**Lokpal** (लोकपाल) (2013) · **NHRC / SHRC** (1993) · **CVC** (2003 Act; was executive) · **CIC / SIC** (RTI 2005 (आरटीआई 2005)) · **NCW** (1990) · **NCM** (असहयोग) (1992) · **NCPCR** · **NCSK** (Safai Karamcharis) · **NGT** · **CAT** (1985) · **Delimitation Commission** · old **NCBC 1993**
Executive / extra-constitutional	Created by **resolution / order**	**NITI Aayog (1 Jan 2015)** · Planning Commission (योजना आयोग) · **NDC** · **Law Commission of India**

Common Traps

Trap	Correct
ECI elects the Speaker	**House** elects
ECI runs municipal / PRI polls	**SEC**
CEC and ECs removed the same way	Only **CEC** = SC-judge path; EC needs **CEC's recommendation**
2023 ECI panel includes the CJI	**CJI out**; Cabinet Minister in
First CEC = S.P. Sen / T.N. Seshan	**Sukumar Sen**. Seshan = famous, not first
First woman CEC = Gopala / Navin Chawla	**V.S. Ramadevi**, 1990
UPSC functions = Constitution only	**Four** sources (2024)
UPSC advice is binding	**Not**
Governor removes SPSC members	**President**
President extends UPPSC functions	**State Legislature**
FC = Chair + six; report to NITI	**+ four**; **President**
FC = Art. 263	**280**
CAG report → Estimates Committee	**PAC**
CAG is a UK-style Comptroller	Indian CAG **audits after** spend
AG removed like an SC judge	**Pleasure** of President
AG = Part XIII	**Part V**
SG is a constitutional office	**No**
AdvG = Art. 76	**165**
350B = one officer per State; 9th Amd	**One** for India; **7th** Amd

Trap	Correct
GST Council chaired by PM	**Union FM**
ECI decides President-election disputes	**Art. 71 — SC**
ECI = Delimitation Commission	**Separate** statutory body
UPSC Chair can take a State job later	**319: no** further Union **or** State office
Governor removes UPPSC members	**President**
CAG = Accountant General = Advocate General	CAG's field officer ≠ **165**
Form of accounts is Finance Ministry alone	President on **CAG's advice (150)**
350B = 9th Amd / one officer per State	**7th** Amd; **one** for India
350B = Eighth Schedule	8th Sch = **languages**; 350B = **officer**
NCST still under 338	**338A** after **89th / 2004**
Standing NCBC = only 340	**338B** (102nd). **340** = Kalelkar/Mandal-type inquiry
102nd ended State OBC lists forever	**105th (2021)** restored State lists
Official Language Part XI	**Part XVII**. Tribunals = **XIVA**
English was allowed for 10 years only	**15 years** (343), then 1963/67 Act
344 Commission = Home Minister's OL Committee	344 = **Kher-type** time-bound body; HM chairs the **1976 Parliamentary Committee**
NHRC / NCW / NCM = constitutional	**Statutory**. NCSC is constitutional
NITI Aayog = constitutional	**Executive** (2015)
NCST = Art. 339	Standing body = **338A**. **339** = ad hoc areas/welfare inquiry
NCSC list = 342	SC list **341** · ST **342** · SEBC **342A**
NCW / NCM = 338-family	**Statutory**. Only SC/ST/BC national commissions are constitutional
CAT is a constitutional body	**Part XIVA enables**; CAT is **statutory** (1985)
Delimitation Commission = ECI	**Separate statute**

Topic 13 — Statutory & Non-Constitutional Bodies

Consolidated — 36 Must-Score Facts

1. A **Statutory Body** is created by an Act of Parliament or a State Legislature (e.g., NHRC, CVC, CIC, Lokpal, NGT); an **Executive Body** is created by an executive resolution of the Cabinet without any legislation (e.g., **NITI Aayog**, Law Commission); neither is mentioned in the Constitution.
2. **NITI Aayog (National Institution for Transforming India):** Established on **1 January 2015** by a Union Cabinet resolution, replacing the 65-year-old Planning Commission (established March 1950); acts as the premier policy think tank providing directional and policy inputs; emphasizes **'Cooperative Federalism'** and a **'Bottom-Up' approach** (unlike the top-down Planning Commission).
3. Composition of NITI Aayog: **Chairperson = Prime Minister**; **Governing Council** = Chief Ministers of all States, CMs of UTs with legislatures (Delhi, Puducherry, J&K), and Lt. Governors of other UTs; Vice-Chairperson is appointed by the Prime Minister (rank of Cabinet Minister); Chief Executive Officer (CEO) is appointed by PM for a fixed tenure (rank of Secretary to GOI).
4. Key Operational Wings of NITI Aayog: (1) Research Wing; (2) Consultancy Wing; (3) Team India Wing (acts as interface between States and Centre); NITI Aayog **has NO power to allocate financial funds or grants to States** (financial allocation powers rest entirely with the Ministry of Finance).
5. **National Development Council (NDC):** Established on **6 August 1952** by executive resolution on recommendation of the First Five-Year Plan; chaired by the Prime Minister; served as the apex body for approval of Five-Year Plans; rendered largely obsolete since the dismantling of five-year plans and inception of NITI Aayog.
6. **National Human Rights Commission - NHRC:** Established on **12 October 1993** under the **Protection of Human Rights Act (PHRA), 1993**; statutory body in conformity with the Paris Principles; investigates human rights violations by government agencies.
7. Composition of NHRC (as amended by PHRA Amendment Act, 2019): Consists of a **Chairperson** (who has been a **Chief Justice of India OR a Judge of the Supreme Court**) and **5 members** (1 sitting/former SC judge, 1 sitting/former HC Chief Justice, and 3 persons with practical knowledge of human rights, of whom **at least 1 must be a woman**); plus ex-officio chairpersons of 7 National Commissions (NCSC, NCST, NCBC, NCW, NCPCR, NCM, and Chief Commissioner for Persons with Disabilities).
8. Appointment of NHRC: Appointed by the **President** on the recommendation of a high-powered **6-member Selection Committee** consisting of: (1) **Prime Minister (Chairperson)**; (2) **Speaker of Lok Sabha**; (3) **Deputy Chairman of Rajya Sabha**; (4) **Union Home Minister**; (5) **Leader of Opposition in Lok Sabha**; (6) **Leader of Opposition in Rajya Sabha**.
9. Tenure and Removal of NHRC: Term of office is **3 years or up to 70 years of age** (lowered from 5 to 3 years by 2019 Amendment), eligible for re-appointment; removed by the **President on grounds of proved misbehaviour or incapacity after an inquiry by the Supreme Court**.
10. Limitations of NHRC: Its recommendations are **purely advisory in nature** and not binding on government; cannot award monetary relief or punish violators directly; **cannot inquire into any matter after the expiry of 1 year** from date of human rights violation (statute of limitations).
11. **State Human Rights Commission - SHRC:** Established under PHRA 1993; investigates violations in subjects under State List and Concurrent List; Chairperson must be a **retired Chief Justice OR a retired Judge of a High Court**; appointed by **Governor** on recommendation of committee: Chief Minister (Chairperson), Speaker, Home Minister, and Leader of Opposition; **removable ONLY by the PRESIDENT** (not Governor!).
12. **Central Information Commission - CIC:** Established in **2005** under the **Right to Information (RTI) Act, 2005**; consists of a **Chief Information Commissioner (CIC)** and not more than **10 Information Commissioners (ICs)**.
13. Appointment of CIC: Appointed by the **President** on the recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Leader of Opposition in Lok Sabha**; (3) **A Union Cabinet Minister nominated by the Prime Minister**.
14. Tenure of CIC (RTI Amendment Act, 2019): Term is for such period as prescribed by the Central Government (currently **3 years**) or up to **65 years of age**; **ineligible for reappointment**; removed by President on proved misbehaviour/incapacity after Supreme Court inquiry.
15. Powers of Information Commissions: Receive and inquire into complaints from any citizen denied RTI information; vested with powers of a **Civil Court** (summoning, discovery of documents, examining witnesses); can impose a penalty of **₹250 per day up to maximum ₹25,000** on public information officers (PIOs) for unreasonable delay.
16. **Central Vigilance Commission - CVC:** Created in **February 1964** by executive resolution on the recommendation of the **K. Santhanam Committee on Prevention of Corruption (1962–64)**; conferred **Statutory Status** by the **Central Vigilance Commission Act, 2003**; apex integrity and anti-corruption watchdog.
17. Composition of CVC: Consists of a **Central Vigilance Commissioner (Chairperson)** and **not more than 2 Vigilance Commissioners**.
18. Appointment of CVC: Appointed by the **President** by warrant on recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Union Home Minister**; (3) **Leader of Opposition in Lok Sabha** (or leader of largest opposition party).
19. Tenure of CVC: Term is **4 years or until attaining 65 years of age**, whichever is earlier (unique 4-year tenure!); **ineligible for further employment under Union or State Government**; removed by President on grounds of proved misbehaviour after Supreme Court inquiry.
20. Functions of CVC: Exercises superintendence over the functioning of the **Delhi Special Police Establishment (CBI)** in so far as it relates to investigation of offences under the Prevention of Corruption Act, 1988.
21. **Lokpal and Lokayuktas:** The terms 'Lokpal' and 'Lokayukta' were coined by **Dr. L.M. Singhvi in 1963**; administrative ombudsman modeled on Scandinavian Ombudsman; first recommended by the **First Administrative Reforms Commission (ARC-I, 1966)** chaired by Morarji Desai.
22. The **Lokpal and Lokayuktas Act, 2013** came into force on **16 January 2014**; established the institution of Lokpal for the Union and mandated Lokayuktas for States; the first Chairperson of Lokpal was **Justice Pinaki Chandra Ghose (appointed March 2019)**.
23. Composition of Lokpal: Consists of a **Chairperson** (who is or has been a CJI, SC Judge, or eminent person) and **not more than 8 members** (of whom **50% must be Judicial Members**, and **not less than 50% must be from SC/ST/OBC/Minorities/Women**).
24. Appointment of Lokpal: Appointed by the **President** on recommendation of a **5-member Selection Committee**: (1) **Prime Minister (Chairperson)**; (2) **Speaker of Lok Sabha**; (3) **Leader of Opposition in Lok Sabha**; (4) **Chief Justice of India (or SC judge nominated by CJI)**; (5) **An Eminent Jurist** nominated by President on recommendation of first 4 members.
25. Jurisdiction of Lokpal: Covers the **Prime Minister** (with specific safeguards regarding international relations, external security, public order, atomic energy, and space), Union Ministers, MPs, Group A, B, C, and D public servants, and NGOs receiving foreign funding > ₹10 lakh/year; has superintendence over CBI for corruption cases.
26. Tenure of Lokpal: Term is **5 years or until attaining 70 years of age**; salary of Chairperson matches CJI; removed by President on grounds of misbehaviour after inquiry by Supreme Court on a petition signed by at least 100 MPs.
27. **Lokayukta in States: Maharashtra was the first State to establish Lokayukta in 1971** (followed by Rajasthan and Bihar 1973); **Odisha** passed the first Lokayukta Act in 1970 but established it later; in **Uttar Pradesh**, the Lokayukta was established under the UP Lokayukta and Up-Lokayuktas Act, **1975** (tenure extended to 8 years in 2012).
28. **Central Bureau of Investigation - CBI:** Established on **1 April 1963** by a resolution of the Ministry of Home Affairs, later transferred to the **Department of Personnel and Training (DoPT), Ministry of Personnel**; operates under the statutory authority of the **Delhi Special Police Establishment (DSPE) Act, 1946** (CBI is NOT a statutory body itself).
29. CBI Director Appointment: Appointed under Section 4A of DSPE Act (amended by Lokpal Act 2013 and CVC Act) on recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Leader of Opposition in Lok Sabha**; (3) **Chief Justice of India (or SC Judge nominated by CJI)**; statutory minimum tenure of **2 years** (can be extended up to 5 years via 1-year annual extensions per 2021 amendment).
30. State Consent for CBI: CBI requires the consent of the State Government under **Section 6 of DSPE Act** to investigate within State territory; **General Consent** enables routine operation, while **Specific Consent** is needed on case-to-case basis if General Consent is withdrawn; however, the **Supreme Court and High Courts can direct CBI**

to investigate any offence anywhere in India WITHOUT State consent (*State of West Bengal v. Committee for Protection of Democratic Rights 2010*).

31. **National Investigation Agency - NIA:** Constituted under the **National Investigation Agency Act, 2008** following the 26/11 Mumbai terrorist attacks; India's federal counter-terrorism law enforcement agency under the **Ministry of Home Affairs**; exercises **concurrent nationwide jurisdiction** to investigate scheduled offences (terrorism, hijacking, atomic offenses, cyber-terrorism) **WITHOUT requiring State government consent**.
32. **National Green Tribunal - NGT:** Established on **18 October 2010** under the **National Green Tribunal Act, 2010** to give effect to **Article 21** (Right to a clean environment); India became the **third country in the world** (after Australia and New Zealand) to establish a specialized environmental tribunal.
33. NGT Structure: Principal Bench is at **New Delhi**; four regional benches at **Bhopal, Pune, Kolkata, and Chennai**; Chairperson must be a retired Supreme Court Judge or retired HC Chief Justice; mandated to dispose of environmental applications within **6 months** of filing; not bound by the Code of Civil Procedure (CPC) 1908, but guided by **Principles of Natural Justice**.
34. **Law Commission of India:** Non-statutory, executive advisory body constituted by the Ministry of Law and Justice every **3 years**; first Law Commission in independent India was established in **1955** chaired by the then Attorney General **M.C. Setalvad**; the **22nd Law Commission** was chaired by **Justice Ritu Raj Awasthi** (examined Uniform Civil Code and simultaneous elections).
35. Pre-Independence Law Commission: The First Law Commission was established in **1834** under the **Charter Act of 1833** chaired by **Lord Macaulay**; drafted the Indian Penal Code (IPC, 1860).
36. **Unique Tenures Summary Table:** NGT Members (5 yrs / 67 or 70 yrs); CVC (4 yrs / 65 yrs); Lokpal (5 yrs / 70 yrs); NHRC (3 yrs / 70 yrs); CIC (3 yrs / 65 yrs); SPSC/UPSC (6 yrs / 62 or 65 yrs).

📋 Must-score facts — Lokpal, CVC, RTI, NITI

Constitutional vs statutory vs executive

Type	Lock
Constitutional	Created by Constitution
Statutory	Created by **Act**
Executive / extra-constitutional	Created by resolution / order (e.g. NITI Aayog)

Body ↔ tag

Body	Lock
Lokpal	Act **2013**; Chair + ≤8; half judicial; first **P.C. Ghose (2019)**
Lokpal selection	PM, LS Speaker, LoP LS, CJI (or nominee), eminent jurist
CVC	Santhanam idea; statutory **2003**; 4 years / age 65
CVC selection	PM, HM, LoP
CIC / SIC	RTI Act **2005** (in force **12 Oct 2005**); reply **30 days**
NITI Aayog	**1 Jan 2015**; replaced Planning Commission; **not** constitutional
NHRC	PHRA **1993**; 1-year complaint limit

Current Affairs

Year	Fact	Why asked
2019	First Lokpal (**P.C. Ghose**)	2013 Act finally operational
2024	Justice **Ajay Manikrao Khanwilkar** became Lokpal Chairperson	Current office-holder
2019	RTI Amendment — term/salary by government	Independence
2019	PHRA amendment — NHRC Chair, 3-year term	Composition
2016	RBI MPC	Monetary policy
2014	Jains notified as minority	NCM
2013	PEMSR Act (manual scavenging)	NCSK neighbour
2011	Anna Hazare / IAC	Political origin of Lokpal Act
2003	CVC Act	Vineet Narain
2015	NITI replaces Planning Commission (योजना आयोग)	Extra-constitutional (2018)
2018	Aspirational Districts	NITI; UP **8** (2021)
2019	NIA Amendment	Schedule / extra-territorial
2025	BHARATPOL	**CBI**, not IB/RAW/ED

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q122

With reference to the Lokpal and Lokayukta Act, 2013, consider the following statements:

1. The Selection Committee of Lokpal consists of the Chairperson of Rajya Sabha (राज्यसभा).
2. It shall apply to Indian public servants both within and outside India.

A. Only 1 B. Only 2 C. 1 and 2 D. Neither 1 nor 2

Q. UKPCS Prelims 2025, Q127

With reference to NITI Aayog, consider the following statements:

1. It was established on January 1, 2014.
2. It was created by a resolution of the Union Cabinet.
3. The President of India is the Chairman of NITI Aayog.

A. 1 and 3 B. Only 1 C. Only 2 D. 2 and 3

Confused Pairs

A	B	Correct	Hindi
Lokpal	**Lokayukta**	Union, 2013 Act	State Act (UP **1975**)
CVC	**CBI**	Statutory watchdog; **no** police power of its own	Investigating agency (DPSE); CVC **supervises** PCA cases
CIC	**NHRC**	RTI appeals	Human-rights complaints; **not** RTI
NHRC	**NCSC**	**Statutory** (1993)	**Constitutional** (338)
NGT	**CAT**	Environment, 2010 Act	Service matters, **323A / 1985**
RBI	**SEBI**	Monetary / currency / banking	Capital market
Search Committee	**Selection Committee**	Shortlists Lokpal names	Recommends to President (2024 panel)
SAT (State AT)	**SAT (securities)**	State service tribunal	SEBI appeals
NITI	**FC**	Executive think-tank (2015)	Constitutional **280**
NITI	**Planning Commission**	Advisory; no Plan-fund allocation	Extra-constitutional **1950**; allocated Plan funds
CBI	**NIA**	DSPE 1946 + 1963 resolution; **State consent**	**Statutory 2008**; **no** consent for scheduled offences
IB	**RAW**	Internal; **1887**; MHA	External; **1968**; Cabinet Secretariat
ED	**CBI**	FEMA / PMLA; Finance (Revenue)	General crime / PCA; DoPT

Three-box map (this topic's job)

Kind	Created by	Facts
Constitutional	Constitution	ECI, UPSC, FC, CAG (भारत के नियंत्रक-महालेखापरीक्षक), NCSC/ST/BC, GST (वस्तु एवं सेवा कर) Council (जीएसटी परिषद), AG…
Statutory	**Act of Parliament / State**	Lokpal, CVC, CIC, NHRC, NGT, CAT, RBI… (above)
Executive / extra-constitutional	**Resolution / order**	**NITI, NDC, CBI, IB, RAW, ED, NSC**. **NIA** is the odd one: **statutory** terror agency parked here because the syllabus lists it with the police/intel set

Agency match card

Agency	Founded	Beat / role	Ministry / reporting line
IB	**1887**	Internal intelligence	**MHA**
ED	**1956**	FEMA / PMLA enforcement	**Finance (Revenue)**
CBI	**1963** (+ DSPE 1946)	Crime / PCA / Interpol NCB	**DoPT**
RAW	**1968**	External intelligence	**Cabinet Secretariat**
NSC	**1998**	Security policy	**PM / NSA**
NIA	**2008** (NIA Act)	Terror investigation, no State consent	**Centre**
NITI Aayog	**2015** (Resolution)	Think-tank / SDG nodal body	**PM chairs**

Zonal Councils, Law Commission & Important National Commissions

1. Zonal Councils (क्षेत्रीय परिषदें)

Zonal Council	Headquarters	Member States & Union Territories
Northern Zonal Council	**New Delhi**	Haryana, Himachal Pradesh, Punjab, Rajasthan, NCT of Delhi, UTs of J&K, Ladakh, and Chandigarh.
Central Zonal Council (मध्य क्षेत्रीय परिषद)	**Prayagraj (Allahabad)** *(High-yield UP exam fact!)*	**Uttar Pradesh, Uttarakhand, Madhya Pradesh, Chhattisgarh**.
Eastern Zonal Council	**Kolkata**	Bihar, Jharkhand, West Bengal, Odisha.
Western Zonal Council	**Mumbai**	Gujarat, Maharashtra, Goa, UTs of Dadra & Nagar Haveli and Daman & Diu.
Southern Zonal Council	**Chennai**	Andhra Pradesh, Telangana, Karnataka, Kerala, Tamil Nadu, UT of Puducherry.

Common Traps

Trap	Correct
Lokpal panel includes RS Chairman	**No** — PM, LS Speaker, LoP LS, CJI/nominee, jurist
CVC is in the Constitution	**No article** (2020)
CVC = CBI	CVC **supervises**; CBI **investigates**
NHRC = Art. 338	**Statutory 1993**. 338 = NCSC
CIC tenure still = CEC	**2019** left it to the Centre
NGT hears Wildlife Protection Act as a scheduled Act	**Not** in the NGT Schedule (nor Indian Forest Act **1927**)
CAT ousts High Courts	*L. Chandra Kumar* — **226 stays**
RBI collects income tax / does census	**Notes**; census ≠ RBI
MSP = RBI or NITI	**CACP**
NCM = 350B	350B = **linguistic** officer; NCM = **religious** minorities, 1992 Act

Trap	Correct
NCSK / NCW = constitutional	**Statutory**
NDMA chaired by Home Minister	**PM**
SEBI created in 1992 from scratch	Executive **1988**, Act **1992**
RBI is a constitutional body	**Statute 1934**; Entry **38** Union List
Search Committee = Selection Committee (Lokpal)	Search **shortlists**; Selection **recommends**; President **appoints**
CVC appoints CBI Director	Panel = **PM + LoP LS + CJI** (DPSE). CVC only supervises PCA work
₹1 note signed by RBI Governor	**GoI**; Finance Secretary
NEC of NDMA chaired by HM	**Cabinet Secretary**
NGT is Art. 323A	**323A = CAT**. NGT = 2010 Act
Political parties are settled RTI public authorities	CIC said so (2013); **not enforced**
NITI = constitutional / FC	**Resolution 2015**; FC is **280**
NITI allocates Plan funds / recommends MSP	Think-tank; MSP = **CACP**
CBI = statutory like CVC	**1963 resolution** + DSPE **1946**
CBI under MHA	**DoPT**. IB = MHA
CBI can enter any State like NIA	Needs **s.6 consent** (unless court)
BHARATPOL = IB or RAW	**CBI** (2025)
RAW under MHA	**Cabinet Secretariat**. IB = MHA
ED = CBI wing	**Finance (Revenue)**; FEMA/PMLA
NIA needs State consent	**Does not** (2008 Act)
NSC = NDMA	NSC **1998** security policy; NDMA **2005** disaster
First NITI VC = Rajiv Kumar	**Arvind Panagariya**
Human Rights Day = 29 January	**10 December** (2025)
CCI still appeals to COMPAT	**NCLAT** from **2017**
WPI = RBI	**Ministry of Commerce & Industry**
NDMA Chair = HM because MHA is nodal	Chair = **PM** (2021)

Topic 14 — Elections

Consolidated — 35 Must-Score Facts

1. **Part XV (Articles 324–329A)** of the Constitution governs the electoral machinery in India; **Article 324** vests the superintendence, direction, and control of the preparation of electoral rolls and conduct of all elections to Parliament and State Legislatures, and to the offices of President and Vice-President, in the **Election Commission of India (ECI)**.
2. **Article 325** mandates that there shall be **one general electoral roll** for every territorial constituency and prohibits discrimination or inclusion/exclusion on grounds **only of religion, race, caste, sex, or any of them**.
3. **Article 326** establishes **Universal Adult Suffrage** for elections to the Lok Sabha and State Legislative Assemblies; every citizen of India who is not less than **18 years of age** on the qualifying date has the right to be registered as a voter.
4. Voting Age Lowered: The voting age was reduced from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (enacted under the Rajiv Gandhi government, came into force on **28 March 1989**).
5. **Article 327 & 328:** Article 327 empowers **Parliament** to make provisions by law with respect to all matters relating to elections to Parliament and State Legislatures (including delimitation and electoral rolls); Article 328 gives residual power to State Legislatures subject to parliamentary laws.
6. **Article 329 (Bar on Interference by Courts):** Courts are barred from questioning the validity of any law relating to the delimitation of constituencies or allotment of seats under Art. 327/328; **no election can be called in question except by an Election Petition** presented to the High Court under the Representation of the People Act, 1951.
7. **Representation of the People Act, 1950 (RPA 1950):** Primarily deals with: (1) Allocation of seats in the Lok Sabha and State Legislative Assemblies/Councils; (2) Delimitation of constituencies; (3) Qualifications and disqualifications of voters; (4) Preparation and revision of **Electoral Rolls**.
8. **Representation of the People Act, 1951 (RPA 1951):** Primarily deals with: (1) Actual conduct of elections and bye-elections; (2) Qualifications and disqualifications for membership of Parliament and State Legislatures; (3) Corrupt practices and electoral offences; (4) Settlement of election disputes (Election Petitions); (5) Registration and regulation of **Political Parties (Section 29A)**.
9. **Prisoners' Right to Vote (Section 62(5) of RPA 1951):** A person confined in a prison (whether under sentence of imprisonment or transportation or lawful custody of police) **CANNOT VOTE** in any election; **Exception**: A person subjected to **Preventive Detention** under any law **IS ENTITLED TO VOTE** via postal ballot.
10. Disqualification on Criminal Conviction (**Section 8 of RPA 1951**): Under Section 8(1) and 8(2), conviction for specified offences (promoting enmity, rape, corruption) triggers automatic disqualification; under **Section 8(3)**, conviction for any other offence with imprisonment of **not less than 2 years** results in disqualification **from the date of conviction and for a further period of 6 years after release**.
11. In ***Lily Thomas v. Union of India (2013)***, the Supreme Court struck down **Section 8(4) of RPA 1951** (which allowed sitting MPs/MLAs a 3-month protection against immediate disqualification if an appeal was filed) as unconstitutional; convicted sitting legislators are now **immediately disqualified upon conviction**.
12. Candidate Affidavit and Right to Know: In ***Union of India v. Association for Democratic Reforms - ADR (2002)*** and ***PUCL (2003)***, the SC ruled that voters have a Fundamental Right under **Article 19(1)(a)** to know criminal antecedents, assets, liabilities, and educational qualifications of candidates via mandatory affidavit (**Form 26**).
13. **None of the Above (NOTA):** Introduced in India following the Supreme Court's landmark judgment in ***People's Union for Civil Liberties (PUCL) v. Union of India (2013)***; NOTA gives voters the right to register a negative vote; however, NOTA votes have only symbolic value (if NOTA gets the highest votes, the candidate with the second highest votes is declared elected, except in certain municipal polls in Maharashtra/Haryana where re-polls were ordered).
14. **Electronic Voting Machines (EVMs):** First used in a bye-election in **Paravur Assembly constituency in Kerala in May 1982**; first used in an entire State election in **Goa in 1999**; used in all parliamentary constituencies across India in the **2004 Lok Sabha General Elections**; manufactured by two PSUs: **Bharat Electronics Limited (BEL)** and **Electronics Corporation of India Limited (ECIL)**; maximum capacity is **2,000 votes** and can record up to **64 candidates** (expandable to 384 with 24 Balloting Units).
15. **Voter Verifiable Paper Audit Trail (VVPAT):** Introduces a paper slip containing candidate name, symbol, and serial number visible for **7 seconds** before dropping into a sealed box; first used in the **Noksen Assembly constituency in Nagaland in September 2013**; 100% VVPAT deployment implemented in the **2019 Lok Sabha General Elections**; under SC directive in 2019, VVPAT slips of **5 randomly selected polling stations per assembly constituency** are verified against EVM count.
16. **Delimitation Commission:** An independent statutory commission constituted under Delimitation Commission Acts to redraw territorial constituencies based on the latest census; **Delimitation Commission orders have the full force of law and CANNOT BE QUESTIONED IN ANY COURT OF LAW**; Delimitation Commissions have been constituted 4 times: in **1952, 1962, 1972, and 2002** (headed by Justice Kuldip Singh).
17. Constituency Freeze: The **42nd Amendment Act, 1976** froze the total number of seats in Lok Sabha and State Assemblies based on the **1971 Census until the year 2000**; the **84th Amendment Act, 2001** extended this freeze on total seats for another 25 years (until the first census after **2026**); the **87th Amendment Act, 2003** provided that delimitation of boundaries within States be done based on the **2001 Census**.
18. **Model Code of Conduct (MCC):** A set of guidelines agreed upon by political parties to govern conduct during elections; **comes into force immediately upon the announcement of election schedule by the ECI** and remains in operation until the completion of the electoral process; the MCC **DOES NOT have statutory backing** (it is a consensus-based voluntary moral code), but ECI enforces it under its plenary powers under Article 324.
19. Origin of MCC: First introduced in **Kerala Assembly elections in 1960** as a voluntary code; adopted by ECI during 1962 Lok Sabha elections; comprehensive code drafted in 1979.
20. **Electoral Reforms Committees Chronology:** (1) **Tarkunde Committee (1974–75)**: Appointed by J.P. Narayan (Citizens for Democracy); recommended lowering voting age to 18, multi-member ECI, and TV/radio time for parties; (2) **Dinesh Goswami Committee (1990)**: Recommended use of EVMs, rotation of reserved seats, curbing booth capturing; (3) **Vohra Committee (1993)**: Investigated politician-criminal-bureaucrat nexus; (4) **Indrajit Gupta Committee (1998)**: Recommended **State funding of elections** (partial state funding in kind: fuel, paper, microphones); (5) **Law Commission 170th Report (1999)**: Pre-poll alliances, banning candidates contesting two seats; (6) **J.S. Verma Committee (2013)**: Disqualification for sexual offences against women.
21. Contesting from Multiple Seats: Under **Section 33(7) of RPA 1951** (amended in 1996), a candidate can contest an election from a **maximum of TWO constituencies**; the Dinesh Goswami Committee and ECI have recommended restricting it to only one constituency.
22. Security Deposit for Elections: Lok Sabha general candidate = **₹25,000** (₹12,500 for SC/ST); Vidhan Sabha general candidate = **₹10,000** (₹5,000 for SC/ST); forfeited if candidate fails to secure **more than 1/6th (16.67%) of the total valid votes** polled.
23. Campaign Silence Period: Under Section 126 of RPA 1951, all public campaigning, rallies, and media advertisements must end **48 hours before the conclusion of polling**.
24. **Electoral Bonds Scheme Struck Down (2024):** Introduced in Finance Act 2017 to allow anonymous corporate and individual donations to political parties via interest-free bearer bonds issued by SBI; in ***Association for Democratic Reforms v. Union of India (February 2024)***, a unanimous 5-judge Constitution bench headed by CJI D.Y. Chandrachud **struck down the Electoral Bonds Scheme as unconstitutional**, holding that anonymous political funding violates the voter's **Right to Information under Article 19(1)(a)**.
25. Voting Facilities: **Postal Ballot** is available to: Service voters (Armed forces), Special voters (President, Governors), voters on election duty, electors subjected to preventive detention, and (since 2019/2020) senior citizens above **85 years** and Persons with Disabilities (PwDs > 40%).
26. **Election Expenditure Limits:** For Lok Sabha constituencies, maximum limit is **₹95 lakh** in larger States (including UP, Maharashtra, Bihar) and **₹75 lakh** in smaller States/UTs; for Assembly constituencies, maximum limit is **₹40 lakh** in larger States and **₹28 lakh** in smaller States (revised in 2022).
27. Candidate Election Accounts: Every candidate must maintain a separate account of election expenses from nomination date to result declaration; under **Section 78 of RPA 1951**, the account must be lodged with the District Election Officer (DEO) within **30 days of election declaration**; failure to do so results in disqualification for **3 years** under Section 10A.

28. **Tenth Schedule Disqualification Nuances:** A legislator is disqualified under defection if: (a) voluntarily gives up party membership; (b) votes or abstains contrary to party whip without prior permission and not condoned within 15 days; (c) an **independently elected member joins ANY political party**; (d) a **nominated member joins a political party AFTER expiry of 6 months** (joining within 6 months is permitted!).
29. Tenth Schedule Exceptions: (1) **Merger**: Where original party merges with another and **not less than 2/3rd of the members** of the legislature party agree to such merger; (2) **Presiding Officer**: If a member elected as Speaker/Chairman resigns party membership and does not rejoin while holding office.
30. Deciding Authority on Defection: Decided by the **Presiding Officer of the House**; in ***Kihoto Hollohan (1992)***, SC struck down para 7 (barring judicial review), holding that the Presiding Officer acts as a **Tribunal** and his decision is subject to **Judicial Review** on grounds of mala fides, perversity, or violation of natural justice.
31. In ***Keisham Meghachandra Singh v. Speaker, Manipur (2020)***, the Supreme Court ruled that Speakers should decide anti-defection petitions within a **reasonable period of 3 MONTHS**, failing which courts can intervene.
32. **NRI Voting Rights:** Under the Representation of the People (Amendment) Act, **2010**, Non-Resident Indians (NRIs holding valid Indian passports) were given voting rights; however, they **must vote in person** at the polling station in their constituency (postal/proxy voting for NRIs is not yet operationalized).
33. **Electoral Trust Scheme (2013):** Created under Section 8(1)(b) of the Companies Act to streamline corporate funding to registered political parties; requires distributing at least **95% of contributions** received in a financial year to political parties; distinct from the struck-down Electoral Bonds Scheme.
34. Exit Polls vs Opinion Polls: Under **Section 126A of RPA 1951**, conducting and publishing **Exit Polls is completely BANNED from the commencement of polling on the first day until half an hour after closing of polling on the final day** across all phases; Opinion Polls are banned only during the 48-hour silence period before each phase.
35. **Chief Electoral Officer (CEO) and District Election Officer (DEO):** The CEO heads election administration in a State, appointed by ECI in consultation with State government; the DEO (normally the District Magistrate/Collector) supervises elections at the district level; Returning Officer (RO) conducts elections for a constituency.

📋 Must-score facts — suffrage, systems, RPA

Articles

Article	Lock
324	EC superintendence
326	Universal adult suffrage
327 / 328	Parliament / State election law
329	Bar on court interference (election petition path)
61st	Voting age **21** → **18**

Systems

System	Used for
First Past the Post	Lok Sabha; Vidhan Sabha (विधानसभा)
PR-STV	President; VP; Rajya Sabha; State Councils

Quick locks

Item	Lock
Prisoner vote	Generally **no** (RPA 62(5)); undertrial nuance in teaching
Bye-election	Ordinarily within **6 months**
Presidential MLA vote value	**1971** population formula
Model Code	EC-enforced; not in Constitution text

Current Affairs

Year	Fact	Why asked
2023	CEC Act — appointment panel **without CJI**	CEC Act 2023 panel sans CJI; machinery still 324
2023	**106th** — 33% women, after delimitation	Reserved seats
2019–20	**104th** — Anglo-Indian nomination ends; SC/ST quota till 2030	331/333/334
2011	First National Voters' Day	25 January
2001/03	84th freeze / 87th redraw on 2001 census	Delimitation
1988–89	**61st** — voting (गणपूर्ति) age 18	326
2003	RS elections: **open ballot** for party vote	PR-STV trap
2022	Four (चातुर्याम) qualifying dates for the roll	Age 18 tested quarterly
2013	NOTA (*PUCL*) · VVPAT Noksen	2025 chronology
2018–24	Electoral bonds; SC struck down Feb 2024	Party funding
2003	91st Amendment — merger 2/3, split gone	10th Schedule
2023–24	Kovind committee, simultaneous polls	Not yet law

Confused Pairs

A	B	Correct	Hindi
ECI	**SEC**	Parliament, State Houses, President, VP	PRI + ULB only (**243K/ZA**)
ECI	**Delimitation Commission**	Conducts polls (324)	Statutory panel that **draws** seats
RPA 1950	**RPA 1951**	Rolls, seats, delimitation machinery	Conduct, corrupt practices, petitions
FPTP	**PR-STV**	LS / Assembly	President, VP, RS, Councils

A	B	Correct	Hindi
325	**326**	One roll; no communal electoral roll	Adult suffrage (age)
330/332	**331/333**	SC/ST reserved *constituencies*	Anglo-Indian *nomination* — **ended 104th**
MCC	**s.126 RPA**	ECI convention	Statutory 48-hour ban
327	**328**	Parliament's election law	State law, **subject to** 327
General election	**Bye-election**	Whole House	Casual vacancy (6 months / skip if <1y)
Registration (29A)	**Recognition**	Any association → RUPP	National / State party (Symbols Order)
Reserved symbol	**Free symbol**	Recognised parties	RUPP / independents
NOTA	**Re-poll**	Button; result still the highest candidate	Booth cancelled / countermanded
EVM	**VVPAT**	Records the vote	Paper slip the voter sees
Election petition	**Art. 71**	LS/Assembly → **HC**	President/VP → **SC**

Proportional Representation

Election	System
President (55) / VP (66)	PR-STV. MLA vote-value = 1971 population ÷ (elected MLAs × 1000); MP value = total MLA values ÷ elected MPs
Rajya Sabha (राज्यसभा) (elected seats)	PR-STV; electoral college = **MLAs** of that State. Party vote is **open ballot** (**2003** RPA amendment — anti-cross-voting). **Not** the same secrecy as President/VP
UP Vidhan Parishad (विधान परिषद)	UP **has** a Council; the MLA / graduate / teacher / local-body slices use the **171** mix (PR-STV where listed)
Legislative Council (where it exists)	Partly PR-STV (MLAs / graduates / teachers / local bodies as 171 lists)
Lok Sabha / Assembly	**FPTP**, not PR

Political Party Recognition (Symbols Order, 1968)

National party (any one)	State party (any one, in that State)
6% votes in LS **or** Assembly elections in **four** (चातुर्याम) States **and4** LS seats	**6%** votes in that State's Assembly **or** LS poll **and2** MLAs **or1** MP
2% of LS seats (**11** of 543) from at least **three** States	**3%** of Assembly seats **or 3 seats**, whichever is more
Recognised as **State party in four** States	**1** LS seat per **25** LS seats of that State (min 1)
	8% of total valid votes in the State (even without a seat)

Common Traps

Trap	Correct
ECI elects the Speaker / runs municipal polls	**House** / **SEC** (2024)
ECI = Delimitation Commission	**Separate** statute; CEC may *sit*
Voting age cut by 62nd / 86th	**61st** (2021)
UAF = Article 324	**326**. 324 = superintendence
LS uses PR	**FPTP**. PR-STV = President/VP/RS/Councils
President elected by FPTP	**PR-STV** (MLA vote-value uses 1971 population)
MCC is an Act	**Convention** + 324. The 48-hour **statute** is **s.126 RPA**
RS election is secret like the President	Party vote = **open ballot (2003)**
Bye-poll always within 6 months	Skip if remainder of term **< 1 year**
95th still the last word on 334	**104th** carried SC/ST quota to **2030**
Voters' Day = 26 January	**25 January** (ECI's birthday)
Constitution Day = 27 January	**26 November**
Delimitation order can be stayed like a statute in HC	**329** bar
84th froze internal boundaries forever	Froze **State-wise totals**; **87th** redrew on 2001
Anglo-Indians still nominated to LS	**104th ended** it
106th already applied in 2024 LS	**After** next delimitation
Prisoners vote if their names are on the roll	**s.62(5)** — custody blocks the vote
7th Lok Sabha = 1982	**1980** (2022)
Registration = national party	**s.29A** only registers; recognition is **Symbols Order**
1/3 split still saves defectors	**91st deleted** it; merger = **2/3**
NOTA wins → re-poll	**No** — highest candidate still elected
VVPAT first in 2019	First **Noksen 2013**; nationwide 2019
EPIC before EVM	**EVM 1982**, EPIC **1993** (2025)
Election petition in SC first	**HC**; President/VP = **71**
Star campaigners = 40 for every party	**40** recognised / **20** unrecognised
Electoral bonds still valid	**SC 2024** struck down
Simultaneous polls by ECI circular	Needs **83/85/172/174**

Topic 15 — Emergency Provisions

Consolidated — 36 Must-Score Facts

1. **Part XVIII (Articles 352–360)** of the Constitution contains the Emergency Provisions, designed to enable the Union government to meet grave threats to national security, constitutional machinery, or financial stability; converts the federal structure into a **unitary system without formal constitutional amendment**.
2. Three Types of Emergencies: (1) **National Emergency (Article 352)**; (2) **President's Rule / State Emergency (Article 356)**; (3) **Financial Emergency (Article 360)**.
3. Emergency framework borrowing: The administrative machinery and distribution of emergency powers are drawn from the **Government of India Act, 1935**, while the provision for **suspension of Fundamental Rights during emergency** was borrowed from the **Weimar Constitution of Germany**.
4. **National Emergency (Article 352):** Proclaimed by the President when the security of India or any part thereof is threatened by **War, External Aggression, or Armed Rebellion**; can be declared for the whole of India or a specific geographical part (42nd Amd 1976).
5. External vs Internal Emergency: An emergency declared on grounds of **War or External Aggression** is termed **'External Emergency'**; an emergency declared on the ground of **Armed Rebellion** is termed **'Internal Emergency'**.
6. 44th Amendment Safeguard — Armed Rebellion: Originally, the third ground was **'Internal Disturbance'**; the **44th Constitutional Amendment Act, 1978** substituted **'Armed Rebellion'** for 'Internal Disturbance' to prevent arbitrary political misuse as occurred in June 1975.
7. 44th Amendment Safeguard — Written Cabinet Advice: Under **Article 352(3)** (inserted by 44th Amd), the President can issue a proclamation of emergency **ONLY upon the written recommendation of the Union Cabinet** (Prime Minister + other Ministers of Cabinet rank under Art. 75), not on the oral advice of the Prime Minister alone.
8. Parliamentary Approval for Article 352: Must be approved by **both Houses of Parliament within 1 MONTH** from date of issue (shortened from 2 months by 44th Amd); if Lok Sabha is dissolved, approved by Rajya Sabha within 1 month and then by Lok Sabha within **30 days** of its first sitting.
9. Majority Required for Approval: Must be approved by a **Special Majority** in each House (majority of total membership + not less than **2/3rd of members present and voting**; 44th Amd replaced simple majority).
10. Duration and Renewal: Once approved, remains in force for **6 months**; can be extended indefinitely for successive periods of **6 months at a time**, with each extension requiring a fresh resolution passed by special majority.
11. Revocation of National Emergency (**Article 352(7) & (8)**): Can be revoked by President at any time by subsequent proclamation (does not require parliamentary approval); **Mandatory Disapproval**: The Lok Sabha can pass a resolution disapproving the continuation of emergency by a **Simple Majority**; if **1/10th of total Lok Sabha members** give written notice to the Speaker (or President if House not in session), a special sitting of Lok Sabha must be held within **14 days** to consider disapproval.
12. Historical Invocations of Article 352: Declared **3 times**: (1) **October 1962** (Chinese aggression in NEFA, revoked Jan 1968); (2) **December 1971** (Indo-Pak War, Bangladesh liberation); (3) **25 June 1975** (declared on grounds of 'Internal Disturbance' by President Fakhruddin Ali Ahmed on Indira Gandhi's advice; both 1971 and 1975 emergencies revoked in March 1977).
13. Effects on Centre-State Relations: Executive power of Union extends to giving executive directions to any State on any matter (**Art. 353(a)**); Parliament is empowered to make laws on any subject in the **State List (Article 250)** (State Legislature is NOT suspended, but concurrent parliamentary dominance applies); laws made by Parliament on State List lapse **6 months** after emergency ceases.
14. Effect on Fundamental Rights — Article 358: Automatically suspends the **Six Democratic Freedoms guaranteed under Article 19**; operates **ONLY during an External Emergency** (War or External Aggression); under 44th Amendment, **Article 19 CANNOT be suspended during an emergency declared on grounds of Armed Rebellion**.
15. Effect on Fundamental Rights — Article 359: Empowers the President by order to suspend the **right to move any court for the enforcement of specified Fundamental Rights** (the rights themselves are not suspended, only their legal remedy is suspended); applies to both external and internal emergency.
16. Inviolable Rights under Article 359: The **44th Amendment Act, 1978** amended Article 359 to stipulate that the President **CANNOT suspend the right to enforce Articles 20 and 21 under any circumstances**; right to protection in respect of conviction for offences (Art. 20) and right to life and personal liberty (Art. 21) remain fully enforceable even during National Emergency (overruling the infamous ***ADM Jabalpur v. Shivkant Shukla 1976 - Habeas Corpus case***).
17. **President's Rule / State Emergency (Article 356):** Imposed by the President on receipt of a report from the **Governor** of a State or otherwise, when satisfied that a situation has arisen in which the **government of the State cannot be carried on in accordance with the provisions of the Constitution**.
18. **Article 365 as Ground for President's Rule:** Where any State fails to comply with or give effect to any direction given by the Union in exercise of its executive power, it shall be lawful for the President to hold that a situation has arisen under which the State government cannot be carried on in accordance with the Constitution.
19. Parliamentary Approval for Article 356: Must be approved by **both Houses of Parliament within 2 MONTHS** from the date of issue; requires only a **Simple Majority** of members present and voting in each House.
20. Duration of Article 356: Once approved, continues for **6 months**; can be extended for a maximum period of **3 years** with parliamentary approval every 6 months.
21. 44th Amendment 1-Year Restriction on Article 356: Beyond **1 year**, President's Rule can be extended only if **TWO conditions** are simultaneously met: (1) A proclamation of National Emergency is in operation in whole of India or part of the State; AND (2) The **Election Commission certifies** that holding general assembly elections in the State is difficult.
22. Consequences of President's Rule: President dismisses State Council of Ministers headed by Chief Minister; Governor administers the State with Chief Secretary/advisors; President either **suspends or dissolves the State Legislative Assembly**; powers of State Legislature are declared to be exercisable by **Parliament**.
23. Landmark Case — ***S.R. Bommai v. Union of India (1994)***: 9-judge Constitution bench established: (1) Proclamation under Article 356 is subject to **Judicial Review** on grounds of mala fides or extraneous considerations; (2) The Legislative Assembly **CANNOT BE DISSOLVED until Parliament approves the proclamation** (can only be suspended initially); (3) If court strikes down proclamation, it has power to **reactivate and restore the dissolved Assembly and Ministry**; (4) Secularism is part of the Basic Structure (state government acting against secularism can be dismissed).
24. Historical Invocations of Article 356: First imposed in **Punjab in June 1951**; **Uttar Pradesh** has experienced President's Rule the most times (**10 times**); Manipur also 10 times; Kerala and Punjab around 9 times each; the only States that have never had President's Rule are **Chhattisgarh and Telangana** (since their formation).
25. **Financial Emergency (Article 360):** Proclaimed by President if satisfied that a situation has arisen whereby the **financial stability or credit of India or any part thereof is threatened**; must be approved by Parliament within **2 MONTHS by Simple Majority**; remains in force indefinitely until revoked (no periodic re-approval required).
26. Consequences of Article 360: Union executive can direct States to observe canons of financial propriety; President can direct reduction of salaries and allowances of all persons serving in the Union and States, **including Judges of the Supreme Court and High Courts**; all Money Bills and financial bills passed by State Legislatures can be reserved for President's consideration.
27. Invocation Fact: A Financial Emergency under Article 360 **HAS NEVER BEEN DECLARED IN INDIA** so far.
28. **President's Rule in Uttar Pradesh:** UP has been placed under President's Rule **10 times** (the highest along with Manipur); first imposed in UP in **February 1968** under Governor B. Gopala Reddy; longest stretch was from October 1995 to March 1997.
29. **S.R. Bommai Bench Strict Tests (1994):** The Supreme Court laid down 6 negative tests where Article 356 CANNOT be used: (1) Where a ministry resigns or is dismissed and Governor does not explore alternative ministry; (2) Where Governor unilaterally assesses majority without a **Floor Test** in the Assembly; (3) Where ruling party suffers defeat in Lok Sabha elections; (4) Internal disturbances not amounting to complete paralysis; (5) Severe corruption allegations; (6) Financial difficulties.
30. Floor Test Primacy: In *S.R. Bommai*, SC established that the **Floor of the Assembly is the ONLY forum** for testing the majority of the Ministry, not the subjective opinion of the Governor.
31. **Article 355 Duty of the Union:** 'It shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the government of every State is carried on in accordance with the provisions of this Constitution'; acts as the constitutional justification for invoking Articles 352 and 356.

32. Difference between Articles 358 and 359: Article 358 automatically suspends **Article 19** throughout India without Presidential order (only during external emergency); Article 359 requires a **Presidential Order**, does not suspend the rights themselves but only their legal enforcement, applies to specified FRs (excluding 20 & 21), and can apply to the whole or part of India.
33. Impact of National Emergency on Lok Sabha Life: Under Article 83(2) proviso, Parliament can by law extend the 5-year life of the **Lok Sabha for 1 year at a time**, for an unlimited number of times, but cannot extend beyond **6 months** after the emergency has ceased; the 5th Lok Sabha (1971–1977) was extended twice.
34. Impact on State Legislative Assembly Life: Under Article 172(1) proviso, Parliament can similarly extend the normal term of any **State Legislative Assembly for 1 year at a time** during a National Emergency.
35. Fundamental Rights in Financial Emergency: Under Article 360, **NO Fundamental Rights are suspended**; the executive only acquires powers over financial allocations and salary cuts.
36. Judicial Review of Emergency Proclamations: The 38th Amendment (1975) made President's satisfaction final and non-justiciable; the **44th Amendment (1978) deleted this clause**; in ***Minerva Mills (1980)*** and ***S.R. Bommai (1994)***, SC established that both National Emergency and President's Rule are **subject to judicial review** on grounds of mala fides or irrationality.

📋 Must-score facts — 352, 356, 360

Three Emergencies

Type	Article	Grounds / tag
National	**352**	War, external aggression, armed rebellion
President's Rule	**356**	Failure of constitutional machinery (linked **355**)
Financial	**360**	Threat to financial stability / credit

National Emergency locks

Item	Lock
Advice	**Written Cabinet** advice (not PM alone) — 44th lesson
Duration	**6 months** slices with approval; LS can disapprove
Used	**1962**, **1971**, **1975–77**
Art. 358	Auto-suspends **Art. 19** only for war/external (not armed rebellion alone in refined teaching)
Art. 359	Can suspend enforcement; **20 & 21 never**

President's Rule

Item	Lock
Floor test	*Bommai* — majority in House
Approval	Parliament within **2 months**; renewable

Current Affairs

Why these years are asked.

- **2024:** 352 Assertion–Reason; Financial Emergency matched to **360** (direct PYQ).
- **1978:44th Amendment** rewrite — every 352 / 358 / 359 question.
- **1994:** *Bommai* — 356 is justiciable.
- **1975–77:** Internal Emergency — why the 44th exists.
- **Never:** Art. **360** ("Which has never been used?").
- **1977–78:** Shah Commission on 1975 excesses.
- **1992:** UP President's Rule after Babri (Leading state).

Confused Pairs

A	B	Correct	Hindi
352	**356**	National / security	State constitutional machinery
352	**360**	War / aggression / rebellion	Financial stability / credit
358	**359**	Art. **19** auto (war/external only)	Other FRs by **order**; not **20 & 21**
Special majority (352)	**Simple (356/360)**	Total membership + 2/3 P&V, both Houses	Ordinary majority, both Houses
1 month (352)	**2 months (356/360)**	Time to get parliamentary approval	
Martial law	**National Emergency**	Military, local, Art. **34**	Constitutional, civilian, **352**
355	**356**	Union **duty** to protect States	The **proclamation** that takes over
National Emergency	**State Emergency**	Textbook name for **352**	Textbook name for **356** (the Constitution never uses that phrase)
External 352	**Internal 352**	War / external aggression (1962, 1971)	Armed rebellion (1975 was still "internal disturbance")

44th Amendment (1978) — emergency rewrite

Before (38th/42nd (42वां) / 1975 practice)	After 44th
"Internal disturbance" enough for 352	**Armed rebellion**
PM could get a proclamation without Cabinet	**Written Cabinet** advice
Approval window **2 months**	**1 month**

Before (38th/42nd (42वां) / 1975 practice)	After 44th
Ordinary majority talk in the 42nd era	**Special** majority for 352
No LS veto of 352	**LS disapproval → revoke**
358 hit Art. 19 in every 352	358 **only** war / external aggression
359 could reach **21** (*ADM Jabalpur*)	**20 and 21 cannot** be suspended
President's "satisfaction" final (38th)	Finality clause **gone**
356 extendable loosely	Beyond 1 year: **352 in force + EC certificate**
352 approval = **simple** majority (original)	**Special** majority
358/359 acts need not recite the Emergency	**Nexus + recital** (44th) — a law/order **unrelated** to the Emergency does not get 358/359 cover
360 satisfaction also "final" (38th)	Finality **gone** for 360 too

Common Traps

Wrong stem → correct fact.

- "356 establishes the Supreme Court" → **Art. 124**. Article 356 is President's Rule.
- "352 grounds are still 'internal disturbance'" → **armed rebellion** (44th Amendment).
- "352 can rest on the PM's oral okay" → needs **written Cabinet** advice (44th).
- "358 applies in an armed-rebellion Emergency" → 358 applies **only** in war / external aggression.
- "359 can suspend Article 21" → **never** Arts. 20 and 21 (44th).
- "356 approval needs special majority" → **simple** majority; special majority is for **352**.
- "352 approval window is 2 months" → **1 month** (44th).
- "360 was used in 1991 / 1997" → **never** used.
- "Martial law = Art. 352" → Art. **34** indemnity; there is no martial-law proclamation article.
- "356 dissolves the Assembly on day one" → *Bommai*: wait for **parliamentary** approval.
- "Financial Emergency suspends FRs" → **No**.
- "Lok Sabha life extends automatically for 5 more years" → **1 year** at a time, and not beyond **6 months** after 352 ends.
- "Rajya Sabha can force revocation of 352" → only a **Lok Sabha** disapproval can force revoke.
- "Residual powers = Australia" → residuary = **Canada**. Emergency FR-suspension idea = **Germany** (2021).
- "352 always needed special majority" → original approval was **simple**; the **44th** made it special.
- "President may take over a High Court under 356" → the President **expressly cannot**.
- "358 covers every 352, including armed rebellion" → **only** war / external aggression.
- "353 directions only on the Union List" → directions may cover **any** matter; proviso applies if 352 is territorial.
- "Martial law = Art. 33" → **33** = armed-forces FR restriction; martial indemnity = **34**.
- "360 suspends FRs / needs 6-month renewal" → **no** FR switch; it runs till revoked.
- "Only the Lok Sabha (not State Assemblies) can be extended in 352" → **Art. 172** too — one year at a time.

Topic 16 — Constitutional Amendments

Consolidated — 35 Must-Score Facts

1. **Part XX (Article 368)** governs the amendment of the Constitution; Parliament exercises **Constituent Power** to amend by way of addition, variation, or repeal any provision of the Constitution in accordance with the procedure laid down in Article 368; borrowed from the **South African Constitution**.
2. Procedure for Amendment under Article 368: An amendment Bill can be introduced in **EITHER House of Parliament (Lok Sabha or Rajya Sabha)**; it **CANNOT be introduced in a State Legislature**; can be introduced by a Minister or a Private Member, and **DOES NOT require prior recommendation of the President**.
3. Separate Passage Mandatory: An amendment Bill must be passed in **each House separately by a Special Majority**; **there is NO provision for a Joint Sitting** of both Houses under Article 108 to resolve a deadlock on a Constitutional Amendment Bill (if either House rejects it, the bill dies).
4. Assent of President Mandatory: Under the **24th Constitutional Amendment Act, 1971**, the President **MUST give assent** to a Constitutional Amendment Bill passed by Parliament; the President **cannot withhold assent nor return the bill** for reconsideration.
5. **Three Methods of Constitutional Amendment:** (1) By **Simple Majority of Parliament** (outside Article 368); (2) By **Special Majority of Parliament** (under Article 368); (3) By **Special Majority of Parliament AND Ratification by Legislatures of not less than half the States** (under Article 368 for federal provisions).
6. Amendments by **Simple Majority (Outside Art. 368)**: (a) Admission or establishment of new States (Art. 2); (b) Formation of new States and alteration of areas/boundaries/names (Art. 3); (c) Abolition or creation of State Legislative Councils (**Art. 169**); (d) Second Schedule emoluments; (e) Quorum in Parliament; (f) Rules of procedure; (g) Official language; (h) Elections to Parliament/Assemblies; (i) 5th and 6th Schedules.
7. Amendments by **Special Majority (Article 368)**: Requires: (1) A majority of the **Total Membership of the House** (> 50% of total seats); AND (2) A majority of **not less than 2/3rds of the members of that House present and voting**; covers Fundamental Rights (Part III), DPSPs (Part IV), and all other provisions not covered by simple majority or state ratification.
8. Amendments by **Special Majority PLUS State Ratification**: Required for provisions affecting federal structure: (a) Election of President (Arts. 54 & 55); (b) Extent of executive power of Union and States (Arts. 73 & 162); (c) Supreme Court and High Courts (Arts. 124–147, 214–231); (d) Distribution of legislative powers (7th Schedule Lists); (e) Representation of States in Parliament (4th Schedule); (f) Article 368 itself.
9. State Ratification Rules: Requires ratification by resolutions passed by the **Legislatures of not less than HALF of the States** by a **Simple Majority** of members present and voting; there is **no time limit** prescribed in the Constitution within which States must ratify or reject.
10. **Evolution of Amending Power & Basic Structure:** (1) ***Shankari Prasad (1951)***: Upheld 1st Amendment; ruled Parliament under Art. 368 can amend Fundamental Rights; 'law' in Art. 13 applies only to ordinary law; (2) ***Sajjan Singh (1965)***: Reaffirmed Shankari Prasad; (3) ***Golaknath (1967)***: 11-judge bench (6:5) overruled earlier cases, holding Fundamental Rights are transcendental and unamendable under Art. 368.
11. **24th Constitutional Amendment Act, 1971:** Enacted to overcome Golaknath; amended Article 13 (inserted Art. 13(4)) and Article 368 (inserted Art. 368(3)) declaring that constitutional amendments are not 'law' within the meaning of Article 13; affirmed Parliament's power to amend any part including Part III; made Presidential assent compulsory.
12. ***Kesavananda Bharati v. State of Kerala (24 April 1973)***: Largest Constitution bench in Indian legal history (**13 judges**, 7:6 verdict); upheld the validity of 24th Amendment, but propounded the **Basic Structure Doctrine**: Parliament has wide constituent power to amend any part of the Constitution including Fundamental Rights, but **CANNOT alter the Basic Structure or framework** of the Constitution.
13. ***Minerva Mills v. Union of India (1980)***: Struck down clauses (4) and (5) inserted in Article 368 by the 42nd Amendment (which had claimed unlimited amending power); held that **a limited amending power is itself a Basic Feature** of the Constitution; reaffirmed balance between Part III and Part IV.
14. **1st Constitutional Amendment Act, 1951:** Inserted **Article 31A, Article 31B, and the Ninth Schedule** to insulate land reforms and abolition of Zamindari from judicial review; inserted **Article 15(4)** allowing special provisions for advancement of SEBCs/SCs/STs (following *Champakam Dorairajan*); added three new grounds of reasonable restriction on freedom of speech under Art. 19(2): public order, friendly relations with foreign states, and incitement to an offence.
15. **7th Constitutional Amendment Act, 1956:** Implemented recommendations of the States Reorganisation Commission; abolished Part A, B, C, D classification, creating **14 States and 6 UTs**; permitted common High Courts (Art. 231) and appointment of same Governor for two or more States (Art. 153); inserted **Articles 350A and 350B** (Linguistic Minorities).
16. **21st Amendment Act, 1967:** Added **Sindhi** as the 15th language in the **Eighth Schedule**.
17. **42nd Constitutional Amendment Act, 1976 ('Mini-Constitution'):** Enacted during the Emergency on Swaran Singh Committee recommendations: (1) Added **'Socialist, Secular, Integrity'** to Preamble; (2) Added **Part IVA (Fundamental Duties, Art. 51A)**; (3) Added **Part XIVA (Tribunals, Arts. 323A–323B)**; (4) Transferred **5 subjects from State List to Concurrent List** (Education, Forests, Weights/Measures, Wildlife, Administration of Justice); (5) Made President bound by Cabinet advice; (6) Extended Lok Sabha/Assembly tenure from 5 to 6 years; (7) Added DPSPs 39A, 43A, 48A.
18. **44th Constitutional Amendment Act, 1978:** Enacted by Janata Party government to undo Emergency excesses: (1) Restored 5-year tenure of Lok Sabha and Assemblies; (2) Substituted **'Armed Rebellion'** for 'Internal Disturbance' in Art. 352; (3) Mandated **written Cabinet advice** for National Emergency; (4) **Barred suspension of Articles 20 and 21** during emergency; (5) **Deleted Right to Property** from Part III (Arts. 19(1)(f) & 31), making it a legal right under **Article 300A**; (6) Limited President's advice to one reconsideration.
19. **52nd Constitutional Amendment Act, 1985:** Added the **Tenth Schedule (Anti-Defection Law)**, disqualifying legislators for defection.
20. **61st Constitutional Amendment Act, 1988:** Lowered the voting age for Lok Sabha and Legislative Assemblies from **21 years to 18 years** by amending **Article 326** (effective 28 March 1989).
21. **69th Constitutional Amendment Act, 1991:** Inserted **Article 239AA**, redesignating Union Territory of Delhi as the **National Capital Territory (NCT) of Delhi** with a 70-member Legislative Assembly and 7-member Council of Ministers.
22. **71st Amendment Act, 1992:** Added **Konkani, Manipuri, and Nepali** (KMN) to the **Eighth Schedule**, raising recognized languages to 18.
23. **73rd & 74th Amendment Acts, 1992:** Added **Part IX (Panchayats, 11th Sch)** and **Part IXA (Municipalities, 12th Sch)**.
24. **86th Constitutional Amendment Act, 2002:** Revolutionized education: (1) Inserted **Article 21A** making free and compulsory education for children aged **6 to 14 years** a Fundamental Right; (2) Substituted **Article 45** (DPSP) for early childhood care up to age 6; (3) Added **11th Fundamental Duty** under **Article 51A(k)**.
25. **91st Constitutional Amendment Act, 2003:** (1) Capped size of Council of Ministers at **15% of Lower House strength** (Art. 75(1A) & 164(1A); minimum 12 in States); (2) Barred defectors from holding ministerial office; (3) **Deleted the 1/3rd split exemption** under the Tenth Schedule, requiring **at least 2/3rd members to merge**.
26. **92nd Amendment Act, 2003:** Added **Bodo, Dogri, Maithili, and Santhali** (BDMS) to the **Eighth Schedule**, taking the total to **22 languages**.
27. **97th Constitutional Amendment Act, 2011:** Conferred constitutional status on Co-operatives: Art. 19(1)(c) right to form co-operatives; Art. 43B DPSP; inserted **Part IXB (Arts. 243ZH to 243ZT)**.
28. **99th Constitutional Amendment Act, 2014:** Created the National Judicial Appointments Commission (NJAC); **struck down as unconstitutional by Supreme Court in October 2015** as violative of basic structure.
29. **100th Constitutional Amendment Act, 2015:** Ratified the 1974 Land Boundary Agreement and 2011 Protocol between **India and Bangladesh**, exchanging 111 enclaves to Bangladesh and acquiring 51 enclaves.
30. **101st Constitutional Amendment Act, 2016:** Introduced the **Goods and Services Tax (GST)** in force from **1 July 2017**; inserted **Articles 246A, 269A, and 279A (GST Council)**.

31. **102nd Constitutional Amendment Act, 2018:** Conferred constitutional status on the **National Commission for Backward Classes (NCBC)** by inserting **Article 338B**; inserted **Article 342A** (President's power to notify Central OBC list).
32. **103rd Constitutional Amendment Act, 2019:** Inserted **Article 15(6) and Article 16(6)**, providing up to **10% reservation for Economically Weaker Sections (EWS)** in educational institutions and public employment; upheld by SC in ***Janhit Abhiyan (2022)***.
33. **104th Constitutional Amendment Act, 2020:** Amended Article 334 to **extend reservation of seats for SCs and STs in Lok Sabha and State Assemblies for another 10 years (up to 25 January 2030)**; **discontinued nomination of 2 Anglo-Indian members** to Lok Sabha and 1 member to State Assemblies.
34. **105th Constitutional Amendment Act, 2021:** Amended Article 342A to clarify that **State Governments and UTs maintain their own separate state lists of Socially and Educationally Backward Classes (OBCs)**, restoring State powers post-*Maratha reservation case*.
35. **106th Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam):** Inserts Articles 330A, 332A, and 239AA(2)(b) reserving **one-third (33%) of all seats for women** in the **Lok Sabha, State Legislative Assemblies, and the Legislative Assembly of NCT of Delhi**; applies for 15 years; operational after first post-enactment delimitation based on subsequent census.

📋 Must-score facts — 368 lanes, landmark Amendments

Amendment lanes (Art. 368 / outside)

Lane	Lock
Simple majority (not "under 368")	Arts. 2–4; Art. 169 Councils, etc.
Special majority (368)	Most amendments
Special + half States	Federal provisions (election of President, Lists, SC/HC, etc.)

Basic-structure chain

Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th (1971) → Kesavananda (1973) → Indira Gandhi (1975) → 42nd (1976) → Minerva Mills (1980)

Landmark Amendments

Amd	Lock
1st (1951)	15(4); 19(2); 31A/31B + 9th Schedule
7th (1956)	States reorganisation; 350A/350B
24th (1971)	Parliament can amend Part III; President shall assent
42nd (1976)	Mini-Constitution; Socialist/Secular; Duties
44th (1978)	Property out of FR; Emergency safeguards
61st	Voting age 18
73rd / 74th	Panchayats / Municipalities
86th	21A + Duty 51A(k)
101st	GST
103rd	EWS
104th	Anglo-Indian LS nomination ended

Current Affairs

- **2025** — 42nd Preamble (प्रस्तावना) = Socialist + Secular (direct).
- **2024** — Kesavananda (केशवानंद भारती 1973) chronology; 42nd = **1976**; GST (वस्तु एवं सेवा कर) = **101st**; local bodies = **73rd+74th**.
- **2021** — Golaknath (गोलकनाथ 1967) → 24th → Kesavananda → 42nd (order trap); *Rajendra N. Shah* — 97th Part IXB (सहकारिता) dead for **State** co-ops.
- **2019** — 43A workers (42nd DPSP (राज्य के नीति निदेशक तत्व)).
- **2022** — RTE = **86th** not 103rd; Delhi NCT = **69th**; *Janhit Abhiyan* upholds EWS (103rd valid).
- **2023** — 106th women 33% — **not** yet in force; waits delimitation.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q118

The 101st Constitutional Amendment Act is related with

A. Reservation for EWS B. Delimitation of Constituencies C. Anti-defection Law D. Nationwide Goods and Services Tax (GST)

Q. UKPCS Prelims 2025, Q128

The size of the Council of Ministers was fixed up to 15 per cent of the total members of the Lok Sabha (लोकसभा) by which Amendment?

A. 91st Constitutional Amendment Act, 2003 B. 92nd Constitutional Amendment Act, 2003 C. 74th Constitutional Amendment Act, 1992 D. 86th Constitutional Amendment Act, 2002

Confused Pairs

A	B	Correct	Hindi
Simple majority	**Special (368)**	Ordinary legislative majority; **outside** 368	Total membership + 2/3 P&V
368 only	**368 + States**	Unitary-looking amendments	Federal provisions; **half** State legislatures
13	**368**	Laws inconsistent with FR void	Power to **amend** the Constitution
Golaknath	**Kesavananda**	FR cannot be amended	FR can, **basic structure** cannot
42nd	**44th**	Mini-Constitution (Emergency era)	Janata unwind: property, 20/21, 352

A	B	Correct	Hindi
9th Schedule	**9th Amendment**	1st Amd — shield for laws	1960 — Berubari / boundary (not 350B)
73rd	**74th**	Panchayats · 11th Sch · 24 Apr 1993	Municipalities · 12th Sch · 1 Jun 1993
86th	**103rd**	RTE as FR (21A), 2002	EWS 10%, 2019
102nd	**105th**	NCBC + Central SEBC list	State power to identify OBC **restored**
52nd	**91st**	10th Schedule inserted	1/3 split killed; CoM 15%
104th	**106th**	Anglo-Indian nomination **ends**	Women 33% — **not yet** in force

Three classes of amendment

Type	Procedure	Typical use
Simple majority	Ordinary Bill; **outside** 368	New State, 169 Council, 5th/6th Sch, salaries, quorum (गणपूर्ति)
Special majority	368(2): majority of **total membership** (सदन की कुल सदस्य संख्या का) + **2/3 present & voting**	Most amendments (FRs, DPSPs, 368-without-proviso)
Special + States	Same special majority **plus** legislatures of **not less than half** the States	Federal list (President, 73/162, SC/HC, 7th Sch, 368 itself, State RS seats, **279A**)

Common Traps

1. Basic structure = Golaknath → **Kesavananda 1973**
2. 24th came after Kesavananda → **1971**, before
3. 350B = 9th Amendment → **7th** (1956)
4. 42nd added Sovereign / Republic → those are **original**; it added **Socialist, Secular**
5. 39A = workers in management → **43A**. 39A = legal aid
6. New State needs 368 + half the States → **simple** majority, Art. **4**
7. Joint sitting can pass a 368 Bill → **no** 108
8. 9th Schedule = 9th Amendment → Schedule = **1st Amd**; 9th Amd = **Berubari**
9. 42nd year 1978 → **1976**. 44th is 1978
10. 368(4) still bars courts → *Minerva Mills* **struck** it
11. 31C still covers all DPSP → *Minerva* cut it back to **39(b)(c)**
12. 38(2) = 42nd → **44th**
13. 361A = 42nd → **44th** — true report of House proceedings
14. 31D still in the Constitution → **43rd** repealed it
15. Art. 3 Bill = 368 special majority → **simple**; President **recommends**; States only **expressed views**
16. Preamble cannot be amended → *Kesavananda*: **can**, within basic structure
17. RS is weaker on a 368 Bill → **equal** — no joint sitting to override RS
18. GST = 91st / 86th / 73rd → **101st** (2016; levy from **1 Jul 2017**)
19. RTE = 103rd → **86th** (2002). 103rd = **EWS**
20. 69th created NCR planning region → **NCT of Delhi** (239AA). NCR = 1985 statute
21. 73rd/74th in force 1992 → passed **1992**; in force **24 Apr / 1 Jun 1993**
22. 106th already seats women in 2024 LS → **not commenced** — needs census + delimitation
23. 102nd killed State OBC lists forever → **105th** restored State identification
24. 91st still allows 1/3 split → **gone**. Only **2/3 merger**
25. 52nd year 1978/1989 → **1985**. 61st is the 18-year vote
26. 97th Part IXB fully dead → struck for **State** co-ops; **multi-State** survives
27. 104th ended SC/ST reservation → only **Anglo-Indian nomination**. SC/ST till **2030**
28. 86th 21A from 2002 itself → RTE Act **2009**; **21A** from **1 Apr 2010**
29. 61st year 1985 → **1988** Act / **1989** in force. 52nd is 1985
30. 10th Schedule was always defection → first 10th Schedule = **Sikkim associate (35th)**. **36th** repealed it. **52nd** wrote defection
31. 69th put Delhi in the Presidential college → that is **70th**. 69th = **239AA NCT**
32. 61st extended SC/ST seats → that is **62nd** (a 334 extension). 61st = **age 18**
33. 86th = 15(5) private colleges → **93rd** is 15(5). 86th = **21A / 45 / 51A(k)**
34. 91st CoM cap uses RS strength → **LS** only. States: 15% of **Assembly**, floor **12**. Delhi **10%**
35. Defector can still take a paid political post → **361B** (91st) bars it
36. 97th killed 43B / 19(1)(c) too → only **Part IXB for State** co-ops. 19(1)(c) and 43B **live**
37. 99th NJAC is good law → **struck 2015** — basic structure (judicial independence)
38. 106th = 128th Amendment → **128th** was the **Bill** number. **Act = 106th**
39. Vacancies shrink "total membership" for 368 → vacancies **still count** in the total
40. States must pass 368 ratification by special majority → State House: **ordinary** majority. **UTs do not** ratify

Topic 17 — Language & Special Provisions

Consolidated — 37 Must-Score Facts

1. **Part XVII (Articles 343–351)** of the Constitution deals with the **Official Language**; divided into 4 chapters: Ch. 1 Language of the Union (343–344), Ch. 2 Regional Languages (345–347), Ch. 3 Language of the Supreme Court and High Courts (348–349), and Ch. 4 Special Directives (350–351).
2. **No National Language:** The Constitution of India **DOES NOT declare any National Language** (*Rashtrabhasha*); it provides only for the **Official Language of the Union** (*Rajbhasha*).
3. **Official Language of the Union (Article 343(1)):** Mandates that the official language of the Union shall be **Hindi in Devanagari script**; the form of numerals to be used for the official purposes of the Union shall be the **international form of Indian numerals** (1, 2, 3…).
4. English Continuation Provision (Article 343(2)): Provided that for a period of **15 years from 26 January 1950 (up to 26 January 1965)**, English would continue to be used for all official purposes of the Union for which it was being used before; Article 343(3) empowered Parliament to provide by law for continued use of English after 15 years.
5. **Official Languages Act, 1963 (amended 1967):** Enacted to provide that the English language **'may' continue to be used in addition to Hindi** for all official purposes of the Union and for transaction of business in Parliament indefinitely (bilingual policy); mandated Hindi and English for resolutions, rules, contracts, and reports.
6. **Official Language Commission (Article 344(1)):** The President constitutes an Official Language Commission at the expiration of 5 years from 1950, and again at the expiration of 10 years; the **First Official Language Commission was appointed in 1955 chaired by B.G. Kher** (submitted report in 1956).
7. **Committee of Parliament on Official Language (Article 344(4)):** Constituted to examine recommendations of the Kher Commission; consists of **30 members (20 from Lok Sabha + 10 from Rajya Sabha)** elected by PR-STV; by convention, chaired by the **Union Home Minister**.
8. Language of State Administration (**Article 345**): The Legislature of a State may by law adopt **any one or more of the languages in use in the State or Hindi** as the language(s) to be used for all or any of the official purposes of that State; until the State legislature so provides, English continues.
9. Language of Inter-State Communication (**Article 346**): The language authorized for official purposes of the Union (Hindi/English) is the language for communication between one State and another, and between a State and the Union; two or more States may agree to use Hindi among themselves.
10. Language of Supreme Court and High Courts (**Article 348**): Until Parliament by law otherwise provides, **all proceedings in the Supreme Court and in every High Court, and all authoritative texts of Bills, Acts, Ordinances, and Rules, SHALL BE IN THE ENGLISH LANGUAGE**.
11. Hindi in High Courts (Article 348(2)): The **Governor of a State can, with the PREVIOUS CONSENT OF THE PRESIDENT**, authorize the use of Hindi or the official language of the State in proceedings of the High Court (except for judgments, decrees, and orders which must remain in English); utilized in High Courts of **Uttar Pradesh (Allahabad HC), Bihar, MP, and Rajasthan**.
12. Special Directives — Redressal of Grievance (**Article 350**): Every person is entitled to submit a representation for the redress of any grievance to any officer or authority of the Union or a State in **any of the languages used in the Union or in the State** (cannot be rejected on grounds of language).
13. **Instruction in Mother Tongue (Article 350A):** Inserted by the **7th Amendment Act, 1956**; directs every State and local authority to endeavor to provide adequate facilities for **instruction in the mother tongue at the primary stage of education to children belonging to linguistic minority groups**; President may issue necessary directions to any State.
14. **Special Officer for Linguistic Minorities (Article 350B):** Inserted by the **7th Amendment Act, 1956**; appointed by the **President**; investigates all matters relating to safeguards provided for linguistic minorities; submits reports to President; designated as the **Commissioner for Linguistic Minorities** with headquarters at **Prayagraj (Allahabad)**.
15. **Development of Hindi (Article 351):** Sets a constitutional duty on the Union to promote the spread of the Hindi language, develop it so that it serves as a medium of expression for all elements of the composite culture of India, drawing its vocabulary primarily from **Sanskrit** and secondarily from other languages.
16. **Classical Languages of India:** Government of India instituted criteria for Classical Language status in 2004 (high antiquity of early texts over 1,500–2,000 years, valuable heritage, original literary tradition).
17. Chronology of Classical Languages: (1) **Tamil (2004)**; (2) **Sanskrit (2005)**; (3) **Telugu (2008)**; (4) **Kannada (2008)**; (5) **Malayalam (2013)**; (6) **Odia (2014)**; in **October 2024**, Union Cabinet approved Classical status for **5 new languages**: (7) **Marathi**, (8) **Pali**, (9) **Prakrit**, (10) **Assamese**, and (11) **Bengali** (taking total to **11 Classical Languages**).
18. **Eighth Schedule Language Additions Evolution:** Originally 14 languages in 1950; **Sindhi** added by 21st Amendment, 1967; **Konkani, Manipuri, and Nepali (KMN)** added by 71st Amendment, 1992; **Bodo, Dogri, Maithili, and Santhali (BDMS)** added by 92nd Amendment, 2003; total is **22 languages**; *neither English nor Bhojpuri is in the 8th Schedule*.
19. **Special Provisions for States (Part XXI, Articles 371 to 371-J):** Enacted to meet regional aspirations, protect tribal customary laws, and address regional developmental disparities through asymmetric federalism.
20. **Article 371 (Maharashtra and Gujarat):** Authorizes the President to direct Governors to establish separate development boards for **Vidarbha, Marathwada, and the rest of Maharashtra**, and for **Saurashtra, Kutch, and the rest of Gujarat**.
21. **Article 371A (Nagaland):** Inserted by 13th Amd 1962 following 16-point agreement; **no Act of Parliament** relating to: (1) religious or social practices of Nagas; (2) Naga customary law; (3) ownership/transfer of land; applies to Nagaland unless the **State Legislative Assembly so decides by a resolution**; Governor has special responsibility for law and order.
22. **Article 371B (Assam):** Inserted by 22nd Amd 1969; provides for a Committee of the Assam Legislative Assembly consisting of members elected from the tribal areas of Assam.
23. **Article 371C (Manipur):** Inserted by 27th Amd 1971; provides for a Committee of Manipur Assembly consisting of members elected from the **Hill Areas** of Manipur; Governor submits annual reports to President.
24. **Article 371D & 371E (Andhra Pradesh & Telangana):** Inserted by 32nd Amd 1973 (extended to Telangana in 2014); provides equitable opportunities in education and public employment across distinct regions (Rayalaseema, Coastal Andhra, Telangana); Art. 371E authorizes Parliament to establish a **Central University in Andhra Pradesh**.
25. **Article 371F (Sikkim):** Inserted by **36th Amendment Act, 1975** upon admission of Sikkim; Legislative Assembly of Sikkim consists of not less than **32 members**; special protection for rights and interests of different sections of Sikkim's population.
26. **Article 371G (Mizoram):** Inserted by 53rd Amd 1986 following Mizo Accord; parliamentary acts regarding religious/social practices of Mizos, customary law, and land transfer apply only if **State Legislative Assembly passes a resolution**; Assembly has minimum **40 members**.
27. **Article 371H (Arunachal Pradesh):** Inserted by 55th Amd 1986; Governor has **special responsibility with respect to law and order** in Arunachal Pradesh (acting in his individual judgment); Assembly has minimum **30 members**.
28. **Article 371-I (Goa):** Inserted by 56th Amd 1987; provides that the Legislative Assembly of Goa shall consist of **not less than 40 members**.
29. **Article 371-J (Karnataka):** Inserted by **98th Amendment Act, 2012**; provides special provisions for **Hyderabad-Karnataka region** (6 backward districts: Bellary, Bidar, Gulbarga, Koppal, Raichur, Yadgir; renamed Kalyana-Karnataka); establishes a separate development board and quota in regional educational institutions and state government jobs.
30. **Article 370 Abrogation (August 2019):** Constitution (Application to Jammu and Kashmir) Order, 2019 (C.O. 272 and C.O. 273) issued under Article 370(1) and 370(3) rendered all clauses of **Article 370 inoperative**, applying all provisions of the Indian Constitution to J&K uniformly; upheld by a 5-judge bench of the Supreme Court in December 2023.

31. Mnemonic for Articles 371 to 371J: **NAMASMAGK** (371A Nagaland, 371B Assam, 371C Manipur, 371D Andhra, 371F Sikkim, 371G Mizoram, 371H Arunachal, 371-I Goa, 371-J Karnataka).
32. **Section 3(3) of Official Languages Act, 1963:** Mandates the **compulsory use of both Hindi and English** for resolutions, general orders, rules, notifications, administrative reports, press communiques, contracts, agreements, licenses, permits, and tender notices issued by the Central Government.
33. **Department of Official Language:** Created in **June 1975** as an independent department under the **Ministry of Home Affairs** to ensure compliance with constitutional and statutory provisions regarding official language.
34. **Kendriya Hindi Samiti (Central Hindi Committee):** Apex policy-making body for promotion and progressive use of Hindi; constituted in **1967**; chaired by the **Prime Minister of India**; includes key Union Cabinet ministers and Chief Ministers.
35. Official Language Rules, 1976 (Regions A, B, C): Categorizes India into 3 linguistic regions for official communication: **Region A** (Hindi speaking: UP, MP, Bihar, Rajasthan, Haryana, HP, Uttarakhand, Jharkhand, CG, Delhi); **Region B** (Punjab, Gujarat, Maharashtra, Chandigarh); **Region C** (all other southern and north-eastern States).
36. Language in State Assemblies (**Article 210**): Business in State Legislature transacted in official language(s) of State, or Hindi, or English; Presiding Officer may permit any member unable to express himself in these languages to address the House in his mother tongue.
37. **Article 347 (Special Provision relating to language spoken by a section of population):** On a demand made, the **President may**, if satisfied that a substantial proportion of population of a State desires the use of any language spoken by them, direct that such language **shall also be officially recognized throughout that State or any part thereof**.

📋 Must-score facts — official language, 8th Schedule, 371

Official language (Part XVII)

Item	Lock
National language	Constitution **never** names one
Union official	**Hindi in Devanagari**
English	15 years from 1950; continued by Official Languages Act **1963**
Art. 344	Official Language Commission (5 yrs / 10 yrs)
Art. 345	State official language(s)
Art. 351	Union duty to promote Hindi (composite culture)
SC / HC authoritative texts	English until Parliament otherwise provides

Eighth Schedule / special

Item	Lock
Languages	**22**
In	Nepali, Dogri, Bodo, etc.
Out	**Bhojpuri** (classic trap)
Special States	**371–371J** (Part XXI)
UP	**No** 371-series special article

Current Affairs

- **2025** — Bhojpuri **not** in 8th; Nepali/Dogri/Bodo **are**.
- **2024** — 350B ≠ per State; ≠ 9th Amd; classical = **11** (3 Oct Cabinet); J&K Assembly polls; Ladakh (लद्दाख) 6th-Schedule demand pending.
- **2023** — English initially **15 years**; OL = Part **XVII**; SC upholds 370 orders; Part X = Scheduled/Tribal Areas.
- **2011** — 96th: Oriya → **Odia**.
- **1987** — **58th / 394A** Hindi authoritative text.
- **1949** — Hindi Diwas **14 Sep** (Munshi–Ayyangar).
- **2019** — 370 inoperative; J&K + Ladakh UTs **31 Oct**.
- **2020** — 371J = Hyderabad-Karnataka.
- **2022** — PESA year **1996**.

Confused Pairs

Term A	Term B	Core Difference	Hindi Terminology
Official language (Union)	**National language**	Hindi in Devanagari (**343**). Constitution **never** names a national language	राजभाषा (संघ) / राष्ट्रभाषा
8th Schedule	**Classical language**	Constitutional **list of 22**. Executive **tag** (now **11**) — overlap is **not** 1:1	8वीं अनुसूची / शास्त्रीय भाषा
343 English clock	**OL Act 1963/67**	Text said **15 years**. Statute keeps English **with** Hindi, no sunset	15-वर्षीय सीमा / राजभाषा अधिनियम 1963
344 Commission	**1976 OL Committee**	Constitutional, **two** reports (5y / 10y) vs Statutory, **Home Minister** chairs, standing	अनु. 344 आयोग / संसदीय समिति 1976
350A	**350B**	States' duty: mother-tongue **primary** vs **One** Union officer for linguistic minorities	अनु. 350A (मातृभाषा) / अनु. 350B (विशेष अधिकारी)
350B officer	**NCM**	Constitutional, **linguistic** vs Statutory 1992, **religious**	भाषाई अल्पसंख्यक अधिकारी / राष्ट्रीय अल्पसंख्यक आयोग
345	**347**	State legislature adopts OL vs **President** may direct a language of a section of the population	अनु. 345 (राज्य राजभाषा) / अनु. 347 (राष्ट्रपति निर्देश)
8th Schedule language	**Union official language**	22 recognised languages vs Only **Hindi** (343). Being in the 8th does **not** make a language the Union OL	8वीं अनुसूची भाषा / संघ राजभाषा
Simple law (343(3))	**368 Amd of 343**	Parliament **provides** for English — ordinary Bill (2018) vs Changing 343's *text* — special majority, **not** on the federal list	साधारण विधि (343(3)) / संविधान संशोधन (368)

Term A	Term B	Core Difference	Hindi Terminology
Fifth Schedule	**Sixth Schedule**	10 States · TAC · PESA vs **AMTM** · ADC · no PESA	5वीं अनुसूची / 6वीं अनुसूची (AMTM)
371A	**Sixth Schedule**	Nagaland custom/land vs AMTM autonomous councils	अनु. 371A (नागालैंड) / छठी अनुसूची
371I	**371J**	Goa Assembly ≥30 vs Kalyana-Karnataka board + local quota	अनु. 371I (गोवा) / 371J (कल्याण-कर्नाटक)
370	**35A**	Temporary J&K article (now inoperative) vs 1954 Order on permanent residents — **not** an Amd	अनु. 370 / अनु. 35A (स्थायी निवासी)

Common Traps

1. Hindi is the **national** language → Constitution has **no** national language. Hindi = Union **official** language
2. English is in the 8th Schedule → **statute** (1963/67). **Not** 8th
3. Bhojpuri / Rajasthani in 8th → **not**
4. 8th Schedule has 24 / 23 languages → **22**. 96th only **renamed** Oriya
5. Sindhi = 71st / 92nd → **21st, 1967** — first add-on
6. Nepali not in 8th → **71st, 1992** — it is
7. Classical languages = 6 → **11** after **3 Oct 2024**
8. Pali is 8th Schedule → classical **2024**, **not** 8th
9. 350B officer in every State → **one** for India
10. 350B = 9th Amd → **7th** (1956). 9th Amd = Berubari
11. 344 Commission still sits every 5 years → only **1955** and **1960** were constitutionally mandated
12. 1976 OL Committee = 344 → **statutory**, Home Minister; 344 is the old constitutional commission
13. 15 years was extended by a constitutional Amd → **no.343(3) + 1963 Act**
14. 348 lets a State drop English in the Supreme Court → Governor's permission is for the **High Court** only
15. 351 lets Hindi **replace** other 8th Schedule languages → duty to promote Hindi **and** draw from them; not a kill-switch
16. NCM = 350B → NCM = **religious**, 1992 Act
17. 8th Schedule language = Union OL → only **Hindi** is Union OL. Tamil/Bengali in 8th ≠ Union OL
18. Amending 343 needs half the States → **not** on the 368 proviso list. And 2018 "OL provision" = **ordinary law** under **343(3)**
19. Hindi Diwas = 10 January → **14 September**. 10 Jan = **World** Hindi Day
20. 394A made Hindi the national language → only an **authoritative Hindi text** of the Constitution (**58th**)
21. Maithili not in 8th (like Bhojpuri) → **Maithili is in** (92nd). Bhojpuri is not
22. Santhali script = Devanagari only → **Ol Chiki** is the distinctive fact
23. Three-language formula = Art. 351 → **policy**, not an article
24. Kendriya Hindi Samiti = Home Minister → **PM** chairs
25. 371J = Nagaland / Goa / Ladakh → **Kalyana-Karnataka**. Goa = **371I**. Nagaland = **371A**
26. Sixth Schedule = Nagaland / Sikkim / Arunachal → **AMTM only**. Those three have **371A / 371F / 371H**
27. PESA = Sixth Schedule / 1993 → **Fifth Schedule, 1996**
28. 35A = a Constitutional Amendment → **1954 Presidential Order** under 370
29. 370 repealed by 103rd/368 → **Presidential orders** Aug 2019; SC 2023 upheld. Article remains, **inoperative**
30. J&K still a State → **UT with legislature** from **31 Oct 2019** (statehood promised, not yet restored)
31. Fifth Schedule includes UP → **no SA in UP**. 10 named States only
32. TAC makes laws like an ADC → TAC is **advisory**. ADC **legislates**
33. Inner Line = Sixth Schedule → **1873** Regulation. Manipur added **2019**. Meghalaya **not** ILP
34. 244A = Sixth Schedule → autonomous **State inside Assam** — unused. 6th = **244(2)**
35. Ladakh is Sixth Schedule → **LAHDC 1995** statute. Demand pending

Topic 18 — Political Parties & Pressure Groups

Consolidated — 30 Must-Score Facts

1. India has a **multi-party system** characterized by national, state (regional), and unrecognized registered political parties; the Constitution originally contained no reference to political parties, mentioning them only upon the insertion of the **Tenth Schedule (Anti-Defection Law) by the 52nd Amendment, 1985**.
2. **Registration of Political Parties:** Governed by **Section 29A of the Representation of the People Act, 1951**; parties register with the **Election Commission of India (ECI)**; must bear allegiance to the Constitution, principles of socialism, secularism, and democracy, and uphold sovereignty, unity, and integrity of India.
3. Allotment of Symbols: Regulated by the **Election Symbols (Reservation and Allotment) Order, 1968** issued by the ECI; symbols are divided into **Reserved Symbols** (exclusive to recognized National and State parties) and **Free Symbols** (available to independent candidates and unrecognized parties).
4. Disputes regarding Party Symbols/Splits: Under **Paragraph 15 of the Election Symbols Order, 1968**, the **Election Commission of India is the SOLE AUTHORITY to decide disputes among rival sections or splinter groups of a recognized political party**; confirmed in ***Sadiq Ali v. Election Commission of India (1972)*** (ECI applies majority test in legislative and organizational wings).
5. **Criteria for Recognition as a NATIONAL PARTY (any ONE of the following 3 conditions):**
6. Condition 1 (Votes + Seats): Secures **at least 6% of valid votes polled in ANY 4 OR MORE STATES** at a general election to Lok Sabha or State Assembly, **AND wins at least 4 SEATS in the Lok Sabha** from any State or States.
7. Condition 2 (Lok Sabha Seats): Wins **at least 2% of total seats in the Lok Sabha** (11 seats in a 543-member House) at a general election, and these members are elected from **not less than 3 DIFFERENT STATES**.
8. Condition 3 (State Party Status): Recognized as a **State Party in AT LEAST 4 STATES**.
9. **Current National Parties in India (as of 2024–2026):** There are **6 recognized National Parties**: (1) **Bharatiya Janata Party (BJP)** [Symbol: Lotus]; (2) **Indian National Congress (INC)** [Symbol: Hand]; (3) **Bahujan Samaj Party (BSP)** [Symbol: Elephant]; (4) **Communist Party of India (Marxist) - CPI(M)** [Symbol: Hammer, Sickle and Star]; (5) **Aam Aadmi Party (AAP)** [Symbol: Broom - recognized April 2023]; (6) **National People's Party (NPP)** [Symbol: Book - first party from Northeast to get National status in 2019].
10. Deregognized National Parties: In April 2023, ECI withdrew national party status from three parties: **All India Trinamool Congress (TMC)**, **Nationalist Congress Party (NCP)**, and **Communist Party of India (CPI)** due to failure to meet performance benchmarks.
11. **Criteria for Recognition as a STATE PARTY (any ONE of the following 5 conditions):**
12. State Condition 1: Secures **at least 6% of valid votes polled in the State** at a general election to the Legislative Assembly, **AND wins at least 2 SEATS in that Assembly**.
13. State Condition 2: Secures **at least 6% of valid votes polled in the State** at a general election to the Lok Sabha from that State, **AND wins at least 1 SEAT in the Lok Sabha** from that State.
14. State Condition 3: Wins **at least 3% of the total number of seats in the Legislative Assembly**, OR **at least 3 seats in the Assembly**, whichever is more.
15. State Condition 4: Wins **at least 1 seat in the Lok Sabha for every 25 seats** (or any fraction thereof) allotted to that State in Lok Sabha.
16. State Condition 5 (Added in 2011): Secures **at least 8% of the total valid votes polled in the State** at a general election to Lok Sabha or Legislative Assembly (even if it **wins ZERO seats**!).
17. Privileges of Recognized Parties: Allotment of exclusive reserved symbol; free broadcast/telecast time on Doordarshan and All India Radio during general elections; supply of free copies of electoral rolls; eligibility to nominate **up to 40 Star Campaigners** (unrecognized registered parties can nominate up to 20 star campaigners); travelling expenses of star campaigners are **not added to candidate's expenditure**.
18. Review of Recognition Status: Under the 2016 amendment to the Symbols Order, the ECI reviews the recognized status of political parties **every 10 years (two consecutive general elections)** rather than every 5 years.
19. **Pressure Groups in India:** Non-governmental interest organizations that seek to influence government public policy, legislation, and administration without attempting to capture political power or contest elections directly; described as the **'Invisible Empire' (S.E. Finer)** or 'Third Chamber of Parliament'.
20. Techniques of Pressure Groups: (1) Lobbying government departments and legislators; (2) Public campaigning and demonstrations; (3) Petitions and public hearings; (4) Bandhs, strikes, and dharnas; (5) Strategic public interest litigation (PIL); (6) Providing expert testimony to Parliamentary committees.
21. Classification of Pressure Groups in India: (1) **Business Groups**: FICCI (Federation of Indian Chambers of Commerce and Industry - 1927, founded on advice of Mahatma Gandhi), ASSOCHAM (1920), CII (Confederation of Indian Industry); (2) **Trade Unions**: AITUC (1920, first president Lala Lajpat Rai - linked with CPI), INTUC (1947 - Congress), BMS (Bharatiya Mazdoor Sangh, 1955 - RSS/BJP, largest trade union in India), CITU (1970 - CPM), HMS (1948); (3) **Agrarian / Peasant Groups**: All India Kisan Sabha (AIKS - 1936, Lucknow, Swami Sahajanand Saraswati), Bharatiya Kisan Union (BKU - Mahendra Singh Tikait), Shetkari Sanghatana (Sharad Joshi); (4) **Student Organizations**: ABVP (1949), NSUI (1971), SFI (1970), AISF (1936); (5) **Professional Bodies**: Indian Medical Association (IMA), Bar Council of India (BCI); (6) **Caste & Community Groups**: Harijan Sevak Sangh, Nadar Mahajana Sangam, Maratha Kranti Morcha; (7) **Tribal Groups**: All Bodo Students Union (ABSU), Mizo National Front (originally famine relief group).
22. Differences between Pressure Groups and Political Parties: Political parties seek to capture government power and field candidates, whereas pressure groups never contest elections directly; political parties have broad multidimensional ideologies, whereas pressure groups focus specifically on advancing particular sectional interests.
23. Contribution and Funding Regulations: Under Section 29C of RPA 1951, political parties must submit an annual **Contribution Report** to the ECI declaring all donations received above **₹20,000** from individuals and companies; failure to submit disentitles party from tax exemption under Section 13A of the Income Tax Act, 1961.
24. Ban on Foreign Contributions: The **Foreign Contribution (Regulation) Act - FCRA, 2010** strictly prohibits political parties and candidates for election from accepting foreign contributions (subject to 2016/2018 retrospective amendments permitting funding from foreign entities having majority Indian shareholding).
25. **Difference between Recognized and Unrecognized Parties:** A recognized party (National or State) gets an exclusive reserved symbol across India or the State; an unrecognized registered party must choose from the list of **'Free Symbols'** notified by the ECI for each election.
26. **Section 29B and 29C of RPA 1951:** Section 29B permits political parties to accept voluntary contributions from any individual or company (excluding government companies); Section 29C mandates reporting of all donations **exceeding ₹20,000** to the ECI before the due date for filing income tax returns.
27. Tax Exemption to Political Parties (**Section 13A of Income Tax Act, 1961**): 100% exemption from income tax on income from house property, other sources, capital gains, and voluntary contributions, provided: (1) party is registered under Section 29A of RPA; (2) maintains audited accounts; (3) **no donation exceeding ₹2,000 is received in cash**.
28. **Almond and Powell Typology of Pressure Groups:** Classified into 4 categories: (1) **Institutional Pressure Groups** (formally organized within government structure: IAS Association, Armed Forces officers); (2) **Associational Pressure Groups** (formally organized for specific interests: FICCI, CII, IMA); (3) **Anomic Pressure Groups** (spontaneous, issue-based, unorganized: riots, street demonstrations); (4) **Non-Associational Pressure Groups** (informal, based on kinship, caste, religion, language).
29. Rajni Kothari on Indian Party System: Described the post-independence dominant single-party rule of Congress (1947–1967) as the **'Congress System'** — a party of consensus with other parties acting as parties of pressure.
30. Coalition Eras in India: The first coalition government at the Centre was formed in **1977 by the Janata Party** under Morarji Desai; stable multi-party coalition era spanned **National Democratic Alliance (NDA - 1999–2004)** and **United Progressive Alliance (UPA - 2004–2014)**.

📋 Must-score facts — recognition, symbols, defection

Hooks in Constitution / law

Item	Lock
Association	Art. **19(1)(c)**
Anti-defection	**Tenth Schedule**
Registration	RPA **s.29A**

Statutory Criteria for Recognition (Election Symbols Order, 1968)

A party registered under **Section 29A of RPA 1951** is initially a *Registered Unrecognised Political Party (RUPP)*. It gains **recognition** solely by meeting performance thresholds in general elections:

1. Conditions for Recognition as a NATIONAL PARTY (राष्ट्रीय दल)

(A party must fulfill ANY ONE of the following 3 conditions): 1. **Votes + Seats Route:** Polling at least **6% of total valid votes** in **4 or more States** in a Lok Sabha or State Assembly election, **AND** winning at least **4 seats in the Lok Sabha** from any State or States. 2. **Lok Sabha Seats Route:** Winning at least **2% of total seats in the Lok Sabha** (i.e., 543 \times 2\% = \mathbf{11\text{ seats}}), and these elected members must represent **at least 3 different States**. 3. **Multi-State Recognition Route:** Being recognized as a **State Party in at least 4 States**.

(Current 6 National Parties in 2024–26: BJP, INC, BSP, CPI(M), AAP, NPP; CPI, TMC, and NCP lost national status in April 2023).

2. Conditions for Recognition as a STATE PARTY (राज्य / क्षेत्रीय दल)

(A party must fulfill ANY ONE of the following 5 conditions in the concerned State): 1. **6% Votes + 2 MLAs:** Polling at least **6% of valid votes** in the State Assembly election **AND** winning at least **2 Assembly seats (MLAs)**. 2. **6% Votes + 1 MP:** Polling at least **6% of valid votes** in the State during a Lok Sabha election **AND** winning at least **1 Lok Sabha seat (MP)** from that State. 3. **3% Seats or 3 MLAs:** Winning at least **3% of the total Assembly seats** or **3 seats in the Legislative Assembly**, whichever is higher. 4. **1 MP per 25 LS Seats:** Winning at least **1 Lok Sabha seat for every 25 seats** allotted to that State (or any fraction thereof). 5. **8% Vote-Share Alone (2011 Rule):** Polling at least **8% of the total valid votes** in the State in an Assembly or Lok Sabha election, **even if it wins ZERO seats**.

Master Table — Indian Political Parties (Founding Year, Founder & Symbol)

(High-yield for chronological arrangement & match-the-column PYQs like UPPCS 2022 Q53)

Party Name (दल)	Abbr.	Founded (वर्ष)	Key Founder(s) (संस्थापक)	Official Symbol (प्रतीक)	Level / Status
Indian National Congress	INC	**1885** (28 Dec)	A.O. Hume, W.C. Bonnerjee	Hand (हाथ का पंजा)	National Party
Shiromani Akali Dal	SAD	**1920** (14 Dec)	Master Tara Singh, Baba Kharak Singh	Scales (तराजू)	State Party (Punjab)
Communist Party of India	CPI	**1925** (26 Dec)	M.N. Roy, S.V. Ghate (Kanpur)	Ears of Corn and Sickle	State Party (lost Nat. status 2023)
J&K National Conference	JKNC	**1932/1939**	Sheikh Abdullah	Plough (हल)	State Party (J&K)
Dravida Munnetra Kazhagam	DMK	**1949** (17 Sep)	C.N. Annadurai, Periyar legacy	Rising Sun (उगता सूरज)	State Party (TN, Puducherry)
CPI (Marxist)	CPI(M)	**1964** (7 Nov)	P. Sundarayya, E.M.S., Jyoti Basu	Hammer, Sickle and Star	National Party
Shiv Sena	SS	**1966** (19 Jun)	Bal Thackeray	Bow and Arrow (मूल)	State Party (Maharashtra)
AIADMK	AIADMK	**1972** (17 Oct)	M.G. Ramachandran (MGR)	Two Leaves (दो पत्तियाँ)	State Party (TN, Puducherry)
Jharkhand Mukti Morcha	JMM	**1972** (15 Nov)	Shibu Soren, Binod Bihari Mahato	Bow and Arrow (झारखंड)	State Party (Jharkhand)
Bharatiya Janata Party	BJP	**1980** (6 Apr)	Atal Bihari Vajpayee, L.K. Advani	Lotus (कमल)	National Party
Telugu Desam Party	TDP	**1982** (29 Mar)	N.T. Rama Rao (NTR)	Bicycle (साइकिल - AP)	State Party (AP, Telangana)
Bahujan Samaj Party	BSP	**1984** (14 Apr)	Kanshi Ram	Elephant (हाथी)	National Party
Asom Gana Parishad	AGP	**1985** (14 Oct)	Prafulla Kumar Mahanta	Elephant (असम राज्य)	State Party (Assam)
Samajwadi Party	SP	**1992** (4 Oct)	Mulayam Singh Yadav	Bicycle (साइकिल - UP)	State Party (UP)
Rashtriya Janata Dal	RJD	**1997** (5 Jul)	Lalu Prasad Yadav	Hurricane Lamp (लालटेन)	State Party (Bihar, Jharkhand)
Biju Janata Dal	BJD	**1997** (26 Dec)	Naveen Patnaik	Conch (शंख)	State Party (Odisha)
All India Trinamool Congress	AITC/TMC	**1998** (1 Jan)	Mamata Banerjee	Flowers and Grass	State Party (lost Nat. status 2023)
Nationalist Congress Party	NCP	**1999** (10 Jun)	Sharad Pawar, P.A. Sangma	Clock (घड़ी)	State Party (lost Nat. status 2023)
BRS (formerly TRS)	BRS	**2001** (27 Apr)	K. Chandrashekar Rao (KCR)	Car (कार)	State Party (Telangana)
YSR Congress Party	YSRCP	**2011** (12 Mar)	Y.S. Jagan Mohan Reddy	Ceiling Fan (पंखा)	State Party (AP)
Aam Aadmi Party	AAP	**2012** (26 Nov)	Arvind Kejriwal	Broom (झाड़ू)	National Party (gained 2023)
National People's Party	NPP	**2013** (6 Jan)	P.A. Sangma	Book (किताब)	National Party (1st North-East 2019)

> **UPPCS Classic Trap Sequence: TDP (1982) → BSP (1984) → SP (1992) → TMC (1998).**

Current Affairs

- **2022** — TDP 1982 → BSP 1984 → SP 1992 → TMC 1998; union–party match.
- **2023** — CPI (सीपीआई) **loses** national status; AAP **gains**.
- **2024** — 6 national parties; BJP 240 → NDA coalition; electoral bonds **struck** (*ADR* Feb 2024 — anonymous party funding gone).
- **2019** — NPP first NE national party.

Confused Pairs

Term A	Term B	Core Difference	Hindi Terminology
Registration (29A)	**Recognition**	Any association → RUPP vs National / State party (Symbols Order)	पंजीकरण (29A) / मान्यता
National party	**State / regional party**	All-India reserved symbol + 4-State tests vs Reserved symbol **in that State** only	राष्ट्रीय दल / राज्य (क्षेत्रीय) दल
Reserved symbol	**Free symbol**	Recognised parties vs Unrecognised + independents	आरक्षित प्रतीक / मुक्त प्रतीक
Political party	**Pressure group**	Contests elections; seeks **power** vs Does **not** contest (normally); seeks to **influence**	राजनीतिक दल / दबाव समूह
Interest group	**Pressure group**	Organised around an interest vs Same body **when it pressures** government	हित समूह / दबाव समूह
Coalition	**Hung House**	Two or more parties **govern** vs **No** single party has a majority (may still produce a coalition)	गठबंधन / त्रिशंकु सदन
AITUC	**CITU**	**CPI** (1920) vs **CPI(M)** (1970)	एटक (भाकपा) / सीटू (माकपा)
INTUC	**BMS**	**Congress** (1947) vs **BJP/RSS** (1955)	इंटक (कांग्रेस) / बीएमएस (संघ)

Common Traps

1. Registration = national party → **29A** only registers. Recognition = **Symbols Order**
2. CPI is still a national party → **lost 2023**. CPI(M) remains
3. NPP is a State-only Meghalaya party → **national** since **2019**
4. BSP is only a UP regional party → **national**; elephant (except Assam)
5. SP is a national party → **State** party
6. TMC founded before SP → TMC **1998**, SP **1992**. TDP is **1982**
7. India is a two-party system → **multi-party**. 2014 majority did not change the *system*
8. Hung House = 356 at once → invite a combination; **floor test** first
9. 2024 BJP had a solo majority → **240**. NDA **coalition**
10. Pressure group = political party → parties **contest**; groups **influence**
11. AITUC = CPI(M) → **CPI**. **CITU** = CPI(M)
12. BMS = Congress → **BJP/RSS**. INTUC = Congress
13. First union = AITUC 1920 → first **union** = **Madras 1918**. AITUC = first **central** federation
14. Always six national parties → count **after the last ECI review**
15. SP symbol = "cycle" as a distinct ECI symbol → **bicycle**
16. Invite the largest party always, even vs a pre-poll alliance → Sarkaria: **pre-poll first**, then largest, then post-poll
17. Strike is a Fundamental Right → **19(1)(c)** = form unions. Strike **is not** a FR
18. AITUC first president = Gandhi / Bose → **Lala Lajpat Rai**
19. RSS is a registered political party → cadre body; **BJP** is the party. BMS is the labour front
20. FICCI = 1947 → **1927**. ASSOCHAM is **1920**
21. Official opposition = any second party → needs **10%** of the House
22. Inner-party elections are a constitutional mandate → **no** article. ECI guidelines only

Topic 19 — Acts & Governance

Consolidated — 31 Must-Score Facts

1. **Right to Information (RTI) Act, 2005:** Enacted to promote transparency, accountability, and contain corruption in public authorities; roots lie in the Mazdoor Kisan Shakti Sangathan (MKSS) grassroots movement led by **Aruna Roy in Rajasthan (1990s)**.
2. Legislative History of RTI: Tamil Nadu was the **first State to pass an RTI Act in 1997** (followed by Goa in 1997); Parliament passed the Freedom of Information Act, 2002 (never enforced); the comprehensive **Right to Information Act, 2005** received presidential assent on **15 June 2005** and came into full force on **12 October 2005**.
3. Constitutional Foundation of RTI: In ***State of U.P. v. Raj Narain (1975)*** and ***SP Gupta (1981)***, the Supreme Court held that the **Right to Information is an inalienable component of Freedom of Speech and Expression under Article 19(1)(a)** of the Constitution.
4. Definition of 'Public Authority' (Section 2(h)): Includes any authority or body established or constituted: (a) by or under the Constitution; (b) by any law made by Parliament or State Legislature; (c) by notification issued by government; and includes **any non-government organization (NGO) substantially financed directly or indirectly by funds provided by the appropriate Government**.
5. Time Limits under RTI (Section 7): (1) General request = within **30 days** of application; (2) If application is made to an Assistant Public Information Officer (APIO) = within **35 days**; (3) If information concerns the **LIFE OR LIBERTY OF A PERSON = MUST BE PROVIDED WITHIN 48 HOURS**; (4) Third-party information = within **40 days**.
6. Fees and Deemed Refusal: Application fee is ₹10; information is **provided completely FREE OF COST to persons below the poverty line (BPL)**; if a public authority fails to give information within the specified time limit, it is deemed a refusal and information **must be provided FREE OF COST to all applicants** thereafter.
7. Exemptions from Disclosure (Section 8(1)): 10 categories exempt from disclosure: sovereignty/integrity of India, security/scientific/economic interests of State, contempt of court, parliamentary privilege, commercial confidence/intellectual property, information received in confidence from foreign government, endanger life/safety of any person, impede investigation/prosecution, Cabinet papers (until decision taken), and unwarranted invasion of privacy.
8. Public Interest Override (Section 8(2)): A public authority **may allow access to information** even if it falls under exemptions, if **public interest in disclosure outweighs the harm to protected interests**.
9. RTI Overriding Effect (Section 22): The RTI Act has **overriding effect** over the **Official Secrets Act, 1923** and any other law inconsistent with it.
10. Exempted Intelligence & Security Agencies (Section 24 & Second Schedule): Agencies like IB, RAW, Directorate of Revenue Intelligence (DRI), and CAPFs are exempt from the RTI Act; **Exception**: Information pertaining to **allegations of corruption and human rights violations IS NOT EXEMPT** (human rights violations require approval of Central/State Information Commission and must be provided within **45 days**).
11. Appeals Structure under RTI: **First Appeal** lies to the First Appellate Authority (senior officer in the department) within **30 days**; **Second Appeal** lies to the **Central Information Commission (CIC) or State Information Commission (SIC)** within **90 days**; decision of the Commission is binding.
12. **Disaster Management Act, 2005:** Enacted following the 2004 Indian Ocean Tsunami; provides an institutional mechanism for drawing up disaster management plans and holistic response; came into force in January 2006.
13. **National Disaster Management Authority - NDMA (Section 3):** Apex body for disaster management in India; **Chairperson = PRIME MINISTER OF INDIA**; consists of other members not exceeding 9, nominated by the Chairperson (one designated Vice-Chairperson with Cabinet Minister rank).
14. **State Disaster Management Authority - SDMA (Section 14):** Apex body at State level; **Chairperson = CHIEF MINISTER OF THE STATE**; consists of other members not exceeding 9 nominated by CM.
15. **District Disaster Management Authority - DDMA (Section 25):** Apex body at district level; **Co-chaired by the District Magistrate / Collector / Deputy Commissioner AND the elected Chairperson of the Zila Parishad** (ex-officio Co-Chairperson).
16. **National Disaster Response Force - NDRF (Section 44):** Specialist multi-skilled force constituted for disaster response; personnel deputed from Central Armed Police Forces (BSF, CRPF, CISF, ITBP, SSB, Assam Rifles); headed by a **Director General (DG)** appointed by Central Government.
17. Funds under Disaster Management Act: (1) **National Disaster Response Fund (NDRF)**: Managed by Central Government under Section 46 for meeting emergency expenses; (2) **National Disaster Mitigation Fund (NDMF)**; parallel State Disaster Response Fund (SDRF) and District Disaster Response Fund (DDRF).
18. **Right to Education (RTE) Act, 2009:** Enacted to give statutory effect to **Article 21A**; came into force on **1 April 2010**; guarantees free and compulsory elementary education (Class 1 to 8) to all children of **6 to 14 years**.
19. Key RTE Provisions: **Section 12(1)(c)** mandates **at least 25% reservation of seats** in Class 1 (or pre-school) in private unaided schools for children belonging to **economically weaker sections and disadvantaged groups**; prohibits screening tests and capitation fees; pupil-teacher ratio (PTR) fixed at **30:1 for primary** and **35:1 for upper primary**.
20. RTE Prohibitions: Completely bans physical punishment, mental harassment, unrecognized schools, private tuition by teachers, and deployment of teachers for non-educational work (except decennial census, disaster relief, and elections).
21. **Whistleblowers Protection Act, 2014:** Enacted to establish a mechanism to receive complaints relating to disclosure of corruption or wilful misuse of power against any public servant, and to provide safeguards against victimization of whistleblowers; designated competent authority is the **Central Vigilance Commission (CVC)**.
22. **Citizen's Charter:** Originates from the **Citizen's Charter initiative in the UK (1991)** under Prime Minister John Major; represents a voluntary written declaration by public service providers outlining commitments regarding standards, quality, transparency, choice, accessibility, and grievance redressal.
23. Citizen's Charter in India: First adopted at the Chief Ministers' Conference in **May 1997**; coordinated by the **Department of Administrative Reforms and Public Grievances (DARPG)**; **Citizen's Charters are NOT legally enforceable in courts of law** (voluntary administrative standards).
24. Sevottam Model: A quality management framework developed by DARPG in 2006 to assess public service delivery; rests on 3 modules: (1) Citizen's Charter; (2) Public Grievance Redress Mechanism; (3) Service Delivery Capability.
25. **Centralised Public Grievance Redress and Monitoring System (CPGRAMS):** Online web-enabled platform developed by NIC and DARPG in 2007; facilitates 24x7 lodging and tracking of grievances against Central and State government departments.
26. **E-Governance Initiatives:** National e-Governance Plan (NeGP) approved in 2006 with 31 Mission Mode Projects; **Digital India Programme** launched on **1 July 2015** with 3 vision areas: (1) Digital Infrastructure as core utility; (2) Governance and Services on Demand; (3) Digital Empowerment of citizens.
27. **Digital Personal Data Protection (DPDP) Act, 2023:** Regulates the processing of digital personal data; establishes the **Data Protection Board of India** as an adjudicatory body; imposes penalties of up to **₹250 crore** for failure to prevent personal data breaches; grounds for processing include consent and 'legitimate uses'.
28. Section 4 of RTI Act (Proactive Disclosure): Mandates that every public authority shall maintain all its records catalogued and indexed, and **suo motu publish 17 categories of information** within 120 days of enactment, minimizing the need for citizens to file formal RTI requests.
29. Lokpal Inquiry and Prosecution Wings: Under the Lokpal Act 2013, Lokpal has its own **Inquiry Wing** headed by Director of Inquiry and **Prosecution Wing** headed by Director of Prosecution; can utilize any government agency including CBI.
30. Timeline for Lokpal Inquiries: Preliminary inquiry must be completed within **90 days** (extendable by 90 days); investigation must be completed within **6 months**; trial before Special Court must be completed within **1 year** (extendable up to 2 years).
31. Citizen's Charter Bill, 2011: The Right of Citizens for Time Bound Delivery of Goods and Services and Redressal of their Grievances Bill, 2011 lapsed upon dissolution of 15th Lok Sabha; however, over 20 States (including UP under UP Janhit Guarantee Act, 2011) have enacted their own **Public Service Delivery Guarantee Acts** providing statutory timelines and penalties for delay.

📋 Must-score facts — key Acts & chairs

Act ↔ lock

Act	Lock
DM Act 2005	NDMA = **PM**; SDMA = CM; NDRF ≠ Response **Fund**
RTI 2005 (आरटीआई 2005)	Assent 15 Jun; force **12 Oct 2005**; s.22 overrides OSA to that extent
RTE 2009 (आरटीई 2009)	Force **1 Apr 2010**; ages **6–14**
NFSA 2013 (खाद्य सुरक्षा 2013)	Up to **75%** rural / **50%** urban
FRA 2006	Starts at **Gram Sabha**
PHRA 1993	NHRC; **1-year** complaint limit
Lokpal Act 2013	Statutory anti-corruption apex
CAA 2019	Selected minorities; cut-off **31 Dec 2014**

Governance tags

Item	Lock
NITI (नीति) Aayog (नीति आयोग)	2015; think-tank; replaced Planning Commission (योजना आयोग)
GST (वस्तु एवं सेवा कर)	101st Amd; GST Council (जीएसटी परिषद)

Current Affairs

- **2025:** "Accountability" is **not** a food-security dimension under NFSA. Consumers can bargain below the MRP. **Adi Karmayogi** (launched June) belongs to the **Ministry of Tribal (आदिवासी) Affairs**, not Mission Karmayogi.
- **2024:** NFSA covers **75%/50%** (rural/urban (नगरीय)), and was **not** enforced on 5 July 2010. ICT-based e-governance **reduces cost** and **increases citizen input** — it does **not** cut transparency or add red-tape.
- **2022:** PESA was passed in **1996**.
- **2021:** The **NDMA** (आपदा प्राधिकरण) is chaired by the **PM**. The ECO Mark denotes environment-safe goods. The Wages Code does **not** include Contract Labour.
- **2019:** MKSS is linked to **RTI**. NFSA's woman-head provision was also tested.
- **2019–24 (running themes):** the CPA, 2019; the RTI Amendment; the CAA's 2024 upholding; Mission Karmayogi (2020); the CBC (2021); and the lateral-entry debate (2018–24).

Confused Pairs

Term A	Term B	Core Difference	Hindi Terminology
RTI 2005	**RTE 2009**	Information statute (MKSS) vs Education statute (86th / 21A)	आरटीआई 2005 / आरटीई 2009
NFSA 2013	**RTE 1 Apr 2010**	Food law; **not** 5 Jul 2010 vs School law commencement	खाद्य सुरक्षा 2013 / आरटीई लागू
PESA 1996	**73rd 1993**	Extends Part IX to **5th Sch.** vs Constitutional PRI skeleton	पेसा 1996 / 73वां संशोधन
CPA 1986	**CPA 2019**	Old COPRA vs CCPA + product liability + e-com	उपभोक्ता संरक्षण (1986 vs 2019)
AITUC-era labour Acts	**Labour Codes**	Many old statutes vs **Four** Codes (Wages 2019 + three 2020)	पुराने श्रम कानून / चार श्रम संहिताएं
POCSO	**JJ Act**	Sexual offences, child **<18** vs Children in conflict / need of care	पॉक्सो / किशोर न्याय (जेजे) अधिनियम
PoA 1989	**PCR 1955**	Atrocities (heavier) vs Civil Rights / untouchability	अत्याचार निवारण / नागरिक अधिकार संरक्षण
NDMA	**MHA DM Division**	Authority; **PM** chairs vs Nodal **division** in Home	आपदा प्राधिकरण / गृह मंत्रालय प्रभाग
NDRF (force)	**NDRF (fund)**	Battalions under MHA vs National Disaster **Response Fund** (DM Act)	एनडीआरएफ बल / राष्ट्रीय आपदा प्रतिक्रिया कोष
RPA 1950	**RPA 1951**	Rolls / seats vs Conduct / petitions / 29A	जनप्रतिनिधित्व (1950 vs 1951)
EPA 1986	**NGT 2010**	Umbrella environment statute vs Green tribunal	पर्यावरण संरक्षण 1986 / एनजीटी 2010
POSH 2013	**POCSO 2012**	Workplace; ICC if **≥10** workers vs Child **<18** sexual offences	कार्यस्थल यौन उत्पीड़न (पॉश) / पॉक्सो
NeGP 2006	**Digital India 2015**	27→ MMPs plan vs Umbrella; **e-Kranti** is pillar **5**	राष्ट्रीय ई-शासन / डिजिटल इंडिया
Citizen Charter	**Sevottam**	Promise document (1997) vs 2006 **3-module** delivery model that *uses* the Charter	नागरिक अधिकार-पत्र / सेवोत्तम मॉडल
Code of Conduct	**Code of Ethics**	CCS Rules **1964** — enforceable vs Values / Nolan; 2nd ARC wanted a separate ethics code	आचरण नियमावली / नैतिक संहिता
Mission Karmayogi	**Adi Karmayogi 2025**	DoPT / iGOT / CBC vs **MoTA** tribal responsive-governance drive	मिशन कर्मयोगी / आदि कर्मयोगी
Social audit	**CAG audit**	Gram Sabha / MGNREGA s.17 vs Constitutional auditor (Art. **148**)	सामाजिक अंकेक्षण / कैग लेखापरीक्षा
1st ARC	**2nd ARC**	Morarji **1966–70**, **20** reports vs Moily **2005–09**, **15** reports	प्रथम एआरसी / द्वितीय एआरसी
G2C	**G2G**	Citizen services (UMANG, DigiLocker) vs Intra-government (e-Office, PFMS)	जी2सी (नागरिक) / जी2जी (अंतर-सरकारी)
Citizen Charter	**RTS / Janhit Guarantee**	DARPG promise, not a Union Act vs **State statute** (MP **2010**, UP **2011**) with officer-penalty	नागरिक चार्टर / जनहित गारंटी कानून
CPGRAMS	**DPG**	DARPG portal for all ministries vs Cabinet Secretariat **1988** residual window	सीपीजीआरएएमएस / लोक शिकायत निदेशालय
PRAGATI	**Digital India**	PMO monthly ICT review (**2015**) vs MeitY programme, **9 pillars**	प्रगति (समीक्षा मंच) / डिजिटल इंडिया
Conduct 1964	**CCA 1965**	Behaviour / gifts / politics vs How to punish	आचरण नियम / अनुशासनात्मक नियम

RPA 1950 & 1951

Act	Owns
RPA 1950	Electoral **rolls** · allocation of **seats** · delimitation machinery · voter qualifications
RPA 1951	**Conduct** of elections · nominations · **corrupt practices (s.123)** · election petitions · **s.29A** party registration · **s.8** disqualification
Trap	Do **not** write 1950 as the campaign / petition statute

Common Traps

1. MKSS = RTE / MGNREGA → **RTI**
2. NDMA Chair = Home Minister → **PM**. MHA only hosts the *division*
3. NFSA enforced 5 July 2010 → **2013**. 2010 = **RTE** commencement
4. NFSA covers 100% population → **75% rural / 50% urban**
5. PESA = 73rd / Sixth Schedule → **1996**, **Fifth** Schedule
6. RTE in force 2002 / 2009 → Statute 2009; **1 Apr 2010**
7. CPA 2019 still the 1986 forums only → **CCPA + product liability + e-com**
8. ECO Mark = export / best quality → **Environment-safe** goods
9. Code on Wages includes Contract Labour → **OSH 2020**. Wages = MW + PW + Bonus + Equal Remuneration
10. POCSO child = 14 / 16 → **Below 18**
11. PoA still as *Mahajan* diluted it → **2018 Amd** restored the teeth
12. FRA nodal = Environment Ministry → **Tribal Affairs**
13. Whistle-blower Act = RTI → Separate **2014** statute
14. PHRA Chair must still be retired CJI → **2019**: retired **SC judge** enough
15. CAA = 6 religions including Muslim → **Six** listed; **Islam not** in
16. NDRF force = NDRF fund → Force = battalions. Fund = **Response Fund** (plus SDRF)
17. RTI repealed Official Secrets Act → **s.22** overrides to the extent of inconsistency; OSA **lives**
18. RTI second appeal in 30 days → Second = **90 days** to CIC/SIC. First = **30 days**
19. RTE no-detention still absolute till 8 → **2019 Amd** — State may detain in **5 and 8**
20. FRA individual holding unlimited → Ordinarily **≤ 4 ha**
21. NEC chaired by HM → **Cabinet Secretary**
22. District consumer cap still ₹20 lakh → **₹50 lakh** (2019/21 bands)
23. 15 March = National Consumer Day → **24 Dec** national; **15 Mar** World
24. Contract Labour → Wages Code → **OSH 2020**
25. IR standing orders still at 100 workers → Code: **300**
26. POSH = POCSO → POSH = workplace ICC; POCSO = child **<18**
27. EPA 1986 = NGT → NGT is **2010** tribunal
28. Aadhaar = constitutional right → **2016 statute**; SC 2018 limited private use
29. RPwD still 3% reservation → **4%** (2016). Old PWD Act **1995**
30. Dual citizenship via OCI → OCI ≠ second Indian passport
31. PESA = all tribal States → **10 Fifth-Schedule States** only
32. e-gov reduces transparency / adds red-tape → **Opposite** (2024): cost **down**, citizen input **up**
33. Digital India = NeGP → DI **2015** umbrella; NeGP **2006**; **e-Kranti = pillar 5**
34. Citizen Charter = enforceable Act → **DARPG document**, not a statute
35. Sevottam = a 2015 Digital India pillar → **2006** DARPG **3-module** model
36. Good Governance Day = 26 January → **25 December** (Atal)
37. UNDP 8 includes "food accountability" → That's **NFSA 2025 trap**. UNDP 8 = participation…rule of law
38. Social audit = CAG → GS / MGNREGA **s.17**. First **State Act = Meghalaya 2017**
39. CPGRAMS = RTI / Lokpal → **Grievance portal**, DARPG
40. Adi Karmayogi = DoPT / iGOT → **MoTA, June 2025**
41. Mission Karmayogi = 2015 / MeitY → **2 Sep 2020**, **DoPT**; CBC **2021**
42. Code of Ethics = CCS Conduct Rules → Conduct **1964** is enforceable; ethics code is **ARC wish-list**
43. Nolan = Indian statute → **UK 1994**, seven principles
44. 2nd ARC = Morarji / Santhanam → **Veerappa Moily 2005–09**, **15** reports. 1st ARC = Morarji. Santhanam = CVC
45. Hota = 2nd ARC → **Hota 2004**, separate
46. Lateral entry replaces UPSC CSE → Contract specialists via **UPSC**, **2018** window
47. GeM = MeitY Digital India app → **Commerce**, **2016**, G2B
48. MyGov launched 1 Jul 2015 → **26 Jul 2014**
49. UMANG = 2015 → **23 Nov 2017**
50. Committed bureaucracy = neutrality → **Opposite** of the steel-frame rule
51. PRAGATI = a Digital India pillar → **PMO**, **25 Mar 2015** — grievance + programme + project
52. DPG = DARPG / CPGRAMS → **Cabinet Secretariat, 1988** residual window
53. Citizen Charter = Janhit Guarantee Act → Charter = DARPG promise. **UP 2011 / MP 2010** = **statute** with penalty
54. First RTS Act = UP → **MP 2010**; UP Janhit Guarantee **2011**
55. CPGRAMS expansion = "Chief Minister portal" → **Centralised Public Grievance Redress and Monitoring System**
56. MeitY existed as a ministry in 2006 → **Ministry from 19 Jul 2016** (DeitY was a department)
57. Conduct Rules = CCA Rules → Conduct **1964** (behaviour). CCA **1965** (discipline procedure)
58. NIC born with Digital India → NIC **1976**; DI **2015**
59. Meghalaya social-audit Act = AP → AP = pioneer *society*; **Meghalaya 2017** = first *Act*
60. 1st ARC recommended Digital India → 1st ARC = **Lokpal / grievance machinery**. DI is **2015**

Topic 20 — Internal Security

Consolidated — 32 Must-Score Facts

1. Constitutional Distribution of Security Powers: **'Police' and 'Public Order' are listed under Entry 1 and Entry 2 of the State List (List II)** in the Seventh Schedule, making State governments primarily responsible for law enforcement; however, under **Article 355**, the Union has a constitutional duty to **protect every State against external aggression and internal disturbance**.
2. Armed Forces of the Union: The **Army, Navy, and Air Force** sit under the **Ministry of Defence**; the President of India is the **Supreme Commander of the Defence Forces** under **Article 53(2)**; the post of **Chief of Defence Staff (CDS)** was created in December 2019 (General Bipin Rawat was first CDS) as principal military advisor to Defence Minister.
3. **Central Armed Police Forces (CAPFs):** All CAPFs function under the administrative control of the **Ministry of Home Affairs (MHA)** (NOT Ministry of Defence!); comprises 7 forces: BSF, CRPF, CISF, ITBP, SSB, NSG, and Assam Rifles.
4. **Central Reserve Police Force (CRPF):** Formed in **1939** as Crown Representative's Police; renamed CRPF in 1949; largest CAPF in India; primary force for internal security, counter-insurgency, anti-Naxalite operations (via specialized **CoBRA - Commando Battalion for Resolute Action**), and election security; Rapid Action Force (RAF - 1992) is a specialized anti-riot wing of CRPF.
5. **Border Security Force (BSF):** Established on **1 December 1965** following the 1965 Indo-Pak war (motto: *Duty Unto Death*); guards India's land borders with **Pakistan and Bangladesh**; in 2021, MHA extended BSF jurisdiction up to **50 km inside international borders** in Punjab, West Bengal, and Assam.
6. **Indo-Tibetan Border Police (ITBP):** Raised on **24 October 1962** during the Indo-China war; specialized high-altitude mountain warfare force; guards the **3,488 km India-China border** (Line of Actual Control - LAC) from Karakoram Pass in Ladakh to Jachep La in Arunachal Pradesh.
7. **Sashastra Seema Bal (SSB):** Originally set up in 1963 as Special Service Bureau under Cabinet Secretariat; transferred to MHA in 2001; guards India's open borders with **Nepal and Bhutan**.
8. **Central Industrial Security Force (CISF):** Established in **1969** under an Act of Parliament; provides integrated security cover to sensitive public/private industrial establishments, nuclear installations, space facilities, sea ports, Delhi Metro, and **all major civil airports across India**.
9. **National Security Guard (NSG):** Federal contingency counter-terrorism force raised in **1984** under the National Security Guard Act, 1986 following Operation Blue Star; nicknamed **'Black Cats'**; tasks include counter-hijacking, counter-terrorist hostage rescue, and specialized bomb disposal; comprises Special Action Group (SAG - drawn from Army) and Special Ranger Group (SRG - drawn from CAPFs/police).
10. **Assam Rifles: Oldest paramilitary force in India**, raised in **1835 as Cachar Levy**; unique dual control: **administrative control rests with the Ministry of Home Affairs (MHA)**, while **operational control rests with the Ministry of Defence (Indian Army)**; guards the **1,643 km Indo-Myanmar border** and conducts counter-insurgency operations in the Northeast; nicknamed **'Sentinels of the Northeast'**.
11. **Indian Coast Guard (ICG):** Established on **18 August 1978** under the Coast Guard Act, 1978; operates under the **Ministry of Defence**; enforces maritime laws in India's **Territorial Waters (12 nautical miles)** and **Exclusive Economic Zone (EEZ - 200 nautical miles)**.
12. Intelligence Architecture of India: (1) **Intelligence Bureau (IB)**: Established in **1887** as Central Special Branch; India's premier **internal intelligence and counter-intelligence agency** under the **Ministry of Home Affairs**; (2) **Research and Analysis Wing (RAW)**: Created on **21 September 1968** under **R.N. Kao** (following 1962 and 1965 wars); handles **external intelligence, counter-terrorism, and foreign espionage**; reports directly to the **Cabinet Secretariat under Prime Minister's Office**; (3) **National Technical Research Organisation (NTRO)**: Established 2004 under NSA for geospatial and technical intelligence; (4) **Defence Intelligence Agency (DIA)**: Formed 2002 under Ministry of Defence for military intelligence.
13. **National Security Council (NSC):** Established in **1998** by the Atal Bihari Vajpayee government; 3-tier structure: (1) Strategic Policy Group; (2) National Security Advisory Board (NSAB); (3) Joint Intelligence Committee (JIC); headed by the **National Security Advisor (NSA)**, who serves as primary advisor to Prime Minister on national security.
14. **Armed Forces (Special Powers) Act - AFSPA, 1958:** Enacted to confer special powers upon armed forces in **'Disturbed Areas'**; a 'Disturbed Area' is declared under **Section 3 of AFSPA** by the **Central Government (MHA), Governor of the State, or Administrator of UT**.
15. Powers under Section 4 of AFSPA: An officer/JCO may, after giving warning: (a) **Fire upon or use force even to the causing of death** against any person acting in contravention of law/order; (b) Destroy any arms dump or fortified position; (c) **Arrest without warrant** any person who has committed or is suspected of committing a cognizable offence; (d) **Search without warrant** any premises; **Section 6** provides legal immunity: no prosecution or legal proceeding can be instituted against military personnel without **prior sanction of the Central Government**.
16. Judicial Scrutiny of AFSPA: In ***Naga People's Movement for Human Rights v. Union of India (1997)***, the Supreme Court upheld the constitutional validity of AFSPA, but laid down strict guidelines against arbitrary use; the **Justice Jeevan Reddy Committee (2005)** recommended that AFSPA should be repealed and its appropriate provisions incorporated into the UAPA.
17. **Unlawful Activities (Prevention) Act - UAPA, 1967:** India's primary anti-terrorism law; **Section 15** defines a terrorist act; the **2019 Amendment to UAPA** empowered the Central Government to **designate individuals as terrorists** (earlier only organizations could be declared terrorist organizations); allows NIA officers of Inspector rank and above to investigate terrorism cases.
18. **National Investigation Agency (NIA):** Established under the **NIA Act, 2008** as the central counter-terrorism law enforcement agency under MHA; exercises extraterritorial jurisdiction (2019 amendment) to investigate scheduled offences committed against Indian citizens or interests abroad; special NIA Courts try scheduled offences.
19. **Police Reforms & Prakash Singh Judgment (2006):** In ***Prakash Singh v. Union of India (2006)***, the Supreme Court issued 7 binding directives for police reforms: (1) State Security Commission (to isolate police from political pressure); (2) Merit-based transparent selection and **minimum 2-year fixed tenure for DGP**; (3) Minimum 2-year fixed tenure for SPs and SHOs; (4) **Separation of Investigation and Law & Order functions**; (5) Police Establishment Board; (6) Police Complaints Authorities at State and District levels; (7) National Security Commission at Central level.
20. Cyber Security Institutional Architecture: (1) **CERT-In (Indian Computer Emergency Response Team)**: Designated nodal agency under Section 70B of Information Technology Act, 2000 under MeitY; (2) **National Critical Information Infrastructure Protection Centre (NCIIPC)**: Created under Section 70A of IT Act under NTRO to protect critical sectors (power, banking, telecom, transport); (3) **Indian Cyber Crime Coordination Centre (I4C)**: Set up under MHA with national portal (cybercrime.gov.in) and emergency helpline 1930.
21. **Three-Tier Coastal Security Mechanism:** Implemented post-26/11: (1) **Tier 1 (Outer Deep Sea - 12 to 200 nautical miles)**: Patrolled by the **Indian Navy** (overall maritime security coordinator); (2) **Tier 2 (Intermediate Waters - 5 to 12 nautical miles)**: Patrolled by the **Indian Coast Guard**; (3) **Tier 3 (Shallow Coastal Waters - Baseline to 5 nautical miles)**: Patrolled by **State Coastal Marine Police**.
22. **Maritime Zones of India Act, 1976:** Defines India's maritime zones: **Territorial Waters** = up to **12 nautical miles** (sovereign Indian territory); **Contiguous Zone** = up to **24 nautical miles** (customs, fiscal, immigration enforcement); **Exclusive Economic Zone (EEZ)** = up to **200 nautical miles** (sovereign rights for exploration and exploitation of natural resources).
23. **Multi-Agency Centre (MAC):** Operationalized under the **Intelligence Bureau (IB)** post-Kargil War; 24x7 nodal clearing-house for real-time intelligence sharing among armed forces, CAPFs, state police, and central agencies; State MACs (SMACs) operate in all State capitals.
24. **NATGRID (National Intelligence Grid):** Master database conceptualized after 26/11 to connect 21 individual databases (railways, airlines, bank accounts, passport, vehicle registration) for 11 central security and intelligence agencies.
25. **Crime and Criminal Tracking Network & Systems (CCTNS):** Mission Mode Project under Digital India initiated in 2009; interconnects all 16,000+ police stations across India under the **National Crime Records Bureau (NCRB)** for computerized crime and criminal tracking.

26. **Left-Wing Extremism (LWE) & SAMADHAN Strategy:** MHA formulated the SAMADHAN framework in 2017: **S**-Smart Leadership, **A**-Aggressive Strategy, **M**-Motivation and Training, **A**-Actionable Intelligence, **D**-Dashboard Based KPIs, **H**-Harnessing Technology, **A**-Action plan for each theatre, **N**-No access to financing; deployment of specialized **Greyhounds (Telangana/AP)** and **CoBRA (CRPF)**.
27. India's International Land Borders Breakdown: Total land border is **15,106.7 km** across 7 countries: **Bangladesh (4,096.7 km - longest)**, China (3,488 km), Pakistan (3,323 km), Nepal (1,751 km), Myanmar (1,643 km), Bhutan (699 km), and Afghanistan (106 km in PoK - shortest).
28. **Prevention of Money Laundering Act (PMLA), 2002:** Enacted to prevent money laundering and confiscate property derived from proceeds of crime; enforced by the **Enforcement Directorate (ED)** under the Department of Revenue, Ministry of Finance; in ***Vijay Madanlal Choudhary (2022)***, SC upheld stringent PMLA twin bail conditions and ECIR procedures.
29. **Narcotics Control Bureau (NCB):** Constituted on **17 March 1986** under the **Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985**; India's apex drug law enforcement and intelligence agency under the **Ministry of Home Affairs**.
30. **Border Area Development Programme (BADP):** Comprehensive Centrally Sponsored Scheme implemented by MHA to meet the special developmental needs of people living in remote and inaccessible border areas along international land borders.
31. **Vibrant Villages Programme (VVP):** Centrally funded scheme launched in 2023 for comprehensive development of selected border villages in **Himachal Pradesh, Uttarakhand, Arunachal Pradesh, Sikkim, and Ladakh** along the northern border, reversing border out-migration.
32. **Theaterisation of Armed Forces:** Ongoing military modernization reforming India's 17 single-service commands into unified **Joint Theater Commands** under the **Chief of Defence Staff (CDS)** to ensure operational synergy between Army, Navy, and Air Force.

📋 Must-score facts — agencies, CAPF, NSC

Division of labour

Item	Lock
Police / public order	**State List**
Union duty	Art. **355**
Defence forces	Ministry of **Defence**
CAPFs	Ministry of **Home**

Agency ↔ tag

Agency	Lock
IB	Internal intel; **1887**; under MHA
RAW	External; **21 Sep 1968**; **R.N. Kao**
NIA	Act **2008** (post 26/11); scheduled offences without State consent in listed cases
CBI	Interpol NCB India; BHARATPOL channel
NSC	**1998**; Chair **PM**; first NSA **Brajesh Mishra**
CCS (सुरक्षा कैबिनेट समिति)	Cabinet committee (≠ NSC)

Current Affairs (what the year actually tests)

Newest first. One event, one fact — not a dump of keywords.

Year	What happened	What you mark
2025	**BHARATPOL** portal launched for Interpol police cooperation	Built by **CBI** (केन्द्रीय अन्वेषण ब्यूरो), because CBI is India's Interpol **National Central Bureau**. Not IB, not RAW, not ED
2024	April anti-Maoist encounter	**Kanker district, Chhattisgarh** (Abujhmad / Binagunda) — **not Gadchiroli (Maharashtra)**. Forces: **BSF + District Reserve Guard**. DRG is a **Chhattisgarh** police unit; Maharashtra's LWE unit is **C-60**
2022	CERT-In (सर्ट-इन) issued directions on incident reporting	Report specified incidents in **6 hours**; keep logs **5 years**. CERT-In = **MeitY / s.70B**, not MHA
2022	AFSPA withdrawn from large parts of **Assam**	AFSPA is a **notification**, not a permanent all-India law. Assam ≠ still fully covered
2020	I4C (भारतीय साइबर अपराध समन्वय केंद्र) opened out for States	**MHA** cyber-*crime* coordination + **cybercrime.gov.in**. Different from CERT-In
2019	**UAPA** amendment	Centre can list **individuals** as terrorists (Fourth Schedule), not only organisations
2019	**NIA** amendment	Wider schedule (trafficking, cyber-terror, counterfeit, arms…) + **extra-territorial** investigation
2019	**SPG Act** amendment	SPG as of right = **sitting (बैठक) PM** + family. Ex-PM cover **5 years** from leaving office — **not** lifelong for every former PM
2019	**Defence Cyber Agency** raised	**Tri-service, MoD**. Not I4C, not CERT-In
2018	NSC (राष्ट्रीय सुरक्षा परिषद)'s Strategic Policy Group recast	**NSA** (not Cabinet Secretary) **chairs** the Strategic Policy Group. This SPG ≠ Special Protection Group 1988
2017	MHA's **SAMADHAN** for LWE	Strategy acrostic (Smart leadership … No financing) — not a new CAPF (सीएपीएफ)
2015	*Shreya Singhal*	IT Act **s.66A struck**; **s.69A** blocking **upheld**
2015	Tripura lifted AFSPA	First NE State in that wave to go off the 1958 map (**May 2015**)
2013	National Cyber Security Policy	**MeitY**. 2023 draft is **not** the replacement to freeze
2008	26/11 year	**NIA Act** · CRPF **CoBRA** · UAPA given more teeth
2004	POTA repealed	Terror chapters **enter UAPA**. CERT-In also born this year (executive)
2001	After Parliament attack	**MAC** (बहु-एजेंसी केंद्र) fused inside **IB**. Special Service Bureau renamed **Sashastra Seema Bal** (Nepal + Bhutan)

Confused Pairs

Term A	Term B	Core Difference	Hindi Terminology
IB	**RAW**	Internal intel, **MHA**, **1887** vs External intel, **Cabinet Secretariat**, **1968**	आईबी (आंतरिक) / रॉ (बाह्य)
CBI	**NIA**	DSPE; **State consent s.6** vs Statute **2008**; **no** consent on scheduled offences	सीबीआई / एनआईए
CAPF	**Army**	**MHA**, police-style vs **MoD**, armed forces	सीएपीएफ (गृह) / सेना (रक्षा)
BSF	**ITBP**	Pak + Bangladesh vs China / **LAC**, Himalayan	बीएसएफ (पाक/बांग्लादेश) / आईटीबीपी (चीन)
SSB	**Assam Rifles**	Nepal + Bhutan borders vs Oldest; **NE**; dual MHA/Army	एसएसबी / असम राइफल्स
NSG	**SPG (1988)**	Federal strike / anti-terror vs Close protection of **PM**	एनएसजी (कमांडो) / एसपीजी (पीएम सुरक्षा)
SPG (1988)	**SPG (NSC)**	Special **Protection** Group vs Strategic **Policy** Group (NSA chairs)	विशेष सुरक्षा दल / रणनीतिक नीति समूह
NSC	**CCS**	1998 council; PM + NSA vs Cabinet committee on security	राष्ट्रीय सुरक्षा परिषद / सुरक्षा कैबिनेट समिति
CRPF	**BSF**	Internal / LWE / RAF / CoBRA vs International land border (W+E)	सीआरपीएफ / सीमा सुरक्षा बल
CISF	**CRPF**	Static industry / airport / metro vs Mobile internal-security grid	सीआईएसएफ (औद्योगिक) / सीआरपीएफ
NCTC	**MAC**	Proposed, **never** stood up vs **2001**, lives inside **IB**	एनसीटीसी / बहु-एजेंसी केंद्र (मैक)
Coast Guard	**BSF Water Wing**	**MoD 1978**, sea vs Riverine **Pak/BD** frontier, MHA	तटरक्षक बल / बीएसएफ जल शाखा
CERT-In	**I4C**	MeitY, **s.70B**, incidents vs MHA, **crime** portal	सर्ट-इन / भारतीय साइबर अपराध समन्वय केंद्र
CERT-In	**NCIIPC**	All-India CER vs **CII** only, under **NTRO**	सर्ट-इन / राष्ट्रीय महत्वपूर्ण सूचना अवसंरचना
UAPA	**NSA 1980**	Criminal trial / NIA / terror tag vs **Preventive detention** (Art. 22 preventive detention)	यूएपीए / रासुका (निवारक निरोध)
UAPA	**POTA / TADA**	Living 1967 law (2004/08/19 teeth) vs **Repealed / lapsed**	यूएपीए / पोटा एवं टाडा (निरस्त)
AFSPA 1958	**AFSPA J&K 1990**	NE disturbed areas vs Separate J&K statute	अफस्पा 1958 / अफस्पा कश्मीर 1990
AFSPA	**UAPA**	Army powers in a **disturbed** notification vs Police/NIA **trial** statute	अफस्पा (सेना अधिकार) / यूएपीए कानून
NCTC (terror)	**NCTC (I4C)**	Counter-terror centre — **never born** vs National **Cybercrime Training** Centre	आतंकवाद-रोधी केंद्र / साइबर प्रशिक्षण केंद्र

Neighbours that are not CAPFs

State police / DRG / C-60

Layer	Who	Water
Shore / territorial	**Coastal police** (State), Coastal Security Scheme (**MHA**)	Roughly **12 nautical miles**
EEZ patrol	**Indian Coast Guard (MoD)**	Out toward **200 nm** EEZ
Blue water (ब्लू वॉटर) / war	**Navy (MoD)**	Beyond / joint ops

UAPA, 1967

Law	Life	What to mark
TADA	**1985 → lapsed 1995**	First modern terror code. **Not in force**
POTA	**2002 → repealed 2004**	Passed after a **joint sitting** (संयुक्त बैठक) of Parliament (only the third joint sitting). Contents **migrated into UAPA**
UAPA	**1967 → still in force**	The survivor. 2004/08/13/19 are *amendments*, not new Acts

Common Traps

Trap	Correct
IB = external / RAW = MHA	**Opposite**
NIA needs State consent like CBI	**Does not**
BHARATPOL = IB or RAW	**CBI**
BSF guards the China border	**ITBP**. BSF = Pak + Bangladesh
SSB = Nepal only	Nepal **and Bhutan**
ITBP HQ = Leh / Itanagar	**New Delhi**
Assam Rifles = ordinary CAPF under only MHA	**Dual** MHA + Army; HQ **Shillong**
NSG = SPG	NSG = strike. SPG **1988** = PM's close protection
NSC's SPG = Special Protection Group	**Strategic Policy Group**
NSC = CCS	CCS is a **Cabinet** committee
NCTC is working under IB	**Never established**
Coast Guard = CAPF / MHA	**MoD, 1978**
April 2024 Maoist op = Gadchiroli	**Kanker, Chhattisgarh**
DRG = Maharashtra	**Chhattisgarh**. Maha LWE unit often **C-60**
CRPF raised 1965	**1939** / Act **1949**. **1965 = BSF**
CISF = riot police	**Industrial / airport / metro**
NATGRID = a CAPF	**Database**, MHA
Police is Union List	**State** List. Union uses 355 + CAPF + Entry 2A
CERT-In = MHA police	**MeitY**, **s.70B**, incident response
NCIIPC = CERT-In wing	**s.70A**, **NTRO**, CII only
I4C = CERT-In	**MHA** cyber-*crime*

Trap	Correct
NCTC (I4C training) = NCTC terror centre	Terror NCTC **never born**
India signed Budapest Convention	**Not a party**
DPDP 2023 = CERT-In statute	Personal data; ≠ incident response
s.66A still good law	**Struck 2015**. **69A** blocking was **upheld**
UAPA = NSA preventive detention	UAPA = **criminal trial**. NSA = **PD** (Art. 22 preventive detention)
POTA still in force	**Repealed 2004** → teeth into UAPA
UAPA 2019 only bans organisations	Can designate **individuals** (4th Schedule)
AFSPA applies all-India	Only a notified **disturbed area**
AFSPA 1958 covers J&K	J&K has a **1990** Act
s.6 AFSPA = State sanction	**Central** government sanction
Jeevan Reddy repeal is the law	**2005 rec**, **not enacted**
Tripura still under AFSPA	Lifted **May 2015**

Topic 21 — International Relations

Consolidated — 30 Must-Score Facts

1. **Constitutional Foundation of Foreign Policy (Article 51, Part IV):** Directs the State to endeavor to: (a) promote international peace and security; (b) maintain just and honorable relations between nations; (c) foster respect for international law and treaty obligations; (d) encourage settlement of international disputes by arbitration.
2. Dualist vs Monist System: India follows the **'Dualist' approach to international law**; an international treaty signed and ratified by the Government of India **does not automatically become part of domestic law** unless incorporated into domestic legislation by an Act of Parliament.
3. **Parliamentary Treaty Power (Article 253):** Empowers Parliament to make any law for the whole or any part of the territory of India for implementing any **treaty, agreement, or convention** with any other country or decisions made at any international conference, even if the subject matter falls exclusively under the **State List (List II)**.
4. Treaty-Making Executive Power: Under **Articles 73 and 246 (Entry 14 of Union List)**, entering into treaties and agreements with foreign countries and implementing them is the **exclusive domain of the Union Executive and Parliament**.
5. **Panchsheel (Five Principles of Peaceful Coexistence):** Signed on **29 April 1954** in the preamble to the Sino-Indian Agreement on Trade and Intercourse between Tibet Region of China and India (signed by Jawaharlal Nehru and Chinese Premier Zhou Enlai).
6. The Five Panchsheel Principles: (1) Mutual respect for each other's territorial integrity and sovereignty; (2) Mutual non-aggression; (3) Mutual non-interference in each other's internal affairs; (4) Equality and mutual benefit; (5) Peaceful coexistence; incorporated into the 10-point declaration at the **Bandung Conference (1955)**.
7. **Non-Aligned Movement (NAM):** Founded at the **Belgrade Conference in 1961** under the leadership of **Jawaharlal Nehru (India), Josip Broz Tito (Yugoslavia), Gamal Abdel Nasser (Egypt), Kwame Nkrumah (Ghana), and Sukarno (Indonesia)**; aimed to maintain foreign policy autonomy without joining the Western (NATO) or Eastern (Warsaw Pact) Cold War blocs.
8. **United Nations Structure:** The UN Charter came into force on **24 October 1945** (UN Day); India was an original founding signatory of the UN Charter (signed 26 June 1945 at San Francisco); UN comprises 6 principal organs: General Assembly, Security Council, Economic and Social Council (ECOSOC), Trusteeship Council (suspended 1994), International Court of Justice (ICJ, The Hague), and Secretariat.
9. **UN Security Council (UNSC):** Consists of **15 members**: **5 Permanent Members (P5: China, France, Russia, UK, USA)** possessing veto power, and **10 Non-Permanent Members** elected by the UN General Assembly for a **2-year term** (India has served as an elected UNSC member 8 times, most recently in 2021–2022).
10. **G4 Nations:** Formed in 2005 comprising **India, Brazil, Germany, and Japan**; mutually support each other's bids for permanent seats on an expanded UN Security Council.
11. **Indo-Pak Key Bilateral Accords:** (1) **Indus Waters Treaty (1960)**: Brokered by World Bank; signed by Nehru and Ayub Khan; allocates Eastern rivers (Ravi, Beas, Sutlej) to India and Western rivers (Indus, Jhelum, Chenab) primarily to Pakistan; (2) **Tashkent Declaration (10 January 1966)**: Brokered by USSR Premier Alexei Kosygin after 1965 war; signed by Lal Bahadur Shastri and Ayub Khan; (3) **Shimla Agreement (2 July 1972)**: Signed by Indira Gandhi and Zulfikar Ali Bhutto after 1971 war; converted 1949 ceasefire line into **Line of Control (LoC)**; committed both nations to resolve disputes **bilaterally** without third-party intervention; (4) **Lahore Declaration (1999)**: Signed by Atal Bihari Vajpayee and Nawaz Sharif.
12. **Indo-China Key Boundary Markers:** (1) **McMahon Line**: 890 km boundary between British India and Tibet agreed at the **Simla Convention of 1914**; recognized by India as the legal border in the Eastern sector (Arunachal Pradesh); rejected by China; (2) **Line of Actual Control (LAC)**: De facto military demarcation dividing Indian-controlled territory from Chinese-controlled territory (Western sector: Ladakh; Middle sector: Uttarakhand/HP; Eastern sector: Arunachal/Sikkim).
13. Indo-China Bilateral Agreements on Peace and Tranquility: (1) **1993 Agreement** on Maintenance of Peace and Tranquility along the LAC; (2) **1996 Agreement** on Confidence-Building Measures (banning firearms within 2 km of LAC); (3) **Border Defense Cooperation Agreement (BDCA, 2013)**.
14. **Neighborhood First Policy & Act East Policy:** (1) **Gujral Doctrine (1996)**: Propounded by I.K. Gujral; non-reciprocal concessions by India to smaller South Asian neighbors without expecting reciprocity; (2) **Look East Policy (1991)**: Initiated by P.V. Narasimha Rao to deepen ties with ASEAN; upgraded to **'Act East Policy'** by Narendra Modi at the East Asia Summit in Myanmar in **2014**.
15. **SAARC (South Asian Association for Regional Cooperation):** Established on **8 December 1985 in Dhaka**; permanent Secretariat is at **Kathmandu, Nepal**; 8 member states: India, Pakistan, Bangladesh, Sri Lanka, Nepal, Bhutan, Maldives, and **Afghanistan** (admitted 2007 at 14th summit in New Delhi).
16. **BIMSTEC (Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation):** Formed on **6 June 1997 via Bangkok Declaration**; Secretariat is at **Dhaka, Bangladesh**; 7 member states: 5 South Asian (India, Bangladesh, Bhutan, Nepal, Sri Lanka) and 2 Southeast Asian (**Myanmar and Thailand**); connects South Asia with Southeast Asia.
17. **Quad (Quadrilateral Security Dialogue):** Strategic diplomatic dialogue between **India, United States, Japan, and Australia**; first initiated in 2007 by Japanese PM Shinzo Abe, revived in 2017; focuses on a free, open, inclusive, and prosperous **Indo-Pacific**.
18. **BRICS:** Coined as 'BRIC' by Goldman Sachs economist Jim O'Neill in 2001; first summit held in **Yekaterinburg, Russia (2009)**; **South Africa joined in 2010**; established the **New Development Bank (NDB)** headquartered at **Shanghai, China**; expanded in 2024 to include Egypt, Ethiopia, Iran, UAE, and Saudi Arabia.
19. **Shanghai Cooperation Organisation (SCO):** Created in **2001 in Shanghai**; permanent Secretariat at **Beijing**; Regional Anti-Terrorist Structure (RATS) based at **Tashkent, Uzbekistan**; **India and Pakistan became full members on 9 June 2017** at the Astana Summit in Kazakhstan; Iran became 9th member in 2023, Belarus 10th member in 2024.
20. **G20 (Group of Twenty):** Premier forum for international economic cooperation founded in 1999; India held the **G20 Presidency from 1 December 2022 to 30 November 2023**; 18th G20 Summit held at **Bharat Mandapam, New Delhi (September 2023)** under theme *'Vasudhaiva Kutumbakam' (One Earth, One Family, One Future)*; historic induction of the **African Union (AU)** as a permanent member under India's presidency.
21. **I2U2 Group:** Mini-lateral grouping formed in 2021 comprising **India, Israel, United States, and United Arab Emirates**; focuses on joint investments in water, energy, transportation, space, health, and food security; dubbed the 'West Asian Quad'.
22. **India and UN Peacekeeping Operations:** India is historically one of the **largest cumulative troop-contributing countries (TCC)** to UN Peacekeeping Missions; deployed the first all-women peacekeeping contingent in **Liberia in 2007**; served in over 50 missions since 1950.
23. **Chabahar Port Agreement:** Trilateral agreement between **India, Iran, and Afghanistan** signed in 2016 for development of Shahid Beheshti terminal at Chabahar, providing India sea-land access to Central Asia and Afghanistan bypassing Pakistan; in May 2024, India signed a 10-year long-term contract to operate Chabahar.
24. **International Solar Alliance (ISA):** Joint initiative launched by **India and France** at COP21 Paris in **November 2015**; headquarters located at **Gurugram, Haryana** (first international intergovernmental organization headquartered in India); open to all UN member states.
25. **Coalition for Disaster Resilient Infrastructure (CDRI):** Global partnership launched by Prime Minister Narendra Modi at the UN Climate Action Summit in **New York in September 2019**; Secretariat located in **New Delhi**.
26. **Regional Comprehensive Economic Partnership (RCEP):** Mega free-trade agreement between ASEAN and FTA partners; **India decided to WITHDRAW from RCEP in November 2019 at the Bangkok summit** to protect domestic agriculture, dairy, and manufacturing sectors from dumping.
27. **Indo-Pacific Oceans Initiative (IPOI):** Proposed by India at the 14th East Asia Summit in Bangkok in **November 2019**; rests on 7 pillars including maritime security, maritime ecology, and trade connectivity.
28. **Colombo Security Conclave:** Regional maritime security grouping founded by **India, Sri Lanka, and Maldives**; expanded to include **Mauritius** (with Bangladesh and Seychelles as observers); focuses on maritime safety, counter-terrorism, and cyber security in the Indian Ocean.
29. **Polar Research Stations:** India operates permanent scientific research stations: in **Antarctica**: **Dakshin Gangotri (1983 - abandoned)**, **Maitri (1989)**, and **Bharati (2012)**; in the **Arctic**: **Himadri (2008)** at Ny-Ålesund, Svalbard, Norway; India became an Observer in the **Arctic Council in 2013**.

30. **India's Nuclear Doctrine (2003):** Adopted on **4 January 2003** by the Cabinet Committee on Security; core tenets: (1) **'No First Use' (NFU)** — nuclear weapons will only be used in retaliation against a nuclear attack on Indian territory or forces; (2) **Credible Minimum Deterrence**; (3) Non-use against non-nuclear weapon states; (4) Retaliatory authorization rests exclusively with the **Nuclear Command Authority (NCA)** headed politically by the **Prime Minister of India**.

📋 Must-score facts — Panchsheel, UN, groupings

India doctrine tags

Item	Lock
Panchsheel	**29 Apr 1954** India–China Tibet trade
Bandung	**1955** Afro-Asian echo
NAM	Movement; **Belgrade 1961** (Nehru, Nasser, Tito…)
Non-alignment	**Policy** (≠ NAM the movement)

UN / alliances

Item	Lock
UNSC	**15** = P5 + 10 elected (2 years)
G4	India, Japan, Germany, Brazil
NATO	**4 Apr 1949**; Art. 5; HQ Brussels
QUAD	India–Japan–US–Australia (dialogue)
AUKUS	Australia–UK–US **2021** (subs)

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2024	BRICS adds **Egypt (मिस्र), Ethiopia, Iran, UAE** (Saudi invited)	Original 5 still in; this is **expansion**, not a UN organ
2024	**Belarus** joins SCO	After **Iran 2023**. RATS still **Tashkent**
2024	19th NAM Summit at **Kampala, Uganda**	NAM is **alive**; India attends; it is still **not** NATO
2024	**Sweden** joins NATO (Finland was **2023**)	NATO membership **32**. India still **out**
2023	G20 New Delhi Summit **9–10 Sep**; **AU** admitted as a member	India president **Dec 2022–Nov 2023**. Logo = lotus, **7 petals = 7 continents**
2023	G20 working meetings in UP: **Agra, Varanasi (वाराणसी), Greater Noida, Lucknow (लखनऊ)**	**Kanpur (कानपुर) was not** a venue (2023 paper)
2023	SCO Film Festival **Mumbai** during India's SCO chair	India chaired SCO **2022–23**; festival **does** show member films
2023	**Iran** becomes SCO member	India+Pak were **2017**; Iran is later
2022	WHO Global Centre for Traditional Medicine at **Jamnagar**	Not Haridwar (हरिद्वार), not Jaffna, not Johannesburg (2022 paper)
2022	5th BIMSTEC Summit, **Colombo, 30 Mar**	Chair = **Sri Lanka**, not India. Modi **did** address it
2022	India's elected UNSC term **2021–22** ends	8th elected term. India is **not** P5
2021	G7 Cornwall, **UK chair**; India invited as guest	India is **not** G7. Brazil was **not** the guest in that stem
2021	**AUKUS** announced; Quad Leaders' summit	AUKUS = AUS–UK–US. Quad **includes India**
2021	Vaccine Maitri	Outreach colour under "India FP", not a Charter article
2020	EAS 2020 host = **Vietnam**, not Singapore	India **is** in EAS. Match-the-summit papers lie on the city
2020	**BECA** signed with the US	Last of the four (चातुर्याम) foundational pacts. **Not** NATO membership
2019	India walks out of **RCEP**	Still Act East / ASEAN dialogue partner
2019	Jaishankar at **OIC** (Abu Dhabi) as guest	**Guest ≠ member**. India is **not** in the OIC
2018	10th BRICS Summit **Johannesburg**	Host = **South Africa** (2018 paper)
2018	**COMCASA**	Comms pact with US — not a base treaty
2017	India + Pakistan join **SCO**	SCO is **not** NATO and **not** SAARC
2017	**Jeddah Amendment** to the Djibouti Code	Piracy code **widened** to other maritime crime
2016	**LEMOA**	Logistics access, not a foreign military base
2015	**SAGAR** coined (Mauritius); **NDB** Shanghai	SAGAR = India's phrase. NDB = BRICS bank, **not** IMF
2014	Act East at ASEAN; last SAARC summit **Kathmandu**	Look East **upgraded**. SAARC leaders' track **stalls**
2011	Obama "pivot to Asia"	US FP turn the paper still uses
2008	**123 Agreement** + **NSG (एनएसजी) waiver**	Civil nuclear with US; India still **outside NPT**
1971	PRC takes UN China seat (Res. **2758**)	India voted **for** PRC. ROC/Taiwan out of the UN seat
1950	Uniting for Peace **377(V)**	GA can *recommend* (सिफारिश) if the veto kills the Council

Confused Pairs

Term A	Term B	Core difference	Hindi Terminology
Non-alignment (policy)	**NAM (movement)**	Nehru's *judgment*	**1961 Belgrade** club of States
NAM	**NATO**	No Art. 5, no HQ army	**1949** military alliance, Art. **5**
Panchsheel	**Bandung 1955**	**29 Apr 1954** India–China five	Afro-Asian conference that **echoed** the five
UNSC	**UNGA**	15; P5 veto; peace/security	193; one-state-one-vote; recommendations
P5 veto	**ICJ judgment**	Political block in the Council	Court — different organ, Hague
G4	**Uniting for Consensus**	India–Japan–Germany–Brazil want permanent seats	Italy/Pakistan-led **Coffee Club** — no new permanents
Look East	**Act East**	Rao **1991**, trade/ASEAN	Modi **2014**, security + connectivity too
AUKUS	**QUAD**	**2021** AUS–UK–US (subs)	India–Japan–US–

Australia *dialogue* | | **Djibouti Code 2009** | **Jeddah Amd 2017** | Piracy / armed robbery | Broader maritime crime (trafficking, IUU fishing…) | | **Monroe Doctrine** | **Truman Doctrine** | 1823, Western Hemisphere | **1947**, contain the USSR | | **Non-alignment** | **Neutrality** | Issue-by-issue, still takes sides on merits | Swiss-style *legal* non-participation in wars | | **Collective security** | **Collective defence** | UN Chapter **VII** — system vs a *breach of peace* | NATO Art. **5** — allies vs an attack on one of them | | **NATO Art. 4** | **NATO Art. 5** | Consultation | Armed attack = attack on all | | **LEMOA** | **COMCASA / BECA** | 2016 logistics *access* | 2018 comms compatibility / 2020 geo-spatial *maps* | | **NPT** | **Nuclear doctrine (NFU)** | Treaty India **did not sign** | National *policy*, not a UN treaty | | **ReCAAP 2006** | **Djibouti Code 2009** | Asia piracy, Singapore ISC | WIO / Gulf of Aden, IMO | | **Uniting for Peace** | **P5 veto** | GA Res **377(V) 1950** — GA can recommend if SC is stuck | One P5 "no" kills a *substantive* Council draft | | **IMF** | **World Bank (IBRD)** | BOP / exchange / quota / SDR | Project / reconstruction loans. **Both Washington** | | **IBRD** | **IDA** | Middle-income loans | Soft credits to the poorest | | **GATT 1947** | **WTO 1995** | Treaty among contracting parties | Organisation + DSM | | **ICJ** | **ICC** | UN organ, Hague, States | Rome Statute criminal court; **India not a party** | | **SAARC** | **BIMSTEC** | 8; includes **Pakistan + Maldives**; HQ Kathmandu | 7; **no Pak, no Maldives, no Indonesia**; Bay of Bengal | | **ASEAN** | **BIMSTEC** | 10 SE Asia; India **not** a member | 7; India **is** a member | | **QUAD** | **AUKUS** | IN–JP–US–AU dialogue | AUS–UK–US subs | | **APEC / OECD** | **G20** | India **out** of both | India **in**; 2023 president | | **WHO** | **UNESCO** | Geneva, health, 1948 | Paris, education/culture/WH, 1945 | | **G7** | **G20** | 7 rich + EU; India **not** a member (guest only) | 19+EU+AU; India **in**; 2023 president | | **NDB (BRICS)** | **AIIB** | BRICS bank, **Shanghai**, 2014 Fortaleza | China-led, **Beijing**; India is a *member* of AIIB, not its owner-club name | | **UN specialised agency** | **UN programme** | WHO, UNESCO, ILO, IMF, IBRD — own treaties | UNDP / UNICEF / UNHCR — GA/ECOSOC programmes. **HDI = UNDP, not IMF** | | **Shanghai Five 1996** | **SCO 2001** | CN–RU–KZ–KG–TJ (**no Uzbekistan**) | Five **+ Uzbekistan** (then India/Pak 2017…) | | **RCEP** | **ASEAN** | Mega FTA; **India walked out Nov 2019** | 10-member club; India still **not** a member |

Common Traps

Trap	Correct
NAM = 1954 / Panchsheel = 1961	**Panchsheel 1954**. **NAM 1961 Belgrade**
Bandung 1955 = first NAM summit	Bandung is the **mood**. First NAM summit = **Belgrade 1961**
NAM is a military alliance	**No** Art. 5, no HQ army
India has a UNSC veto	**P5 only**. India = elected member, 8 terms, last **2021–22**
G4 already got permanent seats	**Wanted**, not granted. Coffee Club resists
NATO Art. 5 binds India	India is **not** in NATO
AUKUS = Quad	AUKUS = **AUS–UK–US**. Quad **includes India**
World Bank HQ = New York	**Washington D.C.**, same city as IMF. New York = **UN**
IMF = World Bank	IMF = **BOP/quota**. Bank = **projects**. Twins, not clones
WTO HQ = Washington	**Geneva**. 1995. GATT was **1947**
ICJ = ICC	ICJ = UN organ, States. ICC = Rome **1998**, India **not** a party
UNESCO HQ = Geneva	**Paris**. WHO/ILO = **Geneva**
Trusteeship Council abolished	**Inactive 1994**, still a principal organ on paper
India is an ASEAN member	**Dialogue partner**. Member of **BIMSTEC** and **SAARC**
Indonesia is in BIMSTEC	**ASEAN**, not BIMSTEC. BIMSTEC **7**
Maldives / Pakistan in BIMSTEC	Both are **SAARC**, not BIMSTEC
5th BIMSTEC Summit chaired by India	**Sri Lanka**, Colombo **30 Mar 2022**
SAARC HQ = Dhaka	Charter **Dhaka 1985**. Secretariat **Kathmandu**
Afghanistan always in SAARC	Joined **2007** — 8th member
G20 lotus petals = 7 member-states	**7 continents**. G20 is **19+EU+AU**, not 7
Kanpur hosted G20 in UP	**Agra, Varanasi, Greater Noida, Lucknow**. Not Kanpur
BRICS 10th summit = China/Brazil	**South Africa, 2018** (Johannesburg)
NDB = IMF	NDB = BRICS bank, **Shanghai**
SCO RATS = Beijing	Secretariat **Beijing**. **RATS = Tashkent**
India in APEC / OECD	**Out of both**. In **G20**
Commonwealth = only monarchies	**London Declaration 1949** — republics can stay (India)
QUAD is a military alliance	**Dialogue**. No Art. 5
IORA secretariat = Djibouti	**Mauritius**. Djibouti Code ≠ IORA
WHO Traditional Medicine Centre = Haridwar	**Jamnagar**, Gujarat (2022)
Uzbekistan in Shanghai Five	Five = CN RU KZ KG TJ. UZ joins **SCO 2001**
NDB = AIIB	NDB = BRICS **Shanghai**. AIIB = **Beijing**, China-led
India is in G7	**Guest only**. G20 yes, G7 no
India is in RCEP	**Walked out Nov 2019**
EAS 2020 = Singapore	**Vietnam** chaired 2020
HDI / HDR = IMF or World Bank	**UNDP** (1990). Programme, not a specialised agency
Jadhav case = ICC	**ICJ**, Hague, consular access
UN Day = 26 June	Charter **signed** 26 June; **in force / UN Day = 24 Oct**
SAARC still holds annual summits	Last leaders' summit **2014 Kathmandu**
WTO = MFN only among friends	MFN is the default **among members**; National Treatment is the other pillar
SEATO/CENTO = Indian alliances	India **stayed out**; Pakistan was in SEATO/CENTO
Gujral Doctrine = gift to Pakistan	Non-reciprocity toward **smaller** neighbours; Pakistan was **not** in that five
Look East started in 2014	**1991**. 2014 = **Act East**
SAGAR = Djibouti Code	SAGAR = India's **2015** phrase. Djibouti Code = **2009 IMO** piracy instrument
India signed Djibouti Code as a Horn-of-Africa coastal State	Regional coastal signatories; India is a **partner**, not Yemen
Monroe = containment of USSR	Monroe **1823** hemisphere. Truman **1947** containment
Panchsheel is in a Schedule of the Constitution	**No**. Art. **51** is the DPSP cousin

Trap	Correct
1962 repealed Panchsheel as a syllabus item	Paper still wants the **five** and **1954**
Neutrality = NAM	Swiss *legal* neutrality ≠ issue-by-issue non-alignment
LEMOA = NATO base	Logistics **access**, **2016**, not Art. 5
India signed NPT after 2008 NSG waiver	Still **not** an NPT party
NFU is a UN treaty	**National doctrine** after Pokhran-II
US was in the League of Nations	**Senate refused**. US **did** found the UN
OIC member = India	**Not a member** (2019 guest only)
ReCAAP = Djibouti Code	ReCAAP **2006 Asia**; Djibouti **2009 WIO**
Uniting for Peace = Indian veto	GA **recommendation** tool, **1950**. No Indian veto
Abstention = veto	**No**. Only a P5 **no** on a substantive draft
Bandung 10 = Panchsheel 5	Five are *inside* ten; don't equate the lists
1954 deal ignored Tibet	Same agreement treats **Tibet as part of China**
Collective security = NATO	Collective **security** = UN Ch. VII. Collective **defence** = NATO Art. 5
2+2 is a UN organ	Bilateral **ministerial** format (US/Japan/Australia/Russia)

Topic 22 — Constitutional Philosophy

Consolidated — 30 Must-Score Facts

1. **Constitutionalism:** The political philosophy that government authority is derived from and limited by a body of fundamental law; **a written constitution alone does NOT guarantee constitutionalism** (an authoritarian state can have a constitution); constitutionalism requires institutional checks, separation of powers, judicial review, fundamental rights, and the rule of law.
2. **Constitutional Morality:** Articulated by British historian George Grote and invoked by **Dr. B.R. Ambedkar in the Constituent Assembly on 4 November 1948**; refers to paramount reverence for constitutional principles and adherence to constitutional norms, procedures, and spirit rather than majoritarian passions or personal rule.
3. Modern Judicial Resurgence of Constitutional Morality: Reinvigorated by the Supreme Court in landmark judgments: ***Government of NCT of Delhi v. Union of India (2018)*** (governance must align with constitutional morality), ***Navtej Singh Johar (2018)*** (constitutional morality supersedes popular public morality), and ***Indian Young Lawyers Association - Sabarimala case (2018)***.
4. **Rule of Law (Dicey's Formulation, 1885):** A.V. Dicey in *The Law of the Constitution* propounded three limbs: (1) **Absence of Arbitrary Power** (no man can be punished except for a distinct breach of law established in ordinary legal manner); (2) **Equality before the Law** (no man is above the law, every person regardless of rank is subject to the ordinary law and courts); (3) **Predominance of Legal Spirit** (the constitution is the result of ordinary rights of individuals defined by courts).
5. Indian Adaptation of Rule of Law: The first two limbs of Dicey apply fully in India (**Article 14**); the third limb is **reversed**: in India, individual rights flow from the **Supremacy of the Written Constitution**; in ***Indira Nehru Gandhi v. Raj Narain (1975)***, the Supreme Court declared the **Rule of Law as an unalterable part of the Basic Structure**.
6. **Separation of Powers:** Classical theory propounded by French philosopher **Montesquieu in *The Spirit of the Laws* (1748)**; strict separation exists in the United States (Executive, Legislature, and Judiciary are strictly compartmentalized); the Indian Constitution **DOES NOT follow strict separation of powers**, but rather a **system of Checks and Balances**.
7. Checks and Balances in India: The Executive is drawn from and collectively responsible to the Legislature (**Article 75(3)**); the Judiciary exercises **Judicial Review** over both legislative acts and executive orders; Parliament can impeach Judges for proved misbehaviour; the President appoints Judges and can grant pardons.
8. **Article 50:** Directive Principle in Part IV explicitly directing the State to **separate the judiciary from the executive in the public services of the State**; realized by separating executive magistracy (law & order) from judicial magistracy (trials) in the Code of Criminal Procedure, 1973.
9. **Judicial Review:** The power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both Central and State governments; rooted in Chief Justice John Marshall's judgment in ***Marbury v. Madison (1803)*** in the USA; explicitly anchored in India under **Articles 13, 32, 136, 142, and 226**; held to be part of the **Basic Structure** in *Kesavananda (1973)* and *Minerva Mills (1980)*.
10. **Sovereignty in Indian Constitutional Scheme:** Ultimate political sovereignty resides in **'The People of India'** (as declared in the Preamble); legal sovereignty is distributed between the Union and the States under the **Supremacy of the Constitution**; India's membership of the Commonwealth of Nations or United Nations does not curtail external sovereignty.
11. **Socialism in Indian Context:** India adopted **Democratic Socialism**, which aims to achieve socialist goals through democratic, evolutionary, and constitutional means (mixed economy); distinct from Marxist/Communist State Socialism (which involves total nationalization of all means of production and abolition of private property); in ***Excel Wear (1978)*** and ***D.S. Nakara (1983)***, SC held that Indian socialism is a blend of Marxism and Gandhism, leaning heavily towards Gandhian socialism.
12. **Secularism — Indian vs Western Model:** The Western model (originated in France and USA) mandates strict, watertight separation between Church and State (State patronizes no religion, religious symbols barred from public sphere); the Indian model embodies **Positive Secularism (*Sarva Dharma Sambhava)**: *equal treatment, protection, and respect for all religions, with the State retaining the right to intervene for social reform (e.g., abolishing untouchability, triple talaq, opening temples). In*** S.R. Bommai (1994)***, secularism was held to be a core feature of the*** ***Basic Structure**.
13. **Liberty:** Negative liberty is the absence of external restraints on individual actions; Positive liberty is the creation of enabling conditions for human flourishing and self-realization; the Preamble guarantees **Liberty of thought, expression, belief, faith, and worship**, operationalized primarily via Articles 19 and 25–28.
14. **Equality:** Substantive Equality vs Formal Equality: Formal equality treats everyone identically regardless of background; Substantive equality recognizes historical disadvantages and mandates affirmative action/special provisions (**Articles 15(4), 16(4), 46**) to achieve genuine real-world equality of outcome.
15. **Fraternity:** The sense of common brotherhood and sisterhood among all citizens, cutting across religious, regional, or linguistic diversities; Dr. Ambedkar stated that 'without fraternity, liberty and equality cannot become a natural course of things'; fostered by **Single Citizenship** and the **Fundamental Duty under Article 51A(e)**.
16. **Theories of Rights:** (1) **Natural Rights Theory** (John Locke: Life, Liberty, and Property are inalienable natural rights); (2) **Historical Theory of Rights** (Edmund Burke: rights grow out of customs and traditions); (3) **Legal Theory of Rights** (Jeremy Bentham: rights are creation of the State, 'natural rights are simple nonsense'); (4) **Social Welfare Theory** (Harold Laski: rights are those conditions of social life without which no man can seek to be at his best).
17. **John Rawls' Theory of Justice (*A Theory of Justice*, 1971):** Proposed that principles of justice are derived from an imaginary **'Original Position' behind a 'Veil of Ignorance'**; includes the **Liberty Principle** (equal basic liberties for all) and the **Difference Principle** (social and economic inequalities are permissible only if they work to the greatest benefit of the least-advantaged members of society — mirroring Part IV of Indian Constitution).
18. **Types of Sovereignty:** (1) **Titular/Nominal vs Real Sovereignty**: In India, the President is the titular sovereign and the Prime Minister with Cabinet is the real sovereign; (2) **Legal vs Political Sovereignty**: Legal sovereign is the Constitution/Parliament, while Political sovereign is the **Electorate/People of India**; (3) **De Jure vs De Facto Sovereignty**: De Jure is sovereignty recognized by law, while De Facto is actual sovereign control in practice.
19. **Welfare State Philosophy:** India's Constitution transitions the state from a colonial **'Police State'** (focused only on law and order and revenue collection) to a **'Democratic Welfare State'**; **Article 38** mandates the State to secure a social order for the promotion of the welfare of the people.
20. **Distinction between Fundamental Rights and Human Rights:** Human rights are universal moral claims inherent to all human beings by virtue of being human (codified in Universal Declaration of Human Rights - UDHR, 1948); Fundamental Rights are those specific human rights that are **constitutionally guaranteed and enforceable by courts of law** under Part III of the Indian Constitution.
21. **Amartya Sen on Justice (*The Idea of Justice*, 2009):** Contrasted transcendental institutionalism (**Niti** - institutional correctness and rules) with realization-focused comparison (**Nyaya** - actual realized justice and elimination of manifest injustices in society); argues that Indian constitutional democracy must embody **Nyaya**.
22. **Public Interest Litigation (PIL):** An Indian judicial innovation pioneered in the late 1970s and 1980s by **Justice P.N. Bhagwati and Justice V.R. Krishna Iyer**; relaxes traditional **Locus Standi** (standing to sue), permitting any public-spirited citizen or NGO to approach the Supreme Court (Art. 32) or High Court (Art. 226) on behalf of marginalized individuals whose fundamental rights are violated.
23. **Epistolary Jurisdiction:** Component of PIL where the Supreme Court and High Courts treat **informal letters, postcards, or newspaper reports** addressed to judges as formal writ petitions (*Sunil Batra v. Delhi Administration 1980*).
24. **Judicial Activism vs Judicial Overreach: Judicial Activism** refers to proactive judicial interpretation to protect citizens' rights and enforce administrative duties when the executive or legislature abdicates its function (*Bandhua Mukti Morcha, Vishaka*); **Judicial Overreach** occurs when the judiciary breaches separation of powers and arbitrarily encroaches upon policy-making or legislative domains.
25. **Procedural Due Process vs Substantive Due Process:** Procedural due process requires that the procedure followed to deprive a person of life or liberty must be fair, just, and established by law; Substantive due process empowers the judiciary to examine whether the **law itself is intrinsically just, fair, reasonable, and non-arbitrary**.
26. **Constitutionalism vs Majoritarianism:** Constitutionalism acts as an institutional brake on raw majoritarian rule; ensures that even an overwhelming parliamentary majority cannot override fundamental human rights, judicial independence, federalism, or minority protections.

27. **Concept of 'Transformative Constitutionalism':** The philosophy that the Indian Constitution was not designed merely to transfer colonial state power to an indigenous elite, but to fundamentally **transform a hierarchical, caste-ridden, patriarchal society into an egalitarian society** founded on liberty, equality, and dignity (*Navtej Johar, Joseph Shine*).
28. **Substantive vs Formal Equality:** Formal equality (Aristotelian 'treat likes alike') can perpetuate entrenched social inequalities; Substantive equality recognizes that true equality requires treating unequals differently through compensatory discrimination, reservations, and affirmative action.
29. **Republican Character of the Indian State:** Means that the supreme head of the state (**President of India**) is **elected directly or indirectly for a fixed term** by the people, and not a hereditary monarch (as in the UK); all public offices are open to every citizen without discrimination.
30. **Secularism Debates in the Constituent Assembly:** Dr. B.R. Ambedkar and K.T. Shah debated explicit insertion of 'Secular' in 1948; Ambedkar argued the secular nature was already embedded across Fundamental Rights (Arts. 25–28) without needing a rigid imported label; officially inserted into the Preamble by 42nd Amendment, 1976.

📋 Must-score facts — Rule of Law, Art. 21, Basic Structure

Keywords / counts

Item	Lock
Preamble counts	J3 · L5 · E2 · F1
Federal in Preamble	**No**
Constitutionalism	Limited government under higher law
Constitutional morality	Ambedkar — fidelity to constitutional norms

Rule of Law / Art. 21

Item	Lock
Dicey limbs	No arbitrary power; equality before law; rights from ordinary law (UK)
Rule of Law	Basic Structure (*Indira Gandhi* **1975**)
Art. 21 text	"Procedure established by law" (Japan)
US contrast	Due process
Gopalan (1950)	Any procedure in valid law; rights in silos
Maneka (1978)	Fair, just, reasonable; procedural + substantive

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2023	SC: NCT **services** (except public order/police/land) with the elected government. Union **Ordinance/Act 2023** tried to park services with the LG	2018 idea = LG is not a parallel CM. 2023 = the *services* fight. Don't freeze the statute as if the judgment vanished
2021	GNCTD **Amendment Act** enlarges the LG	Statutory push against the 2018 judgment — CA, not a new article
2018	*NCT Delhi* (aid-and-advice) · *Navtej* (नवतेज जौहर) (§377) · *Sabarimala*	Constitutional morality ≠ majority custom
2017	*Puttaswamy*: privacy = FR; *ADM Jabalpur* majority called wrong	Due-process content of Art. **21** survived Emergency's worst case
2015	**NJAC** (99th) struck	Review of an *amendment* = constitutional supremacy, not "judicial coup" as a syllabus answer
1994	*Bommai*: secularism = Basic Structure	A communal State government can justify **356**. floor test; don't dissolve first
1978	*Maneka Gandhi (गांधी)*	The due-process *turn*. Art. 21 words unchanged
1978	**44th (44वां संशोधन) Amendment** (44वां संशोधन): Art. **38(2)** inequalities; property out of Part III (मौलिक अधिकार)	Welfare clause thickened; socialism ≠ Art. 31 forever
1976	**42nd** (42वां) prints **Socialist, Secular, integrity**	Names the ideals; does **not** invent Arts. 25–28 or Part IV (नीति निर्देशक)
1973–80	*Kesavananda* (केशवानंद भारती 1973) → *Minerva*	Parliamentary sovereignty **refused**; constitutional supremacy **locked**. Secular character already in the BS *list*
1963	**16th Amd** — sovereignty and integrity in Art. **19** restrictions + 3rd Schedule oaths	Integrity as a *liberty bound* before the Preamble (प्रस्तावना) printed the word (1976)

Confused Pairs

Term A	Term B	Core difference	Hindi Terminology
Constitution	**Constitutionalism**	A document can exist	Power is *limited* and reviewable
Constitutional morality	**Public / social morality**	Fidelity to the Constitution's norms	Majority sentiment; Art. **19/25** "morality"
Rule of Law	**Rule by law**	Law binds the ruler too	Ruler uses statutes as a whip
Dicey limb 1–2	**Dicey limb 3**	India **yes** (Art. 14 / no arbitrary power)	UK-only: constitution as *ordinary* law. India **no**
Procedure established by law	**Due process of law**	Art. **21** text (Japan)	US 5th/14th. *Maneka* imports the *content*, not the words
Gopalan 1950	**Maneka 1978**	FRs in silos; any procedure in a valid law	14-19-21 read together; procedure must be fair/just/reasonable
Separation of powers	**Checks and balances**	Organs have distinct *functions*	Each organ can **restrain** the others
US SOP	**Indian SOP**	Rigid, three closed chambers	Functional; **fusion** of executive & legislature
Parliamentary sovereignty	**Constitutional supremacy**	UK Dicey — Parliament's word is last	India — Constitution's word is last
Judicial review	**Judicial supremacy**	Court tests a law against the Constitution	Court as the *sovereign*. India claims the first, not the second
Limited amending power	**UK-style sovereignty**	*Kesavananda / Minerva*	No Basic Structure in classic UK
Procedural due process	**Substantive due process**	Hearing / notice / unbiased judge	Even a tidy procedure cannot save an unjust law
Natural justice	**Art. 21 text**	*audi alteram + nemo judex*	Still "procedure established by law"; *Maneka* pours NJ into it
Art. 50	**SOP as Basic Structure**	DPSP: judiciary↔executive in *services*	Broader organ-map; *Ram Jawaya / Indira Gandhi*
24th Amd / Art. 13(4)	**Basic Structure**	Amendment is not "law" under 13	368 still cannot destroy identity
Police State	**Welfare State**	Law-and-order only	Socio-economic goals; Part IV / Art. **38**
Democratic socialism	**Marxist socialism**	Mixed economy, ballot, FRs	One-party / total nationalisation textbook
Indian (positive) secularism	**US (negative) wall**	Equal respect; State may reform/regulate 25(2)	Strict non-establishment
Democracy	**Republic**	Who rules (the people)	What the Head is (elected, not hereditary)
Preamble liberty (5)	**Art. 19 freedoms (6)**	Thought, expression, belief, faith, worship	Speech, assembly, association, movement, residence, profession
Equality of status	**Equality of opportunity**	14 / 15 / 17	**16** (public employment, citizens)
Secularism the word	**Secularism the code**	42nd Preamble	Arts. **25–28** from 1950
Political sovereignty	**Legal sovereignty**	**People** ("We, the People")	**Constitution** (India) / Parliament (classic UK)
Internal sovereignty	**External sovereignty**	Supreme *inside* the territory	No

foreign master | | **Preamble liberty (5)** | **Personal liberty (Art. 21)** | Thought, expression, belief, faith, worship | Body/life — **not** a Preamble-five word | | **Constituent power** | **Legislative power** | Art. **368** (amend, within Basic Structure) | Art. **245** (laws, subject to the Constitution) | | **French triad** | **Indian four** | Liberty, Equality, Fraternity | **Justice** first, then the three |

Rule of Law

#	Dicey (UK)	India
1	Supremacy of law — **no arbitrary** power	**Yes.** Art. **14**; no one above the Constitution; executive needs legal authority (*Ram Jawaya* line)
2	**Equality before the law** — officials like private persons in ordinary courts	**Yes.** Art. **14** "equality before law" is the Dicey phrase. "Equal protection" is the **US** add-on
3	Constitution is the **result of ordinary law**; rights are from court rulings, not a Bill of Rights	**No.** India has a **written** supreme Constitution + **justiciable FRs**. Limb 3 is the UK story

Common Traps

Trap	Correct
Constitution = constitutionalism	Booklet can exist without **limits**
Constitutional morality = 42nd / a new article	**No text.** Grote → Ambedkar → SC 2018
Constitutional morality = public morality in Art. 19/25	Opposite directions
Dicey's three limbs all apply in India	**Limb 3 does not**
Equality before law = equal protection	Dicey **UK** vs **US** 14th. Art. 14 has **both**
Art. 21 says due process	**Procedure established by law** (Japan). *Maneka* = content
Gopalan is still the Art. 21 test	***Maneka* 1978**
CAD wanted US due process	**B.N. Rau** steered **away** from it
India has no SOP	**Functional** SOP + fusion. Not US rigidity
Art. 50 is a Fundamental Right	**DPSP**
Fusion = no checks	Cabinet-in-House **is** the parliamentary check pattern
Parliamentary system ⇒ parliamentary sovereignty	UK Dicey ≠ India
Judicial review = judicial supremacy	Review is a **tool under** the Constitution
Kesavananda created parliamentary sovereignty	It **killed** the unlimited-amendment claim
PIL 2025 A/R	Both true, R explains A: PIL gives weaker sections a path to RoL
CAG/EC are extra-constitutional checks	They are **constitutional** offices
Art. 50 = the whole SOP doctrine	Only **services**; *Ram Jawaya* is the SOP case
Maneka deleted the need for a law	*Lex* survives; *jus* was **added**
24th Amd restored Dicey sovereignty	It buried *Golaknath*'s "amendment = law under 13". **Basic Structure** still binds 368
368(4)(5) still bar the Court	***Minerva* struck them**
Marbury is an Indian article	**US 1803**. India writes review into **13/32/226**
India not secular until 1976	**Word** = 42nd. **Code** = Arts. **25–28** from 1950
Indian secularism = US wall	**Positive** / equal respect; Art. **25(2)** allows reform
Socialist = Marxist one-party State	**Democratic** socialism / mixed economy
1991 deleted Socialist from Preamble	**Did not**
Welfare State invented Part IV in 1976	Part IV is **1950**. Art. **38** is the lead
Republic added by 42nd	**1950**. 42nd added Socialist + Secular
Preamble liberty = Art. 19's six freedoms	Preamble **5** (thought…worship). Art. 19 **6** different list
Equality in Preamble has 5 components	**2** — status and opportunity
Fraternity has 3 types	**1** ideal; dignity + unity/integrity are what it *assures*
Federal is a Preamble word	**Not there**
Democracy = majority custom	Free-fair elections **and** constitutional morality (the limitation half)
Preamble lists liberty of person	**Five** are thought…worship. Person/body = **Art. 21**
Thought = Art. 19(1)(a) by name	19(1)(a) is **speech and expression**. Thought is Preamble
Indian Preamble = French triad only	India **prefixes Justice**
368 is unlimited because it is "constituent"	Constituent ≠ Dicey-sovereign. **Basic Structure**
Political sovereignty = legal sovereignty	People vs **Constitution** (India) / Parliament (UK)
Integrity in the Preamble invented the idea in 1976	**16th Amd 1963** already put integrity into **19** and the oaths
Secularism as BS begins only in *Bommai*	*Kesavananda* listed **secular character**; *Bommai* applied it to **356**
Sarva Dharma Sambhava = US wall	Equal **respect**, not equal **absence**

Topic 23 — Constitutional & Legal Offices

Consolidated — 30 Must-Score Facts

1. **Attorney General for India (Article 76, Part V):** The first and highest law officer of the Government of India; appointed by the **President**; must possess qualifications required to be appointed a **Judge of the Supreme Court** (citizen of India; 5 yrs HC judge, 10 yrs HC advocate, or distinguished jurist in President's opinion).
2. Tenure and Removal of AG: The Constitution **does NOT fix the tenure or salary** of the Attorney General; holds office during the **pleasure of the President**; receives remuneration determined by the President (not charged on Consolidated Fund); by long-standing convention, tenders resignation when the Council of Ministers resigns.
3. Rights and Privileges of AG (**Article 88**): Has the **right of audience in all courts throughout India**; has the **right to speak and participate in proceedings of both Houses of Parliament (Lok Sabha & Rajya Sabha)** and any Parliamentary Committee of which he may be named a member, but **HAS NO RIGHT TO VOTE**; enjoys all parliamentary privileges and immunities under **Article 105**.
4. Limitations on AG: Does not belong to the Central Cabinet; is not a full-time government servant; **is NOT debarred from private legal practice**, but cannot advise or hold brief against the Government of India, nor defend accused persons in criminal prosecutions without GOI permission; the first Attorney General of India was **M.C. Setalvad (1950–1963)** (longest-serving AG).
5. **Solicitor General and Additional Solicitors General:** Law officers created to assist the Attorney General in performing official duties; **THE SOLICITOR GENERAL IS NOT A CONSTITUTIONAL OFFICE** (not mentioned in the Constitution; statutory/executive creation); does not enjoy Article 88 privileges in Parliament.
6. **Advocate General for the State (Article 165, Part VI):** The highest law officer in the State; appointed by the **Governor**; must possess qualifications required to be appointed a **Judge of a High Court** (citizen; held judicial office for 10 years or advocate of HC for 10 years; *distinguished jurist criterion does NOT apply for HC/Advocate General*).
7. Tenure and Rights of Advocate General (**Article 177**): Holds office during the **pleasure of the Governor**; remuneration fixed by Governor; has the right to speak and take part in proceedings of **both Houses of State Legislature** (Assembly and Council) and its committees, but **HAS NO RIGHT TO VOTE**; enjoys all state legislative privileges under **Article 194**.
8. **Cabinet Secretary of India:** The administrative head of the Cabinet Secretariat and the **senior-most civil servant of the Republic of India**; ex-officio Chairman of the **Civil Services Board**; acts as the principal advisor to the Prime Minister on administrative matters and coordinates inter-ministerial policy.
9. Appointment and Tenure of Cabinet Secretary: Drawn from the senior-most ranks of the Indian Administrative Service (IAS); tenure is normally **2 years**, extendable up to 4 or 5 years under Fundamental Rule 56(d); ranks **Rank 11 in the Warrant of Precedence** (along with the Attorney General).
10. **Principal Secretary to the Prime Minister:** Administrative head of the Prime Minister's Office (PMO); handles high-priority policy coordination, national security coordination, and executive oversight.
11. **Warrant of Precedence (Order of Precedence, 1979 Notification):** Official state protocol order maintained by the Ministry of Home Affairs determining ceremonial precedence at state occasions and public functions; has no legal application to day-to-day administrative powers.
12. Precedence Hierarchy (Ranks 1 to 5): **Rank 1**: President of India → **Rank 2**: Vice-President of India → **Rank 3**: Prime Minister of India → **Rank 4**: **Governors of States** within their respective States → **Rank 5**: Former Presidents (and Rank 5A: Deputy Prime Minister, if any).
13. Precedence Hierarchy (Ranks 6 to 8): **Rank 6**: **Chief Justice of India (CJI) and Speaker of the Lok Sabha** (*Both have EXACT EQUAL protocol rank!*) → **Rank 7**: Union Cabinet Ministers, Chief Ministers within their States, Deputy Chairman of NITI Aayog (former Planning Commission), Former Prime Ministers, Leaders of Opposition in Rajya Sabha and Lok Sabha → **Rank 7A**: **Holders of Bharat Ratna** → **Rank 8**: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers outside their respective States, Governors outside their respective States.
14. Precedence Hierarchy (Ranks 9 to 11): **Rank 9**: **Judges of the Supreme Court of India** → **Rank 9A**: **Chief Election Commissioner (CEC), Comptroller and Auditor General (CAG)**, and Chairperson of UPSC (*All three hold equal Rank 9A*) → **Rank 10**: Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union → **Rank 11**: **Attorney General for India, Cabinet Secretary**, Lieutenant Governors within their UTs.
15. Precedence Comparison Traps: (1) Lok Sabha Speaker (Rank 6) ranks ABOVE Union Cabinet Ministers (Rank 7); (2) Bharat Ratna awardees (Rank 7A) rank ABOVE Supreme Court Judges (Rank 9); (3) Supreme Court Judges (Rank 9) rank ABOVE the CEC and CAG (Rank 9A); (4) CEC and CAG (Rank 9A) rank ABOVE the Attorney General and Cabinet Secretary (Rank 11).
16. **Attorney General vs Solicitor General vs Advocate General (Master Comparison):** AG (Art. 76, Central constitutional post, SC judge qualification, Art. 88 right in Parliament); Advocate General (Art. 165, State constitutional post, HC judge qualification, Art. 177 right in State Legislature); Solicitor General (Non-constitutional, statutory/executive post, assists AG, no right in Parliament).
17. **Civil Services Board (CSB):** Mandated by the Supreme Court in *Prakash Singh (2006)* and notified in 2014; headed by the **Cabinet Secretary at the Centre** and by the **Chief Secretary in States**; recommends postings and transfers of senior civil servants, ensuring minimum fixed tenures to prevent arbitrary political transfers.
18. **Cabinet Secretariat Structure:** Functions directly under the **Prime Minister of India**; administrative head is the **Cabinet Secretary**; provides secretarial assistance to the Cabinet and Cabinet Committees; administers the **Government of India (Transaction of Business) Rules, 1961** and **Government of India (Allocation of Business) Rules, 1961**.
19. **Comptroller and Auditor General under CAG Act, 1971:** Under Section 10, CAG compiles accounts of States; under Section 13, audits all expenditure from Consolidated Fund; under Section 14, audits all bodies substantially financed by government grants (> 50% or ₹1 crore); audits government companies under Companies Act, 2013.
20. Detailed Protocol Comparison in Warrant of Precedence: Rank 1: President → Rank 2: Vice-President → Rank 3: Prime Minister → Rank 4: Governors in their States → Rank 5: Former Presidents → Rank 6: CJI & Speaker LS → Rank 7: Union Cabinet Ministers & CMs in States → Rank 7A: Bharat Ratna → Rank 9: SC Judges → Rank 9A: CEC, CAG, UPSC Chairman → Rank 10: RS Deputy Chairman, LS Deputy Speaker, MoS → Rank 11: Attorney General & Cabinet Secretary.
21. **Advocate-on-Record (AOR) System in Supreme Court:** Under Supreme Court Rules, 2013, **only an Advocate-on-Record is entitled to act and plead on behalf of a litigant in the Supreme Court**; an advocate must practice for 4 years, train for 1 year with a senior AOR, and pass a specialized examination conducted by the Supreme Court.
22. **Senior Advocates Designation:** Under Section 16 of the Advocates Act, 1961, the Supreme Court or High Court may designate an advocate as **Senior Advocate** with their consent if of opinion that by virtue of ability, standing at the bar, or special knowledge, they deserve such distinction; Senior Advocates cannot file a vakalatnama or appear without an instructing advocate/AOR.
23. **Public Prosecutor (Section 24 CrPC / Section 18 BNSS):** Appointed by the Central or State Government in High Courts and District Courts for conducting prosecutions on behalf of the State; considered an independent officer of the court whose duty is not to secure conviction at all costs, but to assist the court in arriving at truth.
24. **Secretary-General of Lok Sabha and Rajya Sabha:** The permanent administrative and bureaucratic head of the Secretariat of each House; holds protocol rank equivalent to **Cabinet Secretary** (Rank 11); appointed by the Speaker (in Lok Sabha) and Chairman (in Rajya Sabha); assists Presiding Officers on parliamentary procedure and rules.
25. **Comptroller and Auditor General's Institutional Independence:** CAG cannot be removed except by Presidential order following special majority address by Parliament; salary cannot be varied to disadvantage; completely debarred from further government post; administrative expenses **charged upon Consolidated Fund of India**.
26. **Differences between Public Accounts Committee and CAG:** The CAG is the **'external auditor'** who examines accounts and drafts audit reports; the Public Accounts Committee (PAC) is the **'parliamentary scrutiny body'** that examines CAG reports; CAG acts as the **'friend, philosopher, and guide'** of the PAC during evidence sessions.
27. **Central Vigilance Commissioner vs Comptroller & Auditor General:** CAG audits financial accounts and propriety of expenditure post-facto for both Union and States; CVC supervises anti-corruption vigilance, disciplinary proceedings, and CBI investigations relating to public corruption in Central government agencies.

28. **Chief Election Commissioner in Order of Precedence:** The CEC, along with the CAG and UPSC Chairperson, occupies **Rank 9A in the Warrant of Precedence**, which places them higher than the Attorney General (Rank 11) and Deputy Ministers, but immediately below Supreme Court Judges (Rank 9).
29. **Principal Secretary to Prime Minister:** Administrative head of PMO; created under Lal Bahadur Shastri's tenure (initially headed by L.K. Jha); holds protocol rank of Cabinet Minister or Minister of State; acts as the primary administrative clearing-house for Prime Ministerial directives.
30. **Parliamentary Committee on Privileges:** Examines cases of breach of privileges of the House or its members; in Lok Sabha, consists of **15 members** nominated by Speaker; in Rajya Sabha, consists of **10 members** nominated by Chairman.

📋 Must-score facts — AG, SG, AdvG, CAG

Union law officers

Office	Lock
Attorney General	Art. **76**; SC-judge qualification
Art. 88	Speak in both Houses / committees; **no vote**
AG oath / pay	Not Third Schedule; pay fixed by President
Solicitor General	**Not** in Constitution; assists AG; no Art. 88

State / audit

Office	Lock
Advocate General	Art. **165**; HC-judge qualification
"AdvG of India"	**Does not exist**
CAG	Arts. **148–151**; 6 yrs / age 65
CAG oath / salary	Third Schedule; Second Schedule; charged

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2023	**CEC Act**: selection = PM + LoP LS + Cabinet Minister (कैबिनेट मंत्री)	**CJI not on the panel** (*Anoop Baranwal* had put CJI there *until a law*)
2023	SC judge resignation paper	Address = **President**, not CJI
2023	Paper asks AG qualify-as-SC-judge **and** impeachment	Only qualify is true. **Pleasure**, not 124(4)
2022	JPSC how created	**Parliament**, if the States request
2022	CAG (भारत के नियंत्रक-महालेखापरीक्षक) report examined by?	**PAC** (लोक लेखा समिति), not Estimates (प्राकलन समिति), not "COPU for everything"
2021	SPSC member removal	**President** after **SC** inquiry — not Governor, not HC
2021	First CEC / first woman CEC	**Sukumar Sen** · **Ramadevi 1990**
2021	UPPSC (उत्तर प्रदेश लोक सेवा आयोग) functions extended by	**UP Legislature** (321), not President
2020	AG matched to Part XIII	**Wrong.** Part **V**
2024	Body–article "correctly matched"	**ECI ≠ 165**. 165 = AdvG. ECI = **324**
2024	CAG in a match-list	**148** (with 266 / 280 / 360)
2023	324 / 315 / 280 / 338 match	EC / PSC / FC / NCSC (राष्ट्रीय अनुसूचित जाति आयोग)
2018	CJI when PIL "introduced"	**P.N. Bhagwati** (colour). epistolary / continuing mandamus (परमादेश)
1976	Accounts compilation taken off CAG	CAG = **auditor only** (2019)
1971	CAG DPC Act	Duties live in **statute**, Art. 149

Sitting (बैठक) AG / CAG / SG names are **CA colour** — don't raata a 2026 occupant as if he were Art. 76.

Confused Pairs

Term A	Term B	Core difference	Hindi Terminology
Attorney General (76)	**Solicitor General**	Constitutional; Art. **88**	**Not** in the text; no 88
Attorney General	**Advocate General (165)**	Union; President; **SC**-judge qualify	State; Governor; **HC**-judge qualify
AG / AdvG	**CAG / SC judge**	**Pleasure** — no impeachment article	Removal **like SC judge** (CAG) / impeachment (judge)
AG	**CAG**	May take private briefs (not vs GoI); further office **not** barred by 76	**148(4)** no further Union/State office
CAG	**Accountant General**	Union constitutional auditor	CAG's **field** officer in a State
Advocate General	**Accountant General**	State's *law* officer (165)	State's *accounts* officer (CAG's man)
3rd Schedule oath	**Art. 60 / 69 / 159**	Judges, CAG, ministers, MPs/MLAs	President / VP / Governor — **not** 3rd Schedule
2nd Schedule	**AG's pay**	CAG + judges (charged)	President fixes; **not** charged on CFI as a 2nd-Sch office
UK Comptroller	**Indian CAG**	Can **block** a payment first	**Audits after** the money has gone
CEC	**Other Election Commissioners**	Removed **like SC judge**	Removed only on **CEC's recommendation**
UPSC Chairman	**UPSC member** (Art. 319)	**No** further Union/State office	May become UPSC **Chair** or an **SPSC Chair**
SPSC: appoint	**SPSC: remove**	**Governor**	**President** (after SC inquiry on misbehaviour)
CJI / SC judge oath	**CJ HC / HC judge oath**	Before **President**	Before **Governor**
HC judge oath	**HC judge resignation**	**Governor**	**President**
CJI age	**CJ HC age**	**65**	**62**
CEC (324)	**SEC (243K)**	Parliament / President / VP polls	Local bodies
President resigns	**CJI resigns**	To the **VP** (56)	To the **President** (124)
ECI Art.	**AdvG Art.**	**324**	**165** (2024 trap)
CEC 2023 panel	**Lokpal panel**	PM + LoP LS + Cabinet Minister (**no CJI**)	**Includes CJI** (or an SC judge he nominates)
LS Speaker resigns	**RS Chairman resigns**	To **Deputy Speaker** (94)	RS Chairman **is the VP** → resigns to the **President** (67)

Office snapshot — law officers & CAG

Office	Appoints	Qualify as	Removal	Oath	Resign to	Further office
AG	President	**SC judge**	**Pleasure**	not 3rd Sch.	President	not barred by 76

Office	Appoints	Qualify as	Removal	Oath	Resign to	Further office
SG	Executive	(no Art.)	Pleasure / contract	not 3rd Sch.	Government	not 148(4)
AdvG	Governor	**HC judge**	**Pleasure**	not 3rd Sch.	Governor	not 148(4)
CAG	President	(law, not 76-clone)	**Like SC judge**	**3rd Sch. / President**	President	**148(4) barred**

Chief Election Commissioner & Election Commissioners (Art. 324)

Dimension	CEC	Other ECs
Article	**324** — CEC + such other ECs as the President may fix	Same Commission; **equal vote** in decisions
Appointment	**President**. *Anoop Baranwal* **2023**: until a law, panel = PM + LoP + **CJI**. Then **CEC and Other ECs Act, 2023**: **Search** Committee = **Cabinet Secretary + 2 Secretaries** (shortlist **5**). **Selection** Committee = **PM (chair) + LoP in LS + a Union Cabinet Minister**. **CJI is not on the 2023 panel** (contrast **Lokpal** (लोकपाल): CJI *is* on that panel)	Same 2023 Act
Tenure	**6 years or 65** (2023 Act)	Same
Removal	**Like an SC judge** (324(5))	**Not** removed except on **CEC's recommendation**
Resignation	To the **President**	To the **President**
Oath	**Not** a Third Schedule named form	Same
Pay (2023 Act)	Aligned with **Cabinet Secretary**, not SC judge	Same
Conditions	Not varied to disadvantage after appointment	—

UPSC Chairman (Arts. 315–323)

Ceases to be	May later be	May not
UPSC Chairman	—	**Any** further Union **or** State office
UPSC member	UPSC **Chair** or an **SPSC Chair**	Other Union/State office
SPSC Chairman	UPSC Chair **or** Chair of **another** SPSC	Other Union/State office
SPSC member	UPSC Chair / UPSC member / SPSC Chair (same or another)	Other Union/State office

Office snapshot — CEC / PSC / Chief Justices

Office	Appoints	Age / term	Removal	Oath before	Resign to
CEC	President (2023 panel **sans CJI**)	6y / **65**	**Like SC judge**	not 3rd Sch.	President
Other EC	same	6y / 65	**CEC's recommendation**	not 3rd Sch.	President
UPSC Chair	President	6y / **65**	President after **SC** inquiry	not 3rd Sch.	President
SPSC Chair	**Governor**	6y / **62**	**President** after SC inquiry	not 3rd Sch.	**Governor**
CJI	President	**65**	124(4)	**President**	**President**
CJ HC	President	**62**	124(4) via 218	**Governor**	**President**

Common Traps

Trap	Correct
AG removed like an SC judge	**Pleasure of the President** (2023)
AG = Part XIII	**Part V.** XIII = trade
AG must be an MP / minister	**Neither**
SG is in Article 76	**Only AG** is
SG has Art. 88	**AG only**
AdvG = SC-judge qualification	**HC judge**
AdvG removed like HC judge	**Pleasure of the Governor**
Art. 88 in the Vidhan Sabha	**Art. 177**
Advocate General = Accountant General	Law officer vs CAG's **accounts** officer
CAG = pleasure	**SC-judge removal**
CAG = 3rd Schedule? No	**Yes** he is. AG is the one who is **not**
CAG may take a State governorship later	**148(4)** bars further Union **or** State office
Indian CAG blocks payments in advance	**After** spend
PAC *is* the CAG	PAC **examines** the report
Estimates Committee uses CAG	**No CAG link**
AG's pay is 2nd Schedule	**Judges + CAG.** AG = President fixes
President's oath is 3rd Schedule	**Art. 60**
Other ECs removed like the CEC	Only on **CEC's recommendation**
2023 Act keeps CJI on the CEC panel	**CJI is out**
SPSC member removed by Governor	**President**, after **SC** inquiry (2021)
SPSC functions extended by President	**State Legislature** (321)

Trap	Correct
UPSC Chair may become Governor	**319** total bar
UPSC and SPSC retire at the same age	UPSC **65** · SPSC **62**
HC CJ resigns to the Governor	Oath = Governor. Resign = **President**
SC judge resigns to the CJI	**President** (2023)
CJI takes oath under Art. 60	Art. 60 is the **President's** oath, *administered by* the CJI
HC CJ sits to 65	**62**
JPSC is set up by UPSC	**Parliament**, on the States' request
CEC pay = SC judge (after 2023 Act)	**Cabinet Secretary** alignment
Election Commission = Art. 165	**324**. 165 = **Advocate General** (2024)
Advocate General of India	**Does not exist.** Union = AG + SG
President resigns to the CJI / PM	To the **Vice-President** (56)
Governor resigns to the CM	To the **President** (156)
Speaker LS resigns to the President	To the **Deputy Speaker** (94)
UPSC Chair and UPSC member have the same 319 bar	Chair = **total** bar. Member may become **Chair**
SEC = CEC	**243K** vs **324**
Regional Commissioners = same removal as CEC	Only on **CEC's recommendation**
EC can never become CEC	**May**, combined tenure **≤ 6 years**
AG is the Law Minister / a Cabinet member	**Neither.** Law officer, not political executive
RS Chairman resigns to Deputy Chairman	RS Chairman **is the VP → President** (67). Deputy Chairman RS → Chairman (**90**)
CJI is on the 2023 CEC panel *and* the Lokpal panel	**Lokpal yes. CEC 2023 no.** Search Committee ≠ Selection Committee
PSC Chair removed only after SC inquiry, always	Misbehaviour → **SC**. Insolvency / paid job / infirmity → President **without** SC (317)
CJI can never take Art. 60	Only when **acting President** (1969 Act)

Topic 24 — Important Supreme Court Judgments

Consolidated — 30 Must-Score Facts

1. ***A.K. Gopalan v. State of Madras (1950)***: The Supreme Court took a narrow, literal view of **Article 21**, holding that 'procedure established by law' means law enacted by the legislature, and courts cannot judge whether the law is reasonable or fair; held that Articles 19 and 21 are mutually exclusive compartmentalized silos.
2. ***State of Madras v. Champakam Dorairajan (1951)***: Struck down caste-based communal reservations in medical/engineering colleges as violative of Article 15(1); held that Fundamental Rights prevail over Directive Principles; led directly to the enactment of the **1st Constitutional Amendment Act, 1951 (inserting Article 15(4))**.
3. ***Re: Berubari Union Case (1960)***: 8-judge bench held that: (1) The Preamble is **NOT a part of the Constitution**; (2) Parliament's power under **Article 3 does NOT include the power to cede Indian territory** to a foreign country; cession can only be effected by an Amendment under **Article 368** (leading to 9th Amendment Act, 1960).
4. ***Golaknath v. State of Punjab (1967)***: 11-judge bench ruled (6:5) that **Fundamental Rights are given a transcendental and inviolable position** and Parliament **CANNOT amend Part III** to abridge or take away Fundamental Rights; applied the doctrine of **'Prospective Overruling'**; led to the 24th Amendment Act, 1971.
5. ***Kesavananda Bharati v. State of Kerala (24 April 1973)***: The most famous judgment in Indian constitutional history; 13-judge bench ruled (7:6) that: (1) Overruled Golaknath and upheld Parliament's power to amend any part of the Constitution; (2) Propounded the **Basic Structure Doctrine** — Parliament cannot alter the basic features or framework of the Constitution; (3) Overruled Berubari, holding that the **Preamble IS AN INTEGRAL PART of the Constitution** and can be amended under Article 368 without altering the basic structure.
6. ***Indira Nehru Gandhi v. Raj Narain (1975)***: The Supreme Court struck down **Clause (4) of Article 329A** (inserted by 39th Amendment, 1975 to insulate the election of the Prime Minister from judicial review) as violative of the **Basic Structure**; held that **Free and Fair Elections, Rule of Law, and Judicial Review** are basic features.
7. ***ADM Jabalpur v. Shivkant Shukla (1976 - Habeas Corpus Case)***: 5-judge bench ruled (4:1) that during a proclamation of Emergency under Article 352, no person has locus standi to move any writ petition under Article 226 for Habeas Corpus to challenge illegal detention; **Justice H.R. Khanna delivered the heroic sole dissent**, upholding personal liberty; overturned by 44th Amendment and formally declared perverse and overruled in *Puttaswamy (2017)*.
8. ***Maneka Gandhi v. Union of India (1978)***: Completely overruled the narrow Gopalan doctrine; established that: (1) Procedure under Article 21 must be **'just, fair, and reasonable'** (reading American **'Due Process of Law'** into Article 21); (2) Articles 14, 19, and 21 are not separate silos but form a connected **'Golden Triangle'** (a law depriving personal liberty under Art. 21 must also satisfy the tests of Arts. 14 and 19).
9. ***Minerva Mills v. Union of India (1980)***: Struck down Section 4 and Section 55 of the 42nd Amendment Act; held that: (1) A limited amending power is itself a basic feature; (2) The Indian Constitution is founded on the bedrock of the **balance between Part III and Part IV**; to give absolute primacy to one over the other is to destroy the harmony of the Constitution.
10. ***Mohd. Ahmed Khan v. Shah Bano Begum (1985)***: SC ruled that Section 125 of CrPC (maintenance for divorced wives) applies to Muslim women as well, irrespective of personal law; urged the implementation of a **Uniform Civil Code under Article 44**; prompted the Rajiv Gandhi government to pass the Muslim Women (Protection of Rights on Divorce) Act, 1986.
11. ***Indira Sawhney v. Union of India (1992 - Mandal Case)***: 9-judge bench: (1) Upheld 27% reservation for OBCs in public employment; (2) Struck down 10% economic reservation for poor among forward castes (later introduced via 103rd Amd); (3) Introduced the **'Creamy Layer' exclusion** for OBCs; (4) Ruled that **total reservations CANNOT EXCEED 50%**, except in extraordinary circumstances; (5) Held that reservations cannot be granted in **promotions** (countered by 77th Amd).
12. ***S.R. Bommai v. Union of India (1994)***: 9-judge bench on Article 356: (1) Proclamation of President's Rule is subject to **Judicial Review**; (2) The Assembly cannot be dissolved until Parliament approves the proclamation; (3) **Floor Test** is the only constitutional forum to prove majority; (4) **Secularism is part of the Basic Structure**.
13. ***Vishaka v. State of Rajasthan (1997)***: Laid down the **Vishaka Guidelines** to prevent sexual harassment of women at the workplace under Articles 14, 19(1)(g), and 21, drawing upon the CEDAW convention; culminated in the **PoSH Act, 2013**.
14. ***I.R. Coelho v. State of Tamil Nadu (2007 - Ninth Schedule Case)***: 9-judge bench ruled that there can be no blanket immunity from judicial review for laws in the Ninth Schedule; any law placed in the **Ninth Schedule after 24 April 1973** (Kesavananda judgment date) is **open to judicial review** if it violates Fundamental Rights or damages the Basic Structure.
15. ***Lily Thomas v. Union of India (2013)***: Struck down Section 8(4) of RPA 1951; sitting MPs/MLAs convicted for offences with imprisonment of **2 or more years are IMMEDIATELY DISQUALIFIED** without any 3-month protection.
16. ***PUCL v. Union of India (2013 - NOTA Case)***: Directed ECI to introduce **'None of the Above' (NOTA)** option in EVMs to protect the secrecy of a voter's choice to cast a negative vote under Article 19(1)(a).
17. ***National Legal Services Authority (NALSA) v. Union of India (2014)***: Recognized **Transgender Persons as a 'Third Gender'**; affirmed their fundamental rights under Articles 14, 15, 19(1)(a), and 21.
18. ***Supreme Court Advocates-on-Record Association v. Union of India (2015 - NJAC Case)***: Struck down the **99th Constitutional Amendment Act, 2014 and the NJAC Act** as unconstitutional; restored the Collegium system, holding that the primacy of the judiciary in judicial appointments is a facet of the **Independence of Judiciary (Basic Structure)**.
19. ***Shayara Bano v. Union of India (2017 - Triple Talaq Case)***: 5-judge bench declared the practice of **Talaq-e-Biddat (instantaneous triple talaq) unconstitutional and void** by 3:2 majority, holding it manifestly arbitrary under Article 14.
20. ***Justice K.S. Puttaswamy (Retd.) v. Union of India (2017 - Privacy Case)***: Unanimous 9-judge Constitution bench declared that the **Right to Privacy is a Fundamental Right guaranteed under Article 21** as well as part of the freedoms guaranteed by Part III; formally overruled *A.K. Gopalan, M.P. Sharma (1954)*, and *ADM Jabalpur (1976)*.
21. ***Navtej Singh Johar v. Union of India (2018)***: Unanimous 5-judge Constitution bench **decriminalized consensual homosexual sex between adults**, reading down **Section 377 of the Indian Penal Code (IPC)** as violative of Articles 14, 15, 19, and 21.
22. ***Joseph Shine v. Union of India (2018)***: Struck down **Section 497 of the IPC (Adultery)** as unconstitutional and manifestly arbitrary under Articles 14 and 21, holding that women cannot be treated as chattel or property of their husbands.
23. ***Janhit Abhiyan v. Union of India (2022 - EWS Case)***: 5-judge bench upheld the validity of the **103rd Constitutional Amendment Act, 2019** providing **10% reservation to Economically Weaker Sections (EWS)** in education and public employment by a 3:2 majority; held that reservation solely based on economic criteria does not violate the Basic Structure and that the 50% ceiling from *Indira Sawhney* applies only to caste-based reservations.
24. ***Association for Democratic Reforms (ADR) v. Union of India (February 2024 - Electoral Bonds Case)***: Unanimous 5-judge bench headed by CJI D.Y. Chandrachud **struck down the Electoral Bonds Scheme as unconstitutional**, holding that anonymous political funding violates the voter's **Right to Information under Article 19(1)(a)** of the Constitution.
25. ***Bank Nationalisation Case (R.C. Cooper v. Union of India, 1970)***: 11-judge bench struck down the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1969; established that the **effect of legislative action on fundamental rights is the test**, not merely the object or form of the law (rejecting the object test of *Gopalan*).
26. ***Privy Purses Abolition Case (Madhav Rao Scindia v. Union of India, 1971)***: Struck down the Presidential Order derecognizing the rulers of former princely states and abolishing their privy purses as unconstitutional; led to the **26th Constitutional Amendment Act, 1971** which terminated privy purses and princely privileges.
27. ***Aruna Ramchandra Shanbaug v. Union of India (2011)***: Supreme Court recognized the legality of **Passive Euthanasia** (withdrawal of life support for patients in permanent vegetative state) under strict judicial guidelines; later expanded in ***Common Cause v. Union of India (2018)*** recognizing the right to die with dignity and **Living Wills (Advance Medical Directives)** under Article 21.
28. ***Subhash Kashinath Mahajan v. State of Maharashtra (2018)***: SC introduced safeguards regarding immediate arrest under SC/ST (Prevention of Atrocities) Act; Parliament countered by passing the **SC/ST (Prevention of Atrocities) Amendment Act, 2018**, restoring immediate arrest without preliminary inquiry; upheld by SC in

Prathvi Raj Chauhan (2020).

29. ***Supriyo @ Supriya Chakraborty v. Union of India (October 2023)***: 5-judge Constitution bench unanimously held that there is **no fundamental right to marry** under the Indian Constitution; refused to recognize same-sex marriage, holding that legal recognition of queer marriage is a matter of legislative policy for Parliament, not the judiciary.
30. ***Electoral Bonds Case (February 2024)***: In *ADR v. Union of India*, a 5-judge bench headed by CJI D.Y. Chandrachud unanimously invalidated the Electoral Bonds Scheme, holding that corporate funding without disclosure violates the voter's **Right to Information under Article 19(1)(a)**, creating an unconstitutional quid pro quo between political donors and ruling parties.

📋 Must-score facts — case ↔ holding

Amendment / Basic Structure chain

Case / step	Lock
Shankari Prasad (1951)	368 can amend FR
Golaknath (1967)	FR cannot be amended (6:5)
24th (1971)	13(4) — 368 amendment not "law" under 13
Kesavananda (1973)	Can amend FR but **not Basic Structure** (7:6)
Indira Gandhi (1975)	Struck 39th election-shield clauses; Rule of Law in BS
Minerva Mills (1980)	Restored limits after 42nd excesses

Rights / Emergency / privacy

Case	Lock
A.K. Gopalan (1950)	Art. 21 = any procedure in valid law
Maneka Gandhi (1978)	Fair, just, reasonable procedure
ADM Jabalpur (1976)	Habeas fails if 21 suspended (later overruled line)
Puttaswamy (2017)	Privacy = FR under 21
Bommai (1994)	Floor test for majority; federalism

Order trap

1951 → 1965 → 1967 → 1973 (*Shankari → Sajjan → Golaknath → Kesavananda*)

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2018	*Navtej* on homosexuality	**s.377 IPC**, not Art. 377 (UPPCS Q79)
2018	*Joseph Shine*	s.497 adultery **struck** as a crime
2017	*Puttaswamy* 9-judge	Privacy = FR; *Jabalpur* majority **wrong**
2016	*Nabam Rebia*	Governor cannot rig (ऋग्वेद) the Assembly calendar
2015	NJAC / *Shreya Singhal*	**99th struck 4:1** · **s.66A void**
2013	*Lily Thomas* · POSH Act	Instant DQ on conviction · *Vishaka* guidelines get a statute
2006	*Rameshwar Prasad*	Bihar dissolution (विघटन) on horse-trading fear **struck**
2024	Chronology of the four (चातुर्याम) amendment cases	**1951 → 1965 → 1967 → 1973**
2022 / 2020	Who propounded Basic Structure?	***Kesavananda* 1973**, not Golaknath
2021	Golaknath / 24th / Kesavananda / 42nd (42वां)	**1967 → 1971 → 1973 → 1976**
2017	*Puttaswamy* on *Jabalpur*	Majority was **wrongly decided**
2007	*Coelho* 9-judge	9th Schedule (9वीं अनुसूची) post-**24 Apr 1973** still faces BS
1980	*Minerva*	368(4)(5) **dead**
24 Apr 1973	*Kesavananda*	The date *and* the doctrine

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q132

Under Article 32 (अनुच्छेद 32), in which case was 'wilful non-compliance' with a court order declared as contempt of the court?

A. Nilabati vs. State of Orissa B. M. L. Sachdev vs. Union of India C. Gracy vs. State of Kerala D. Gopi Aqua vs. Union of India

Confused Pairs

Term A	Term B	Core difference	Hindi Terminology
--------	--------	----------	-------- / --------
***Gopalan* 1950**	***Maneka* 1978**	Any procedure in a valid law; FRs in **silos**	Procedure must be **fair/just/reasonable**; **14-19-21** together
***Golaknath* 1967**	***Kesavananda* 1973**	FR **cannot** be amended	FR **can**; **basic structure** cannot
Shankari / Sajjan	***Golaknath***	368 includes Part III	368 is "law" under **13** → Part III frozen
***Berubari* 1960**	***Kesavananda* 1973**	Preamble **not** part of the Constitution	Preamble **is** part
9th Schedule	**9th Amendment**	1st Amd **1951** — FR-shield for listed laws	**1960** — Berubari / boundary
***Waman Rao* 1981**	***I.R. Coelho* 2007**	Cut-off date **24 Apr 1973**	9-judge fact: post-cut-off 9th Schedule still faces **BS**
Kesavananda	***Minerva Mills***	Invented the ceiling	Struck 42nd's "no court / unlimited 368"; FR–DPSP **harmony**
***ADM Jabalpur* 1976**	**44th Amd / *Puttaswamy* 2017**	***Majority: no Art. 21 habeas in Emergency***	***44th: 20 & 21 cannot be suspended. Puttaswamy: majority was wrong***
Art. 13 "law"	***Art. 368 amendment***	***Ordinary legislation***	***24th → 13(4): amendment is not 13-law. Still capped by BS***
Sikri list	***Later BS additions***	***Supremacy, republic/democracy, secular, SOP, federal***	***Indira: RoL / review / free-fair polls. Minerva: limited 368 + FR–DPSP. Bommai:***

secularism/federalism for 356. NJAC: judicial independence | | First Judges 1981 | Second Judges 1993 | Consultation ≠ concurrence; executive primacy | Consultation = concurrence; CJI+2 Collegium | | Second Judges | Third Judges 1998 | SC Collegium = CJI + 2 | SC Collegium = CJI + 4; HC = CJI + 2 | | Collegium | NJAC (99th) | Judge-made; not in the text | Was in Arts. 124A–C; struck 16 Oct 2015* | | Kihoto *1992 | Speaker "final" | 10th Schedule valid | Para 7 ouster dies; Speaker's order is reviewable | |* **Indra Sawhney** | *77th Amd | No reservation in promotion | 16(4A) restores SC/ST promotion | |* **Vishaka *1997 | POSH Act 2013 | Court-made guidelines (CEDAW) | Statute takes over; guidelines were a stop-gap** | |*** Navtej *2018 | Art. 377 | s.377 IPC (consensual adult sex struck) | Art. 377 = transitory CAG provision — not this case (2018 PYQ) | |* **Joseph Shine** | *Divorce adultery | s.497 crime struck | Adultery can still be a civil matrimonial ground | |* **M.C. Mehta* Oleum** | **Rylands v Fletcher** | **Absolute** liability — no exceptions | English **strict** liability — several exceptions |

Basic Structure — what you actually mark

Inventor vs applier — read the stem

- ***Kesavananda Bharati* (1973) invented** the Basic Structure ceiling: Parliament may amend Fundamental Rights, but it cannot destroy the Constitution's identity.
- Later cases **apply** that ceiling; they do **not** invent it. Marking *Golaknath*, *Minerva*, *Bommai*, or *Coelho* as "propounded Basic Structure" is the classic trap.
- ***Golaknath* (1967)** froze Part III amendments — different holding, earlier year.
- ***Indira Nehru Gandhi* (1975)** applied Basic Structure to free and fair elections / rule of law against the 39th Amendment path.
- ***Minerva Mills* (1980)** struck the 42nd Amendment's attempt at unlimited Art. 368 and restated FR–DPSP harmony — an **application**, not invention.
- ***S.R. Bommai* (1994)** applied secularism / federalism to Art. **356** review.
- ***I.R. Coelho* (2007)** applied Basic Structure review to post-*Kesavananda* Ninth Schedule inserts.
- **Sikri in *Kesavananda*:** supremacy of the Constitution · republican & democratic form · secular character · separation of powers · federal character
- ***Indira Gandhi* 1975:** democracy · free and fair elections · rule of law · judicial review
- ***Minerva Mills* 1980:** limited amending power · harmony between FR and DPSP
- ***Coelho* 2007:** Arts. **14, 19, 21** as a test for 9th-Schedule laws
- ***Bommai* 1994:** secularism (and federalism) applied to **356**
- **NJAC 2015:** judicial independence — a constitutional amendment can **die**

> **Logic:** If the option says "propounded in *Golaknath / Shankari / Sajjan*" — **wrong year and wrong holding.** Do not confuse *Kesavananda* (invented the ceiling) with *Minerva* (struck 42nd's unlimited 368).

Common Traps

Trap	Correct
Basic Structure = *Golaknath*	***Kesavananda* 1973**
24th Amd after Kesavananda	**1971**, before
Golaknath voided the 1st Amd	**Prospective** — pre-1967 Amds stood
Shankari / Sajjan = BS	They **upheld** 368 over FR. Mudholkar = **hint**
Kesavananda froze Part III	It **allowed** FR amendment, forbade **identity** destruction
Preamble was always "part"	*Berubari* said **not**; *Kesavananda* said **is**
9th Schedule = 9th Amd	Schedule = **1st Amd**; 9th Amd = **Berubari 1960**
9th Schedule is still FR-proof	Post-**24 Apr 1973** inserts face BS (*Coelho*)
Maneka changed Art. 21's words	Still **procedure established by law**
Gopalan is the live Art. 21 test	***Maneka* 1978**
Jabalpur majority = Khanna	Khanna **dissented**. 44th saved **20 & 21**
Indira Gandhi invented BS	**Applied** it to **39th / 329A**
Minerva invented BS	Struck **368(4)(5)** and 31C-to-all-DPSP
31C covers all DPSPs	Only **39(b)(c)** after *Minerva*
Coelho emptied the 9th Schedule	Cut-off + BS test, not a wipe
Cession = ordinary law	***Berubari***: needs **Amd**
Bench: Kesavananda = 11	**13**. Golaknath = **11**. Coelho = **9**. Maneka = **7**
Collegium = First Judges	**Second Judges 1993**. First = **executive primacy**
Third Judges = CJI+2 for SC	SC = CJI+**4**. HC = CJI+**2**
NJAC still working / in force	**Struck 16 Oct 2015**. Collegium revived
NJAC = CJI + Law Minister	**Six** seats; **any two** veto
Collegium is in Art. 124	**Judge-made**. NJAC **was** in 124A–C and still fell
Bommai = 356 can never be used	Justiciable; majority on the **floor**; secularism can **justify** 356
Speaker's defection order is final	***Kihoto***: reviewable. Para 7 ouster **dead**
Lily Thomas = 10th Schedule	**RPA s.8(4)** cushion struck
Creamy layer in *Sawhney* = SC/ST	**OBC only** in that case
Sawhney allows promotion quota	It **barred** promotion; **77th** put SC/ST promotion back
Navtej = Article 377	**s.377 IPC**. Art. 377 = transitory **CAG** clause
Puttaswamy killed Aadhaar	**2017** = privacy is an FR. **2018** = Aadhaar mostly **upheld**
Shreya Singhal killed the IT Act	Only **s.66A**
Vishaka = POSH Act	**1997** guidelines; Act is **2013**
Mehta = English strict liability	**Absolute** liability — no *Rylands* exceptions

Trap	Correct
Joseph Shine = 377	**s.497** adultery

Topic 25 — UP Special

Consolidated — 32 Must-Score Facts

1. **State Name and Capital History:** The territory was designated as **North-Western Provinces in 1836**; merged with Oudh in 1877 as North-Western Provinces and Oudh; renamed **United Provinces of Agra and Oudh in 1902**; shortened to **United Provinces in 1937**; officially renamed **Uttar Pradesh on 24 January 1950** (celebrated annually as **UP Diwas**); state capital was Agra (1836), shifted to Allahabad (1858), partially to Lucknow (1921), and declared full capital at **Lucknow in 1935**.
2. **Vidhan Sabha (State Legislative Assembly):** Directly elected lower house; total strength is **403 seats** (404th nominated Anglo-Indian seat discontinued by 104th Amendment Act, 2020); **84 seats are reserved for Scheduled Castes (SC)** and **2 seats are reserved for Scheduled Tribes (ST)** (Sonbhadra: Duddhi and Obra constituencies); highest assembly strength in India.
3. **Vidhan Parishad (State Legislative Council):** Permanent upper house of the bicameral state legislature; total strength is **100 seats** (highest in India); breakdown: 36 elected by Local Authorities, 36 elected by MLAs, 8 elected by Graduates, 8 elected by Teachers, and **10 nominated by the Governor** (special knowledge in literature, science, art, cooperative movement, social service); term is 6 years, 1/3rd retiring every 2 years.
4. **Representation in Union Parliament:** Uttar Pradesh has the largest parliamentary contingent in India: **80 Lok Sabha Seats** (of which **17 seats are reserved for SC**, and **0 seats for ST**) and **31 Rajya Sabha Seats** (highest in the country, elected by UP MLAs via PR-STV).
5. **First Political Leaders of UP:** First Governor of United Provinces / UP: **Sarojini Naidu** (15 August 1947 – 2 March 1949, first woman Governor of a State in India); First Chief Minister of UP: **Pandit Govind Ballabh Pant** (1950–1954); First Woman Chief Minister of UP (and India's first woman CM): **Sucheta Kripalani** (October 1963 – March 1967); First Deputy Chief Minister: Chaudhary Charan Singh.
6. First Presiding Officers: First Speaker of UP Vidhan Sabha was **Purushottam Das Tandon**; First Chairman of UP Vidhan Parishad was **Sir Sita Ram** (pre-independence) and **Chandra Bhal** (post-independence).
7. **High Court of Judicature at Allahabad:** Established under the Indian High Courts Act, 1861 at **Agra on 17 March 1866** (first Chief Justice: **Sir Walter Morgan**); shifted to **Allahabad (Prayagraj) in 1869**; Chief Court of Oudh was merged with Allahabad High Court in **1948, creating the permanent Lucknow Bench**; Allahabad High Court has the highest sanctioned judicial strength in India (**160 judges**).
8. Principal Seat vs Bench Jurisdiction: Principal seat is at **Prayagraj (Allahabad)**; **Lucknow Bench** exercises territorial jurisdiction over 12 districts: Lucknow, Ayodhya (Faizabad), Barabanki, Rae Bareli, Amethi, Sultanpur, Pratapgarh, Gonda, Bahraich, Shravasti, Balrampur, and Hardoi.
9. **President's Rule in UP (Article 356):** Uttar Pradesh has been placed under President's Rule **10 times** (the highest in India, tied with Manipur); first imposed on **25 February 1968** under Governor B. Gopala Reddy; last imposed in **May 2002** (short-lived prior to Mayawati-BJP coalition).
10. **Council of Ministers Size in UP:** Under **Article 164(1A)** (91st Amendment, 2003), the total number of Ministers including the Chief Minister cannot exceed **15% of 403 seats = 60 Ministers**; minimum strength cannot be less than 12.
11. **UP Panchayati Raj Structure:** Operates a **3-tier Panchayati Raj system** governed by the **UP Panchayat Raj Act, 1947** (for Gram Panchayats) and the **UP Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961**; all 75 districts have **Zila Panchayats** (headed by elected Zila Panchayat Adhyaksha), **Kshettra Panchayats** (blocks headed by Block Pramukh), and **Gram Panchayats** (villages headed by directly elected Gram Pradhan).
12. Women's Reservation in UP Panchayats: Under Section 11-A of UP Panchayat Raj Act, **women are provided 33.3% (1/3rd) reservation** of seats and Pradhan offices (constitutional floor); UP has moved statutory proposals for 50% reservation.
13. Minimum Age in UP Local Polls: Minimum age to contest as Gram Pradhan, Kshettra Panchayat member, or Zila Panchayat member is **21 years**.
14. **UP Urban Local Governance:** Governed by the **UP Municipalities Act, 1916** (for Nagar Palika Parishads and Nagar Panchayats) and the **UP Municipal Corporation Act, 1959** (for Nagar Nigams); currently UP has **17 Municipal Corporations (Nagar Nigams)** (Lucknow, Kanpur, Agra, Varanasi, Prayagraj, Meerut, Bareilly, Aligarh, Moradabad, Gorakhpur, Firozabad, Jhansi, Saharanpur, Ghaziabad, Mathura-Vrindavan, Ayodhya, and Shahjahanpur - 17th Nagar Nigam created 2018).
15. Nagar Nigam Executive Structure: Politically headed by a **directly elected Mayor (Mahapaur)**; administrative executive power is vested in the **Municipal Commissioner (Nagar Ayukt)**, who is a senior IAS officer appointed by the State Government.
16. **UP State Election Commission (SEC):** Constituted in **April 1994** under Article 243K and 243ZA to conduct elections to PRIs and ULBs; State Election Commissioner is appointed by the **Governor** and enjoys removal security equal to a **High Court Judge**.
17. **UP State Finance Commission (SFC):** Constituted by the Governor under Article 243-I and 243-Y every **5 years**; the first UP SFC was constituted in 1994 chaired by **Bhalchandra Shukla**.
18. **UP Public Service Commission (UPPSC):** Constituted on **1 April 1937** under the Government of India Act, 1935; governed under **Articles 315–323**; headquarters located at **Prayagraj (Allahabad)**; Chairman and members are appointed by the **Governor**, but can be **removed ONLY by the PRESIDENT OF INDIA** under Article 317.
19. **UP Lokayukta:** Established under the **UP Lokayukta and Up-Lokayuktas Act, 1975**; the first Lokayukta of UP was **Justice Vishwambhar Dayal (1977)**; in 2012, the tenure of UP Lokayukta was extended from 6 years to **8 years**.
20. **UP State Human Rights Commission (UPSHRC):** Constituted in **October 2002** under the Protection of Human Rights Act, 1993; headquarters at **Lucknow**; headed by a former CJ or Judge of High Court appointed by Governor; **removable ONLY by the President**.
21. **UP State Information Commission (UPSIC):** Constituted in **September 2005** under the Right to Information Act, 2005; headquarters at **Lucknow**; headed by State Chief Information Commissioner and up to 10 State Information Commissioners.
22. **UP State Commission for Women:** Constituted in **2002** under the UP State Commission for Women Act, 2004 (reconstituted 2013); protects women's legal rights and reviews welfare policies.
23. **UP Janhit Guarantee Act, 2011 (Right to Service Act):** Enacted to guarantee delivery of notified public services within stipulated time limits, with provision for daily fines on defaulting officers.
24. **Administrative Divisions in UP:** Divided into **18 Administrative Divisions** (headed by Divisional Commissioners), **75 Districts** (headed by District Magistrates), and over **350 Tehsils** (headed by Sub-Divisional Magistrates - SDMs).
25. **17 SC Reserved Lok Sabha Constituencies in UP:** Agra, Aligarh, Barabanki, Bulandshahr, Chandauli (earlier)/Etawah, Hardoi, Hathras, Jalaun, Kaushambi, Machhlishahr, Misrikh, Mohanlalganj, Nagina, Robertsganj, Shahjahanpur, Bansgaon, and Lalganj; there are **ZERO ST reserved Lok Sabha seats** in UP.
26. **Police Commissionerate System in UP:** Introduced in January 2020 to vest magisterial powers (under CrPC/BNSS) in senior IPS officers (Police Commissioner); currently operational in **7 major urban districts: Lucknow, Gautam Buddha Nagar (Noida), Kanpur Nagar, Varanasi, Agra, Prayagraj, and Ghaziabad**.
27. **State Vigilance Commission in UP:** Established in **1964** (modeled on the Central Santhanam Commission) under administrative orders to investigate corruption complaints against state government servants.
28. **UP State Legal Services Authority (UPSLSA):** Established under the Legal Services Authorities Act, 1987 with headquarters at **Lucknow**; patron-in-chief is the Chief Justice of Allahabad High Court; organizes regular National and State **Lok Adalats**.
29. **UP Administrative Tribunal:** Set up in **1976** under the UP Public Services (Tribunals) Act, 1976 for adjudication of service disputes of state government employees; headquarters at **Lucknow**.
30. First Woman Governor and Chief Minister: UP holds the unique distinction of having India's **First Woman Governor (Sarojini Naidu, 1947)** and **First Woman Chief Minister (Sucheta Kripalani, 1963)**; furthermore, **Mayawati** served as Chief Minister of UP 4 times.
31. Longest-Serving Chief Minister of UP: As of 2024–2026, **Yogi Adityanath** holds the record for the **longest continuous serving Chief Minister of Uttar Pradesh** (surpassing Dr. Sampurnanand's earlier record of 5 years and 345 days).

32. Chief Ministers of UP who became Prime Ministers of India: Two former Chief Ministers of Uttar Pradesh rose to become Prime Minister of India: **Chaudhary Charan Singh** and **Vishwanath Pratap (V.P.) Singh**.

📋 Must-score facts — UP polity tags

Capitals / firsts

Item	Lock
Capital	**Lucknow** (Raj Bhavan / Vidhan Bhavan)
HC principal seat	**Prayagraj (Allahabad)**
First Governor	**Sarojini Naidu** (15 Aug 1947)
First CM	**Govind Ballabh Pant**
First woman CM	**Sucheta Kripalani**

Legislature / CoM

Item	Lock
Assembly	**403** elected (largest in India)
Council	**100**; 1/3 retire every 2 years
Council mix	36 local + 8 graduates + 8 teachers + 36 MLAs + 12 Governor nominees
CoM size cap	**15%** of Assembly (**91st**)
Art. 371 series	**None** for UP
Secretariat	**Lucknow**

Pre-Uttarakhand

Item	Lock
Before **9 Nov 2000**	Larger Assembly strength (Uttarakhand carved out)

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2025	Devipatan division districts (geography paper)	**Gonda** division: Bahraich, Balrampur, Gonda, Shravasti
2023	UP in Parliament	RS **31** and LS **80** — **both** true
2022	LA strengths "NOT matched"	**Manipur 62** is wrong (**60**). UP **403** is right
2007	Uttaranchal renamed	**Uttarakhand, 1 Jan 2007**
2000	Reorganisation	**9 Nov** · LA 425→**403** · LS 85→**80** · RS 34→**31**
1989	Urdu	**Second** official language
1948	Lucknow Bench	Oudh Chief Court **merged**, not a new HC
2023	Who conducts Panchayat elections?	**SEC** — not ECI, not a "PR Commission of India"
2021	Who extends UPPSC functions?	**UP State Legislature** (321)
2013	Union Lokpal (लोकपाल) Act	UP already had Lokayukta **1975**
1866	Allahabad HC	Letters Patent **17 Mar**; first seat **Agra** (आगरा)

Confused Pairs

Term A	Term B	Core difference	Hindi Terminology
UP capital	**UP High Court**	**Lucknow**	Principal seat **Prayagraj**; Lucknow = **Bench**
Lucknow Bench	**Second High Court**	Permanent bench of Allahabad HC (1948)	Uttarakhand's HC is **Nainital** (2000) — a different court
UP LA 403	**Art. 170 cap**	Actual elected strength	Constitutional max **500** / min **60**
UP LC 100	**Art. 171 cap**	Actual strength	Max **1/3 of LA** (= 134) and min **40**
LS 80	**RS 31**	Directly elected from UP	Indirect; largest RS contingent
Pre-2000 UP	**Post-9 Nov 2000**	LA 425 · LS 85 · RS 34	LA **403** · LS **80** · RS **31**
Hindi (1951)	**Urdu (1989)**	Official language	**Second** official language
Allahabad HC 1866	**Chartered HCs 1862**	NWP Letters Patent; first seat **Agra**	Bombay, Calcutta, Madras
First Governor	**First CM**	**Sarojini Naidu**	**Govind Ballabh Pant**
Uttaranchal	**Uttarakhand**	Name from **9 Nov 2000**	Rename **1 Jan 2007**
UPPSC	**UPSC**	SPSC · HQ **Prayagraj** · retire **62**	Union · Delhi · retire **65**
UP SEC	**ECI**	Panchayat + ULB polls (243K / 243ZA)	Parliament + State **legislature** + President/VP
UP SFC (243I/Y)	**Union FC (280)**	Governor; PRI + municipal share	President; Union–State CFI share
Lokayukta	**Lokpal**	UP Act **1975** + Up-Lokayukta	Union Act **2013**
Kshetra Panchayat	**Panchayat Samiti**	UP's intermediate tier	Generic / other-State name
Nagar Nigam	**Nagar Palika Parishad**	Municipal Corporation (1959 Act)	Municipal Council (1916 Act)
Mayor	**Nagar Ayukt**	Political head of a Nigam	State-appointed **executive**
Cantonment Board	**Nagar Nigam**	Defence / Cantonments Act	74th municipality
Noida / GNIDA / YEIDA	**Nagar Nigam**	Industrial development **authority** (243Q exception)	Elected 74th municipality
Art. 371 States	**Uttar Pradesh**	Special provisions in 371–371J	**None**
CoM cap (91st)	**Art. 164 pleasure**	≤ **15%** of LA (UP ≈ **60** incl. CM); floor **12**	Governor dismisses a ministry that has lost the floor

Lok Sabha and Rajya Sabha seats from Uttar Pradesh

House	UP now	Before 9 Nov 2000	All-India rank
Lok Sabha (लोकसभा)	**80**	**85**	**Largest** (next: Maharashtra 48)
Rajya Sabha (राज्यसभा)	**31**	**34**	**Largest** (next: Maharashtra 19)

Common Traps

Trap	Correct
UP LA = 500 / 425	**403** (425 was pre-2000)
Manipur LA = 62	**60** (2022)
UP LC = 134	Cap **134**; actual **100**
LC can be dissolved	**Abolished** (169), not dissolved
LS 85 / RS 34	**80 / 31** after Uttarakhand
Only one of 31 and 80 is true	**Both** (2023)
Capital = Prayagraj because of the HC	Capital **Lucknow**; HC **Prayagraj** + Lucknow Bench
Lucknow High Court	**Bench** of Allahabad HC (1948)
Allahabad HC = 1862 Chartered	**1866**; first seat **Agra**
First Governor = Pant	**Sarojini Naidu**. Pant = first **CM**
Urdu = official language	**Hindi** official; Urdu **second** (1989)
Uttarakhand = 1 Nov 2000	**9 Nov**. 1 Nov = **Chhattisgarh**
Always named Uttarakhand	**Uttaranchal** till **1 Jan 2007**
UK still under Allahabad HC	**Nainital** HC from 2000
UP has 17 divisions	**18**. Districts **75**
Faizabad division	**Ayodhya**
Devipatan = Lucknow	**Gonda** (Bahraich, Balrampur, Gonda, Shravasti)
UPPSC HQ = Lucknow	**Prayagraj**
Governor removes UPPSC members	**President**, after **SC**
UPPSC retire at 65	SPSC **62** · UPSC **65**
President extends UPPSC functions	**UP Legislature**
Panchayat / Nigam polls = ECI	**UP SEC**
SEC removed like CEC / SC judge	Like an **HC judge**
"Panchayati Raj Commission of India"	**Does not exist** (2023)
SFC = Union FC	**243I/Y** vs **280**
SFC report → President	**Governor** → both Houses
Two SFCs (rural / urban)	**One** Commission, 243I + 243Y
UP middle tier = Samiti	**Kshetra Panchayat**
Nyaya Panchayat = 73rd tier	**1947 Act**; not Part IX
Constitution = 50% women	Floor **1/3**; UP statute **50%**
PESA in UP	**No Fifth Schedule areas**
First Lokayukta State = UP	**Maharashtra 1971**. UP Act **1975**
Lokayukta = Lokpal	State **1975** vs Union **2013**
Mayor = executive	**Nagar Ayukt / Commissioner**
Cantonment / LDA = Nagar Nigam	**Defence** / development authority
Noida / Greater Noida = Nagar Nigam	**Industrial development authorities** (243Q)
UP has Art. 371 special provision	**None**
CoM can be any size	**≤ 15% of 403 ≈ 60** including CM (91st)
LC members vote for President	**Only elected MLAs**
UP LS has ST-reserved seats	**17 SC, 0 ST**
Governor nominates Rajya Sabha from UP	MLAs elect the **31**; no Governor's RS list
Meerut is a permanent HC bench	Only **Lucknow** is
Gram Sabha = all residents	**Registered voters** of that GP
Lokayukta term = Lokpal's 5y/70	UP Act: classically **8 years**, no reappointment

Topic 26 — One-Liner Revision

Consolidated — 34 Must-Score Facts

1. **Lengthiest Written Constitution:** India's Constitution is the most detailed and voluminous written constitution in the world, originally containing 395 Articles, 22 Parts, and 8 Schedules, currently containing **25 Parts and 12 Schedules**.
2. **Constituent Assembly Dates:** First meeting on **9 December 1946** (interim President: Dr. Sachchidananda Sinha); permanent President elected on **11 December 1946** (**Dr. Rajendra Prasad**); Objectives Resolution moved by Nehru on **13 December 1946** and adopted on **22 January 1947**; Drafting Committee appointed on **29 August 1947** (Chairman: **Dr. B.R. Ambedkar**); Constitution adopted on **26 November 1949** (signed by 284 members); enforced on **26 January 1950**; total time taken: **2 years, 11 months, 18 days** across **11 sessions**.
3. **Key Constituent Assembly Office Bearers:** Constitutional Adviser = **Sir B.N. Rau**; Chief Draftsman = **S.N. Mukherjee**; English Calligrapher = **Prem Behari Narain Raizada**; Hindi Calligrapher = **Vasant Krishan Vaidya**; Illustrator/Artist = **Nandalal Bose**; Seal = **Elephant**.
4. **Preamble Exact Phrasing:** Declares India a **'SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC'**; secures **3 types of Justice** (Social, Economic, Political), **5 types of Liberty** (Thought, Expression, Belief, Faith, Worship), and **2 types of Equality** (Status, Opportunity); terms **'Socialist'**, **'Secular'**, and **'Integrity'** were added by the **42nd Amendment, 1976**.
5. **Preamble Legal Status:** In ***Berubari (1960)***, SC held Preamble is *not* part of Constitution; overruled in ***Kesavananda Bharati (1973)***, holding Preamble **is an integral part** of the Constitution and amendable under Art. 368 without altering the Basic Structure; non-justiciable and non-enforceable.
6. **All 12 Schedules Fast Recall (TEARS OF OLD PM):** 1st (28 States & 8 UTs); 2nd (Salaries: President, Governors, Judges, CAG — *Ministers NOT included*); 3rd (Oaths — *President, VP, Governor NOT included*); 4th (Rajya Sabha seats: UP 31); 5th (Scheduled Areas in 10 States); 6th (AMTM: Assam, Meghalaya, Tripura, Mizoram); 7th (Union: 100, State: 61, Concurrent: 52); 8th (22 Languages); 9th (Land reforms, added by 1st Amd 1951, judicial review post-1973 per *Coelho*); 10th (Anti-Defection, 52nd Amd 1985); 11th (Panchayats: **29 subjects**, 73rd Amd 1992); 12th (Municipalities: **18 subjects**, 74th Amd 1992).
7. **8th Schedule Languages:** 22 official languages; additions: **Sindhi** (21st Amd 1967), **Konkani, Manipuri, Nepali** (71st Amd 1992), and **Bodo, Dogri, Maithili, Santhali** (92nd Amd 2003); *English and Bhojpuri are NOT in 8th Schedule*.
8. **Union & Territory (Articles 1–4):** Art. 1 ('Union of States'); Art. 2 (admission/establishment of new foreign territory); Art. 3 (internal reorganisation of existing states by Parliament by **Simple Majority**; prior presidential recommendation required, state assembly view non-binding); Art. 4 (laws under Arts. 2 & 3 are not Art. 368 amendments); Cession of territory requires Art. 368 amendment (*Berubari 1960*).
9. **Citizenship (Articles 5–11):** Single citizenship; Citizenship Act 1955 prescribes **5 modes of acquisition** (Birth, Descent, Registration, Naturalisation, Incorporation) and **3 modes of loss** (Renunciation, Termination, Deprivation); voluntary acquisition of foreign citizenship terminates Indian citizenship (**Article 9**).
10. **Fundamental Rights Exclusively for Citizens:** Articles **15, 16, 19, 29, and 30** are available ONLY to Indian citizens; all other Fundamental Rights apply to all persons.
11. **Right to Equality (Articles 14–18):** Art. 14 (Equality before law / Equal protection); Art. 15 (No discrimination only on religion, race, caste, sex, place of birth; 15(4) SC/ST/OBC quota; 15(6) 10% EWS quota); Art. 16 (Equal opportunity in public employment; 16(4) reservation; 16(4A) promotion quota 77th Amd); Art. 17 (Abolition of Untouchability - absolute right); Art. 18 (Abolition of titles; Bharat Ratna/Padma awards are decorations, not titles per *Balaji Raghavan*).
12. **Article 19 (Six Freedoms):** Speech & Expression, Assembly without arms, Associations/Unions/Cooperatives, Movement, Residence, Trade/Profession; property right under 19(1)(f) deleted by **44th Amendment, 1978**.
13. **Article 20 (Three Safeguards):** 20(1) No ex-post-facto criminal law; 20(2) No Double Jeopardy; 20(3) No Self-Incrimination.
14. **Article 21 & 21A:** Art. 21 (Protection of life & personal liberty; 'Due Process' read in *Maneka Gandhi 1978*; Right to Privacy held fundamental in *Puttaswamy 2017*); Art. 21A (Right to Free and Compulsory Education ages **6–14** inserted by **86th Amendment, 2002**; RTE Act in force 1 April 2010).
15. **Non-Suspendable Rights in Emergency:** Under **Article 359** (amended by 44th Amd 1978), the enforcement of **Articles 20 and 21 CAN NEVER BE SUSPENDED** even during a National Emergency.
16. **Prerogative Writs (Art. 32 vs Art. 226):** Dr. Ambedkar called Article 32 the **'Heart and Soul of the Constitution'**; SC writ power under Art. 32 is restricted to Fundamental Rights; HC writ power under **Article 226 is wider**, protecting Fundamental Rights AND ordinary legal rights; 5 writs: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto.
17. **Key Directive Principles (Part IV):** Art. 39A (Free Legal Aid - 42nd Amd); Art. 40 (Village Panchayats); Art. 43B (Cooperatives - 97th Amd); Art. 44 (Uniform Civil Code - *Uttarakhand first state in 2024*); Art. 45 (Early childhood education - 86th Amd); Art. 48A (Environment & Wildlife - 42nd Amd); Art. 50 (Separation of Judiciary from Executive).
18. **Fundamental Duties (Part IVA, Article 51A):** Added by **42nd Amendment, 1976** on recommendation of **Swaran Singh Committee**; borrowed from **USSR**; non-justiciable; originally 10 duties; **11th duty** (education of child 6–14 by parent) added by **86th Amendment, 2002**.
19. **Presidential Election (Articles 54 & 55):** Electoral College = Elected MPs (both Houses) + Elected MLAs (all States + Delhi & Puducherry); *Nominated MPs/MLAs and ALL MLCs DO NOT VOTE*; PR-STV secret ballot; UP has highest MLA vote value (**208**), Sikkim lowest (**7**).
20. **Vice-Presidential Election (Article 66):** Electoral College = **ALL MPs of both Houses of Parliament (both Elected and Nominated)**; State MLAs/MLCs have zero role; removed by Rajya Sabha resolution passed by **Effective Majority** and agreed to by Lok Sabha by **Simple Majority** (Art. 67(b)).
21. **Impeachment of President (Article 61):** Sole ground: 'Violation of the Constitution'; initiated in either House on 14 days' notice signed by 1/4th members; passed by **not less than 2/3rds of the TOTAL MEMBERSHIP of each House**; nominated MPs vote, MLAs do not vote.
22. **Pardoning Power (Art. 72 vs Art. 161):** President (Art. 72) can pardon **Death Sentences** and **Court-Martial sentences**; Governor (Art. 161) cannot pardon death sentences or court-martial sentences.
23. **Ordinance Power (Art. 123 vs Art. 213):** Promulgated when legislature is in recess; ceases to operate **6 weeks from reassembly of legislature** (maximum duration = 6 months + 6 weeks).
24. **Joint Sitting of Parliament (Article 108):** Summoned by President for deadlocks on Ordinary or Financial Bills; presided over by **Speaker of Lok Sabha** (Chairman of Rajya Sabha never presides); passed by Simple Majority of members present and voting; *NO joint sitting for Money Bills or Amendment Bills; NO joint sitting in State Legislatures*.
25. **Money Bill (Article 110):** Introduced only in Lok Sabha on prior presidential recommendation; Speaker certifies; Rajya Sabha has only **14 days** to recommend; cannot be rejected by RS.
26. **Parliamentary Financial Committees:** (1) **Public Accounts Committee (PAC)**: 22 members (15 LS + 7 RS), term 1 yr, Chairman from Opposition by convention since 1967, examines CAG reports; (2) **Estimates Committee**: **30 members, ALL FROM LOK SABHA ONLY** (largest committee, John Mathai 1950); (3) **COPU**: 22 members (15 LS + 7 RS), Krishna Menon 1964.
27. **Council of Ministers 15% Cap (91st Amendment, 2003):** Total Ministers including PM/CM cannot exceed **15% of Lower House strength** (Art. 75(1A) & 164(1A)); in States, minimum cannot be less than **12 ministers**.
28. **Rajya Sabha Special Powers:** Art. 249 (legislate on State List for 1 yr by 2/3rd present & voting); Art. 312 (create new All-India Services by 2/3rd present & voting); Art. 67(b) (removal of Vice-President originates only in RS).
29. **Supreme Court Key Facts:** Inaugurated **28 January 1950** (first CJI: H.J. Kania); current strength **34 judges (1 CJI + 33 judges)**; retirement age **65 years**; appointed by President under Collegium system (CJI + 4 seniormost SC judges); removed on proved misbehaviour/incapacity by special majority under Art. 124(4); Art. 131 (Original jurisdiction in federal disputes); Art. 141 (SC law binding on all courts); Art. 142 (complete justice); Art. 143 (Advisory jurisdiction).

30. **High Court Key Facts:** 25 High Courts; retirement age **62 years** (15th Amd 1963); appointed by President; removed by President like SC judge; salaries charged on State Consolidated Fund, pensions charged on Central Consolidated Fund; Art. 226 (writs); Art. 227 (superintendence).
31. **Panchayati Raj Key Facts:** Entry 5 State List; 73rd Amendment 1992 in force **24 April 1993** (Part IX, Arts. 243–243O, 11th Schedule: **29 subjects**); 3 tiers (intermediate optional for < 20 lakh); **minimum age 21 years**; 5-year term (elections within 6 months of dissolution); **minimum 1/3rd seats and chairpersons for women**; SFC (Art. 243-I); SEC (Art. 243K); PESA Act 1996 for 5th Schedule areas.
32. **Emergency Provisions (Part XVIII):** Art. 352 (National Emergency: War, External Aggression, Armed Rebellion; written Cabinet advice; approved within 1 month by special majority; valid 6 months); Art. 356 (President's Rule: failure of constitutional machinery; approved within 2 months by simple majority; max 3 years; S.R. Bommai guidelines); Art. 360 (Financial Emergency: never invoked).
33. **Constitutional Amendments (Article 368):** Borrowed from South Africa; introduced in either House; no presidential prior sanction; passed separately in each House by Special Majority; federal matters require ratification by ≥ 50% State legislatures; President **must give assent** (24th Amd 1971); cannot violate **Basic Structure** (*Kesavananda 1973*).
34. **Order of Precedence Top Ranks:** 1. President → 2. Vice-President → 3. Prime Minister → 4. Governors in States → 5. Former Presidents → 6. CJI & Lok Sabha Speaker (Equal) → 7. Union Cabinet Ministers & CMs in States → 7A. Bharat Ratna awardees → 9. SC Judges → 9A. CEC, CAG, UPSC Chairman → 11. Attorney General & Cabinet Secretary.

Current Affairs (what the year actually tests)

Year	Fact
2025	Part XI ≠ Municipalities; 8th Schedule (अष्टम अनुसूची) **Bhojpuri OUT**; 42nd (42वां) Preamble (प्रस्तावना) = **Socialist + Secular**
2024	*Kesavananda* (केशवानंद भारती 1973) chronology; 42nd = **1976**; GST (वस्तु एवं सेवा कर) = **101st**
2023	Schedule NOT-matched (9th ≠ RS seats); Panchayat polls = **SEC**
2022	3rd/4th/7th/8th match; RTE = **86th** not 103rd
2021	*Golaknath* (गोलकनाथ 1967) → 24th → *Kesavananda* → 42nd
2023	**106th** women 33% — **not yet in force**

Current Affairs (bodies · Parliament)

Year	Fact
2024	NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) matched to **340** as the paper's "least-wrong" — still learn **338B** vs **340**
2024	UPSC (संघ लोक सेवा आयोग) functions = **four (चातुर्याम) sources**; Zero Hour (शून्य काल) already locked 2021
2023	Panchayat polls = **SEC**, not ECI, not a "PR Commission of India"
2023	CEC Act panel **without CJI**
2021	ISC = **Sarkaria** (सरकारिया आयोग); UPPSC (उत्तर प्रदेश लोक सेवा आयोग) extend = **Legislature**
2018	*Navtej* (नवतेज जौहर) = **s.377 IPC**

Quick Revision — Spine Only

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PARTS: III=FR · IV=DPSP · IVA=Duties · V=Union · VI=States · VIII=UTs
 IX / IXA / IXB = Panchayats / Municipalities / Cooperatives
 X=Scheduled & Tribal Areas · XI=Union–State (NOT municipalities/tribunals)
 XIVA=Tribunals · XV=Elections · XVIII=Emergency · XX=Amendment · XXI=371-series
 VII=repealed. Count = 25 Parts (lettered ones included). Original 1950 = 22.

SCHEDULES (1→12): Territories · Emoluments · Oaths · RS seats · 5th Areas/STs · 6th AMTM
 · Lists · 22 languages · 9th validation (1st Amd) · 10th defection (52nd) · 11th=29 · 12th=18
 8th: Bhojpuri OUT. Nepali, Dogri, Bodo, Maithili, Santhali IN.

ARTICLES (must): 1 Union of States · 3 Parliament alters States · 12 State · 13 void laws
 14–18 equality · 19 six freedoms · 21 life · 21A RTE · 32 SC writs · 51A duties
 72/161 pardon · 74 aid-advice · 76 AG · 110 Money Bill · 123 Ordinance
 148 CAG · 226 HC writ (wider) · 263 ISC · 280 FC · 300A property
 312 AIS · 324 EC · 352/356/360 Emergency · 368 Amendment · 371–371J · 393 short title

WRITS: Habeas Corpus = produce the detained body · Mandamus = compel a public duty
 Prohibition = stop a lower court BEFORE it decides · Certiorari = quash AFTER it has decided
 Quo Warranto = by what authority do you hold this public office
 Art. 32 = Supreme Court, Fundamental Rights only (itself a FR). Art. 226 = High Court, FR + any other purpose (wider). Habeas even against

EMERGENCY: 352 war/aggression/armed rebellion · 356 State machinery · 360 finance (never used)
 358 = Art.19 auto (war/aggression only) · 359 = enforceability; 20 & 21 never sleep (44th)

ELECTIONS: 324 ECI · 325 one roll · 326 adult suffrage 18 (61st) · 329 bar + election petition
 54 President = elected MPs + elected MLAs · 66 VP = both Houses, no MLAs
 243K / 243ZA = SEC (not ECI)

AMENDMENTS: 1st 1951 (15(4)+9th Sch) · 7th 1956 SRC · 24th 1971 13(4) · 42nd 1976 mini
 44th 1978 undo · 52nd 1985 10th Sch · 61st 18y · 73/74 1992 · 86th 21A · 101st GST · 103rd EWS · 106th women

BORROWED: UK Parliament/writs · USA FR/judicial review · Ireland DPSP · Canada residuary/strong Centre
 Australia Concurrent + joint sitting · Japan "procedure established by law" · France LEF + Republic
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Weimar FR-suspend · USSR Duties + justice triad · South Africa 368 procedure + RS election

PRECEDENCE (Warrant 1979, ceremonial): 1 Pres · 2 VP · 3 PM · 4 Gov(in state) · 5 ex-Pres · 6 CJI=Speaker
 7 CabMin/CM(in state)/ex-PM/LoP · 9 SC judges · 9A CEC/CAG/UPSC · 10 Dy RS/LS · 11 AG — NOT succession
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Confused pairs

A	B	Fact	Hindi Terminology
Part XI	Part IXA / XIVA	Union–State relations · **not** Municipalities · **not** Tribunals	भाग XI (संबंध) / भाग IXA (नगरपालिका)
4th Schedule	9th Schedule	RS seats vs validation of Acts	चौथी (राज्यसभा सीट) / 9वीं अनुसूची
5th Schedule	6th Schedule	Scheduled Areas (many States) vs **AMTM** Autonomous Councils	5वीं (अनुसूचित क्षेत्र) / 6वीं अनुसूची (AMTM)
11th / 12th	counts	**29** Panchayat vs **18** Municipality	11वीं (29 विषय) / 12वीं (18 विषय)
Art. 32	Art. 226	SC, FR only vs HC, **wider**	अनु. 32 (सर्वोच्च न्यायालय) / अनु. 226 (उच्च न्यायालय)
Art. 54	Art. 66	President: MPs+MLAs · VP: **Parliament only**	राष्ट्रपति निर्वाचन मण्डल / उपराष्ट्रपति
Precedence	Succession	**Warrant 1979** ceremonial · **not** Art. 56–62 line	वरीयता क्रम / उत्तराधिकार क्रम
CJI	Speaker	**Same rank — 6**	मुख्य न्यायाधीश एवं लोकसभा अध्यक्ष (समान रैंक 6)
Cabinet Minister	AG	Minister **7** · AG **11**	कैबिनेट मंत्री (7) / महान्यायवादी (11)
SC judge	CEC/CAG	**9** vs **9A**	सर्वोच्च न्यायालय न्यायाधीश (9) / कैग व चुनाव आयुक्त (9A)
Art. 352	356 / 360	National vs State vs Financial	राष्ट्रीय / राज्य (राष्ट्रपति शासन) / वित्तीय आपातकाल
Prohibition	Certiorari	**Before** the order vs **after**	प्रतिषेध (निर्णय पूर्व) / उत्प्रेषण (निर्णय पश्चात)
3rd Schedule	Arts. 60 / 69 / 159	Ministers/MPs/judges/CAG vs **President / VP / Governor**	तीसरी अनुसूची शपथ / संवैधानिक विशिष्ट शपथ
42nd	44th	Mini-Constitution **1976** vs Emergency rewrite **1978**	42वां (1976) / 44वां संशोधन (1978)
9th Amendment	9th Schedule	Berubari **1960** vs 1st Amd **1951** list of Acts	9वां संशोधन (1960) / 9वीं अनुसूची (1951)
35th's old 10th Sch	52nd's 10th Sch	Sikkim associate-State terms (repealed 36th) vs **defection**	सिक्किम सह-राज्य / दल-बदल विरोधी कानून

Frame

Every row below is meant to be readable **alone**. If a cell only said "12 State" or "HC = produce body", that is the confusion this sheet now kills: **Habeas Corpus** (बन्दी प्रत्यक्षीकरण) is the writ; **High Court** is the court. Abbreviations are expanded in the tables.

Parts of the Constitution

Originally **22** Parts (1950). Now **25** (IVA, IXA (नगरपालिका), IXB (सहकारिता), XIVA added; **VII repealed**).

Part	Subject
I	Union and its Territory
II	Citizenship
III	Fundamental Rights (मौलिक अधिकार)
IV	Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy
IVA	Fundamental Duties (मौलिक कर्तव्य) (**42nd**)
V	The Union — President, VP, Council of Ministers, Attorney-General, Parliament, Supreme Court, CAG (भारत के नियंत्रक-महालेखापरीक्षक)
VI	The States — Governor, State CoM, Advocate-General, State Legislature, High Courts
VII	**Repealed** (Part-B States)
VIII	Union Territories
IX	Panchayats (**73rd**)
IXA	Municipalities (**74th**)
IXB	Cooperative Societies (**97th**)
X	Scheduled and Tribal (आदिवासी) Areas
XI	Relations between the Union and the States (legislative / administrative / Arts. 245–263). **Not** municipalities, **not** tribunals
XII	Finance, Property, Contracts, Suits
XIII	Trade (पण्याध्यक्ष), Commerce and Intercourse within India (Arts. 301–307). Attorney-General is **not** here — he is Part **V**, Art. 76
XIV	Services under the Union and the States
XIVA	Tribunals (**42nd**)
XV	Elections
XVI	Special Provisions relating to certain Classes
XVII	Official Language
XVIII	Emergency Provisions
XIX	Miscellaneous
XX	Amendment of the Constitution
XXI	Temporary, Transitional and Special Provisions (**371–371J**)
XXII	Short Title, Commencement, Authoritative Text, Repeals

Schedules (1 to 12)

Originally **8**. Now **12**.

Sch.	Subject	Born
1	Names / territories of States & UTs	Original
2	Emoluments — President, Governors, Speakers, SC/HC judges, CAG	Original
3	Forms of **Oaths or Affirmations**	Original
4	**Rajya Sabha** (राज्यसभा) seat allocation	Original
5	Administration of **Scheduled Areas and Scheduled Tribes** in States **other than** the 6th-Schedule areas. Governor + Tribes Advisory Council. **UP is not in it**	Original
6	Autonomous District / Regional Councils in the tribal areas of **Assam, Meghalaya (मेघालय), Tripura, Mizoram** only (remember **AMTM**). **Not** UP, **not** the Fifth-Schedule States	Original
7	**Union List (संघ सूची) / State List (राज्य सूची) / Concurrent List (समवर्ती सूची)** — who may legislate on what (Art. 246)	Original
8	Languages recognised by the Constitution — now **22** (started with **14**)	Original
9	Acts parked here were meant to be **immune from Fundamental-Rights attack** (land reform). Added by the **1st Amendment, 1951** with **13** Acts. **Not** the 9th *Amendment* (that is Berubari 1960)	**1st Amd, 1951**
10	**Anti-defection** — when an MP/MLA is disqualified for leaving the party. **52nd Amendment, 1985**. (An older 10th Schedule for Sikkim's "associate State" terms was repealed by the **36th**)	**52nd Amd, 1985**
11	Panchayats — **29** subjects	**73rd, 1992**
12	Municipalities — **18** subjects	**74th, 1992**

8th Schedule — 22 languages. Original **14**. Additions: **Sindhi** (21st, 1967) · **Konkani, Manipuri (मणिपुरी), Nepali** (71st, 1992) · **Bodo, Dogri, Maithili, Santhali** (92nd, 2003). **Oriya** renamed **Odia** (96th, 2011). **Not in it:** Bhojpuri, Rajasthani, English. The 22: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu.

9th Schedule (9वीं अनुसूची) judicial review: *I.R. Coelho* (2007) — entries **after 24 Apr 1973** still face **basic structure**.

Two different 10th Schedules: 35th Amd's Sikkim-associate terms (repealed by **36th**) ≠ today's **defection** 10th (**52nd**).

5th vs 6th: UP has **neither**. 6th = AMTM only.

Important Articles — number → one line

Union, territory, citizenship, FR, DPSP (राज्य के नीति निदेशक तत्व), duties

Art.	One-liner
1	India, that is Bharat, is a **Union of States** (indestructible Union; States can be reorganised)
2	Parliament may by law **admit** new States into the Union or **establish** new States
3	Parliament may form a new State, change area/boundary/name. **President's recommendation** needed. The concerned State Legislature's view is **sought, not binding**
4	A law under Arts. 2–3 may amend the 1st and 4th Schedules and is **not** treated as a constitutional amendment under **368**
5	Who was a citizen **on 26 Jan 1950** (domicile + birth / parent / 5 years' residence)
6–8	Migrants from Pakistan (cut-off **19 July 1948**) and persons of Indian origin abroad
9	Taking a foreign citizenship voluntarily → not a citizen under 5–8
11	**Parliament** decides acquisition/termination of citizenship — **Citizenship Act, 1955** lives here
12	Who is "**State**" for Fundamental Rights: Union and State governments and legislatures, local bodies, and **other authorities** under GoI's control
13	A law inconsistent with Fundamental Rights is **void** to that extent. **13(4)** (24th Amd): a **368 amendment is not "law"** under 13 — so it is not automatically void for touching FR. Basic Structure still caps it
14	Equality **before** law (UK idea) + **equal protection** of laws (US idea). Reasonable classification allowed; class legislation not
15	No discrimination on **religion, race, caste, sex, place of birth**. **15(4)** = special provision for SEBCs/SC/ST (1st Amd, after *Champakam*). **15(6)** = EWS (103rd). **Residence** is **not** a 15 ground (that extra ground is in **16**)
16	Equality of opportunity in **public employment**. **16(4)** backward-class reservation; **16(6)** EWS. Parliament may add a **residence** condition
17	Untouchability abolished; practice is a **punishable offence** (Protection of Civil Rights Act, 1955)
18	No titles except military/academic. Bharat Ratna (भारत रत्न) / Padma (पद्म) are **not** "titles" in this sense
19	**Six** freedoms, **citizens only**: speech, assembly, association, movement, residence, profession. **19(1)(f) property was deleted by the 44th (44वां संशोधन)**. Each freedom has **reasonable restrictions** in 19(2)–(6)
20	Three criminal protections, for citizens **and foreigners**: (1) no **ex post facto** criminal law (2) no **double jeopardy** (3) no **self-incrimination**
21	No person shall be deprived of **life or personal liberty** except according to **procedure (प्रक्रिया) established by law** (Japanese phrase). *Gopalan* 1950 = any procedure in a valid Act. *Maneka* 1978 = that procedure must be **fair, just, reasonable**. The Constitution still does **not** use the US words "due process"
21A	Free and compulsory education for children **6–14**. Inserted by **86th Amendment, 2002**; RTE Act 2009
22	Ordinary arrest: grounds, lawyer, produce before a magistrate within **24 hours**. **22(3)–(7)** = separate regime for **preventive detention**
23	Traffic in human beings, *begar* (बेगार) and forced labour banned
24	No child **below 14** in a factory (फैक्टरी), mine, or other hazardous employment
25	Freedom of conscience — profess, practise, **propagate** religion (subject to public order, morality, health)
26	Every religious **denomination** may manage its own religious affairs and institutions
27	No one can be forced to pay a **tax whose proceeds go to a particular religion**
28	No religious instruction in a school **wholly maintained by the State**
29	Any section of citizens may **conserve** its language/script (लिपि)/culture. No denial of admission to State-aided institutions on religion/race/caste/language
30	Religious or linguistic **minorities** may establish and administer educational institutions
31A	Saves laws taking **estates** (zamindari / agrarian reform) from being struck under Arts. 14 and 19
31B	An Act listed in the **9th Schedule** cannot be void only for violating Fundamental Rights — later limited by *I.R. Coelho*: entries **after 24 Apr 1973** still face **basic structure**
31C	A law giving effect to DPSP **39(b) and 39(c)** (resources for the common good / no concentration of wealth) is saved from Arts. **14 and 19**. 42nd tried to extend this to **all** DPSP; *Minerva Mills* **cut it back** to 39(b)(c)
32	Right to move the **Supreme Court** for Fundamental Rights — five writs (पाँच प्रकार की रिटें). Ambedkar (अम्बेडकर): **heart and soul**. **Itself a Fundamental Right**

Art.	One-liner
33	Parliament may **restrict/abrogate** FR of armed forces, police, intelligence, to keep discipline
34	Parliament may indemnify acts done when **martial law** is in force in an area
35	Only **Parliament** (not States) can make the laws needed for 16(3), 32, 33, 34 and punishments for 17/23
36	"State" in Part IV (नीति निर्देशक) has the same meaning as Art. **12**
37	DPSP are **not enforceable** in court, but are **fundamental in the governance** of the country
38	Secure a social order for welfare; **38(2)** (44th) minimise inequalities of income/status
39	Livelihood; **39(b)** ownership of resources distributed for the common good; **39(c)** no concentration of wealth. These two are the **31C** pair
39A	Equal justice and **free legal aid** — **42nd**
40	Organise village panchayats — the seed of the **73rd** / Part IX (भाग IX)
43A	Workers' participation in management — **42nd**
43B	Promotion of **cooperative societies** — **97th**
44	State shall endeavour to secure a **Uniform Civil Code**
45	After 86th: early childhood care and education for children **below 6** (6–14 moved to 21A)
48A	Protect and improve the **environment** (पर्यावरण); safeguard forests and wildlife — **42nd**
50	Separate the **judiciary from the executive** in the State's public services
51	International peace, just relations, respect for international law, settlement of disputes by arbitration
51A	**11** Fundamental Duties. **42nd** added **10**; **51A(k)** (parent to educate the child 6–14) added by **86th**

Union / State organs, local bodies, Centre–State, finance, services

Art.	One-liner
52	There shall be a President of India
53	Union **executive power** is vested in the President
54	President is elected by **elected MPs of both Houses + elected MLAs of States** (and of Delhi & Puducherry). **Nominated** members do **not** vote. This is **not** how the Vice-President is elected
55	Manner: proportional representation by **single transferable vote**; secret ballot
60	President's oath — administered by the **Chief Justice of India** — form is in **Art. 60 itself, not the 3rd Schedule**
61	Impeachment only for **violation of the Constitution**. Charge by either House; passed by **two-thirds (ते-भागा) of the total membership (सदन की कुल सदस्य संख्या का)** of that House; the other House investigates
63–64	There shall be a Vice-President; he is **ex-officio Chairman of the Rajya Sabha**
66	VP is elected by members of **both Houses of Parliament** (elected **and nominated**). **State MLAs do not vote** — that is the 54/66 trap
69	VP's oath — before the **President** — **not** in the 3rd Schedule
72	President may pardon / commute etc. for **Union-law** offences, **court-martial**, and **every death sentence**
74	President acts on the aid and advice of the Council of Ministers. **44th Amendment** (44वां संशोधन): he may send the advice back **once** for reconsideration; then he must act
75	PM appointed by the President; CoM **collectively responsible to the Lok Sabha (लोकसभा)**. Size cap **15% of LS** (91st Amd)
76	**Attorney-General of India** — qualified to be an SC judge; holds office during the **pleasure** of the President; may speak in Parliament but **not vote**; salary is **not** charged on the CFI
79	Parliament = **President + Lok Sabha + Rajya Sabha**
80	Rajya Sabha: maximum **250** (238 States/UTs + **12 nominated** by the President — literature, science, art, social service). The 12 are a **Union** nomination, not a State quota
81	Lok Sabha: maximum **550** (530 States + 20 UTs). Anglo-Indian nomination of up to 2 ended with the **104th** (25 Jan 2020)
83	RS is a continuing House; **1/3 retire every 2 years**. LS = **5 years** unless dissolved. During a National Emergency (राष्ट्रीय आपात), LS may be extended **one year at a time** (**83(2)**), not beyond 6 months after the Emergency ends
85	President summons, prorogues, dissolves LS. Maximum **6 months** between two sessions
108	**Joint sitting** (संयुक्त बैठक) only for an **ordinary Bill** on which the Houses disagree. **Speaker** presides. **Never** for a Money Bill or a 368 Amendment Bill. Actually used only **three** times (1961, 1978, 2002)
109	**Procedure** (प्रक्रिया) for a Money Bill: introduced in **LS only**; RS has **14 days** to return recommendations; LS may accept or reject them
110	**Definition** of a Money Bill (tax, borrowing, Consolidated Fund, charged expenditure (भारित)…). **Speaker's certificate is final**. Do not swap 109 and 110
112	Annual Financial Statement (वार्षिक वित्तीय विवरण) — the Constitution's name for the **Union Budget**
123	President's **Ordinance** when **both Houses are not in session (पंगु सत्र)**. Same force as an Act; laid before Parliament; dies **6 weeks** after reassembly unless approved
124	Supreme Court. Judge retires at **65**. Removed by the same special-majority address as impeachment (**124(4)**)
131	SC **original** jurisdiction: Centre vs State(s), State vs State
136	SC may grant **special leave to appeal** from any court/tribunal (except armed-forces courts)
141	Law declared by the Supreme Court is binding on **all courts** in India
143	President may ask the SC for an **advisory** opinion — the opinion is **not binding**
148	**CAG** appointed by the President; 6 years or age **65**; removed like an SC judge; **no further office** under Union or State
151	CAG's Union reports go to the **President** (laid in Parliament); State reports go to the **Governor** (laid in the State legislature)
153	There shall be a Governor; **one person may be Governor of two or more States**
155–156	Governor appointed by the **President**; term **5 years**; holds office during the **pleasure of the President**
159	Governor's oath — before the **Chief Justice of that State's High Court** (not the CJI) — form in **Art. 159, not the 3rd Schedule**
161	Governor's pardon: only for offences against **State law**. **No** court-martial. Death sentence: he may commute/remit; **pardon of death** sits with the President under 72
163	State CoM aids and advises the Governor, except where the Constitution gives the Governor **discretion**
164	CM appointed by the Governor; CoM collectively responsible to the **Legislative Assembly**. Size cap **15% of the LA** (floor **12**) — 91st Amd
165	**Advocate-General of the State** — qualified to be an HC judge; pleasure of the **Governor**. This is **not** the Election Commission (निर्वाचन आयोग) (that is 324)
168	Every State has a Legislature; some are bicameral (Assembly + Council)

Art.	One-liner
169	Parliament may **create or abolish** a Legislative Council if the State Assembly so resolves (special majority). A Council is **abolished**, never "dissolved"
200	Governor may assent to a State Bill, withhold, return (except Money Bill), or **reserve it for the President**
201	On a reserved Bill the President may assent, withhold, or direct a return
213	Governor's Ordinance when the State Legislature is **not in session** (parallel to 123)
214	A High Court for each State (a common HC for two or more States is allowed)
217	HC judge appointed by the President; retires at **62** (SC is 65)
226	High Court writs for Fundamental Rights **and for any other purpose** — **wider than Art. 32**
239	A UT is administered by the President through an **Administrator**
239AA	NCT **Delhi** Assembly and CoM (**69th Amd, 1991**). **Public order, police and land** stay with the Centre
243A	**Gram Sabha** (ग्राम सभा) = persons on that village's **electoral roll**, exercising such powers as the State law gives
243D	Reservation in Panchayats: SC/ST in proportion to population (जनसंख्या); women **not less than one-third** (many States, including UP, have raised this to **50% by State law**)
243E	Panchayat term **5 years**; if dissolved, election within **6 months**
243K	**State Election Commission** — Panchayat rolls and elections. Governor appoints; removed like a **High Court judge**. **Not** the ECI (324)
243ZA	The **same** SEC conducts **municipal** elections
243ZD	**District Planning Committee** in every district; at least **4/5** of members elected from PRI + ULB members
243ZE	**Metropolitan Planning Committee** for a million-plus area; at least **2/3** elected
244	**244(1)** = Fifth Schedule (5वीं अनुसूची) (Scheduled Areas). **244(2)** = Sixth Schedule (6वीं अनुसूची) (AMTM tribal areas)
245	Parliament may make laws for the whole or any part of India; a State Legislature for that State
246	Subject-matter: **7th Schedule** — List I Union, List II State, List III Concurrent. In a clash, Union law prevails (with 254 nuances)
248	**Residuary** (अवशिष्ट) matters (not in State or Concurrent Lists) = **Parliament**. Same idea as Union List **Entry 97**. Borrowed from **Canada**, not the USA (where residuary is with the States)
249	If **Rajya Sabha** resolves by **2/3 of members present and voting (गणपूर्ति)** that a State-List matter is in national interest, Parliament may legislate on it for **one year** (renewable)
250	During a **352** Emergency, Parliament may legislate on the **State List** (राज्य सूची) for the emergency area; such laws lapse **six months** after the Emergency ends
252	If **two or more** State Legislatures pass resolutions, Parliament may legislate for those States on a State-List matter; other States may adopt later
253	Parliament may make any law to implement a **treaty / international agreement** — even on a State-List subject
254	Concurrent List clash: **Union law prevails**. A State law reserved for and **assented to by the President** can operate in that State until Parliament legislates again
262	Parliament may provide for **inter-State river** dispute adjudication and may **bar** the Supreme Court and other courts
263	President **may** establish an **Inter-State Council**. Actually set up by Presidential Order on **28 May 1990**, on **Sarkaria's** recommendation — **not Punchhi (पुंछी आयोग)'s**
265	No tax except by **authority of law**
266	**266(1) Consolidated Fund** of India / of each State (revenues, loans). **266(2) Public Account (लोक लेखा)** (provident funds, deposits — not voted as tax)
267	**Contingency Fund** (आकस्मिकता निधि) — advances pending authorisation of Parliament/Legislature
280	**Finance Commission** (वित्त आयोग): President constitutes every **5th year** (or earlier). Chair + **4** members. Recommends how to share Union taxes with States. Report goes to the **President**, not to NITI (नीति) Aayog (नीति आयोग). First chair: **K.C. Neogy**
300A	No person shall be deprived of **property** save by authority of law. A **legal / constitutional right**, **not** a Fundamental Right. **44th** deleted old Art. 31 and 19(1)(f)
310	Civil servants hold office during the **pleasure** of the President / Governor
311	Pleasure is limited: no dismissal by an authority **subordinate** to the appointing authority; reasonable opportunity of hearing (with listed exceptions)
312	**All-India Services** (IAS, IPS, IFoS). Rajya Sabha must resolve by **2/3 present and voting**; then Parliament may create a new AIS
315	UPSC for the Union; SPSC for a State; a **Joint** PSC for two or more States if those States request and **Parliament** so provides
316	UPSC: President appoints. SPSC: **Governor** appoints. Term **6 years or 65** (UPSC) / **6 years or 62** (SPSC)
317	A PSC member is **removed by the President** (even an SPSC member) after a Supreme Court inquiry on misbehaviour
321	Extra functions may be given to a PSC by the **Legislature** of that State (or Parliament for UPSC). **2021 fact:** UPPSC's functions are extended by the **UP Legislature**, not the President
323A	Parliament may set up **administrative tribunals** (CAT/SAT) for service disputes — Part **XIVA**
323B	Tribunals for other listed matters (tax, land reforms, elections to the Legislature, etc.)
324	**Election Commission** (निर्वाचन आयोग) — superintendence of elections to **Parliament, State Legislatures, President and Vice-President**. **Not** Panchayat/ULB polls. CEC removed like an **SC judge**; other ECs only on the **CEC's recommendation**
325	One general **electoral roll**; no special roll on religion, race, caste or sex
326	LS and Assembly elections on **adult suffrage**. Citizen, **18 years** (**61st Amd**, in force **28 Mar 1989**; originally 21)
327	Parliament may make law on LS/LA elections — **RPA 1950** (rolls) and **RPA 1951** (conduct) live here
329	Courts shall not interfere in electoral matters except by an **election petition** as provided by law
330 / 332	SC/ST reserved seats in the **Lok Sabha** (लोकसभा) / **State Assembly**, in proportion to population
335	Claims of SC/ST to services, consistent with efficiency of administration
338	**National Commission for Scheduled Castes** (constitutional). SC list = Art. **341**
338A	**National Commission for Scheduled Tribes** (89th Amd, 2003). ST list = Art. **342**
338B	**National Commission for Backward Classes** as a **standing constitutional** body (**102nd Amd, 2018**). Central SEBC list = Art. **342A**. This is **not** Art. **340**
340	President **may** appoint an **ad hoc** commission to **investigate** the condition of backward classes (Kalelkar 1953, Mandal 1979). It is **not** the standing NCBC
343	Official language of the **Union** = **Hindi in Devanagari** script; international form of Indian numerals
348	Authoritative language of the Supreme Court, High Courts and Bills/Acts is **English**, unless Parliament / the Governor (with the President's consent) provides otherwise
351	Union's **duty to promote Hindi** as a medium of the composite culture of India
365	If a State fails to comply with Union **directions**, the President **may** hold that the government of the State cannot be carried on — a ground for **356**
368	Parliament's power and **procedure** to amend the Constitution. Special majority; some federal clauses also need **half the State Legislatures**. *Kesavananda*: this power **cannot destroy basic structure**. **No joint sitting, no Ordinance**

Art.	One-liner
370	Temporary provisions for Jammu & Kashmir. Made **inoperative** on **5 Aug 2019**; J&K and Ladakh (लद्दाख) became UTs
393	Short title: "the Constitution of India"
394	Some articles in force from **26 Nov 1949**; the rest from **26 Jan 1950**
395	Repeals the Indian Independence Act (अधिनियम), 1947 and the Government of India Act, 1935 (as specified)

Art. 371–371J — which State (UP has none)

Art.	State / fact
371	Maharashtra and Gujarat — development boards (Vidarbha, Marathwada, Saurashtra, Kutch…)
371A (अनु. 371A)	**Nagaland** — Parliament's Act on Naga (नागा) religion/custom/land applies only if the **Assembly** agrees
371B	**Assam** — committee of MLAs from tribal areas
371C	**Manipur** — Hill Areas committee; Governor's responsibility
371D	Andhra Pradesh and Telangana — equitable public employment and education
371E	Andhra Pradesh — Parliament may establish a Central University
371F	**Sikkim** (statehood 1975)
371G	**Mizoram** — parallel to 371A for Mizo (मिज़ो) custom/land
371H	**Arunachal Pradesh** — Governor's special responsibility for **law and order**
371I (अनु. 371I)	**Goa** (गोवा) — Assembly **not less than 30** members
371J	**Karnataka** — Hyderabad-Karnataka / **Kalyana-Karnataka** development board

Emergency Articles

Art.	Fact
352	**National Emergency.** Grounds today: war, external aggression, or **armed rebellion** (44th dropped "internal disturbance" after 1975). President acts only on the **written** recommendation of the **Union Cabinet** (not the PM alone). Each House must approve within **1 month** by **special majority** = majority of **total membership** (सदन की कुल सदस्य संख्या का) + **2/3 of members present and voting**. Then it runs **6 months** at a time
353	Union may give States executive **directions**; Parliament's power extends while 352 is on
354	President may modify **268–279** revenue distribution while 352 is on
355	Union's **duty** to protect States and ensure constitutional government (use before 356 — Punchhi)
356	President's Rule — constitutional machinery failed. Both Houses, **2 months**, **simple** majority. **6 months**; max **3 years**. First: **Punjab 1951**
357	Parliament / President legislates for the State under 356
358	During a 352 Emergency on **war or external aggression** (not armed rebellion), Art. **19** is **automatically** suspended — no separate Presidential order needed. When the Emergency ends, 19 revives
359	The President **may by order** suspend the right to **move a court** to enforce named Fundamental Rights, during any National Emergency. After the 44th he **cannot** name Arts. **20 or 21**. So: 358 = Art. 19 goes to sleep by itself (war/aggression only). 359 = other FRs' **enforcement** can be frozen by order, except 20 and 21
360	Financial Emergency (वित्तीय आपात) — threat to financial stability/credit. Both Houses, **2 months**, simple majority. Until revoked. **Never imposed**. Can cut **even judges'** salaries
83(2)	LS life +**1 year** at a time during 352; not beyond **6 months** after it ends
250	Parliament on **State List** during 352; such laws lapse **6 months** after
365	Disobeying Union directions → may treat 356 as attracted

Used 352:1962 (China) · **1971** (Pakistan) · **1975–77** (internal disturbance). **360: never.**

Election Articles

Art.	Fact
54–55	President — elected MPs + elected MLAs; STV; nominated **out**
66	VP — **both Houses** including nominated; **no State MLAs**
80 / 81	RS composition · LS composition
324	ECI — superintendence of President, VP, Parliament, State **Legislature** elections. CEC removed **like SC judge**
325	One general electoral roll — no special roll on religion/race/caste/sex
326	LS / LA on adult suffrage; citizen, **18** (**61st**, in force **28 Mar 1989**; was 21)
327	Parliament may make election law for LS/LA (RPA 1950/1951 live here)
328	State Legislature may fill gaps if Parliament has not
329	Courts barred; election of a member only by **election petition**
329A	39th Amd's election-of-PM shield — **struck** in *Indira Gandhi (गांधी)* 1975; later repealed
330 / 332	SC/ST reserved seats LS / LA
243K	SEC — Panchayat polls; Governor appoints; removed like **HC judge**
243ZA	Same SEC — municipal polls
243D / 243T	Reservation in PRIs / ULBs

Trap: Panchayat polls = **324**. **No — 243K, SEC.** Trap: VP college = same as President. **No MLAs.**

Writs

Writ	Literal	When
Habeas Corpus	to have the body	Illegal detention; **public or private** respondent

Writ	Literal	When
Mandamus (परमादेश)	we command	Compel a **public duty**. **Not** vs President/Governor personally, private person, or a mere contract
Prohibition (प्रतिषेध)	to forbid	Lower **judicial / quasi-judicial** body exceeding jurisdiction — issued **before** the order
Certiorari (उत्प्रेषण)	to be certified	**Quash** an order already made — **after**
Quo Warranto (अधिकार-पृच्छा)	by what authority	A person in a **substantive public office** created by law; any person may ask
	Art. 32	**Art. 226**
–	----------	----------
Court	Supreme Court	High Court
Scope	**FR only**	FR **+ any other purpose** (wider)
Itself a FR?	**Yes**	No
During 359	Enforcement can be suspended (except 20/21)	Same Presidential order can reach HC too

Constitutional Amendments — year one-liners

Amd	Year	One-liner
1st	**1951**	Nehru (नेहरू)'s reply to *Champakam* (caste quotas vs 15/29) and zamindari strikes. Inserted **15(4)** (SEBC/SC/ST special provision), widened **19(2)/(6)**, added **31A/31B** and the **9th Schedule** (first **13** Acts). *Shankari Prasad* upheld it
7th	**1956**	**States Reorganisation** (in force **1 Nov 1956**): killed Part A (ए)/B/C/D States; picture then **14 States + 6 UTs**. Also **350A** (अनु. 350A) (mother-tongue at primary stage) and **350B** (अनु. 350B) (one Special Officer for linguistic minorities for all India). **350B is 7th, not 9th**
9th	**1960**	India–Pakistan **Berubari** boundary transfer. This is an **amendment number**, not the **9th Schedule**
21st	**1967**	**Sindhi** added to the 8th Schedule (14 → 15 languages)
24th	**1971**	Parliament's answer to *Golaknath*. Inserted **13(4)**: a 368 amendment is **not** "law" under 13. **368(1)**: Parliament **may** amend any provision. President **shall** assent to a 368 Bill (no pocket veto)
25th	**1971**	After *R.C. Cooper* (Bank Nationalisation): "compensation" in old Art. 31 became "**amount**". Born **31C** for laws giving effect to **39(b) and 39(c)**
26th	**1971**	**Privy purses** of former princes abolished (Art. **363A**). Not "26 January"
35th / 36th	**1974 / 1975**	35th = Sikkim as an **"associate State"** (old 10th Schedule). **36th** = Sikkim full statehood, **22nd State, 26 Apr 1975**, Art. **371F**; that old 10th Schedule repealed
38th / 39th	**1975**	Emergency-era insulation of the President's satisfaction; **39th** put the PM's election beyond judicial review via **329A** — *Indira Gandhi* **struck 329A(4)(5)**
42nd	**1976**	Called the **Mini-Constitution** (Swaran Singh). Preamble: added **Socialist, Secular**, and "unity **and integrity**". Added Fundamental Duties (**51A**, then 10). Added DPSP **39A, 43A, 48A**. Added Part **XIVA** (tribunals). Stretched **31C** to all DPSP (*Minerva* struck that stretch). Inserted **368(4)(5)** "amendment cannot be questioned in court" (*Minerva* struck those too). Year cue **1976**, not 1978
44th	**1978**	The Janata **undo** of the Emergency. "Internal disturbance" → **armed rebellion**. National Emergency only on **written Cabinet** advice. Arts. **20 and 21** can no longer be suspended. Property ceases to be a FR → **300A**. Lok Sabha can force-revoke a 352 proclamation
52nd	**1985**	**10th Schedule** anti-defection
61st	**1988** (w.e.f. **28 Mar 1989**)	Voting age **21** → **18**
69th	**1991**	NCT **Delhi** (239AA)
71st	**1992**	Konkani, Manipuri, Nepali
73rd / 74th	**1992** (in force **1993**)	Part IX / IXA · 11th=29 · 12th=18
86th	**2002**	**21A** + 51A(k) + 45 recast
89th	**2003**	NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) split (338A)
91st	**2003**	CoM **15%**; defection merger = **2/3**
92nd	**2003**	Bodo, Dogri, Maithili, Santhali
96th	**2011**	Oriya → **Odia**
97th	**2011**	Co-ops, Part **IXB**, 43B — State co-ops later clipped (*Rajendra N. Shah*)
99th	**2014**	**NJAC** — struck **16 Oct 2015**
101st	**2016**	GST; levy from **1 Jul 2017**; **279A**
102nd	**2018**	NCBC **338B**
103rd	**2019**	**EWS 10%** (15(6)/16(6)) — upheld *Janhit Abhiyan*
104th	**2019** (effect **25 Jan 2020**)	Anglo-Indian LS/LA nomination **ends**; SC/ST reservation in Houses **extended**
105th	**2021**	Restores State power to identify **SEBCs**
106th	**2023**	Women **33%** in LS/LA — **after delimitation**, 15 years

Basic-structure ladder (2024/2021): *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → **24th** 1971 → *Kesavananda* **24 Apr 1973** 13-judge **7:6** → *Indira Gandhi* 1975 → *Minerva* 1980.

Important Constitutional Timelines

Date	Fact
1773	Regulating Act (रेगुलेटिंग एक्ट) — GG of **Bengal** (Hastings (हेस्टिंग्स)); SC Calcutta **1774**
1784	Pitt — Board of Control
1833	GG of **India**; Law Member (Macaulay)
1858	Crown; GG also Viceroy (वायसराय)

Date	Fact
1861	Indian Councils + Indian High Courts Act (Allahabad (इलाहाबाद) HC **1866**)
1892	Budget discussion; questions
1909	Morley-Minto (मॉर्ले-मिंटो) — **separate electorates**
1919	Montagu-Chelmsford (मांटेग्यू-चेम्सफोर्ड) — **dyarchy** (द्वैध शासन) in provinces; Chamber of Princes
1935	Provincial autonomy; federal scheme (never fully); RBI; Federal Court **1937**
9 Dec 1946	Constituent Assembly (संविधान सभा) first sitting (Sinha; later Rajendra Prasad)
29 Aug 1947	Drafting Committee — **Ambedkar** (अम्बेडकर) Chair; adviser **B.N. Rau**
26 Nov 1949	Adopted (अंगीकृत). Some Arts. in force the same day (5–9, 60, 324, 366, 367, 393…)
26 Jan 1950	Constitution in force. Republic Day (Purna Swaraj (पूर्ण स्वराज) date **1930**)
18 Jun 1951	**1st Amendment**
1951–52	First general election
1 Nov 1956	SRC (आयोग) / **7th Amd**
1962 / 1971 / 25 Jun 1975	Three National Emergencies; last revoked **21 Mar 1977**
24 Apr 1973	*Kesavananda* — basic structure; 9th Sch. review cut-off (*Coelho*)
1976 / 1978	**42nd** / **44th**
1985	52nd — 10th Schedule
28 Mar 1989	Voting age 18
24 Apr 1993 / 1 Jun 1993	73rd / 74th in force
9 Nov 2000	Uttarakhand (उत्तराखंड) (not 1 Nov — that is Chhattisgarh)
2002	86th — 21A
1 Jul 2017	GST levy
5 Aug 2019	Art. 370 inoperative; J&K + Ladakh UTs
16 Oct 2015	NJAC struck
2023	106th women reservation (not yet operational)

Constitutional Doctrines

Doctrine	One-liner
Basic Structure	*Kesavananda* 24 Apr **1973**, 13-judge **7:6** — Parliament may amend any article; **cannot** destroy basic structure
Eclipse	A **pre-1950** law that clashes with a Fundamental Right is not wiped out — it goes **dormant**. If the FR is later amended so the clash disappears, the old law **wakes up** (*Bhikaji Narain*). Post-Constitution laws that clash are simply **void**, not eclipsed
Severability	If only **one clause** of an Act is unconstitutional, that clause is struck and the rest of the Act **survives** if it can stand alone (*R.M.D. Chamarbaugwalla*)
Waiver	You **cannot** sign away your Fundamental Rights. They exist for public interest, not as a private bargain (*Basheshar Nath*)
Pith and substance	To decide whether a law belongs to the Union List or the State List, look at its **true character**, not at a stray incidental overlap with the other list
Colourable legislation	If the Constitution forbids the legislature to do X, it cannot do X by dressing it up as Y. "What you cannot do **directly**, you cannot do **indirectly**"
Territorial nexus	A State tax may reach an extra-territorial fact if a real **nexus** exists
Repugnancy (254)	On Concurrent List, **Union law prevails** (President-assented State law can operate in that State until Parliament re-enters)
Occupied field	Once Union occupies a Concurrent field, State law must not collide
Harmonious construction	Read FR and DPSP so both live (*Minerva* — 31C cannot swallow 14/19 for *all* DPSP)
Incidental / ancillary	A list-entry carries power reasonably needed to make it work
Prospective overruling	*Golaknath* — the 1967 rule applied **forward**, old amendments stood
Pleasure (310)	Union/State civil servants hold office during pleasure — **subject to 311**
Procedure established by law	Art. 21's words (Japan). *Gopalan* = any valid procedure; *Maneka* = fair, just, reasonable. Still **not** the US due-process clause
Proportionality	Restriction on 19/21 must be suitable, necessary, balanced
Essential religious practices	*Shirur Mutt* — what is **essential** to a religion is protected; secular activity is regulable
Constitutional morality	*Navtej* line — Constitutional values bind even a popular majority
Rule of Law	Dicey: no arbitrary power · equality before law · Constitution (in India, *result* of rights) as the source. *Kesavananda* listed it in basic structure
Separation of powers	Not the US wall. Functions are distinct; *Kesavananda* still treats the doctrine as basic
Checks and balances	Each organ can restrain the others (review, no-confidence (अविश्वास प्रस्ताव), impeachment, Ordinance limits)
Stare decisis	Art. **141** — SC declares the law
Reading (रीडिंग) down	Save a statute by narrowing it rather than striking it
Manifest arbitrariness	A law can fail Art. 14 for being arbitrary (*Shayara Bano* / triple talaq line)

Oaths & Affirmations

Who	Form lives in	Swears before
President	Art. **60** — **not** 3rd Sch.	**CJI** (or senior-most SC judge)
Vice-President	Art. **69** — **not** 3rd Sch.	**President**
Governor	Art. **159** — **not** 3rd Sch.	**Chief Justice of that State's High Court** (or senior-most HC judge)

Who	Form lives in	Swears before
Union / State Ministers	**3rd Schedule** — **office + secrecy** (two forms)	President / Governor
MPs / MLAs (and candidates)	**3rd Schedule**	President or person appointed / Governor or person appointed
SC judges (incl. CJI)	**3rd Schedule**	**President**
HC judges (incl. CJ)	**3rd Schedule** (Art. **219**)	**Governor**
CAG	**3rd Schedule**	**President**
AG / SG / AdvG / CEC / EC / UPSC–SPSC	**Not** named in 3rd Sch.	Appointing-authority practice

Resignation one-liners (oath's twin): President → **VP (56)**. VP → **President (67)**. Governor → **President (156)**. SC/HC judge → **President**. Speaker LS/LA → **Deputy**. RS Chairman **is** the VP → resigns as VP to the **President**, not to the Deputy Chairman.

Trap: Governor's oath = CJI. **State HC Chief Justice.** Trap: President's oath is in the 3rd Schedule. **Art. 60, outside it.**

Borrowed Features (Country-wise)

Largest structural (संरचनात्मक) source is not a country:Government of India Act, 1935 — federal scheme, office of Governor, judiciary, Public Service Commissions, Emergency provisions, administrative detail.

Source	What India took
UK	Parliamentary government · Cabinet · Rule of Law · legislative procedure · **single citizenship** · bicameralism · parliamentary privileges · **prerogative writs**
USA	Fundamental Rights · **judicial review** · independence of judiciary · impeachment of President · removal of SC/HC judges · Preamble's form · Vice-President's office · equal protection
Ireland	**DPSP** (राज्य के नीति निदेशक तत्व) · nomination of RS members · **method of electing the President**
Canada	Federation with a **strong Centre** · **residuary powers with the Centre** · Centre appoints Governors · **advisory jurisdiction** of the Supreme Court
Australia	**Concurrent List** (समवर्ती सूची) · freedom of trade and commerce (Part XIII) · **joint sitting** of the two Houses
USSR / Russia	**Fundamental Duties** (मौलिक कर्तव्य) · Preamble's **social, economic and political justice**
France	**Republic** · Preamble's **Liberty, Equality, Fraternity**
Weimar Germany	Suspension of Fundamental Rights during **Emergency**
South Africa	**Amendment procedure** (368) · election of **Rajya Sabha** members
Japan	**Procedure established by law** (Art. 21)

Trap: Residuary = USA (States). **Canada / Centre.** Trap: DPSP = USA. **Ireland.** Trap: Duties = Ireland. **USSR.** Trap: Joint sitting = UK. **Australia.** Trap: "Procedure established by law" = USA due process. **Japan**; USA is due process.

Common Traps

Trap	Correct
Part XI = Municipalities / Tribunals	**IXA** / **XIVA**
AG sits in Part XIII	**Part V**, Art. 76
9th Schedule = RS seats	**4th** Schedule
8th has Bhojpuri	**22**, Bhojpuri **out**
11th = 18 subjects	**29** / 12th = **18**
6th Schedule includes UP	**AMTM only**
Art. 32 wider than 226	**226 is wider**
VP elected like the President	**No MLAs**
352 ground still "internal disturbance"	**Armed rebellion** (44th)
360 has been used	**Never**
358 kills all FR	Only **Art. 19**, and only war/aggression
359 can freeze 21	**Cannot** (44th)
Panchayat polls = ECI / 324	**SEC / 243K**
President's oath = 3rd Schedule	**Art. 60**
Governor oath = CJI	**State HC CJ**
42nd = 1978	**1976**; 44th is 1978
9th Amd = 9th Schedule	Amd = **Berubari**; Schedule = **1st Amd**
106th is already filling seats	Waits **delimitation**
Residuary = USA/States	**Canada / Centre**
DPSP = USA	**Ireland**
Joint sitting = UK	**Australia**

Practice Zone — UPPCS Format Drill

> **Answers hidden.** Full stems (not cryptic stubs). **155 questions** (Q1–70 number map · Q71–140 name map · Q141–155 gap-fill). ≥60% multi-statement / application. Mix: A/R, Match List, chronology, NOT-correctly-matched.

Complete PYQ Bank (Topic 26) — Parts, Schedules, Amendments

UPPCS Prelims 2025, Q24 — Part XI — Municipalities is **NOT** matched. Municipalities = **IXA**.

UPPCS Prelims 2025, Q102 — 8th Schedule: Nepali, Dogri, Bodo **in**; **Bhojpuri out**.

UPPCS Prelims 2025, Q113 — Seventh / Eighth / Ninth / Tenth → Lists / Languages / Validation of Acts / Defection.

UPPCS Prelims 2023, Q1 — Tribunals ≠ Part XI. Tribunals = **XIVA**.

UPPCS Prelims 2023, Q7 — Ninth ≠ RS seats. RS seats = **Fourth**.

UPPCS Prelims 2022, Q89 — 3rd Oaths · 4th RS · 7th Lists · 8th Languages.

UPPCS Prelims 2020, Q110 — Attorney-General ≠ Part XIII. **Part V.UPPCS Prelims 2024** — *Kesavananda* chronology; 42nd = **1976**.

UPPCS Prelims 2025 — 42nd Preamble words = **Socialist, Secular** (not Sovereign / Republic — those were original).

UPPCS Prelims 2021 — *Golaknath* → 24th → *Kesavananda* → 42nd.

UPPCS Prelims 2022 — RTE = **86th**, not 103rd; NCT Delhi = **69th**.

UPPCS Prelims 2024 — GST = **101st**; local bodies = **73rd + 74th**.

Mains link (one frame)

A one-liner sheet is a **match-list**, not a second Laxmikanth. **Number map:** Part XI is not municipalities; 4th Schedule (चौथी) is RS, 9th is land-reform validation; 226 is wider than 32; 352/356/360 are three switches; 324 is not 243K. Ireland DPSP, Canada residuary, Japan procedure, Australia joint sitting. Oaths: President **60** / VP **69** / Governor **159** live outside the Third Schedule.

Bodies · Committees · Offices · Cases · Parliament · UP

Quick Revision — Spine Only (bodies · Parliament · cases · UP)

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CONSTITUTIONAL: 76 AG · 148 CAG · 165 AdvG · 243I/Y SFC · 243K/ZA SEC · 263 ISC
 279A GST Council · 280 FC · 315 UPSC/SPSC · 324 ECI · 338/A/B NCSC/ST/BC · 350B linguistic
 NITI is NOT here. NHRC/NCW are NOT here.

STATUTORY: Lokpal 2013 · CVC 2003 (Santhanam 1962 → exec 1964) · CIC RTI 2005 · NHRC 1993
 NGT 2010 · CAT 1985 (rides 323A) · NCW 1990 · NCM 1992 · SEBI 1992 · RBI Act 1934
EXECUTIVE: NITI 1 Jan 2015 · NDC 1952 · CBI = 1963 resolution + DSPE 1946 (not "like CVC")

OFFICES: CEC like SC judge; other ECs only on CEC rec. UPSC 6y/65; SPSC Governor appoints, PRESIDENT removes.
 CAG 6y/65, no further office. AG = pleasure, private practice OK, salary NOT charged. SG = no Article.

COMMITTEES: BR Mehta 1957 3-tier · Ashok Mehta 1977 2-tier · Singhvi 1986 constitutional PR
 Santhanam 1962 = CVC (1963 = PRI finance) · Swaran Singh 1976 duties
 Rajamannar 1969 abolish AIS/356 · Sarkaria 1983–88 keep Centre, ISC · Punchhi 2007–10 localise 356
 ISC constituted 1990 = Sarkaria NOT Punchhi. 1st FC = K.C. Neogy NOT Rajamannar.

PARLIAMENT: PAC 22 (15+7) Opposition chair, CAG. Estimates 30 LS-only, NO CAG. COPU 22 CAG-PSU.
 DRSC 24 × 31 (21+10) 1993. Zero Hour AFTER Question Hour. Adjournment / censure / no-conf = LS only.
 110 = Money Bill definition; 109 = RS 14 days. CAB: either House, no joint sitting, President shall assent.

CASES: Gopalan 1950 → Maneka 1978. Golaknath 1967 ≠ Basic Structure. Kesavananda 24 Apr 1973 7:6.
 Jabalpur 1976 Khanna dissent. Bommai 1994 floor test. NJAC struck 16 Oct 2015. Navtej = s.377 IPC.

UP: Capital Lucknow · HC Prayagraj (Lucknow Bench 1948) · LA 403 · LC 100 · LS 80 · RS 31
 Hindi 1951 / Urdu 1989 · UK 9 Nov 2000 · 18 divisions / 75 districts · UPPSC Prayagraj
 SEC Lucknow · CoM ≈ 60 · no 371 · no PESA · Noida ≠ Nigam · 17 SC / 0 ST LS seats
```

Confused pairs (bodies · Parliament · cases · UP)

A	B	Fact	Hindi Terminology
338B NCBC	**340 commission**	**338B** = the standing National Commission for Backward Classes (102nd, 2018). **340** = President *may* name a one-off inquiry (Kalelkar, Mandal). The 2024 paper used 340 as a match — know **both**	राष्ट्रीय पिछड़ा वर्ग आयोग (338B) / पिछड़ा वर्ग जांच आयोग (340)
ECI 324	**SEC 243K**	Parliament / State Houses / President / VP vs **PRI + ULB**	भारतीय निर्वाचन आयोग / राज्य निर्वाचन आयोग
NHRC	**NCSC**	Statutory 1993 vs Constitutional **338**	राष्ट्रीय मानवाधिकार आयोग / राष्ट्रीय अनुसूचित जाति आयोग
NITI	**FC 280**	Executive think-tank **2015** vs tax-share Commission	नीति आयोग (2015) / वित्त आयोग (अनु. 280)
CAG	**PAC**	Audits and **reports** vs **examines** the report	कैग (लेखापरीक्षक) / लोक लेखा समिति (समीक्षा)
PAC	**Estimates**	22, both Houses, CAG, Opposition chair vs **30, LS only, no CAG**	लोक लेखा समिति / प्राकलन समिति
Art. 110	**Art. 109**	Money Bill **definition** vs RS **14-day** procedure	धन विधेयक परिभाषा / धन विधेयक विशेष प्रक्रिया
Sarkaria	**Punchhi**	ISC **1990** vs 2007–10 (Council already existed)	सरकारिया आयोग (1983) / पुंछी आयोग (2007)
Santhanam 1962	**Santhanam 1963**	**CVC** vs **PRI finances**	संथानम समिति (सीवीसी) / संथानम समिति (पंचायती राज वित्त)
Golaknath	***Kesavananda***	FR cannot be amended vs FR can, **basic structure** cannot	गोलकनाथ 1967 / केशवानंद भारती 1973
Navtej	**Art. 377**	**s.377 IPC** vs transitory **CAG** clause	नवतेज जौहर (धारा 377) / अनुच्छेद 377 (कैग संक्रमण)

A	B	Fact	Hindi Terminology
UPPSC	**UP SEC**	Prayagraj, recruitment vs Lucknow, **local polls**	उत्तर प्रदेश लोक सेवा आयोग / राज्य निर्वाचन आयोग

Frame

Number map first, then the **name map**: who is constitutional, who is only an Act, which committee said what, which case held what, which House device does what — plus the **UP pin**.

Constitutional Bodies

Art.	Body	One-liner
76	Attorney-General	SC-judge qualify; **pleasure** of President; speak, **no vote**; private practice OK except vs GoI; salary **not** charged
148	CAG	6y or **65**; removed like **SC judge**; **no** further office; reports → President/Governor → House; India is **Auditor after spend**, not UK Comptroller
165	Advocate-General	HC-judge qualify; pleasure of **Governor**
243I / 243Y	State Finance Commission	**Governor**, every **5 years**; same body for PRIs **and** ULBs
243K / 243ZA	State Election Commission	PRI + ULB polls; Governor appoints; removed like **HC judge**
263	Inter-State Council	President **may**; set up **28 May 1990**; **PM** chairs; **Sarkaria**, not Punchhi
279A	GST Council (जीएसटी परिषद)	Union FM chairs; Centre **1/3** + States **2/3**; 3/4 weighted; **101st**
280	Finance Commission	President; Chair+**4**; every **5th year**; 1st = **K.C. Neogy**; report to **President**, not NITI
315	UPSC / SPSC / JPSC	UPSC: President; 6y/**65**. SPSC: **Governor** appoints, **President** removes. JPSC: **Parliament** if States request
321	Extra SPSC functions	**State Legislature** (2021 UP fact) — not President / DoPT
324	Election Commission	Parliament + State **Legislatures** + President + VP. **Not** PRI/ULB. First CEC **Sukumar Sen**. First woman CEC **V.S. Ramadevi (1990)**. CEC like SC judge; other ECs **only on CEC's recommendation**
338 / 338A / 338B	NCSC (राष्ट्रीय अनुसूचित जाति आयोग) / NCST / NCBC	Lists **341 / 342 / 342A**. NCBC constitutional from **102nd, 2018** (was statutory 1993)
339(1)	Ad hoc Scheduled-Areas commission	**Not** NCST
340	Ad hoc BC investigating commission	Kalelkar / Mandal — **not** standing NCBC
344	Official Language Commission	Time-bound (Kher **1955**)
350B	Special Officer, Linguistic Minorities	**One** officer for all India; **7th Amd**, not 9th

Independence toolkit (not every body gets all): charged salary · removal like SC judge · conditions not varied to disadvantage · bar on further office.

Trap: ECI = Art. 165. **165 = AdvG.** Trap: FC = 263. **263 = ISC.** Trap: standing NCBC = 340. **338B**; 340 = inquiry.

Statutory · Executive bodies

Kind	Test	Raata
Constitutional	Born in the **Constitution**	ECI, UPSC, FC, CAG, AG, GST Council, NCSC/ST/BC, SEC, SFC, ISC, 350B
Statutory	Born in an **Act**	Lokpal (लोकपाल) **2013** · CVC **2003** · CIC/SIC **RTI 2005** (आरटीआई 2005) · NHRC (राष्ट्रीय मानव अधिकार आयोग) **1993** · NGT **2010** · CAT **1985** · NCW **1990** · NCM (असहयोग) **1992** · NCPCR · NCSK · SEBI **1992** · RBI Act **1934** · NIA (राष्ट्रीय अन्वेषण एजेंसी) **2008** · Delimitation Commission
Executive	Resolution / order	**NITI 1 Jan 2015** · Planning Commission (योजना आयोग) **1950** · **NDC 1952** · Law Commission of India
Body	One-liner	
------	----------	
Lokpal (लोकपाल)	2013 Act. Chair + ≤8. Selection: PM + LS Speaker + **LoP LS** + CJI/nominee + jurist — **not** RS Chairman. 5y/70. First: **P.C. Ghose, 2019**	
Lokayukta (लोकायुक्त)	State Act. First **Maharashtra 1971**. UP **1975** + Up-Lokayukta	
CVC	Santhanam **1962** → executive **1964** → Act **2003** (*Vineet Narain*). **No constitutional article** (2020). Chair+2; 4y/65	
CIC	RTI **12 Oct 2005**. 30 days (48h life/liberty). PIO penalty ≤ ₹25,000	
NHRC (राष्ट्रीय मानव अधिकार आयोग)	PHRA **1993** — **statutory, not 338**. Recommendatory	
NGT	2010. Principal Bench **Delhi**. Wildlife Protection (वन्यजीव सुरक्षा) Act **not** in its Schedule	
CAT	1985 Act; **enabled** by 323A — the tribunal itself is still **statutory**. Art. **226 survives**	
NITI (नीति)	Cabinet Resolution **1 Jan 2015**. PM chairs. **Not** FC, **not** constitutional, **does not** allocate Plan funds	
CBI (केन्द्रीय अन्वेषण ब्यूरो)	MHA resolution **1 Apr 1963** + **DSPE Act 1946**. Needs **State consent** (s.6) unless court orders	
NIA	Act **2008**. **No** State consent for scheduled offences	
IB / RAW (रॉ) / ED	IB **1887** MHA · RAW **1968** Kao, Cabinet Secretariat · ED **1956** FEMA/PMLA, Revenue	

Look-alike: "National Commission for …" is **not** automatically constitutional. **NCW / NCM / NCPCR / NCSK = statutory.NCSC / NCST / NCBC = constitutional.**

Upgrade path: CVC executive → statutory 2003 · NCBC statutory 1993 → constitutional **2018** · Planning Commission → **NITI** (still executive).

Important Committees

Committee	Year	One-liner
Fazl Ali (SRC)	**1953–55**	States Reorganisation; **7th Amd / 1 Nov 1956**. Members Kunzru, Panikkar
Kalelkar	**1953**	First BC commission (**340**). Report not fully accepted
Balwant Rai (राई) Mehta (बलवंत राय)	**1957**	**Three-tier** PR; block as the pivot
Santhanam (CVC)	**1962**	Prevention of corruption → CVC **1964**
Santhanam (PRI)	**1963**	**Panchayat finances** — do not mix with 1962
Kothari	**1964–66**	Education; 10+2+3. **Not** the ISC
1st ARC (प्रथम एआरसी)	**1966**	**Morarji Desai (आमिल)** (then Hanumanthaiah). ~20 reports; Lokpal idea
Rajamannar	**1969** (TN)	Residuary to **States**; **abolish AIS**; **repeal 356**; asked for ISC
Mandal	**1979** (report 1980)	27% OBC (अन्य पिछड़ा वर्ग). Implemented 1990 → *Indra (इन्द्र) Sawhney*
Swaran Singh	**1976**	Fundamental Duties (proposed 8; Constitution took **10**)
Ashok Mehta (अशोक मेहता)	**1977**	**Two-tier** (Zila + Mandal); parties; constitutional status; **district** first
G.V.K. Rao (जीवीके राव)	**1985**	District as the first point; PRIs "grass without roots"
L.M. Singhvi	**1986**	**Constitutional** status for PR; Gram Sabha as the base
P.K. Thungon	**1988**	Constitutional status + fixed 5-year term for PR — feeds **73rd**
Tarkunde	**1975**	Jayaprakash Narayan era — electoral reforms (independent ECI, voting age)
Sarkaria	**1983–88**	Strong Centre; **keep AIS & 356**; residuary with **Union**; constitute **ISC**
Punchhi	**2007–10**	Localised 356; strengthen ISC; Art. **201** time-cap. **Did not set up** the ISC
2nd ARC (द्वितीय एआरसी)	**2005–09**	**Veerappa Moily**; 15 reports
NCRWC	**2000**	Justice **Venkatachaliah** — Constitution review
Dinesh Goswami	**1990**	Electoral reforms
Indrajit Gupta (गुप्त)	**1998**	State funding of elections
Anandpur (आनंदपुर) Sahib	**1973**	Akali: Centre limited to defence, foreign, communications, currency

Chronology PR: BR Mehta **1957** → Ashok Mehta **1977** → GVK Rao **1985** → Singhvi **1986**.

Centre–State polarity, in one sentence each:Rajamannar (TN, 1969) wanted residuary powers with **States**, **AIS abolished**, **356 repealed**. **Sarkaria** (Union, 1983–88) wanted a **strong Centre**, **AIS and 356 kept**, and an **Inter-State Council** — which is why the Council that actually appeared in **1990** is tagged Sarkaria. **Punchhi** (2007–10) came **after** that Council already existed; he wanted **localised** 356 and a **time-cap on Art. 201**, not a new ISC.

Trap: ISC = Punchhi. **Sarkaria, 1990.** Trap: 1st FC = Rajamannar. **K.C. Neogy.** Trap: Santhanam = only CVC. There is also a **1963 PRI-finance** Santhanam.

Constitutional Offices (identity one-liners)

Office	Appoint	Age / term	Remove	Resigns to
President	Electoral college (54)	5y	Impeachment **61**	**VP**
VP	Both Houses (66)	5y	RS resolution + LS agree	**President**
Governor	President	5y / pleasure	Pleasure	**President**
PM / CM	President / Governor	House confidence	House	President / Governor
CJI / SC judge	President (Collegium)	**65**	Impeachment 124(4)	**President**
CJ HC / HC judge	President	**62**	Same as SC	**President** (oath was Governor)
CEC	President (2023 panel **sans CJI**)	6y / **65**	**Like SC judge**	President
EC	Same	6y / 65	**Only on CEC's recommendation**	President
CAG	President	6y / **65**	Like SC judge	President
UPSC Chair	President	6y / **65**	Like SC judge	President
SPSC Chair	**Governor**	6y / **62**	**President** (SC inquiry on misbehaviour)	**Governor**
AG	President	Pleasure	Pleasure	President
AdvG	Governor	Pleasure	Pleasure	Governor
SG	Executive	—	—	**No Article**
SEC	Governor	As State law	Like **HC judge**	—
Speaker LS / LA	House	House life	House	**Deputy Speaker**

Oath twin: President **60**/CJI · VP **69**/President · Governor **159**/**State HC CJ**. Ministers/MPs/judges/CAG = **3rd Schedule**.

Supreme Court Cases (one-liners)

Year	Case	What was challenged · what the Court held
1950	*A.K. Gopalan*	Preventive detention under a valid Act. Held: Art. 21 is satisfied by **any procedure in a valid law**. Arts. 19, 21 and 22 were read **separately** ("silos") — not as one liberty code
1951	*Shankari Prasad*	Was the **1st Amendment** (9th Schedule, 15(4)) void as "law" under Art. 13? Held: **No.** Art. **368 can amend Fundamental Rights**
1951	*Champakam Dorairajan*	Madras caste-based medical admissions vs Arts. 15/29. Held: the quota failed. Directly produced the **1st Amd / Art. 15(4)**
1960	*Berubari* (Art. 143 reference)	Giving the Berubari Union to Pakistan. Held: cession of Indian territory needs a **constitutional amendment**, not an ordinary Act. Also held (then) that the **Preamble is not part** of the Constitution — *Kesavananda* later reversed that bit
1965	*Sajjan Singh*	**17th Amendment** (more Acts into the 9th Schedule). Held: valid, same as *Shankari*. Justice **Mudholkar** first hinted at "basic features"

Year	Case	What was challenged · what the Court held
1967	*Golaknath*	11-judge, **6:5**. Held: Fundamental Rights **cannot be amended**; a 368 amendment is "law" under 13. Applied **prospectively** (old amendments stood). **This is not the Basic Structure case** — that is *Kesavananda*
1973	*Kesavananda Bharati*	**24 April 1973**, 13-judge, **7:6**. Held: Parliament **may** amend any article, including FR, but **cannot destroy the basic structure**. Preamble **is** part of the Constitution. 24th Amd upheld, with that cap
1975	*Indira Nehru Gandhi vs Raj Narain*	39th Amd had put the PM's election beyond court review (**329A(4)(5)**). Held: that clause **struck**. Free and fair election is basic structure
1976	*ADM Jabalpur* (*Habeas Corpus* case)	During the Emergency, could a detainee ask for habeas if Art. 21 was suspended? Majority: **no**. Justice **H.R. Khanna** dissented. *Puttaswamy* 2017 says the majority was **wrong**. 44th later locked Arts. **20 and 21** as unsuspendable
1978	*Maneka Gandhi*	Passport impounded without a fair hearing. Held: the "procedure" in Art. 21 must be **fair, just and reasonable**. Arts. **14, 19 and 21** are read **together**. Still not the US due-process clause
1980	*Minerva Mills*	42nd Amd had said a 368 amendment cannot be questioned in court (**368(4)(5)**) and had stretched 31C to **all** DPSP. Held: both **struck**. 31C survives only for **39(b) and 39(c)**. Limited amending power + FR–DPSP harmony = basic structure
1981	*Waman Rao*	Cut-off for 9th Schedule review = **24 Apr 1973** (*Kesavananda* date)
1981	First Judges (*S.P. Gupta*)	On appointing HC/SC judges, "consultation" with the CJI did **not** mean concurrence. **Executive primacy**
1992	*Indra Sawhney* (Mandal)	**27% OBC** quota in Union services **upheld**. Ceiling **50%** (except extraordinary). **Creamy layer** of OBCs excluded. **No reservation in promotion** (77th Amd later restored SC/ST promotion via 16(4A))
1992	*Kihoto Hollohan*	10th Schedule (anti-defection) **valid**. But para 7 (total bar on courts) **struck**. The Speaker's defection order **can be reviewed** by a court
1993	Second Judges	"Consultation" = **concurrence**. SC appointments by a **Collegium of CJI + 2** senior-most SC judges
1994	*S.R. Bommai*	President's Rule (**356**) is **justiciable**. Majority is tested on the **floor of the House**, not in Raj Bhavan. Do **not** dissolve the Assembly before Parliament approves 356. Secularism is basic structure, so a communal ministry can justify 356
1997	*Vishaka*	No statute yet on workplace sexual harassment. Court laid **binding guidelines** under 14/15/19/21 until Parliament passed the **POSH Act, 2013**
1998	Third Judges (Art. 143 advice)	SC Collegium enlarged to **CJI + 4**. For HC judges: **CJI + 2**
2006	*Rameshwar Prasad*	Bihar Assembly dissolved on a mere **apprehension** of horse-trading, without a floor test. **Struck**
2007	*I.R. Coelho*	9-judge. A law put in the 9th Schedule **after 24 Apr 1973** can still be struck if it damages **basic structure**. 9th Schedule is not a "law-free island" after that date
2013	*Lily Thomas*	RPA **s.8(4)** gave sitting MPs/MLAs a **3-month cushion** after a conviction. **Struck**. A conviction of **2 years or more** (s.8(3)) disqualifies **at once**
2013	*PUCL*	Voters must be able to reject all candidates. **NOTA** button on the EVM. NOTA **counts**; it does **not** elect anyone
2015	*Shreya Singhal*	IT Act **s.66A** (arrest for "offensive" online speech) **struck** as vague and as chilling Art. **19(1)(a)**
16 Oct 2015	NJAC (*Supreme Court Advocates-on-Record Association*, Fourth Judges)	**99th Amendment** (NJAC) struck **4:1**. Judicial independence is basic structure. **Collegium returns**; NJAC text is dead
2016	*Nabam Rebia*	Arunachal. A Governor **cannot** advance or summon (आहूत करना) a sitting so as to help one faction remove the Speaker
2017	*Puttaswamy*	9-judge. **Privacy** is a Fundamental Right inside Art. **21** (and 14/19). *Jabalpur* majority expressly disapproved
2018	*Navtej Johar*	**Section 377 of the Indian Penal Code** — criminalising consensual adult same-sex relations — **unconstitutional**. This is **not Article 377** of the Constitution. Art. 377 is a transitory clause about the **Auditor-General / CAG**
2018	*Joseph Shine*	IPC **s.497** (adultery as a crime, husband as the only aggrieved person) **struck**. Adultery can still be a **civil** ground in matrimonial law
1986	*M.C. Mehta (Oleum gas leak)*	A hazardous industry owes **absolute (निरपेक्ष) liability** (no *Rylands* exceptions). A clean environment is read into Art. **21**

Ladder: *Shankari* 1951 → *Sajjan* 1965 → *Golaknath* 1967 → 24th 1971 → *Kesavananda* 1973 → *Indira* 1975 → *Minerva* 1980.

Judges: 1981 executive → 1993 CJI+2 → 1998 CJI+4 → 2015 NJAC dead.

Parliamentary Terms

Term	One-liner
Question Hour (प्रश्न काल)	**First hour**. Starred = oral + supplementary. Unstarred = written
Zero Hour (शून्य काल)	**Immediately after** Question Hour. Indian innovation **1962**. No voting (2021)
Calling Attention	Indian innovation. Minister states; no voting. Both Houses
Adjournment (स्थगन) Motion (स्थगन प्रस्ताव)	**Lok Sabha only** (Rajya Sabha has no such motion). To drop listed business and discuss a **definite, factual, urgent** public matter. Needs **50 members** to admit. Implies **censure** of the government. Not admitted if the matter is sub judice
Censure Motion	**Lok Sabha only**. **Must state reasons.** May target **one minister**, a group, or the whole Council. If passed, resignation is not automatic in theory — unlike no-confidence — but it is politically fatal
No-confidence (अविश्वास प्रस्ताव)	**Lok Sabha only** (Art. 75(3)). **Need not state reasons.** Needs **50 members** to admit. If passed, the **entire Council of Ministers must resign**. Only one such motion at a time
Privilege Motion	Breach of privilege / contempt → Privileges Committee
Cut motions (कटौती प्रस्ताव)	On **Demands**, LS only: Policy **₹1** · Economy specified · Token **₹100**
Guillotine	Remaining demands voted **en bloc** when time is up
Point of Order	Rules / Constitution inside the House — **not** merits. Chair **final**
Motion of Thanks	On Art. 87 address. Defeat in LS = loss of confidence
Whip	Party direction to vote. 10th Schedule: defy a whip on a **confidence / money / 10th-Sch.** vote → defection
Quorum (गणपूर्ति)	**1/10** of total membership (Art. **100** / **189**)
Lame-duck session	Sitting after a new LS is elected but before the old House is done — India rarely uses the US sense
Hung House (त्रिशंकु सदन)	No party/pre-poll alliance has a majority. Sarkaria invite: **pre-poll** → **largest party** → **post-poll**, then **floor test**
Snap poll	Early general election after dissolution (विघटन)
Crossing the floor	Leave the party you were elected on — 10th Schedule territory
Pro tem Speaker	Administers oath to new LS; elected by convention as senior-most; **not** in the Constitution by that name
Leader of Opposition	Largest opposition party with ≥ **10%** of House strength (salary statute). Recognised by Speaker/Chairman
Prorogation (सत्रावसान)	Ends a **session**. Bills do **not** lapse. **Dissolution** (विघटन) ends the **LS** — some Bills lapse

Term	One-liner
Vote on Account	Advance grant for a **few months** (usually ~**2/12** of annual) when the full Budget cannot be passed before 31 Mar. **LS only**
Vote of Credit	Blank-cheque grant for an **unexpected** demand (war) — amount not specified in detail
Exceptional Grant	One-off special purpose, not part of ordinary service of the year
Excess Grant	Spent **more** than voted — PAC (लोक लेखा समिति) first, then LS vote, then Appropriation
Charged vs voted	Charged (President, judges, CAG, debt…) is **discussed, not voted**. Voted = Demands for Grants
Three funds	**CFI 266(1)** · **Public Account 266(2)** · **Contingency Fund 267**
Joint sittings held	Only **three**: Dowry Prohibition **1961** · Banking Companies **1978** · POTA **2002**. Presiding = **Speaker**
Office of profit	Arts. **102 / 191**. Parliament/State law may **exempt**. Joint Committee advises
NOTA	*PUCL* **2013**. Counts; **cannot** elect a candidate
Speaker's casting vote	Only on a **tie** (Art. 100). Does not vote in the first instance

Parliamentary Committees

Committee	Strength	Chair / fact
PAC	**22** = 15 LS + 7 RS	Opposition LS member (since **1967**). **CAG** reports. Born **1921**
Estimates (प्राकलन समिति)	**30 — all LS, no RS**	Ruling party. **No CAG**. Born **1950**. Often "largest" among the **financial three**
COPU	**22** = 15+7	CAG on **PSUs**. Born **1964**
DRSC	**24** committees × **31** (21 LS + 10 RS)	**1993**. 16 under Speaker, 8 under RS Chairman. Recommendatory
BAC	LS **15** incl. Speaker	Allots **time**
Privileges	LS 15 / RS 10	Breach / contempt
Ethics	RS **1997**, LS **2000**	Conduct of members
Subordinate Legislation	LS 15 / RS 15	Rules under an Act — intra vires?
Government Assurances	LS from **1953**	Promises on the floor
Petitions	—	Public petitions
Office of Profit	Joint	Which offices are **exempt** from DQ
Consultative Committees	—	**Extra-constitutional**; Ministry of Parliamentary Affairs — **not** a House committee

Standing = continuous. **Ad hoc** = Select (one House) / Joint (both) on a **specific Bill**, then die.

No minister on PAC / Estimates / COPU / DRSC. Members by PR-STV, usually **1 year**.

Trap: Estimates has RS members. **No.** Trap: PAC chair = ruling party. **Opposition.** Trap: DRSC can move cut motions. **Cannot.**

Bills

Bill	Where introduced	RS power	Joint sitting	President
Ordinary (107)	Either House	Amend / reject	**Yes (108)**	Assent / withhold / **return once**
Money (110 def / 109 proc)	**LS only** + President's rec.	**14 days**, recommendatory	**Never**	**Cannot return**
Financial I (117(1))	**LS only** + rec. for introduction	Amend / reject	Yes	Can return
Financial II (117(3))	Either House; rec. for **consideration**	Amend / reject	Yes	Can return
Finance Bill (वित्त)	Annual tax Bill with Budget; usually **certified Money Bill**; **75 days**	as Money Bill	No	as Money Bill
Appropriation (114)	**Money Bill**. No amendment of amount/destination	14 days	No	Cannot return
CAB (368)	**Either House**. Special majority each; some need **half the States**	Equal House	**Never**	**Shall assent** (24th)
Art. 3	Either House + President's rec.	Equal	Yes (ordinary)	—
Private Member	Non-minister; **Fridays**; 1 month's notice	Same stages	—	—

Expressly NOT a Money Bill (110(2)): fines · licence fees · **local** taxes.

Lapse on LS dissolution: pending in LS · passed by LS pending in RS. **Does not lapse:** pending only in RS (never passed LS) · pending **assent** · joint sitting already summoned. **Prorogation does not lapse Bills.**

Trap: 109 = definition. **110 = definition; 109 = procedure.** Trap: CAB in RS is illegal. **Either House.** Trap: Money Bill can start in RS. **Never.**

UP Polity Quick Facts

Pin	Fact
Capital / Raj Bhavan / Vidhan Bhavan	**Lucknow** (लखनऊ)
High Court	Principal seat **Prayagraj** (प्रयागराज) (Letters Patent **17 Mar 1866**; first sat **Agra** (आगरा), to Allahabad **1869**). First CJ **Walter Morgan**
Lucknow Bench	**1948** amalgamation; Chief Court of Oudh **1925**. Permanent **Bench**, not a second HC. Classical **12 Avadh** districts
LA	**403** (was **425**). Largest in India. Age 25. Speaker resigns to Deputy
LC	**100** = 36 local + 8 graduates + 8 teachers + 36 MLAs + 12 nominated. Cannot be **dissolved** (can be **abolished**, 169). Age 30
LS / RS from UP	**80 / 31** (were 85 / 34). **17 SC, 0 ST** LS seats
CoM cap	**15% of 403 ≈ 60** including CM (91st)
Presidential vote-value	UP MLA = highest (textbook **208**)
Language	Hindi Devanagari **1951**; Urdu second **1989**. Region **A**
Uttarakhand (उत्तराखंड)	**9 Nov 2000** (not 1 Nov). Born **Uttaranchal**; rename **1 Jan 2007**. First Governor **Barnala**, first CM **Nityanand Swami (स्वामी)**. **13** districts. HC **Nainital** (नैनीताल)

Pin	Fact
Divisions / districts	**18 / 75**. Faizabad → **Ayodhya** (अयोध्या). Devipatan HQ **Gonda**
UPPSC	**Prayagraj**, **1937**. Governor appoints; **President** removes; **62**/6y; functions by **UP Legislature (321)**
UP SEC (राज्य निर्वाचन आयोग)	**Lucknow**. 243K+ZA. Removed like **HC judge**
UP SFC	Governor, 5y, 243I+Y
Lokayukta	UP Act **1975** (Maharashtra 1971 first). Classically **8 years**, no reappointment
PR	Gram (**Pradhan**) → **Kshetra** (**Pramukh**) → Zila (**Adhyaksha**). Acts **1947 / 1961**. Women **50%** (State; Constitution floor 1/3). **No PESA**. Gram Sabha = **electoral roll**
ULB	Nigam 1959 · Palika/Panchayat 1916. Mayor (महापौर) ≠ **Nagar Ayukt**. Cantonment = Defence. **Noida / GNIDA / YEIDA ≠ Nigam** (243Q)
Not UP	**No Art. 371**. **No 5th/6th Schedule (6वीं अनुसूची)**. Manipur LA is **60** not 62

First Governor **Sarojini Naidu** (1947). First CM **G.B. Pant**. First woman CM **Sucheta Kripalani** (1963).

Common Traps (bodies · Parliament · cases · UP)

Trap	Correct
Standing NCBC = 340	**338B**; 340 = Kalelkar/Mandal **inquiry**
NHRC / NCW = constitutional	**Statutory**
NITI = FC / constitutional	**Executive, 2015**
ECI conducts Nagar Nigam polls	**SEC**
SPSC removed by Governor	**President**
AG salary charged / impeached	**Pleasure**; not charged
SG is in Art. 76	**No Article**
ISC = Punchhi	**Sarkaria, 1990**
Rajamannar = 1st FC	**K.C. Neogy**
Estimates = both Houses / CAG	**LS only, no CAG**
PAC chair = ruling party	**Opposition** since 1967
Zero Hour = first hour	**After** Question Hour
109 = Money Bill definition	**110**
CAB needs joint sitting	**Forbidden**
Golaknath = Basic Structure	***Kesavananda* 1973**
Navtej = Art. 377	**s.377 IPC**; Art. 377 = **CAG**
UP LA = 425 / LS = 85	**403 / 80** after 9 Nov 2000
Noida = Nagar Nigam	**243Q industrial township**
Joint sitting used for every deadlock	Only **three** times; never for Money/CAB
NOTA wins the seat	Counts; **elects nobody**
Vote on Account = Vote of Credit	Advance months vs **blank-cheque** emergency

Complete PYQ Bank (Topic 26) — Bodies, Parliament, Cases, UP

UPPCS Prelims 2024, Q125 — Body–article match. 165 = AdvG, 148 = CAG, 263 = ISC. Standing NCBC = **338B**; **340** = investigating commission — learn both.

UPPCS Prelims 2021 — Inter-State Council constituted after **Sarkaria**, not Punchhi.

UPPCS Prelims 2021, Q133 — UPPSC functions extended by **UP Legislature** (321).

UPPCS Prelims 2021, Q81 — SPSC member removed by **President** after SC enquiry.

UPPCS Prelims 2021, Q141 — Zero Hour = time **immediately after** Question Hour.

UPPCS Prelims 2019, Q33 — Money Bill **defined** in **Art. 110**.

UPPCS Prelims 2021, Q37 — Money Bill **cannot** be first introduced in RS.

UPPCS Prelims 2023, Q17 — Panchayat elections = **SEC**. No "Panchayati Raj Commission of India."

UPPCS Prelims 2023, Q14 — UP RS **31** and LS **80**. Both true.

UPPCS Prelims 2022, Q14 — Manipur **62** is the NOT-matched pair (actual **60**).

UPPCS Prelims 2018, Q148 — LC can be **abolished**, not dissolved.

UPPCS Prelims 2018 — *Navtej* = **s.377 IPC**, not Art. 377.

UPPCS Prelims 2020 — CVC has **no** constitutional article.

UPPCS Prelims 2025, Q42 — PAC reports to the **Lok Sabha** (CAG-examining, Opposition chair).

Practice Zone — Bodies, Parliament, Cases, UP

Mains link (one frame)

Number map then **name map**. Close on: **338B is not 340**; **ECI is not SEC**; **PAC has the CAG, Estimates does not**; **110 defines a Money Bill (धन विधेयक), 109 times the Rajya Sabha**; ***Kesavananda* 1973 is Basic Structure, *Golaknath* is not**; ***Navtej* is s.377 IPC**. Joint sitting has been used only **three** times. UP pin: **403 / 100 / 80 / 31** · Lucknow = government + SEC · Prayagraj = HC + UPPSC · **9 Nov 2000**.

Uttarakhand — Topic 1 — Constitutional Framework

📋 Must-Score Facts (High-Yield UKPCS)

1. **Assembly Reservation Architecture:**
   \text{Total Seats: 70} = \text{General (55)} + \text{SC Reserved (13)} + \text{ST Reserved (2: Chakrata \& Nanakmatta)}
2. **Lok Sabha Representation (5 Seats):**
   Out of 5 Lok Sabha seats, **Almora** (अल्मोड़ा) is exclusively reserved for **Scheduled Castes (SC)**. The remaining four (चातुर्याम) (Tehri, Garhwal, Haridwar, Nainital-US Nagar) are unreserved general constituencies.
3. **State Executive Composition (UKPCS 2025 Q139):** The executive consists of the Governor (Head of State under Article 153/154) and the Council of Ministers headed by the Chief Minister (Article 163/164). Both arms are co-constitutive of the executive branch.
4. **Harbans Kapoor Record (UKPCS 2025 Q141):** Senior Dehradun legislator who uniquely discharged the duties of **Speaker** (2007–2012) and **Protem Speaker** on more than one occasion in the Uttarakhand Assembly.
5. **N. D. Tiwari Landmark:** The only Chief Minister in the entire history (इतिहास) of Uttarakhand to complete an unbroken full 5-year tenure (2002 to 2007).

Quick Revision — Spine Only

Head	Constitutional & Institutional Key
State Created	**9 November 2000** as **Uttaranchal** (27th State); renamed **Uttarakhand** (उत्तराखंड) on **1 Jan 2007**
Legislature	**Unicameral** (Vidhan Sabha (विधानसभा) only; no Legislative Council)
Vidhan Sabha Seats	**70 elected seats** (Anglo-Indian nominated seat abolished by 104th CAA 2019)
SC Reserved Seats (13)	Purola, Rajpur Road, Jhabrera, Bhagwanpur, Jwalapur, Tharali, Pauri (पौड़ी), Ghanshali, Bageshwar (बागेश्वर), Gangolihat, Someshwar, Nainital (नैनीताल), Bajpur
ST Reserved Seats (2)	**Chakrata** (Dehradun (देहरादून)) and **Nanakmatta** (Udham Singh Nagar (ऊधम सिंह नगर))
Lok Sabha (लोकसभा) Seats (5)	Tehri (टिहरी) Garhwal (गढ़वाल), Garhwal (Pauri), **Almora (अल्मोड़ा) (SC Reserved)**, Nainital-US Nagar, Haridwar (हरिद्वार)
Rajya Sabha (राज्यसभा) Seats	**3 seats**
State Executive	**Governor** (Constitutional Head) + **Chief Minister & Council of Ministers** (Real Executive)
First Governor	**Surjit Singh Barnala** (9 Nov 2000 – 8 Jan 2003)
First CM (Interim)	**Nityanand Swami (स्वामी)** (9 Nov 2000 – 29 Oct 2001)
First Elected CM	**Narayan Datt Tiwari (N. D. Tiwari)** (2002–2007) — only CM to complete 5 years
First Speaker (Interim)	**Prakash Pant**
First Speaker (Elected)	**Yashpal Arya** (2002)
First Woman Speaker	**Ritu Khanduri Bhushan** (elected March 2022)
First Woman Governor	**Margaret Alva** (2009–2012) (UKPCS 2025 Q135)
Speaker + Protem Multiple Times	**Harbans Kapoor** (UKPCS 2025 Q141)
First Chief Justice	**Justice Ashok Abhaiendra Desai (आमिल) (A. A. Desai)**
First Chief Secretary	**Ajay Vikram Singh**
First Chairman UKPSC	**N. P. Navani**
First DGP (Police)	**Ashok Kant Sharan**

Master Table of First Office-Holders in Uttarakhand

Constitutional / Statutory Office	First Person to Hold Office	High-Yield Prelims Details
Governor of Uttarakhand	**Surjit Singh Barnala**	Appointed by President K. R. Narayanan on 9 Nov 2000.
Woman Governor	**Margaret Alva**	4th Governor of UK (2009–2012); 1st woman Governor.
Chief Minister (Interim)	**Nityanand Swami**	Sworn in on midnight of 9 Nov 2000; replaced by B. S. Koshyari.
Chief Minister (Elected)	**Narayan Datt Tiwari**	Sworn in March 2002 after first general Vidhan Sabha elections.
Chief Justice (High Court)	**Justice A. A. Desai**	Consecrated at Nainital High Court on 9 Nov 2000.
Speaker (Interim Assembly)	**Prakash Pant**	Presided over the 30-member interim assembly.
Speaker (Elected Assembly)	**Yashpal Arya**	Elected March 2002 during the 1st elected assembly.
Woman Speaker of Assembly	**Ritu Khanduri Bhushan**	Elected March 2022 (Kotdwar MLA).
Advocate General (महाधिवक्ता)	**L. P. Naithani**	Appointed under Article 165 (Mehrban Singh Negi was interim).
Chief Secretary	**Ajay Vikram Singh**	Head of State Civil Administration.
Chairman, UKPSC	**N. P. Navani**	Appointed under Article 315 at Gurukul (गुरुकुल) Kangri (गुरुकुल कांगड़ी), Haridwar.
Chief Election Commissioner	**Durgesh Joshi**	State Election Commission (निर्वाचन आयोग) for Panchayats & Municipalities.
Chief Information Commissioner (CIC)	**Dr. R. S. Tolia**	Pioneered RTI implementation; former Chief Secretary.
Chairman, State Finance Commission (वित्त आयोग)	**R. K. Dhar**	Recommended local body tax devolution.
Director General of Police (DGP)	**Ashok Kant Sharan**	Head of Uttarakhand Police.
First Lokayukta (लोकायुक्त)	**Justice S. H. A. Raza**	Anti-corruption ombudsman.

Confused Pairs & Common Traps

Confused Pair	Critical Distinction
Nityanand Swami vs N. D. Tiwari	Nityanand Swami = **1st interim CM (2000)**; N. D. Tiwari = **1st elected CM (2002)**.
Prakash Pant vs Yashpal Arya	Prakash Pant = **1st interim Speaker**; Yashpal Arya = **1st elected Speaker**.
Almora Lok Sabha vs Garhwal Lok Sabha	Almora is **SC reserved**; Garhwal is **General**.
Chakrata vs Nanakmatta	Both are the only **ST reserved Vidhan Sabha seats** (Chakrata in Garhwal, Nanakmatta in Kumaon).
Harbans Kapoor vs Govind Singh Kunjwal	Harbans Kapoor = Speaker + **Protem Speaker multiple times**; Kunjwal was Speaker (2012–2017).
Indu Kumar Pandey vs Ajay Vikram Singh	Indu Kumar Pandey = later Chief Secretary & Finance Commission head; Ajay Vikram Singh = **1st Chief Secretary (2000)**.

Uttarakhand — Topic 2 — Public Services, PSC & Auditing

📋 Must-Score Facts

1. UKPSC = state PSC.
2. Advocate General ≠ Attorney General of India.
3. First AG often listed as Nanda Ballabh Tiwari — still verify against the specific stem.
4. Do not confuse State Finance Commission (वित्त आयोग) chair with PSC chair.
5. Fund articles belong with the Funds chapter, not this PSC card.

▶ ⚡ **Confused Pairs** (Click to Expand)

Current Affairs (this topic)

- UKPSC notification / recruitment news can refresh PSC identity stems.
- Keep Advocate General vs Attorney General (महान्यायवादी) as a permanent title trap.

Quick Revision — Spine Only

Head	Key
UKPSC	State Public Service Commission (राज्य लोक सेवा आयोग) for civil services recruitment
Advocate General	Constitutional law officer of the state (**Art. 165**)
First AG memory	**Nanda Ballabh Tiwari** in many coaching lists
Auditing	State accounts audited under **CAG** (भारत के नियंत्रक-महालेखापरीक्षक) framework; Assembly PAC (लोक लेखा समिति) / Estimates (प्राकलन समिति) on the legislative side
Centre–State	Same federal lists / residual pattern as other states
State funds	Consolidated / Contingency Fund (आकस्मिकता निधि) pattern under Arts. **266–267** — see Funds chapter

Common Traps

1. **Attorney General of Uttarakhand** → wrong title; it is Advocate General.
2. **UKPSC conducts UPSC exams** → separate commissions.
3. **State Finance Commission = UKPSC** → different constitutional / statutory roles.

Uttarakhand — Topic 3 — High Court & Jurisdiction

📋 Must-Score Facts

1. High Court seat = **Nainital**.
2. Mobile vans = courtroom + IT connectivity.
3. Aim = doorstep justice for remote areas.
4. Working description and purpose of mobile courts can both be true in the same stem.
5. Do not relocate the High Court to Dehradun in a seat stem.

▶ ⚡ **Confused Pairs** (Click to Expand)

Current Affairs (this topic)

- Mobile e-court / digital justice news refreshes the 2025 twin-statement pattern.
- Seat of the High Court stays **Nainital** (नैनीताल) — do not relocate it to Dehradun (देहरादून) in seat stems.

Quick Revision — Spine Only

Head	Key
High Court	**Uttarakhand (उत्तराखंड) High Court**, **Nainital**
Jurisdiction	Whole State; writs, appeals, supervisory jurisdiction over subordinate courts
Mobile e-courts	Vans with courtroom + computer + printer + internet visit villages
Purpose	Justice at the doorstep, especially **remote hill** areas
2025 key	**Both** facility statement and purpose statement correct

Common Traps

1. **High Court at Dehradun** → Nainital.
2. **Mobile court = only Lok Adalat camp** → e-court van project is distinct in this stem.
3. **Rejecting statement 1 as future-tense fluff** → keyed true with statement 2.

Uttarakhand — Topic 4 — SC/ST, Minorities & Language

📋 Must-Score Facts

1. Five STs = Jaunsari, Tharu, Bhotia, Buksa, Raji.
2. Declared ST in **1967**.
3. Do not pick 1969/1970 on year stems.
4. Official language card = Hindi.
5. Raji geography detail → Geography UK Topic 6.

▶ ⚡ **Confused Pairs** (Click to Expand)

Current Affairs (this topic)

- Fresh ST / domicile / language notifications can refresh stems — keep the **1967 five** stable unless a stem cites (साइट्स) a later change.
- Hindi remains the official-language teaching card for State polity.

Quick Revision — Spine Only

Head	Key
Five STs	**Jaunsari, Tharu, Bhotia, Buksa, Raji**
Notification year	**1967** (when the region was in UP)
Raji / Vanrawat	Forest-linked PTG memory — Pithoragarh (पिथौरागढ़) (geo card)
Official language	**Hindi**; Sanskrit also recognised in state language politics / coaching notes
Minorities	Same national minority framework; state schemes vary
Special selection / domicile	UKPCS syllabus head — revise current notification when a stem names it

Common Traps

1. **1969 or statehood year 2000 as ST notification** → **1967**.
2. **Adding Garhwali / Kumaoni as ST** → language groups ≠ the five STs.
3. **Raji not among five** → Raji is included.

Uttarakhand — Topic 5 — Funds, Parties & Elections

📋 Must-Score Facts

1. Consolidated Fund ≠ Contingency Fund.
2. Contingency Fund = unforeseen advances (Art. 267(2) idea).
3. Assembly polls → ECI; local polls → SEC.
4. State Finance Commission ≠ UKPSC.
5. Do not invent UK-only fund articles beyond the general state pattern.

▶ ⚡ **Confused Pairs** (Click to Expand)

Current Affairs (this topic)

- Assembly / local-body election calendars refresh ECI vs SEC identity.
- Keep Consolidated vs Contingency Fund as the durable fund pair.

Quick Revision — Spine Only

Head	Key
Consolidated Fund of the State	All revenues / loans received — Arts. **266** pattern
Contingency Fund of the State	Advances for unforeseen expenditure — Art. **267(2)** pattern
Appropriation	Money from Consolidated Fund only after Assembly appropriation
Elections	State Assembly + local body elections under EC / SEC frameworks
Parties	National + state parties contest UK Assembly; anti-defection applies
State Finance Commission	Recommends devolution to Panchayats / municipalities — not UKPSC

Common Traps

1. **All spending directly from Contingency Fund without later regularisation** → advances are later appropriated.
2. **SEC conducts Assembly elections** → ECI does.

Uttarakhand — Topic 6 — Local Government & PR

📋 Must-Score Facts (High-Yield UKPCS)

1. **Uttarakhand Panchayati Raj Amendment Act, 2019:** - **Educational Qualification:**
   - General Candidates: Must have passed **Class 10th (High School)**.
   - SC/ST & Female Candidates: Must have passed **Class 8th** (Class 5th for SC/ST women in Gram Panchayat).
   - **Two-Child Norm:** Anyone having more than two living children after the notified cut-off date is legally disqualified from contesting elections to any tier of Panchayati Raj.
   - **Household Sanitation:** Must have a functional residential toilet.
2. **Panchayat Register Ratta (UKPCS 2025 Q134):** Gram Panchayats are statutorily required to maintain: - *Kutumb / Parivar Register* (Family Register) - *Janam-Mrityu Register* (Birth and Death Register) - *Anudan Register* (Grant / Financial Register) - *(The Health Register is maintained by ANMs / Primary Health Centres, NOT Panchayats).*
3. **50% Women Reservation Benchmark (2008):** In March 2008, Uttarakhand became one of the earliest states to enhance women's reservation in all three tiers of Panchayati Raj from 33% to **50%**.
4. **Van Panchayats (Forest Councils):** Uttarakhand is the **only state in India** with statutory, democratic community forestry institutions. Established under the **Forest Grievances Committee (1921)** headed by P. Wyndham; first formalized under the **Kumaon (कुमाऊँ) Van Panchayat Rules, 1931**. Over 12,000 Van Panchayats manage community forests today.

Quick Revision — Spine Only

Head	Statutory & Institutional Key
UK Panchayati Raj Act	Enacted in **2016** (replaced UP Panchayati Raj Act 1947 adaptation)
2019 Amendment Highlights	**Minimum education** criteria (10th/8th pass) + **Two-child norm** disqualification
Women Reservation	**50% reservation** for women in Panchayats enacted in **2008** (under CM B. C. Khanduri)
3-Tier Structure	**Gram Panchayat** \rightarrow **Kshetra Panchayat (क्षेत्र पंचायत) (95 Blocks)** \rightarrow **Zila Panchayat (13 Districts)**
Van Panchayats (Unique in India)	Originated in **1931** under Scheduled Districts Act following 1921 Forest Grievances Committee
Van Panchayat Women Quota	**50% seats reserved for women** in Forest Council committees
Panchayat Registers Kept	**Family register**, **Birth-Death register**, **Grant register** (UKPCS 2025 Q134)
Register NOT by Panchayat	**Health Register** (maintained by State Health Department)
Asian Mayors' Conference 2006	Held at **Dehradun** (देहरादून) (UKPCS 2025 Q133)
Nagar Nigams (9 Corporations)	Dehradun, Haridwar (हरिद्वार), Haldwani, Roorkee, Kashipur, Rudrapur, Rishikesh (ऋषिकेश), Kotdwar, Srinagar Garhwal (गढ़वाल)

Rural Local Governance: Three-Tier Hierarchy

Governance Tier	Administrative Unit	Political Executive	Bureaucratic / Executive Secretary
Apex Tier	**Zila Panchayat** (13 in UK)	**Zila Panchayat Adhyaksha** (elected indirectly by members)	**Chief Development Officer (CDO)** / Apar Mukhya Adhikari (AMA)
Intermediate Tier	**Kshetra Panchayat** (95 Blocks in UK)	**Block Pramukh** (elected indirectly by BDC members)	**Block Development Officer (BDO)**
Village Tier	**Gram Panchayat**	**Gram Pradhan** (elected directly by Gram Sabha (ग्राम सभा))	**Gram Panchayat Vikas Adhikari (VPDO)** / VDO

Confused Pairs & Common Traps

Confused Pair	Critical Distinction
Health Register vs Birth-Death Register	Health register is **NOT** maintained by Panchayats; Birth-Death register **IS** maintained by Panchayats.
Asian Mayors' Conference 2006 Venue	Held at **Dehradun** (trap distractors: Mussoorie, Haridwar, Rishikesh).
Women Reservation Year	Increased to **50% in 2008** (trap distractor: 2000 or 2016).
Van Panchayats Origin Year	Conceived in **1921** (Forest Grievances Committee), legislated in **1931** (Kumaon Van Panchayat Rules).
Gram Pradhan vs Block Pramukh Election	Gram Pradhan is **directly elected**; Block Pramukh is **indirectly elected** by Kshetra Panchayat members.

Uttarakhand — Topic 7 — Governance & Rights Schemes

📋 Must-Score Facts (High-Yield UKPCS)

1. **Uniform Civil Code (UCC) of Uttarakhand (2024) Milestones:** - *Drafting Committee Head:* Retired SC Judge **Justice Ranjana Prakash Desai** (constituted May 2022). - *Vidhan Sabha (विधानसभा) Passed:* **7 February 2024**. - *Presidential Assent (Droupadi Murmu):* **11 March 2024**. - *Key Highlights:*
   - Prohibits polygamy and bigamy across all religions.
   - Abolishes practices like *Halala*, *Iddat*, and triple talaq.
   - Guarantees **equal inheritance rights** for sons and daughters.
   - Mandates **registration of live-in relationships** within 1 month.
   - Sets uniform marriageable age: **21 for males, 18 for females**.
   - **Explicit Exemption:** The tribal (आदिवासी) communities (Scheduled Tribes under Art. 366(25)) are excluded from its purview to protect customary tribal traditions.
2. **Uttarakhand Human Rights Commission (UHRC) (UKPCS 2025 Q140):** - Formally constituted on **13 May 2013**. - Headquartered at Dehradun (देहरादून). - 1st Chairperson: **Justice Vijender Jain** (former Chief Justice of Punjab & Haryana High Court). - Core statutory mandate: Inquire into human rights violations and enforce accountability and transparency in public governance.
3. **Uttarakhand Right to Service Act, 2011:** - Enacted on **4 October 2011** (under CM B. C. Khanduri). - Created the **Uttarakhand Right to Service Commission**. - Imposes a daily financial penalty (₹250 to ₹5,000) deducted from the salary of a delinquent Designated Officer who fails to deliver public services (domicile, caste certificates, water connections) within the specified timeframe.
4. **Anti-Cheating / Anti-Paper Leak Act, 2023:** - Enacted as the *Uttarakhand Competitive Examination (Measures for Prevention and Redressal of Unfair Means in Recruitment) Act, 2023*. - Provisions: Offenses are non-bailable and cognizable; organizers of paper leaks face **life imprisonment and ₹10 Crore fine** plus property confiscation; candidates caught cheating are debarred for **10 years**.
5. **Sanskrit as Second Official Language:** In January 2010, Uttarakhand became the **first state in India** to accord **Sanskrit** the status of second official language alongside Hindi.

Quick Revision — Spine Only

Head	Statutory & Institutional Key
Uniform Civil Code (UCC)	**1st State in independent India** to pass UCC (**7 Feb 2024**; Presidential Assent **11 March 2024**)
UCC Expert Committee	Headed by retired Supreme Court Judge **Justice Ranjana Prakash Desai (आमिल)**
UCC ST Exemption	**Scheduled Tribes (STs) are strictly exempted** under Article 366(25)
UHRC Commencement	**13 May 2013** (UKPCS 2025 Q140); 1st Chairman: **Justice Vijender Jain**
Right to Service Act	Enacted on **4 October 2011**; mandates notified services within guaranteed timelines
Anti-Cheating Law (2023)	Strictest recruitment exam law in India; **life imprisonment & up to ₹10 Crore fine**
2nd Official Language	**Sanskrit** (declared in **January 2010** under CM Ramesh Pokhriyal 'Nishank')
Primary E-Governance	**Apuni Sarkar (सरकार) Portal** (single window certificate delivery) & **CM Helpline 1905 / Samadhan**
First Chief Information Comm.	**Dr. R. S. Tolia** (pioneered RTI framework in Uttarakhand)
First Lokayukta (लोकायुक्त)	**Justice S. H. A. Raza**

Landmark Legislation & Rights Matrix

Act / Institution	Enactment / Commencement	Presiding Head / Structure	Core Mandate & High-Yield Hooks
Uniform Civil Code (UCC)	Passed: 7 Feb 2024 Assent: 11 Mar 2024	Justice Ranjana Desai Committee	Standardizes marriage, divorce, maintenance, and inheritance; bans polygamy; live-in registration; **exempts 5 Scheduled Tribes**.
Right to Service Act	4 October 2011	Chief Commissioner, RTS Commission	Covers 500+ public services; designated appellate authority; compensation paid to citizen from officer's salary.
Uttarakhand Human Rights Commission	13 May 2013	Chairperson + 2 Members (ex-High Court judges)	Enforces Protection of Human Rights Act 1993; investigates custodial deaths, police excesses, and welfare denial.
Uttarakhand Lokayukta	2011 / 2014 Framework	Lokayukta (Retired SC/HC Judge)	Anti-corruption ombudsman investigating ministers, MLAs, and public servants.
State Information Commission (RTI)	October 2005	Chief Information Commissioner (1st: Dr. R. S. Tolia)	Adjudicates second appeals under RTI Act, 2005; ensures proactive disclosures under Section 4.
Anti-Cheating Act	February 2023	Special Courts designated	Eliminates recruitment corruption; confiscates criminal proceeds; 10-year examination debarment.

Confused Pairs & Common Traps

Confused Pair	Critical Distinction
UCC in Goa vs Uttarakhand	Goa = **Portuguese Civil Code 1867** (inherited colonial law); Uttarakhand = **1st State to enact UCC** by legislative statute in independent India.
UCC Applicability on STs	Scheduled Tribes (Tharu, Jaunsari, Bhotia, Buksa, Raji) are **strictly EXEMPTED** from UCC.
UHRC Commencement Date	Formally constituted on **13 May 2013** (trap distractor: 9 Nov 2000 statehood day).
Right to Service Act Year	Enacted on **4 October 2011** (under B. C. Khanduri).
Sanskrit Official Language Year	Notified as 2nd official language in **January 2010** (not 2000 or 2014).
RTI First Commissioner	1st Chief Information Commissioner was **Dr. R. S. Tolia** (trap: Ajay Vikram Singh).